

IRAQ:

Sectarian violence, military operations spark new displacement, as humanitarian access deteriorates

A profile of the internal displacement situation

23 May, 2006

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OVERVIEW

Iraq: sectarian violence, military operations spark new displacement, as humanitarian access deteriorates

An estimated 81,000 people were forced to flee their homes in a matter of two months by sectarian violence sparked by an attack on the Al-Ashkari shrine in Samarra in February. These newly-displaced people are in addition to more than one million internally displaced people (IDPs) in Iraq, the majority forced out by conflict and human rights violations under the former regime. Sectarian displacements received much attention in the mainstream world media in April 2006, yet equally large-scale population displacements caused by multiple military operations across the country have been largely unreported. Several hundred thousand people were displaced by military operations during 2005. The security situation is tense and new displacements continued to be reported in early May. The potential for further displacement is high, particularly in Baghdad, and other areas of the country with mixed communities. The provinces that are the most affected by new inflows of displaced people include Baghdad, Anbar, Diyala, Najaf and Karbala.

The government, UN and NGOs continue to face great difficulties in assisting IDPs, and at times are unable to access them, or only in an ad hoc manner because of security fears and military-imposed restrictions. The government has set up some camps for the newly-displaced, but the UN has advised against the creation of tented camps, recommending that IDPs stay instead with host families. The quick return of the newly-displaced is perceived as a priority to avoid the consolidation of communities along sectarian lines. Local communities, including extended families and tribal structures, will need support as their capacity to assist IDPs has grown thin, especially in areas which already host significant displaced populations. Thousands of other people displaced by military operations also continue to be vulnerable, and have received inadequate or no compensation assistance at all. NGOs note a decline in donor interest, ironically, at a time when funds to assist the displaced and other persons of concern are the most needed.

Background and main causes

Internal displacements in Iraq are commonly divided into two periods: those occurring before and those occurring after the United States-led invasion that brought about the overthrow of Saddam Hussein's regime in March 2003. The majority of IDPs were displaced prior to the March 2003 conflict. While the causes of displacement under the former regime are no longer present, many of these people remain in need of assistance to find durable solutions. Displacement in Iraq has generally had distinctive regional patterns, outlined below (UNCT August 2004).

Central and northern Iraq

Displacement in and around Kirkuk has had particular political sensitivity as the area contains some of Iraq's biggest oilfields and which ethnic group is in the majority there is a key factor in the political bargaining over the relationship between the primarily Kurdish north and the Arab majority of the rest of Iraq. Following the rise of the Ba'ath party in 1968, large-scale internal displacement took place in the centre and north of the country as part of the Iraqi authorities' campaign to neutralise Kurdish aspirations for independence and to strengthen control over some of the world's largest oil reserves. These campaigns involved widespread human rights violations, including the systematic alteration of the ethnic composition of the region.

Until the 1990s, the Iraqi authorities displaced tens of thousands of non-Arabs from Kirkuk and surrounding areas, resettling Arabs in their place under what is referred to as the “Arabisation” campaign. While the Kurds constitute the majority of those displaced, other non-ethnic-Arab Iraqis, including Turkmen and Assyrians, were also forced to flee or to sign a form “correcting their ethnicity” so as to be considered ethnic Arabs (HRW, August 2004). To increase the number of Arabs in the region, incentives, such as free land and houses, many belonging to the evicted Kurds, were offered by the former regime (RI, 21 November 2003; UNCHR, 26 February 1999).

The end of the Iran-Iraq war in 1988 saw an intensification of the atrocities committed against the Kurds. In the course of the “Al-Anfal” campaign, the Iraqi authorities committed mass executions, poisoned entire villages with gas and imposed economic blockades on others (AIJ, December 2002). The genocidal nature of the Anfal campaign differentiates it from the earlier and later Arabisation campaigns (HRW, August 2004). More than 100,000 Kurds are estimated to have been murdered with chemical weapons. During the Anfal campaign the government also deliberately destroyed up to 4,000 Kurdish villages, resulting in massive forced displacements of Kurds. Most were relocated into “collective settlements” within the three northern governorates and some were put into detention camps (USCR 2000, p.187; Dammers 1998, p.181; Fawcett and Tanner, October 2002, pp.8-10; HRW, July 1993).

Another cause of displacement within northern Iraq as well as in areas south of the green line was factional Kurdish in-fighting.[1] Following the 1991 Gulf War, the United States imposed a no-fly zone in the north, which established a de facto autonomous Kurdish region in the northern provinces of Arbil, Sulaymaniyah and Dahuk. Fighting for control of these three governorates between the two main Kurdish parties, the Patriotic Union of Kurdistan (PUK) and the Kurdish Democratic Party (KDP), caused the displacement of hundreds of thousands of people in the early 1990s (UNHCR, August 2004; UNCT, March 2005). Incursions and shelling from neighbouring Turkey and Iran, both countries opposed to the creation of a Kurdish state, also caused internal displacement in the north (UNHCR June 2000; USCR 2001).

The UN estimates around 805,500 individuals (141,200 families) were displaced in the north, the majority between 1974 and 1991 (UNHCR, August 2004; UN Habitat, January 2001). More than 600,000 people are thought to remain displaced in the three northern provinces (IOM/UNOPS, September 2005).

Southern Iraq

The Marsh Arabs constitute the main group of people forcibly displaced in the south during the 1990s owing mainly to the former regime’s campaign to drain the marshland areas. A first stage of displacement occurred with the draining of the central marshes to facilitate movement of military units during the Iran-Iraq war in the 1980s. The marshes underwent further drainage during the 1990s, as part of a campaign against Marsh Arabs who were accused by the authorities of supporting a Shi’a uprising in 1991. The military crushing of the 1991 revolt forced many Shi’ites to flee to the northern protected areas, into Iran, or deeper into the southern marshlands. The campaign included the use of chemical weapons, shelling and burning of villages, assassinations, contamination of water and police raids; large-scale dam projects also displaced many (Fawcett and Tanner, October 2002, p. 28-30; USCR, 2001). In 1992, the government moved some 4,000 Marsh Arabs to houses along the highway between Basra and Al-Qurna (UNCT, March 2005). In the early 1990s, it was believed that 250,000 people lived in the marshes, whereas today it is estimated that the population is less than 20,000 (UNCT, March 2005). The UN estimates that between 100,000 and 200,000 people remain displaced from the marshland areas (UNHCR, August 2004; UNOHCI, 30 June 2003).

Tens of thousands of people were also displaced from their homes on the border with Iran in the south as a result of the Iran-Iraq war in the 1980s. Today it is estimated that at least 80,000 people are still displaced within Basra province (UNCT, August 2004).

Political and religious persecution has been a further cause of displacement of Shi'a political dissidents in the south. Shi'a support for Iran in opposition to the former government was particularly pronounced in the south but also among some Shi'a in the centre (UNHCR, August 2004; IRIN, 21 May 2004). There are no precise estimates of the number of Arab Shi'ites displaced, apart from around 25,000 that the former government admitted to having expelled from Baghdad in 1998 (Fawcett and Tanner, October 2002, p. 33).

Continued displacement since 2003

Two causes of new displacement since the fall of the former regime are military campaigns against insurgents by the US-led intervention forces and their Iraqi allies and inter-communal tensions. In March and April 2006, increased levels of sectarian strife caused tens of thousands of people to flee, according to Iraqi authorities and humanitarian agencies. Figures were initially estimated to be as high as 100,000 people (UNHCR, 26 April 2006; IRIN, 1 May 2006). According to figures from 22 May 2006, the Iraqi authorities and the International Organisation for Migration (IOM) estimate that there are approximately 81,000 people displaced, while displacement was reportedly ongoing (IOM, 22 May 2006). The violence – which escalated dramatically following an attack on the Al-Askari shrine in Samarra at the end of February – has however impeded the collection of accurate figures. Fear for their safety prompted some people to move to areas where they constitute a majority and could count on the protection of their own community (UNAMI, 22 March 2006, p.4). Shi'ites fled mainly from the centre (Baghdad, Anbar and Salah al Din) and headed southwards (Najaf, Qadissya and Karabala). Conversely, Sunnis fled the southern provinces for central areas (Baghdad, Diyala and Anbar) (IOM, 26 April 2006). The violence initially seemed to be a retaliation against Sunnis, as Sunni militants have been widely held responsible for the bombing of the shrine, albeit without proof. Other ethnic and religious minorities were targeted or have felt vulnerable to sectarian attacks. For instance, around 600 Christians (150 families) fled the city of Mosul (Ninewa province) in February 2006 to areas within the province where they constitute a majority (UNAMI, 22 March 2006, p.5). There have also been reports of particular groups of individuals being targeted, including doctors forced to flee the Mosul area after receiving death threats (IRIN, 1 May 2006).

Inter-communal threats and killings in September and October 2005 similarly caused people to flee Baghdad's neighbourhoods although on a smaller scale. Sectarian tensions and targeted violence also reportedly caused displacement during the same period in other cities of the country, including in Tal Afar, Tarmiya, and Basra (UNAMI, 31 October 2005, p.2). Other groups include the Turkmen, who were reported to have fled their places of residence due to fear of attack in 2005 (IRIN, 9 May 2005; AFP, 20 May 2005). In addition, nearly 4,000 Roma, who had been granted special protection by the former regime, faced harassment and were forced off their land by neighbouring communities in April 2003 (IOM, September 2004).

Sectarian displacements received much attention in the mainstream world media in April 2006, yet equally large-scale population displacements caused by multiple military operations across the country have been largely unreported. To date military operations are the main cause of displacement since the fall of the former Iraqi government. The operations, often including aerial bombing, have been led by the US-led Multi-National and Iraqi Forces (MNF/I) with the stated aim of quelling armed insurgency groups. Several hundred thousand people have been forced to flee their homes. Most have been able to move back when fighting lessens. However, in many cases people have been afraid to go back because of ongoing insecurity, or because they have not received the compensation or reconstruction of their houses necessary to restart their lives. For

example, approximately 65,000 people from Fallujah, who were forced to flee the city in November 2004, are still estimated to be displaced (IRIN, 21 March 2006, UNCT, March 2005).

Military operations have caused the most devastation and displacement in western Iraq, in predominantly Sunni areas, where multinational Iraqi forces say the insurgent strongholds are concentrated. During 2005 and early 2006, multinational and Iraqi forces launched regular military offensives in several cities and towns in Anbar province, including Husbaya, Hit, Rawa, Haditha, Fallujah, Ramadi and Al Qa'im. Most of these cities and towns already hosted displaced populations from previous military operations (IRIN, 24 February 2005; UNAMI, 27 February 2005). During the same period, people were displaced because of military operations launched in other parts of the country including in Tal Afar, Karabala, Samarra, Mosul and Kirkuk as well as in areas of Salah al din, Ninewa, Babil and Diyala (UNAMI, 31 August 2005 and 18 May 2005 and 27 February 2005; IRIN, 28 June 2005 and 31 May 2005; ICSC, 13 May 2005; NCCI, 17 May 2006).

The displacements occurring in 2005-2006 followed a similar pattern to the previous year. In 2004, military operations and fighting between US-led military forces and Iraqi insurgents caused displacement in the cities of Fallujah, An Najaf, Kufa, Ramadi, Karabala, Tal'AFar and Samarra (UNSC, 3 September 2004; IRIN, 26 July 2004, 23 August 2004 and 4 January 2005; DPA, 20 August 2004; UNAMI, 25 April 2004; UNCT, August 2004). The biggest displacement occurred in Fallujah, in November 2004, when almost the entire population of the city fled (an estimated 200,000 people), following fierce battles between Coalition troops and insurgents (UNAMI, 13 November 2004; IRIN, 8 November 2004). The November offensive was the second siege of Fallujah, from where 70,000 people had already been forced to flee in April 2004. During the first months of the US invasion in Iraq, thousands of people were also displaced in Anbar, Thi'Qar, Basra and Baghdad by air strikes and urban warfare. Across the country, small numbers of people considered to be living in strategic areas by the military were forcibly displaced by the Coalition Forces (UNCT, August 2004).

Secondary displacements

The spontaneous return of some displaced groups to their areas of origin has also produced secondary displacement of other groups in Iraq. Two significant return movements of displaced Kurds have taken place from the northern governorates (Dahuk, Arbil and Sulaymaniyah) to their places of origin below the "green line" (Tameem, Diyala, Salah Al Din and Ninewa). One movement followed the collapse of the previous regime in April 2003 and a second population movement was reported in August-September 2004, following rumours of a national census that would impact political representation in those areas. Most of these returns were spontaneous, although some are believed to have been encouraged by local political parties (IOM/UNOPS, April 2005 and 8 June 2005; UNCT, March 2005). Arabs who had been settled in these provinces by the former regime under the "Arabisation" policy began to flee these areas, either because they were evicted by the returning Kurdish IDPs or out of fear of harassment and attacks (IRIN; 23 September 2004; HRW, August 2004; UN OHCI, 10 October 2003). Reports by international human rights organisations suggest that major population displacement of Arabs by Kurds returning to traditionally Kurdish areas occurred between April and October 2003 (HRW, August 2004). However, some NGOs that have maintained a long-term presence in the country say that this is an exaggeration, and that the majority of the Arabs living in areas below the green line left prior to the 2003 war (Qandil, 17 May 2006). In many of the villages below the green line to which Kurds returned, nomad tribes only used the land for harvesting or temporary settlements (Qandil, 17 May 2006).

Some refugees returning to Iraq have also become internally displaced upon return to Iraq (UNAMI, January 2005, p.3; IRIN, 21 May 2004 and 7 June 2005; UNCHR, 9 June 2004). The UN refugee agency UNHCR estimates that 310,000 Iraqi refugees have returned to the country,

as of April 2006 (UNHCR, April 2006). A survey undertaken by the agency in the lower southern provinces found that 65 per cent of 56,700 returning refugees surveyed had returned from their country of asylum to a situation of internal displacement (UNAMI, 13 December 2004). UNHCR has continued to refrain from promoting voluntary repatriation to Iraq and called on host governments not to forcefully return Iraqis to the south and centre for reasons of insecurity; the agency has also emphasised that returns to the North should only take place where appropriate conditions were available (UNHCR, September 2005).

A lack of adequate housing, water, electricity, health services, employment opportunities and education has also prolonged displacement among refugees who returned to their areas of origin since 2003. UNHCR returnee monitoring data shows that about 80 per cent of returnees in north Iraq and 35 per cent in the lower south Iraq end up in internal displacement upon return due to lack of basic conditions (UNHCR, April 2006, p.10).

Overall figures

IOM and the UN estimate that more than one million people remain displaced in Iraq today (UNHCR, April 2006, p.4). The overall figure draws from a 2001 survey by the Human Settlements Programme UN-Habitat. However, this figure should be taken with caution. NGOs working in Iraq note that the Habitat survey is outdated and does not represent the current reality, in particular it does not take into account extensive IDP movements after 2003 including returns of Kurds to their areas of origin prior to and after 2003 (Qandil, 17 May 2006). Today, IOM, UN Office for Project Services (UNOPS), and UNHCR monitor population movements in Iraq, although exact statistics are not available because widespread insecurity and ongoing displacement complicate the monitoring of IDP movements. Almost half a million IDPs are estimated to have returned to their areas of origin; the largest return movements have been to or within central Iraq, although many may not have reintegrated, especially in areas which have suffered massive destruction by military operations (UNHCR, April 2006, p.4; IOM, April 2005).

Deteriorating security environment

A report by the UN Iraq Human Rights Office notes “a marked deterioration in the security environment” in January-February 2006; characterised by widespread killings, torture, abductions, extrajudicial executions, arbitrary arrests, illegal detention, assaults and kidnappings (UNAMI, 22 March 2006, p.2). Abuses are being committed by insurgents but there has also been a rise in abuses committed by armed militias, the Iraqi police and special security forces, who act with impunity (UNSC, 7 June 2005). Violence escalated following the bombing of the Al-Askari shrine in Samarra, in particular in Baghdad but also in other areas with mixed populations.

Hundreds of thousands of Iraqis have also been affected by ongoing military activities, especially in the western province of Anbar and Salah al Din (UNSC, 3 March 2006; NCCI, 17 May 2006). Reports by the UN and international human rights organisations suggest that members of the MNF/I and Iraqi Security Forces have been responsible for serious infringements of human rights and humanitarian law, including war crimes (UNSC, 7 June 2005, p.13; HRW, 2005; ICRC, 17 May 2005). MNF/I military raids have been accompanied by restrictions on freedom of movement, excessive use of force, mistreatment and theft during raids on private homes, evictions and demolition of houses (UNSC, 3 March 2006, p.11; UNAMI, December 2005, p.5).

An Iraqi Special Tribunal set up in 2003 began the trial of Saddam Hussein in October 2005. It will also try other senior members of the government responsible for genocide and other massive violations and displacements that were part of the Anfal campaign, the repression following the 1991 Shiite revolt and drainage of the marsh areas. However, human rights groups have criticised the court, questioning whether it complies with international standards (UNHCR, October 2005, p.126-127).

Protection concerns and gaps in assistance

The current level of violence and the ongoing military operations affect the ability of all Iraqis, whether displaced or not, to exercise their fundamental human rights. Surveys undertaken among Iraqi households suggest that the Iraqi population at large has dismal living conditions as a result of decades of wars and sanctions and the current conflict (UNDP/MOPDC, 12 May 2005). Three years have passed since the fall of the former regime, yet the provision of basic services, including electricity and water, is irregular and medical supplies are scarce. According to a recent population survey, around 47 per cent of the Iraqi population is dependent on food rations (WFP, September 2004 and NCCI, 17 May 2006). Food shortages have been particularly acute in areas where military operations have been underway (WFP, May 2005).

Displaced people have limited access to food, health services, education and employment, particularly in areas where there are high numbers of IDPs or remote areas. The UN has identified Baghdad, Anbar, Diyala, Najaf, Karbala, and Salah al Din as among the most affected provinces due to the concentration of new IDP families in these areas. To address the situation of the newly displaced, the government has set up IDP camps in some areas; however, the UN has strongly advocated that the displaced stay with host families and that tented camps only be used as a last resort (UNAMI, 9 May 2006, p.1). Host communities, including families and extended tribes have played an important role in supporting the displaced, including by sharing already limited supplies and infrastructure. However host communities will require support, in particular in areas like Baghdad and Anbar province, where conflict has been acute, exhausting host communities' coping strategies (UNAMI, 9 May 2006, p.1). Tensions between resident communities and IDPs are reported in various areas where frustrations between host and IDP families have grown because of the lack of public and social services (IOM/UNOPS, September 2005).

IDPs are heavily dependent on the public food distribution system and assistance from local authorities and relatives, and may be forced to resort more frequently to child labour. A survey of IDPs in Erbil province found that around 60 per cent of IDPs had a regular income, with a family member employed in casual work like driving taxis. In the governorate of Sulaymaniya, only 36 per cent of IDPs had a source of regular income, the remaining 64 per cent being dependent on the public distribution system (UNHCR, October 2005, p.110). In addition, displaced people have had difficulties accessing the public distribution system because of insecurity, especially in the wake of military operations, and because the registration card to access food rations is linked to the place of origin. Some families have been left without food for months because the system is slow to transfer the registration, and because of food shortages and backlogs (UNHCR, October 2005, p.133; UNSC, 7 Sept 2005, p.9; IRIN, 22 August 2005; NCCI, 17 May 2006).

UN and IOM monitoring of IDP communities identifies housing as a primary need for the displaced, and underlines the need for a national shelter programme. Iraq is short of some 1-1.5 million housing units apart from damaged and illegally occupied property (UNHCR, October 2005, p.2). Many IDPs who returned in April 2003 to areas below the green line, Kirkuk in particular, did not own property and they therefore remain displaced upon return, living in public buildings, including schools and police stations and other makeshift accommodation (UNOPS, May 2003; MoDM, September 2004). In the northern governorates 6,000 families (around 36,000 people) are believed to live in public buildings (UNCT, December 2005). In Baghdad alone, 60,000 people are estimated to live in public buildings (UNCT, December 2005). Statistics for numbers of displaced people living in public buildings in the south are not readily available, but it is estimated that they are higher, particularly in Basra and Thi Qar (UNCT, December 2005). Living conditions in public buildings are extremely harsh, overcrowded and unsanitary and often without electricity (UNHCR, August 2004, 9 March 2004 and 22 October 2003; IOM, September 2004; IRIN, 21

May 2004). Public buildings are also reported to contain landmines and unexploded ordinance (IOM/UNOPS, September 2005).

Displaced people also remain at risk of being evicted from public buildings without the authorities providing them with alternative accommodation. Evictions continue to be reported as the public authorities regain use of public buildings. For instance, displaced families temporarily located in schools and other public buildings were evicted from areas including Tal Afar and western Anbar and Diyala (UNAMI, August 2005). Evicted displaced people end up moving to other public buildings, often in worse conditions than the ones they left because of the shortage of alternative accommodation (UNCT, March 2005).

Clean water for drinking, proper sanitation and basic services present another immediate need, in particular for IDPs living in public buildings and IDP settlements (IOM, September 2004). In some areas, IDP sites are located far from water sources or rely on water from rivers and lakes which makes them vulnerable to water-borne and infectious diseases including typhoid fever, cholera and gastro-intestinal diseases (IOM, April 2005; UNAMI, 13 December 2004). The vulnerability of IDPs to health risks is increased by poorly-built latrines, lack of garbage disposal and overcrowded conditions (IOM, April 2005). Displaced people sheltering in public buildings and camps/settlements have inadequate or no sanitation facilities (UNHCR, October 2005, p.95).

IDPs living in settlements or camps are often far away from health centres. In the area of Huwair in Basra, for instance, more than 2,000 IDP families have to walk for more than 40 minutes to reach the nearest health facility (UNHCR, October 2005, p. 105).

School attendance is reported to be low among IDPs, particularly for girls. There are many reasons, including insecurity, overcrowding, the lack of water and sanitation facilities in schools, the occupation of schools by military forces, the use of schools as temporary shelters for displaced people, the destruction of school structures and child labour (UNAMI, July 2005; IRIN, 3 April 2006). Also, most IDPs living in camps do not have access to schools (IOM/UNOPS, September 2005).

Property and land

The Iraq Property Claims Commission (IPCC), established in January 2004, was initially mandated to address disputes resulting from the wrongful confiscation and reallocation of properties under the former government between 17 July 1968 and 9 April 2003 (UNHCR, September 2004 and August 2004). Following a revision of the statute in June 2004, Arab settlers who lost the properties allocated to them by the former regime as a result of the return of the previous owners after 18 March 2003 were also enabled to submit claims to the IPCC by 30 June 2005 (IPCC, June 2005; Deutschlander, June 2005). The 30 June 2005 deadline for filing property claims was extended to 30 June 2007, to ensure that all displaced people as well as Iraqis outside the country are able to file a property claim.

One principal concern with the commission has been the delays in provision of compensation. As of 30 April 2006, the commission had received over 132,000 claims and adjudicated on fewer than 22,000 (IOM, 17 May 2006). Some compensation has been paid, yet delays are reported in payments and the amounts are insufficient (UNAMI, 29 March 2006; IRIN, 24 May 2005; BBC, 25 April 2005). The commission has faced challenges in carrying out its mandate, including technical and operational obstacles, and threats of violence. In central and northern Iraq, local authorities have in some cases bypassed the commission and allocated land to returnees, but because this has been done on an ad hoc basis there is concern that it could create further tensions and problems in the restitution of property and land to displaced people (IOM/UNOPS, September 2005).

Property claims which lie outside the scope of the commission's statute are also a concern. The current statute does not cover property disputes resulting from the expropriation of land for national or regional projects (IOM, April 2005). A further criticism is that the multinational forces are immune from the jurisdiction of Iraqi courts in matters of liability for housing and land violations (HIC, 16 June 2005). However, in certain cases special compensation mechanisms have been created, for example the Iraqi Central Committee for the Compensation of the People of Fallujah. It is also unclear whether the former regime's destruction of the wetlands, caused by damming and draining, would fall under the mandate of the property commission (IOM, 20 February 2006). Around 50 per cent of the marshlands have been reflooded since April 2003 and no government plan has yet been put together for the restoration, return or resettlement of the Marsh Arabs who formerly lived there (IRIN, 22 August 2005).

It is commonly suggested that the main obstacle to durable solutions for the displaced in the Kirkuk area is linked to property disputes caused by hundreds of thousands of Kurds returning to the area and reclaiming property under control of the Arabs settled in their place by the former regime. However, recent research indicates that disputes between Kurds and Arabs over property rights may not be at the crux of ongoing displacement in Kirkuk (Sacco, 19 May 2006). Most displaced families living in camps and public buildings in Kirkuk appear not to have owned properties before displacement. Most of the claims in Kirkuk are related to government confiscation of land for public works. The study also found that most Arabs never made attempts to legally claim land in the area. These findings challenge the assumption that tensions over property are the main obstacle to return of IDPs in Kirkuk. The international community has been largely unwilling to support the return process in Kirkuk, in fear that assisting returnees would exacerbate ethnic tensions. The study may indicate a need to revise this approach (Sacco, 19 May 2006).

In March 2006, a new law came into force replacing the IPCC with the Commission for Resolution of Real Property Disputes (CRRPD). Two important changes are introduced by the new law (1) good faith secondary occupants now have a right to compensation from the government if the property they currently live in is restituted to the original owner (2) compensation amounts will now be calculated with reference to the value of the property on the date on which the claim was filed rather than the date of the wrongful taking by the former regime, a change which will often result in higher levels of compensation (IOM, 17 May 2006).

Response limited by insecurity, lack of funds

The Iraqi Ministry of Displacement and Migration bears the responsibility to provide protection and assistance to IDPs (CPA, 8 March 2004). The ministry, with the support of the UN, began the process of developing a national policy on displacement, a process which includes consultations with IDPs, host communities and local authorities. The UN Iraq office endorsed a "Strategic Plan on Assistance and Durable Solutions for IDPs in Iraq" in December 2005, to ensure that all development activities in Iraq take into account the IDP situation (UNAMI, 6 March 2006, p.3).

Local NGOs and national staff play an important role in providing aid to displaced people since the bombing of the UN headquarters, which prompted the UN and other international organisations to pull out the majority of their staff in April 2003. The UN Assistance Mission in Iraq (UNAMI) operates from Amman, and has also opened liaison offices in Baghdad and in Basra and Erbil (UNSC, 7 June 2005; UNAMI, 4 April 2005). The UN response in Iraq is coordinated by inter-agency thematic clusters, of which Cluster F (formerly Cluster 8) is responsible for all issues relating to IDPs. Cluster F coordinates the provision of protection and assistance to IDPs and other activities for IDPs, like shelter-building programmes, income-generating activities and legal advice (UNAMI, 1 March 2005). The Cluster also provides technical support to the government for dealing with humanitarian assistance, protection, and property issues (UNHCR, 19 December 2003; UNCT, August 2004). There is an emergency working group and an IDP working group

coordinated by the UN as well as an emergency working group led by the NGO Coordination Committee in Iraq, an umbrella network of NGOs working in Iraq.

IDP assistance and monitoring mechanisms are still weak because of security constraints and impeded access (NCCI, 18 May 2006). Following some MNF/I and Iraqi Security Forces military operations, humanitarian organisations have been unable to reach displaced communities or have provided only sporadic assistance to IDPs, in particular in Anbar, Ninewa and Salah al Din (UNAMI, July-November 2005 and 31 October 2005; NCCI, 18 May 2006). Similarly, security and military forces have prevented humanitarian organisations from accessing displaced and other vulnerable populations in Fallujah, Al Qa'im and Samarra (IRIN, 22 March 2006, UNSC, 7 June 2005; IOM, April 2005; UNAMI, 18 January 2005 and 19 December 2004). There are also reports that humanitarian workers have been detained or imprisoned while attempting to carry out their work. For instance, doctors were detained and medical facilities occupied by armed forces during military operations in Anbar province in October 2005 (UNAMI, 31 October 2005, p.2).

Yet, the humanitarian response has also been inadequate because of mismanagement of funds and declining donor interest. A report by the UK's Guardian newspaper points to the mishandling and embezzlement of up to \$23 billion allotted for reconstruction activities in Iraq given to the US Coalition authorities by the UN (The Guardian, 20 March 2006). In addition, the NGO Coordination Committee in Iraq notes the lack of neutral funding not linked to one of the parties in the conflict. The withdrawal of some donors and the limited funds allocated for humanitarian preparedness has also had a negative impact on the ability of humanitarian agencies to respond efficiently (NCCI, 18 May 2006). NGOs have made repeated calls for support to assist IDPs, particularly those affected by military operations living in remote areas. In December 2005, 400 people demonstrated in Baghdad calling for aid for IDPs in western Anbar governorate (IRIN, 21 December 2005). While NGOs recognise the value of mechanisms such as the property commission to provide durable solutions for IDPs in the long-term; they also underline that a national policy should provide more immediate solutions. NGOs have called for improved coordination of humanitarian activities and for a special emergency fund to be able to access funds at short notice (NCCI, 18 May 2006).

[Footnote 1] Iraq was de facto divided after 1991 into two areas, northern Iraq (comprising the provinces of Dahuk, Arbil and Sulaymaniyah) under Kurdish administrative control separated by the so-called "green line" from the rest of the country, under the control of the central government.

CAUSES AND BACKGROUND

Background

Fighting between Kurdish militia and Iraqi government, 1960-1975

- 1960-1975: fighting between Kurdish militia and Iraqi government, as well as between militia, caused the displacement (internally and abroad) of about 600,000 and the forced relocation of 300,000
- In 1974, the Iraqi government unilaterally created the Kurdistan Autonomous Region which excluded the oil wealth of Kirkuk and Khanaqin
- Following autonomy decree the 'Arabization' campaign began in the Kirkuk region replacing Kurds with Arabs moved from the South
- The Kurdish revolt in 1974 led to forced relocation of tribesmen linked to the leader of the revolt

Dammers, 1998, p.181

"In the 1960s, Iraq witnessed several changes of government and fluctuating conflicts in which the Barzani [KDP] and to a lesser extent the Talabani [PUK] militias played a significant role. In 1970, 300,000 people were reported displaced in Kurdistan, the result of fighting between Kurdish militias and the government, as well as between the militias themselves. By 1975, when the government defeated Barzani's KDP, as many as 600,000 were displaced, 250,000 over the border to Iran. The Iraqi government forcibly relocated perhaps 1400 villages and 300,000 people, mainly to 'strategic hamlets' designed to facilitate government containment and control. Along the Iranian border depopulation was almost total, with villages bulldozed to prevent return."

"HRW, 1993, "Introduction"

"In 1970, the Ba'ath Party, anxious to secure its precarious hold on power, did offer the Kurds a considerable measure of self-rule, far greater than that allowed in neighboring Syria, Iran or Turkey. But the regime defined the Kurdistan Autonomous Region in such a way as deliberately to exclude the vast oil wealth that lies beneath the fringes of the Kurdish lands. The Autonomous Region, rejected by the Kurds and imposed unilaterally by Baghdad in 1974, comprised the three northern governorates of Erbil, Suleimaniyeh and Dohuk. Covering some 14,000square miles -- roughly the combined area of Massachusetts, Connecticut and Rhode Island -- this was only half the territory that the Kurds considered rightfully theirs. Even so, the Autonomous Region had real economic significance, since it accounted for fully half the agricultural output of a largely desert country that is sorely deficient in domestic food production.

In the wake of the autonomy decree, the Ba'ath Party embarked on the "Arabization" of the oil-producing areas of Kirkuk and Khanaqin and other parts of the north, evicting Kurdish farmers and replacing them with poor Arab tribesmen from the south. Northern Iraq did not remain at peace for long. In 1974, the long-simmering Kurdish revolt flared up once more under the leadership of the legendary fighter Mullah Mustafa Barzani, who was supported this time by the governments of Iran, Israel, and the United States. But the revolt collapsed precipitately in 1975, when Iraq and Iran concluded a border agreement and the Shah withdrew his support from Barzani's Kurdistan Democratic Party (KDP). After the KDP fled into Iran, tens of thousands of villagers from the Barzani tribe were forcibly removed from their homes and relocated to barren

sites in the desert south of Iraq. Here, without any form of assistance, they had to rebuild their lives from scratch.

In the mid and late 1970s, the regime again moved against the Kurds, forcibly evacuating at least a quarter of a million people from Iraq's borders with Iran and Turkey, destroying their villages to create a cordon sanitaire along these sensitive frontiers. Most of the displaced Kurds were relocated into *mujamma'at*, crude new settlements located on the main highways in army-controlled areas of Iraqi Kurdistan. The word literally means "amalgamations" or "collectivities." In their propaganda, the Iraqis commonly refer to them as "modern villages"; in this report, they are generally described as "complexes." Until 1987, villagers relocated to the complexes were generally paid some nominal cash compensation, but were forbidden to move back to their homes.

The Kurdish Democratic Party (KDP) is led by Masoud Barzani and is dominant in the north of the country, while the Patriotic Union of Kurdistan (PUK) is led by Jalal Talabani and is dominant in the northeast. Barzani is the son of the Kurdish leader Mustafa Barzani while Talabani was one of his lieutenants who split.

Iran-Iraq War and the Anfal campaign against the Kurds 1980-1988

- Eight years of war allowed Saddam Hussein to consolidate his rule in Iraq
- 'Anfal policy,' which began towards the end of the war, resulted in between 50,000 and 200,000 Iraqi Kurds being killed and about 500,000 deported to new 'collective settlements' and detention camps

USIP, 17 February 1999, "The Problem"

"The present regime in Baghdad came to power through a coup in 1968. The coup gave prominence to a young officer in the Ba'ath Party intelligence apparatus named Saddam Hussein. Ahma Hassan al-Bakr served as president and maintained titular power until Saddam deposed him and declared himself president on July 16, 1979. Just more than a year after seizing uncontested control over Iraq, Saddam declared war on Iran. While the goals of the war – reclaiming Iraqi territory conceded in 1975 border negotiations, ending Iranian support for Kurdish separatists in the north, and overthrowing a regime in Tehran that was openly calling for an Islamic revolution inside Iraq among others – can be debated, the gruesomeness of the war that followed cannot. The war produced about 1.5 million casualties during eight years of hostilities, ending in a cease-fire that essentially left prewar borders unchanged.

The Iran-Iraq war was the first time since the interwar years that chemical weapons were used in combat. Probably beginning in 1984, and almost certainly by 1986, Saddam Hussein used chemical weapons in the battlefield against Iranian troops. Such use drew the condemnation of the United Nations in 1986, although such condemnation was muted by international antipathy toward the regime in Tehran.

The eight-year-long war exhausted both countries, but it allowed Saddam to further consolidate his rule in Iraq. The constant war footing allowed an already paranoid regime to more ruthlessly root out its opponents and more loudly proclaim the glories of its leader." When the war wound down, Saddam turned to damping internal divisions in his country and began a campaign against a Kurdish insurgency in the north. In that campaign, Saddam again turned to chemical weapons, using a combination of mustard gas and nerve gas that killed some 5,000 civilians in the town of Halabja in August 1988. As in his war with Iran, Saddam's use of chemical weapons (this time against civilian targets) failed to raise outrage [at the international level]."

HRW, 1993, "Introduction"

"After 1980, and the beginning of the eight-year Iran-Iraq War, many Iraqi garrisons in Kurdistan were abandoned or reduced in size, and their troops transferred to the front. In the vacuum that was left, the Kurdish *peshmerga*--"those who face death"--once more began to thrive. The KDP, now led by one of Barzani's sons, Mas'oud, had revived its alliance with Teheran, and in 1983 KDP units aided Iranian troops in their capture of the border town of Haj Omran. Retribution was swift: in a lightning operation against the complexes that housed the relocated Barzanis, Iraqi troops abducted between five and eight thousand males aged twelve or over. None of them have ever been seen again, and it is believed that after being held prisoner for several months, they were all killed. In many respects, the 1983 Barzani operation foreshadowed the techniques that would be used on a much larger scale during the Anfal campaign."

Dammers, 1998, p.181

"The Iran-Iraq war (1980-88) completed the displacement of much of Iraq's Kurdish population. Towards the end of the war, following increasing collaboration between Iran and Kurdish guerrilla forces, the Iraqi regime pursued its genocidal *Anfal* policy, killing between 50,000 and 200,000, and destroying about 3000 Kurdish villages and hamlets. Their inhabitants – over half a million people – were deported to new 'collective settlements' away from border or mountain areas, or to detention camps in south and west Iraq. Others fled to Iran. Many of these people have been displaced more than once since then."

HRW, 1993, "Introduction"

"Anfal—the Spoils'--is the name of the eighth *sura* of the Koran. It is also the name given by the Iraqis to a series of military actions which lasted from February 23 until September 6, 1988. While it is impossible to understand the Anfal campaign without reference to the final phase of the 1980-1988 Iran-Iraq War, Anfal was not merely a function of that war. Rather, the winding-up of the conflict on Iraq's terms was the immediate historical circumstance that gave Baghdad the opportunity to bring to a climax its longstanding efforts to bring the Kurds to heel. For the Iraqi regime's anti-Kurdish drive dated back some fifteen years or more, well before the outbreak of hostilities between Iran and Iraq."

To view official Iraqi documents on the Anfal policy, please visit the site of the Iraqi Research and Documentation Project, launched in June 1993 and sponsored by the Harvard Center for Middle Eastern Studies (CMES) [[External Link](#)]

For key dates of Iraq's history, please see BBC News Timeline [[External Link](#)]

The invasion of Kuwait and its consequences for Iraq, 1990-1992

- Iraq invaded Kuwait in August 1990
- Coalition of allied forces intervened in Kuwait in January 1991
- Following the cease-fire agreement, under UN SC Resolution 687, Iraq was supposed to destroy certain weapons and to accept international monitoring
- Northern no-fly zone declared by the U.S., France and Britain in April 1991 to provide safe haven for Kurds
- Southern no-fly zone imposed by U.S., British and French forces in August 1992 in an effort to protect Shi'ite Iraqis

USIP, 17 February 1999, "The Problem"

"With Saddam's invasion of Kuwait in August 1990, the perception that Saddam Hussein was a potential ally against an ideologically expansionist Iran – as well as a potential customer for American grain and other products – gave way to a new consensus. Under the revised thinking,

Saddam was seen as threat to stability in the Persian Gulf and to steady oil supplies from that region. [...]

When a coalition of allied forces rolled back the Iraqi invasion of Kuwait in January and February 1991, the UN-imposed cease fire agreement bound Iraq to declare fully to the Secretary-General of the United Nations the 'locations, amounts, and types' of biological and chemical weapons it possessed, as well as similar information regarding ballistic missiles with a range of more than 150 kilometers. Under the agreement, Iraq agreed to destroy such weapons under international supervision, and to accept ongoing international monitoring to ensure that such weapons programs were not revived in the future. Pursuant to that charge, the United Nations created a 'Special Commission,' or UNSCOM, to carry out on-site inspections of declared Iraqi facilities as well as any other sites UNSCOM designated.

The agreement, articulated in United Nations Security council Resolution 687, established similar conditions for whatever nuclear program Iraq might possess, to be monitored by the International Atomic Energy Agency. Only after Iraq completed its responsibilities to fully disclose its programs to develop weapons of mass destruction, destroy prohibited materiel under international supervision, and dismantle any programs to develop such weapons in the future, all to the Security Council's satisfaction, would the United Nations lift the sanctions it imposed in Iraq after its invasion of Kuwait in August 1990."

AFSC, 2000

"In April 1991, the United States, France, and Britain unilaterally declared a 19,000-square-mile area of northern Iraq a safe haven for Kurds and imposed a no-fly zone that prevented Iraqi aircraft from operating above the 36th parallel. U.S. and British warplanes still patrol the skies of northern Iraq, bombing frequently since December 1998. France withdrew from the mission in 1996. No United Nations Resolution supports or calls for a no-fly zone.

A southern no-fly zone was imposed by U.S., British and French forces in August 1992 in an efforts to protect Shi'ite Iraqis. President Saddam Hussein's forces had crushed a Shi'ite uprising soon after the end of the Gulf War in February 1991. In 1996, President Clinton extended the zone in response to Iraqi military intervention in northern Iraq in support of one Kurdish faction against another. The zone now covers the southern third of Iraq, reaching the 33rd parallel, and touches the outskirts of Baghdad."

Iraqi political opposition outside of Iraq remains rife with fracture, 2002

- INC has served as an umbrella group for the opposition movement
- INA is made up of Iraqi exiles and former leaders of the Sunni-dominated military
- Constitutional Monarchy Movement seeks to establish "democratic" monarchy
- KDP and PUK are Kurdish parties controlling the north of Iraq
- SCIRI is a Tehran-base Shi'a group

RFE/RL 16 Aug 02

"[H]istory shows that the Iraqi opposition is rife with fracture. The INC, headed by Chalabi, has served as an umbrella group for the opposition movement. Many U.S. officials, as well as Iraqi opposition leaders have become leery of the INC following rumors of mismanagement in recent years. In addition, Chalabi and Iyad Allawi of the INA have had a tense relationship over the years. The INA is made up of Iraqi exiles and former leaders of the Sunni-dominated military. The INA led the 1996 failed coup attempt against Saddam Husseyn and is thought to still have strong connections to the Iraqi military and Ba'th Party. Sharif Ali bin al-Husseyn's Constitutional Monarchy Movement seeks to re-establish democratic (and, it hopes, monarchial) rule in Iraq.

The PUK and KDP have longstanding rivalries, but have worked together in recent years. They formed a provisional parliament at the beginning of August in an attempt to normalize the situation in northern Iraq and prepare for regional elections. The two Kurdish groups combined have approximately 80,000 militiamen. SCIRI is a Tehran-based Shiite group. Its military wing, the Badr Corps, is made up of former Iraqi officers, soldiers, refugees, and defectors. The group claims to have 10,000 armed men inside Iraq."

For more information on the relations between the various ethnic and political groups which may shape the future of Iraq, please see International Crisis Group (ICG), Oct 02, Iraq Backgrounder: What Lies Beneath [Reference below]

Vulnerable ethnic groups and their relationship to the previous regime, 1998-2002

- Arab Shi'a Muslims constitute a 60-65% majority
- Sunni Muslims (Kurds, Arabs and Turkomans) make up 27-32% of the population
- Christians and Yazidis represent about 3%
- Part of the Shi'a, Kurdish, Christian, Turkoman, "Marsh Arab", Yazidi and "Bidoon" population has had conflicting relations with the Iraqi regime

US DOS, 5 September 2000, sect.I

"While a precise statistical breakdown is impossible because of likely inaccuracies in the latest census (taken in 1997), according to conservative estimates, 97 percent of the population of 22 million persons are Muslim. The (predominantly Arab) Shi'a Muslims constitute a 60 to 65 percent majority, while Sunni Muslims make up 32 to 37 percent (approximately 18 to 20 percent are Sunni Kurds, 12 to 15 percent are Sunni Arabs, and the rest are Sunni Turkomans). The remaining approximately 3 percent consist of Christians (Assyrians, Chaldeans, Roman Catholics, and Armenians), Yazidis, and a small number of Jews.

The Shi'a, though predominantly located in the south, also are present in large numbers in Baghdad and have communities in most parts of the country. Sunnis form the majority in the center of the country and in the north."

Cordeman, November 1998, p.4

"There is no way to know what portions of Iraq's population is loyal to the present regime or loyal to the concept of Iraq as a state – as distinguished from exhibiting primary loyalty to a religious or ethnic group. It is obvious, however, that many Iraqis resent the fact that the present authoritarian regime is controlled by a small group of extended Sunni families. It is obvious that the regime has had to deal with major Kurdish and Shi'ite uprisings, and faces a continuing problem with a separate Kurdish enclave.

It is equally obvious that Saddam's rule on policies designed to divide and paralyze Iraq's ethnic factions while using Iraqi military forces, overlapping and competing Iraqi intelligence and security services, the Ba'ath Party, and paramilitary forces to ensure that they remain under control."

The Shi'ites

US DOS, 5 September 2000

"Although Shi'a Arabs are the largest religious group, Sunni Arabs traditionally have dominated economic and political life. Sunni Arabs are at a distinct advantage in all areas of secular life. The Government also severely restricts or bans outright many Shi'a religious practices. The Government has for decades conducted a brutal campaign of murder, summary execution, arbitrary arrest, and protracted detention against the religious leaders and followers of the majority Shi'a Muslim population [...]."

Cordesman November 1998, p.5

However, "The vast majority of Iraq's Shi'ites remained loyal during the Iran-Iraq War, and probably think of themselves primarily as Iraqi and Arab, rather than as Shi'ites. They may want equality or proportionate political power as Iraqis, but it is far from clear that they have any interest in a separate political entity or any ties to Iran."

The Iraqi Kurds

Cordesman, November 1998, pp.5-6

"Saddam practiced near-genocide against the Kurdish tribes he felt support Iran during the Iran-Iraq War, and has been ruthless in putting down the Kurdish uprisings of 1991 and threatening the Kurdish security zone. Iraq, however, has a total of roughly 3.2 million to 4.3 million Kurds and it is far from clear that a majority of them would choose independence or autonomy [...] if Saddam was no longer in power or if any Iraqi regime made good on a long series of promises to give them more rights and a larger share of Iraq's oil wealth. [...]"

Most of Iraq's Kurds remained loyal to Iraq during the Iran-Iraq War, and only about half of Iraq's Kurds were involved at even the peak of the uprising in 1997. Iraqi Kurdish separatists represent a major force within Iraq, but they do not speak for the Kurds per se. The separatists are also deeply divided into rival factions that are never quite clear as to whether they are seeking rights and faire treatment, autonomy, or nation-hood. Iraqi Kurds also do not share any broad identify with Kurdish groups outside Iraq, and the Talabani faction seems to be the only separatist group that has shown serious past interest in creating a greater 'Kurdistan' that involves Turkish and/or Iranian Kurds."

Al-Qilaa Kurds

Fawcett & Tanner, Oct 02, p32

"This group areis the Kurdish people and their families that fought or supported the Iraqi government during the 1980s destruction of the Kurdish villages and the incarceration of the inhabitants in the collective towns. They left (it's not clear if they fled or were expelled) the North upon the establishment of the Kurdish rule in the North in 1991. To the main population of the Kurds, they are known as the Jash or the Donkeys. Originally from the Aqra area, they fled to the closest city under Baghdad's control, Mosul, where they still reside today. Many of them moved into unoccupied military compounds, (in Arabic al-Qilaa.) Despite having provided such valuable service to the Iraqi authorities in the 1980s, the al-Qilaa Kurds suffer from the same desperate conditions as other displaced in Iraq. They live in overcrowded makeshift accommodations, are discriminated against by official regulations, have little education or health care, and few prospects or hopes for the future. According to Iraqi Red Crescent sources, there are approximately 8,000 displaced families of the al-Qilaa Kurds in Mosul."

The Faili Kurds

Dammers, 1998, p.184

"Faili Kurds, most of whom are Shi'a, form a distinctive group of displaced people in Iraq, many of them twice displaced and now back in their country of origin. Unlike most Iraqi Kurds, until the early 1970s they lived mainly in central and southern Iraq, many of them in Baghdad. At that time, perhaps 130,000 Failis were deported to Iran by the government of Iraq on the pretext that they were not Iraqi citizens, though it fact it was because their loyalty was considered suspect. Most had lived in Iraq for generations, but in Ottoman times had not registered as citizens in order to avoid conscription. Since the 1970s, most of the Faili Kurds have lived in Iran. However, since 1981, some have returned to Kurdish-controlled northern Iraq, where they are not necessarily welcome."

Fawcett & Tanner, Oct 02, pp14-5

"Faili is an Arabic term, given to a group of Kurds from a region of the Zagros Mountains straddling the Iran-Iraq border. Due to the geography of their homeland, the Faili Kurds have family members on both sides of the border. Contrary to the majority of their Kurdish brethren, they are Shi'a. In the nineteenth and early twentieth century, many Faili Kurds began migrating westwards to Iraqi cities, primarily Baghdad, where they took on key commercial, social, and cultural roles. During the 1970s and 80s the regime in Baghdad expelled large numbers of Faili Kurds. In one instance, in the autumn of 1971, up to 40,000 Failis were expelled. In April 1980, shortly after Saddam Hussein seized full powers and just before his invasion of Iran, the 480 wealthiest Baghdadis were summoned to the Chamber of Commerce building. One third of them, found to be Faili Kurds, were swiftly arrested and deported to Iran, with their families following shortly after. Further deportations continued, and the numbers of Faili Kurd refugees estimated to have gone to Iran range from 100,000 up to 300,000. It is not clear how many Faili Kurds remain in Iraq, but according to one account, as of 1997, the expulsions continued."

The Yazidis

UNHCR, June 2000, p.16

"The Yazidis are a Kurmanji speaking group and are exclusively Kurdish. Yazidi beliefs incorporate aspects of several major religions in the region, including Zoroastrianism, Islam, Nestorian Christianity, Judaism and Manichaeism. There are figures of the Yazidi population in Iraq ranging from 30,000 to 120,000 and they live predominately in the Mosul region of Iraq."

US DOS, 25 February 2000, "Respect for civil liberties, c."

"The Constitution does not provide for a Yazidi identity. Many Yazidis consider themselves to be ethnically Kurdish, although some would define themselves as both religiously and ethnically distinct from Muslim Kurds. However, the Government, without any historical basis, has defined the Yazidis as Arabs. There is evidence that the Government has compelled this reidentification to encourage Yazidis to join in domestic military action against Iraqi Muslim Kurds. Captured government documents included in the 1998 Human Rights Watch report 'Bureaucracy of Repression: The Iraqi Government in its own words', describe special all-Yazidi military detachments formed during the 1988-89 Anfal campaign to 'pursue and attack' Muslim Kurds. However, the Government does not hesitate to impose the same repressive measures on Yazidis as on other groups. For example, 33 members of the Yazidi community of Mosul, arrested in July 1996, still are unaccounted for."

The 'Marsh Arabs'

Patrow 2001, pp15-16

"A crucible of civilization, the marshlands have been home to ancient human communities for more than five millennia. The area's inhabitants are commonly known as the Ma'dan or "Marsh Arabs", whose population is estimated to range from 350,000 to 500,000. [...]Ethnically, the population's composition has been heavily influenced by immigrations and intermarriages with the Persians to the east and Arab Bedouins to the west. The Marsh Arabs are Shi'ite Muslims, and their way of life is largely based on the traditions of the Arab Bedouin.[...]"

The Marsh Arabs have evolved a unique subsistence lifestyle that is firmly rooted in their aquatic environment. Most of the Ma'dan are semi-nomadic, but some of them are settled in villages. Their settlements are located on the edges of the marshes, or stand on artificial floating islands that are regularly reinforced with reeds and mud."

Out There News, 2000, "Marshes"

"For thousands of years the salt marshes of southern Iraq have been a unique micro-environment. [...] The marshes lie at the confluence of the Tigris and Euphrates rivers. [...] Successive Iraqi governments had already tampered with the marshes in the way that modern governments often do in developing countries, regarding the hunter-gatherer subsistence lifestyle of the tribes there as being primitive and unworthy of a modern state."

But it was with the start of the Iran-Iraq war in 1980 that wholesale disaster set in. By 1982, Iran had reversed Iraq's original conquest of Iranian lands and the front line surged back across the border into Iraq - including the marshlands. The marsh Arabs of the region were driven out as the Iraqi army sent massive electric charges through the marshes - thousands of invading Iranians were electrocuted like this as they advanced.

That war ended in 1988 but the devastation continued. After Saddam's second defeat in the Gulf War of 1991, rebels rose up against him in the south of the country. When they were defeated, many of them hid in the marshes. The government began to drain the marshes systematically in 1992. Three years later, they had almost finished, creating a desert where the marshland had been. Areas where the water was five foot deep are now bone dry with cracked mud. Less than 10,000 marsh Arabs remain, their traditional lifestyle literally drained away. Those who remain barely eke out a living."

The Assyrians and Chaldeans

Dammers 1998, p.181

"The Assyrian Christian minority of about 250,000 people also lives mainly in Iraqi Kurdistan and has been caught up in the conflict and displacement there, particularly in 1987/8 and 1991."

US DOS, 25 February 2000, Section 5

"Assyrians and Chaldeans are considered by many to be a distinct ethnic group as well as the descendants of some of the earliest Christian communities. These communities speak a distinct language (Syriac), preserve important traditions of Christianity in the east, and have a rich cultural and historical heritage that they trace back over 2,000 years. Although these groups do not define themselves as Arabs, the Government, without any historical basis, defines Assyrians and Chaldeans as such, evidently to encourage them to identify with the Sunni-Arab dominated regime."

The Turkomans

Library of Congress 2001, Chapter 2

"The Turkomans, who are believed to constitute somewhat less than 2 percent of the population, are village dwellers in the northeast living along the border between the Kurdish and Arab regions. A number of Turkomans live in the city of Irbil. The Turkomans, who speak a Turkish dialect, have preserved their language but are no longer tribally organized. Most are Sunnis who were brought in by the Ottomans to repel tribal raids. These early Turkomans were settled at the entrances of the valleys that gave access to the Kurdish areas. This historic pacification role has led to strained relations with the Kurds. By 1986 the Turkomans numbered somewhere around 222,000 and were being rapidly assimilated into the general population."

The taba`iyya iraniyya

Fawcett & Tanner, Oct 02, p15

"Some of the returnees from Iran, expelled just after Iraq's invasion of Iran, are a group of people known as taba`iyya iraniyya, or sometimes, just taba`iyya. According to the scholar Kanan Makiya, after the collapse of Ottoman rule, the inhabitants of the Iraqi mandate were requested by a census to state their 'belonging' (in Arabic *taba`iyya*) as either Ottoman – uthmaniyya – or Iranian – iraniyya. Many reportedly chose *iraniyya* as a means to escape military conscription. These two categories made it through to the modern state of Iraq, where they now show up on every Iraqi's citizenship document. In the late 1970s and early 1980s, the regime painted those carrying *taba`iyya iraniyya* as Iranian fifth columnists, and used the concept as a legal pretext to summarily deport thousands of families."

The 'Bidoon'

Dammers 1998, p.184

"Prior to the Gulf War, the 'Bidoon', most of whom are of Iraqi origin, were stateless residents of Kuwait. Their name is Arabic for 'without' – that is without nationality. They numbered about 250,000 and most had been born in Kuwait, or had lived there for a long time. Since the war around half of them have fled from or been expelled from Kuwait, mostly to Iraq. Though they are refugees, their statelessness, their displacement and their Iraqi connections mean that their status has much in common with that of other 'internally displaced' people. Detailed information on their situation in Iraq is, however unavailable."

Since the Gulf War two Kurdish parties have been controlling northern Iraq, 1991-2004

- In 1991 the cease-fire between Iraqi and Allied forces, which put an end to the Gulf War, was immediately followed by uprisings in the Kurdish north
- Since 1991 regions in the north and northeast of the country have been under the control of Kurdish parties
- The Iraqi government ended the internal economic blockade against northern Iraq in 1996
- The two major Kurdish parties of northern Iraq, KDP and PUK fought intermittently since the Gulf War until 1998 when they agreed to a Washington-brokered peace agreement
- Most of the measures described in the 1998 peace agreement were still not implemented in 2000
- Kurdistan Regional Government (KRG) is recognised by the Law of Administration for the Transitional Period in 2004
- Regions administered by KRG now defined as those governed by the autonomous Kurdistan authorities since late 1991
- Kurdistan regional government will continue to administer as it has done, throughout the transitional period, except in regards to federal law

Dammers, 1998, p.182

"The cease-fire between Iraqi and Allied forces [following the Gulf War] was immediately followed by uprisings in the Kurdish north and Shi'a south of Iraq. Kurdish guerrillas briefly occupied the whole of Iraqi Kurdistan, but the reoccupation of most of the region by Iraqi government troops led to as many as two million people fleeing to Iran, Turkey, and those areas still under Kurdish control. These areas soon included the 'safe haven', initially patrolled by Allied troops, comprising those parts of Iraqi Kurdistan adjacent to the Turkish border. Most of the cross-border refugees later returned to areas under Kurdish (and/or Allied) political control, which expanded greatly following the substantial withdrawal of Iraqi troops in October and November 1991."

UN SC, 5 April 1991

In April 1991, the UN SC Resolution 688 said that the UN SC:

- " 1. Condemns the repression of the Iraqi civilian population in many parts of Iraq, including most recently in Kurdish populated areas, the consequences of which threaten international peace and security in the region;
2. Demands that Iraq, as a contribution to remove the threat to international peace and security in the region, immediately end this repression and express the hope in the same context that an open dialogue will take place to ensure that the human and political rights of all Iraqi citizens are respected;
5. Requests further the Secretary-General to use all the resources at his disposal, including those of the relevant United Nations agencies, to address urgently the critical needs of the refugees and displaced Iraqi population."

USCR, 1997, pp.151-152

"The safe haven zone in northern Iraq, created and maintained by the United States, Britain, and France since 1991 through Operation Provide Comfort, showed signs of collapse throughout the year [1996]. As the two sides fought, the governments of Turkey, Iran, and Iraq each appeared ready and willing to intervene overtly or covertly in an attempt to take advantage of the situation. [...]

On August 31 [1996], [Iraqi] government forces entered the city of Erbil, located within the Kurdish safe haven zone, after being invited in by the KDP, which hoped that an alliance with the government would tip the balance of power in the north against the PUK. After surrounding Erbil with tanks, Iraqi troops and government agents entered the town, searching house to house for suspected opponents of President Saddam Hussein, killing some immediately, arresting others and taking them back to Baghdad. Iraqi troops reportedly looted and vandalized the areas they entered, completely looting 500 schools, according to UNICEF, and ransacking hospitals and municipal buildings. [...]

The penetration of the safe zone by Iraqi troops and fighting between the Kurdish factions created widespread hardship and displacement. [...] Ironically, in some respects the collapse of the safe zone had its benefits for many of the other residents of the north. In addition to international sanctions, northern Iraq had been subjected to an internal blockade from Baghdad. Starting in September [1996], that blockade was eased, and Kurds from the north were able to engage in trade with government-controlled Iraq."

US DOS, 25 February 2000, Section 3

"In northern Iraq, all central government functions have been performed by local administrators, mainly Kurds, since the Government withdrew its military forces and civilian administrative personnel from the area after the 1991 uprising. A regional parliament and local government administrators were elected in 1992. This parliament last met in May 1995. The two major Kurdish parties in de facto control of northern Iraq, the KDP and the PUK, battled one another from 1994 through 1997. In September 1998, they agreed to unify their separate administrations and to hold new elections in July. The cease-fire held throughout the year; however, reunification measures were not implemented and no election was held."

Fawcett & Victor, Oct 02, p7

"The areas of the North under the control of the Kurdistan Regional Government (KRG) are the governorates of Dohuk, Erbil, Suleimanyah and a part of the governorate of Kirkuk. As mentioned earlier, the KRG is an uneasy alliance of the two main Iraqi Kurdish parties. Mas'oud Barzani's KDP administers the northwestern half and the Turkish border, while Jalal Talabani's PUK controls the southeastern half and most of the Iranian border."

HRW December 2000, "Human Rights Developments"

"Despite mediation efforts by U.S. government officials, little progress was made towards the implementation of the provisions of the 1998 Washington Accord. Both sides [KDP and PUK] pledged to normalize relations but continued to maintain separate administrative, legislative and executive structures in areas under their control. On October 22, senior officials from the two parties agreed on a series of measures, including prisoner exchanges, the gradual return of internally displaced people to their homes, and arrangements for the organization of free movement of people and trade between their respective areas. Most of these measures were not implemented."

Iraq Coalition, 8 March, 2004

"Article 53.

(A) The Kurdistan Regional Government is recognized as the official government of the territories that were administered by that government on 19 March 2003 in the governorates of Dohuk, Arbil, Sulaimaniya, Kirkuk, Diyala and Neneveh. The term "Kurdistan Regional

Government” shall refer to the Kurdistan National Assembly, the Kurdistan Council of Ministers, and the regional judicial authority in the Kurdistan region.

(B) The boundaries of the eighteen governorates shall remain without change during the transitional period.

(C) Any group of no more than three governorates outside the Kurdistan region, with the exception of Baghdad and Kirkuk, shall have the right to form regions from amongst themselves. The mechanisms for forming such regions may be proposed by the Iraqi Interim Government, and shall be presented and considered by the elected National Assembly for enactment into law. In addition to being approved by the National Assembly, any legislation proposing the formation of a particular region must be approved in a referendum of the people of the relevant governorates.

(D) This Law shall guarantee the administrative, cultural, and political rights of the Turcomans, ChaldoAssyrians, and all other citizens.

Article 54.

(A) The Kurdistan Regional Government shall continue to perform its current functions throughout the transitional period, except with regard to those issues which fall within the exclusive competence of the federal government as specified in this Law. Financing for these functions shall come from the federal government, consistent with current practice and in accordance with Article 25(E) of this Law. The Kurdistan Regional Government shall retain regional control over police forces and internal security, and it will have the right to impose taxes and fees within the Kurdistan region.

(B) With regard to the application of federal laws in the Kurdistan region, the Kurdistan National Assembly shall be permitted to amend the application of any such law within the Kurdistan region, but only to the extent that this relates to matters that are not within the provisions of Articles 25 and 43(D) of this Law and that fall within the exclusive competence of the federal government.”

Aljazeera, 10 January 2004

“Iraq's interim Governing Council has agreed to a federal structure for the country and to enshrine Kurdish self-rule in three northern provinces. The US-appointed body will incorporate the pledges into ‘a fundamental law’ that will precede national elections in late 2005, council member Judge Dara Nur al-Din said on Friday.

The fate of three more provinces over which the Kurds have claims would be decided later, he added. Nur al-Din, a Kurdish independent who is helping to draft the country's law, said lawmakers had already decided on basic principles for Kurdish self-rule.

‘In the ‘fundamental law’, Kurdistan will have the same legal status as it has now,’ he said, referring to the region that has enjoyed virtual autonomy since the end of the 1991 Gulf War.”

Iraqi security forces increase pressure on Marsh Arabs in Southern Iraq, 1999-2002

- Marsh Arabs displaced because of plans to eliminate a population outside of central governmental control; increase oil production; and the destruction of a habitat that provides a haven for an armed opposition
- Shi'a revolt against the Iraqi regime erupted following Iraq's defeat in Kuwait
- In 1994, the Iraqi government intensified a pacification campaign it had been directing toward the marsh population since 1989

- Diversion of water from the marshes allowed government forces to penetrate into formerly inaccessible areas
- Iraqi armed forces conducted deliberate artillery attacks against Shi'a civilians and large-scale burning operations in the southern marshes in 1999
- Iraqi security forces reportedly attacked villages in the marshes of Southern Iraq in 2001

Fawcett & Tanner, Oct 02, p32

"The motives behind the Iraqi regime's brutally callous campaign against the Marsh Arabs include the following: the desire to eliminate a population outside of central governmental control; an interest in producing some great engineering feat that is the equivalent of the monumental statues and palaces built to honor Saddam; the aim to generate economic development and increase oil production; and most importantly, the destruction of a habitat that provides a haven for an armed opposition. All these motives, of course, have one underlying objective: to maintain the current regime in power. The regime also guessed correctly that no one would stop it. In 1992, then Parliamentary Speaker Saadi Mehdi Saleh justified the action against the Marsh Arabs: "America wiped the Red Indians off the face of the earth and nobody raised an eyebrow.""

Fawcett & Tanner, Oct 02, p30

"By 1985, visible signs of the draining of the marshes were noted in the area of Qurna, close to the confluence of the Tigris and Euphrates, where newly discovered oil fields were ripe for exploitation. In the early 1990s the Iraqi government began an all-out push to finish off the marsh-draining project and, as a consequence, to finish off the Marsh Arabs.

Several events seem to have precipitated the Iraqi government's decision to take these measures at that time. The Iraqis had just come out of two wars, the last of which had left the regime of Saddam Hussein barely holding onto power. One of the clearest threats to his survival were the Shi'a of southern Iraq, who rose against him in the immediate aftermath of the Gulf War. Baghdad, resorting to full military force (including the use of helicopters permitted under the US-dictated cease-fire conditions) and extraordinary brutality, succeeded in quashing the rebellion. But the marshes, inaccessible to Iraqi armor, became a haven for the remaining rebels on the run. Also during the uprising, some groups had attacked the incipient oil field infrastructure in the West Qurna oil field, attacks which Baghdad blamed on the Marsh Arabs. Finally, during the early 1990s, very few personnel from international organizations or companies were present to witness the marsh destruction, due to the war-time evacuation and the imposition of sanctions. This not only allowed the regime to avoid being seen but also allowed it to requisition, without opposition and by Presidential decree, foreign company resources, such as bulldozers and other earth-moving equipment, termed 'idle assets,' to accomplish the task. Massive canals, up to a hundred meters wide and hundreds of kilometers long, were dug, using virtual slave labor and the aforementioned foreign-owned machinery."

USCR, 1995, p.116

"Tensions between the secular, Sunni regime of Saddam Hussein and the Shi'ite populace of southern Iraq erupted into civil war in early 1991, when the Shi'ite revolted in the wake of the Iraqi defeat in Kuwait. The revolt was quickly crushed, with heavy casualties, and many displaced Shi'ites and deserters from the Iraqi army fled into the extensive marshlands between the Tigris and Euphrates river.

The Iraqi government had long viewed the inhabitants of this region, the Marsh Arabs, or Maadan, with hostility. In 1994, the Iraqi government intensified a pacification campaign that it had been directing toward the marsh population since 1989, diverting water from the marshes and depriving the Shi'ites of food and cover. This allowed government forces to penetrate into formerly inaccessible areas."

Out There News 2000, "Marshes"

"Throughout the marsh areas, dykes as high as six meters have been built to cut off flood waters from replenishing the old marshlands. Between the ancient Tigris and the Euphrates, a manmade river - the Saddam river - now carries the flood waters down to the Gulf. Marsh Arabs used to live by tending buffalo, fishing and hunting in the marshes. With no reeds, there is nothing to feed the water buffalo. There are hardly any fish left in the rivers either. The government claims to be giving land to the Marsh Arabs to cultivate. There is some farming close to the Euphrates and Tigris but many of those farmers are not Marsh Arabs but have come from the towns. The government also seems intent on preventing any rebels entering from Iraq across the water, as they have traditionally been able to do."

UNEP, May 2001

According to a UNEP study carried out in 2001, "[...] about 90% of the marshlands had disappeared by May 2000, with devastating impacts on wildlife and unique human communities that have lived there for millennia."

AI, 24 November 1999, "Introduction"

"Since the beginning of this year [1999] there have been many clashes between the security forces and armed Islamist opposition groups in the pre-dominantly Shi'a Muslim Southern Iraq, especially in Basra, which have reportedly left dozens dead on both sides and have been followed by arbitrary mass arrests and summary executions. It was not until May that the government acknowledged that unrest had broken out in Basra in mid-March. It accused Iran of instigating the troubles since one of the biggest opposition groups is based in Iran. The unrest was sparked off by the killing in suspicious circumstances of Ayatollah Mohammad Sadeq al-Sadr, a prominent Shi'a cleric, in February 1999."

US DOS, 25 February 2000, "Respect for human rights, g."

"As in previous years, the armed forces conducted deliberate artillery attacks against Shi'a civilians and large-scale burning operations in the southern marshes [in 1999]. In 1991 and 1992, the Gulf War allies imposed 'no-fly zones' over northern and southern Iraq respectively. The no-fly zones continued to deter aerial attacks against the marsh dwellers in southern Iraq and the residents of northern Iraq, limiting the Government to ground-based assaults."

CHR, 16 January 2001, para. 37

"The Special Rapporteur received information that armed raids are still being carried out by the Iraqi security forces against villages in the south of Iraq. Reportedly some of these raids, which are aimed at the capture of armed guerrillas and army deserters, have resulted in loss of life, damage to property and searches and arrests without warrant."

INC, 20 May 2001

"Iraqi security forces attacked villages in the marshes of southern Iraq on 15 May resulting in many casualties, according to reports received by the INC [Iraqi National Congress]"

Fawcett & Tanner, Oct 02, p31

"To accelerate the process, the military and special police made raids on marsh settlements, ostensibly in pursuit of rebels, criminals and deserters. Iraqi security forces used napalm and other chemical weapons, shelled and burned villages, assassinated local leaders and other prominent community members, and abducted heads of families. Other tactics employed by Iraqi authorities included the deliberate contamination of water supplies, the poisoning of the fishing grounds, commercial blockades, the denial of aid and the refusal of access to aid agencies."

The tactics of earthworks, drainage, and military action worked hand in hand. As one area was drained, new embankments would be built, giving the authorities vantage points to begin actions against the next set of settlements.

By 1999 the drainage of the marshes was largely complete. The only remaining marsh of any size was the al-Hawizeh marsh that straddles the Iraq-Iran border. This marsh is at least partly intact, as the Iraqis do not control all the sources of water, (it also provides a measure of security from a neighbor they do not entirely trust). According to the Iranians, the Iraqi side of the marsh is now under assault. In September 2002 it was alleged that the Iraqis were burning the reeds in a possible attempt to prepare a military assault on the villages."

Difficult relations between the Iraqi regime and the UN following the Gulf War, 1991-2003

- In Oct 98, Iraq ends all forms of cooperation with the UN Special Commission to Oversee the Destruction of Iraq's Weapons of Mass Destruction (UNSCOM)
- In Nov 02, UN weapons inspectors return to Iraq for the first time since 1998, backed by a tough UN Security Council resolution, which is reluctantly accepted by Baghdad. The resolution threatens serious consequences if Iraq is in "material breach" of its terms

BBC, January 02

"Ceasefire

1991 3 March - Iraq accepts the terms of a ceasefire.

1991 Mid-March/early April - Iraqi forces suppress rebellions in the south and the north of the country.

1991 8 April - A plan for the establishment of a UN safe-haven in northern Iraq, north of latitude 36 degrees north, for the protection of the Kurds, is approved at a European Union meeting in Luxembourg. On 10 April, the USA orders Iraq to end all military activity in this area.

1992 26 August - A no-fly zone, excluding flights of Iraqi planes, is established in southern Iraq, south of latitude 32 degrees north.

1993 27 June - US forces launch a cruise missile attack on Iraqi intelligence headquarters in Al-Mansur district, Baghdad in retaliation for the attempted assassination of US President, George Bush, in Kuwait in April.

1994 29 May - Saddam Hussein becomes prime minister.

1994 10 November - The Iraqi National Assembly recognizes Kuwait's borders and its independence.

Oil-for-food

1995 14 April - UNSC Resolution 986 allows the partial resumption of Iraq's oil exports to buy food and medicine (the "oil-for-food programme"). It is not accepted by Iraq until May 1996 and is not implemented until December 1996. [...]

1995 15 October - Saddam Hussein wins a referendum allowing him to remain president for another 7 years. [...]

1996 31 August - In response to a call for aid from the KDP, Iraqi forces launch an offensive into the northern no-fly zone and capture of Arbil.

1996 3 September - The US extends the northern limit of the southern no-fly zone to latitude 33 degrees north, just south of Baghdad.

1996 12 December - Saddam Hussein's elder son, Uday, is seriously wounded in an assassination attempt in Baghdad's Al-Mansur district.

1998 31 October - Iraq ends all forms of cooperation with the UN Special Commission to Oversee the Destruction of Iraq's Weapons of Mass Destruction (Unscm). [...]

Operation Desert Fox

1998 16-19 December - After UN staff are evacuated from Baghdad, the USA and UK launch a bombing campaign, "Operation Desert Fox", to destroy Iraq's nuclear, chemical and biological weapons programmes.

1999 4 January - Iraq asks the UN to replace its US and UK staff in Iraq.

1999 19 February - Grand Ayatollah Sayyid Muhammad Sadiq al-Sadr, spiritual leader of the Shi'i sect, is assassinated in Najaf.

1999 17 December - UNSC Resolution 1284 creates the UN Monitoring, Verification and Inspection Commission (Unmovic) to replace Unscm. Iraq rejects the resolution.

2000 1 March - Hans Blix becomes executive chairman of Unmovic.

2000 August - Reopening of Baghdad airport, followed by a stream of international flights organised by countries and organisations to campaign against sanctions. The flights are labelled humanitarian missions to comply with UN sanctions.

2000 October - Iraq resumes domestic passenger flights, the first since the 1991 Gulf War. Commercial air links re-established with Russia, Ireland and Middle East.

2001 - Free-trade zone agreements set up with neighbouring countries. Rail link with Turkey re-opened in May for first time since 1981.

2001 February - Britain, US carry out bombing raids to try to disable Iraq's air defence network. The bombings have little international support.

2001 May - Saddam's son Qusay elected to the leadership of the ruling Ba'th Party, fuelling speculation that he's being groomed to succeed his father.

2002 April - Baghdad suspends oil exports to protest against Israeli incursions into Palestinian territories. Despite calls by Saddam Hussein, no other Arab countries follow suit. Exports resume after 30 days.

2002 May - UN Security Council agrees to overhaul the sanctions regime, replacing a blanket ban on a range of goods with "smart" sanctions targeted at military and dual-use equipment.

Weapons inspectors return

2002 September - US President George Bush tells sceptical world leaders gathered at a UN General Assembly session to confront the "grave and gathering danger" of Iraq - or stand aside as the United States acts. In the same month British Prime Minister Tony Blair publishes a dossier on Iraq's military capability.

2002 November - UN weapons inspectors return to Iraq for the first time since 1998, backed by a tough UN Security Council resolution which is reluctantly accepted by Baghdad. The resolution threatens serious consequences if Iraq is in "material breach" of its terms."

UN SC, 8 Nov 2002

"Holding Iraq in "material breach" of its obligations under previous resolutions, the Security Council this morning decided to afford it a "final opportunity to comply" with its disarmament obligations, while setting up an enhanced inspection regime for full and verified completion of the disarmament process established by resolution 687 (1991).

By the unanimous adoption of resolution 1441 (2002), the Council instructed the resumed inspections to begin within 45 days, and also decided it would convene immediately upon the receipt of any reports from inspection authorities that Iraq was interfering with their activities. It recalled, in that context, that the Council had repeatedly warned Iraq that it would face "serious consequences" as a result of continued violations."

2003 January - Chief weapons inspector Dr Hans Blix delivers a harsh report to the UN Security Council, accusing Baghdad of failing to come to a "genuine acceptance" of disarmament." (BBC News 28 Jan 2003)

2003 March – the Executive Chairman of UNMOVIC reports that Iraq has accelerated its cooperation but says inspectors need more time to verify Iraqi compliance.

2003 17 March – following the failure of intensive deliberations among Security Council members on possible next steps to ensure Iraqi compliance, the UK's ambassador to the UN says the diplomatic process on Iraq has ended; UN Secretary General orders the evacuation of arms inspectors from Iraq; President Bush gives Saddam Hussein 48 hours to leave Iraq or face war.

2003 19 March – UN Secretary General addresses UNSC, expressing regret and disappointment at the imminence of war.

The US-led military campaign in Iraq (2003)

UN SC, 22 May 2003

"2003 20 March – missiles hit targets in Baghdad, marking the start of a US-led campaign to topple the Iraqi regime. In the following days US and British ground troops enter Iraq from the south and numerous targets are struck in Baghdad and other key cities.

2003 24 March – UN Secretary General calls for “urgent measures” to restore electricity and water in Basra.

2003 25 March – coalition forces cross the Euphrates at Nasiriya.

2003 28 March – UNSC adopts resolution 1472 adjusting the oil-for-food programme, authorizing the Secretary General to use limited OFFP funds for the UN Humanitarian Flash Appeal launched the same day.

2003 1 April – coalition forces are within 45 km of Baghdad.

2003 4 April – power is cut to most of Baghdad.

2003 6 April – coalition forces enter Basra, taking control the next day.

2003 7 April – coalition forces take control of key sites in Baghdad.

2003 9 April – coalition forces sweep into central Baghdad. Widespread looting breaks out.

2003 11 April – coalition forces move to secure Kirkuk oil field.

2003 14 April – the Pentagon says that all major combat operations are probably at an end, following the fall of Tikrit, Saddam Hussein's home town.

2003 22 May - the Security Council decided to: lift trade and financial sanctions on Iraq; extend the "oil-for-food" programme for six months; revisit the mandates of the United Nations Monitoring, Verification and Inspection Commission (UNMOVIC) and the International Atomic Energy Agency (IAEA) at a later date; request appointment of a Special Representative of the Secretary-General; and review implementation of those and other matters within 12 months. Adopting resolution 1483 (2003), by a vote of 14 in favour, with Syria not participating in the voting, and acting under Chapter VII of the United Nations Charter, the Council supported the formation by the people of Iraq with the help of the Authority (the occupying Powers under unified command) and the Special Representative, of an Iraqi interim administration as a transitional administration run by Iraqis, until an internationally recognized, representative government established by the people of Iraq assumes the responsibilities of the Authority"

US-led Coalition Forces handover sovereignty to Interim Iraqi Government (2004 political developments)

- Iraq was occupied by the US led Coalition forces and governed by the Iraqi Governing Council (IGC), a body appointed by the Coalition Provisional Authority
- An interim constitution was agreed to on 8 March by the IGC
- On 1 June 2004, the IGC was dissolved and an interim government was appointed
- The UN Security Council adopts Resolution 1546, which declared that Iraq's occupation would end on 30 June and called for National Assembly elections by 31 January 2005 (8 June 2004)
- On 28 June, 2004 the Iraqi interim government replaces the CPA, formally ending the occupation of Iraq, but the US-led multinational force (around 150,000 troops) continued to exercise control over security-related matters
- Iraq's new ministers of justice and human rights announced emergency security laws on 7 July to help restore safety to the country

AI, 25 May 2005

"At the start of 2004 Iraq was occupied by US-led Coalition forces and governed by the Iraqi Governing Council (IGC), which had been appointed in 2003 by the Coalition Provisional Authority (CPA) headed by Paul Bremer.

On 8 March the IGC agreed an interim constitution. Among its main provisions were that the three Kurdish provinces in the north would remain autonomous, freedom of speech and religious expression would be guaranteed, elections to a National Assembly, mandated to draft a constitution, would be held by January 2005, and at least a quarter of the National Assembly should be women. Many Shi'a clerics, especially Grand Ayatollah Ali al-Sistani, expressed reservations about the interim constitution, in particular provisions allowing for US-led multinational forces to remain in Iraq after the formal end of occupation, the right of three provinces to veto a referendum on a permanent constitution and a three-quarter majority requirement to amend the constitution.

On 1 June the IGC was dissolved and an interim government was announced. Iyad 'Allawi, a Shi'a Muslim, was appointed Prime Minister. Shaikh Ghazi al-Yawar, a Sunni Muslim, was appointed President, a largely ceremonial position.

On 8 June the UN Security Council adopted Resolution 1546, which declared that Iraq's occupation would end on 30 June and called for National Assembly elections by 31 January 2005. The resolution gave the UN a greater role in helping the Iraqis in the political and human rights fields during the transitional period, including the convening of a national conference, held in August, to select a consultative council to advise the interim government, with the power to veto its orders. Resolution 1546 stated that the US-led multinational force would remain in Iraq until the end of 2005 (unless asked to leave earlier by the Iraqi government) with the authority to 'take all necessary measures to contribute to the maintenance of security and stability in Iraq'.

On 28 June, the Iraqi interim government replaced the CPA, formally ending the occupation of Iraq. However, the US-led multinational force of around 150,000 troops continued to exercise control over security-related matters."

UNSC, 8 June 2004

"The members of the Security Council welcome the handover of full responsibility and authority for governing Iraq to the fully sovereign and independent Interim Government of Iraq, thus ending the occupation of the country. The members of the Council reaffirm the independence, sovereignty, unity and territorial integrity of Iraq.

The members of the Security Council reiterate fully resolution 1546 (2004), including the proposed timetable for the political transition, the possibility of an international meeting, and the leading role of the United Nations to assist the Interim Government of Iraq in implementing the political process leading, inter alia, to elections no later than 31 January 2005. The members of the Council call on all Iraqis to implement these arrangements peaceably and in full.

The members of the Security Council reiterate their call to all States and relevant international and regional organizations to support the Interim Government of Iraq in the implementation of this process, and in its efforts to bring economic reconstruction, peace, unity and stability to Iraq."

See the "Law of Administration for the State of Iraq for the Transitional Period", 8 March 2004 that came into effect in 30 June 2004 and is in effect until the formation of an elected Iraqi government, no later than 31 December 2005 [Internet]

IRIN, 4 January 2005

"IRAQ: Team to gauge possibility of elections, security permitting

The United Nations Secretary-General, Kofi Annan, said on 27 January that the UN would send a team to Iraq to explore the possibility of elections before the transfer of sovereignty as long as the Coalition Provisional Authority (CPA) provided adequate security arrangements. His decision was in response to a request, on 19 January, from both the CPA and the Iraqi Governing Council (IGC) for a UN team to travel to the country to establish whether elections for a transitional national assembly could be held before 30 June, and if not, what alternative arrangement would be acceptable.

IRAQ: UN Secretary-General says elections before 30 June not feasible

United Nations Secretary-General Kofi Annan said on 19 February that elections could not be organised in Iraq before the 30 June deadline for a transfer of sovereignty, a date he said should be 'respected'. The announcement came after a mission to Iraq, led by Special Adviser Lakhdar Brahimi. The UN team concluded that preparations for elections would take a minimum of eight months, to align all the necessary political and technical conditions, including the creation of an independent electoral commission. Annan recommended that a caretaker government should be established between the handover of power from the Coalition Provisional Authority (CPA) and an election.

IRAQ: Interim Iraqi constitution signed

An interim constitution was signed by Iraq's US-appointed Governing Council (IGC) on 8 March, to be implemented when sovereignty is handed over to Iraqis on 30 June and to help pave the way to elections. Under the US plan, an unelected Iraqi government will take over sovereignty on 30 June. An assembly will be elected by the end of January next year and full democratic elections will be held by the end of 2005.

IRAQ: UN envoy lays out plans for future election

Lakhdar Brahimi on 14 April laid out a new plan for an interim government in Iraq as the volatile security situation continued to restrict movement around the country. A 'caretaker' government, to be formed in May, should be led by a prime minister, a president and two vice-presidents, Brahimi said. A 'consultative assembly' should be elected in July to serve alongside the caretaker government.

IRAQ: New interim government sworn in

On 1 June a new interim government was appointed with Sunni Muslim Sheikh Ghazi al-Yawar as president, Iyad Allawi, a Shi'ite Muslim, as prime minister; two deputy presidents and 26 ministers. Lakhdar Brahimi immediately called for Iraqis to appoint a national assembly in July and prepare for elections in January.

IRAQ: UN Security Council approves revised Iraq resolution

On 8 June, the UN Security Council voted unanimously to adopt a revised US and UK-backed resolution, paving the way for Iraqis to assume 'full responsibility and authority'. Kofi Annan welcomed the vote, describing it as a 'genuine expression of the will of the international community'. He pledged the UN would play its part in the next phase of the country's transition from war and occupation.

IRAQ: Violence spreads in run-up to 30 June handover

The week of 21 June saw a wave of violence across Iraqi cities, killing at least 100 people in the run-up to the handover of sovereignty to Iraqis on 30 June. The worst attack was in the northern city of Mosul, where at least 62 people died and 220 were hurt in a series of car bombings. Other cities targeted included Ramadi and Fallujah west of Baghdad and Baquba northeast of Baghdad along with the capital itself. Iraq's interim prime minister, Iyad Allawi vowed to crush the insurgents responsible for the attacks. The handover of sovereignty came early as Iraq became a sovereign state on 28 June after the scheduled 30 June handover of power took place two days early for security reasons. The handover was initially announced by the Iraqi Foreign Minister

Hoshyar Zebari, speaking after talks with UK Prime Minister Tony Blair at a NATO summit in Istanbul on 28 June.

IRAQ: Emergency security laws announced

Iraq's new ministers of justice and human rights announced emergency security laws on 7 July to help restore safety to the country. An unspecified curfew period, transport controls, restrictions on the assets of suspected terrorists and on licences for weapons are necessary to create peace in the country, Human Rights Minister Baktiar Amin said. Emergency measures approved by Iraq's new interim government would still respect the rights of citizens, he added. With increasing violence in parts of the country, the law was welcomed. Two US-based think tanks estimate that as of 16 June, more than 11,000 Iraqi civilians have been killed by Coalition forces and militant attacks during and since the March 2003 war.

IRAQ: Massive efforts needed on reconstruction

With the passing of the 100th day since Iraq's interim government came to power, officials acknowledged the scale of the task of reconstructing the country but say that some progress is being made. Iraqi Prime Minister Iyad Allawi told the national assembly in Baghdad on 12 October that Coalition forces would remain in Iraq, offering security until the country's own forces were fully trained. He confirmed that elections would be held as scheduled in January 2005, despite the continuing insurgency.

IRAQ: Elections preparations move ahead

Iraq's election preparations continued in early December despite ongoing attacks by insurgents, with an escalation in violence on the 4-5 December killing at least 68 Iraqis. On 6 December interim President Ghazi al-Yawar reaffirmed his support for the planned 30 January election date. Speaking ahead of talks with US President George Bush, Yawar said any delay would prolong Iraqis' agony and increase resentment inside the country. On 8 December, UN spokesman Fred Eckhard said that more than 5,000 candidates had already registered for the elections from 241 parties."

Overview January 30 elections (2005)

- Under the Transitional Administrative Law several elections had to be held simultaneously: the election of 275 representatives to the Transitional National Assembly, 18 governorate councils and the Kurdistan Assembly, by no later than 31 January 2005
- The elections were organized and conducted by Iraqis under the oversight of the Independent Electoral Commission of Iraq
- The Commission was supported by an international electoral assistance team of 43 United Nations experts — 22 in Baghdad, 16 in Amman and 5 at UN Headquarters who provided technical, logistical, financial and administrative assistance
- The Commission accredited 33,141 national observers, 622 international observers and 61,725 agents of political parties and entities to observe the electoral process
- The Commission undertook some special measures due to the security situation including allowing voters from several locations where military operations were conducted, or where security conditions were deemed problematic, to cast their votes in the national election at any polling station in the country
- Also, voters from the Ninewa and Anbar governorates were able to register and vote at any polling station in the country.
- Security measures included the closure of borders and a ban on vehicle movements
- Of the planned 5,243 polling centres, 5,199 were able to open and operate on polling day

- Voter turnout of voters to be 8,550,571, of whom 263,685 voted from abroad of which 94,305 (1.1 per cent of the total) were determined to be invalid
- An open process of complaints and resolutions was formulated and implemented by the Commission
- There were 111 competing political entities and coalitions
- 275 representatives were elected to the National Assembly from a total of 7,785 candidates
- The electoral system resulted in over 31 per cent of seats being awarded to female candidates

UNSG, 7 March, pp. 4-6

“The Transitional Administrative Law required 20 elections to be held simultaneously, for the Transitional National Assembly, 18 governorate councils and the Kurdistan Assembly, by no later than 31 January 2005. The period of December 2004 and January 2005 was therefore critical for making final preparations. The elections were organized and conducted by Iraqis under the oversight of the Independent Electoral Commission of Iraq. In implementing its mandate, the Commission oversaw and directed the work of 1,000 Iraqi core staff and over 20,000 Iraqi temporary electoral workers. The Commission was able to complete all the necessary technical preparations for credible and genuine elections against the background of a fragile political environment and continuing concerns about the security situation.

In fulfilling its task, the Commission was supported by an international electoral assistance team led by the United Nations, which, in addition to 43 United Nations experts — 22 in Baghdad, 16 in Amman and 5 at United Nations Headquarters — included three experts from the European Union, two from the United Kingdom of Great Britain and Northern Ireland, one from Chile, and nine from the International Foundation for Election Systems. The international team provided technical, logistical, financial and administrative assistance to the Independent Electoral Commission throughout the electoral process.

Throughout its work, the Independent Electoral Commission’s guiding principles were transparency and inclusiveness. The Commission accredited more than 2,000 media personnel throughout the country, half of whom were Iraqi, the remainder being international and Arabic media representatives. The Commission also established a media centre in the Iraqi National Convention Centre located within the international zone. The media centre operated from 25 January to 6 February. In addition, the Commission accredited 33,141 national observers, 622 international observers and 61,725 agents of political parties and entities to observe the electoral process. The United Nations actively encouraged the development of election observer groups and established a dedicated project for this purpose.

The uncertain political environment and security conditions necessitated a range of contingencies and special measures. Within the limits of its mandate, the Independent Electoral Commission implemented several special measures to enhance inclusiveness and participation. Voters from several locations where military operations were conducted, or where security conditions were deemed problematic, were able to cast their votes in the national election at any polling station in the country. Also, voters from the Ninewa and Anbar governorates were able to register and vote at any polling station in the country. A final special measure was implemented in the course of polling day, which permitted selected polling centres to remain open longer, if the Commission determined that access had been obstructed or the period of operation affected.

The Independent Electoral Commission worked extensively with national and international security forces. This cooperation allowed for the establishment of a close network and the coordination of resources, which provided a viable security framework for the elections. The security plan put in place, including the closure of borders and a ban on vehicle movements, created a security environment that permitted electoral staff to carry out their work before, during

and following election day. Of the planned 5,243 polling centres, 5,199 were able to open and operate on polling day. Available statistical data do not provide conclusive evidence on the impact of security concerns on voter turnout, especially in the light of some political calls for boycotts.

As planned, counting took place immediately after the close of the polls, with the exception of a few centres where security required counting to be undertaken at the governorate level. In the weeks prior to polling day, the Independent Electoral Commission set up a tally centre, assisted by a team of international advisers. Its setting up included the physical arrangement of the centre, hiring of staff, arrangements made with the multinational force for living quarters, work-flow strategies, security management, storage and retrieval of forms, database development and quality-control measures. This process was prepared and conducted in a manner that was transparent and open to observers and the media.

The Independent Electoral Commission provisionally reported the turnout of voters to be 8,550,571, of whom 263,685 voted from abroad. Of all these votes cast, only 94,305 (1.1 per cent of the total) were determined to be invalid. There was a continuous flow of agents and observers, who monitored the tally centre. Observers and agents were also present during the recount process, which included opening and counting a mixed sample of ballot boxes from various governorates at the national headquarters.

The Board of Commissioners of the Independent Electoral Commission has the authority to make determinations on complaints and disputes arising from the elections. An open process of complaints and resolutions was formulated and implemented by the Commission, supported by both Iraqi lawyers and international specialists. The official certification of the vote by the Commission took place on 17 February 2005, after all major complaints had been dealt with; the complaints outstanding that would be decided upon after the certification were assessed to be of such a nature that they could not affect the result. The elections met recognized international standards in terms of organization, regulations and procedures. This demonstrates the professionalism and effectiveness with which the Commission and the thousands of Iraqi election workers, trainers and monitors carried out their work.

From 111 competing political entities and coalitions, the election of 275 representatives to the National Assembly from a total of 7,785 candidates is testimony to the vibrant political environment emerging in Iraq. Moreover, the electoral system resulted in over 31 per cent of seats being awarded to female candidates — surpassing the goal established in the Transitional Administrative Law. The following period of constitutional, legislative and governmental activity will have a strong formative influence on the evolution of political groupings in Iraq and their approach towards the future elections of the transition."

Further resources:

[Iraqi Interim Government](#)

[Independent Electoral Commission of Iraq](#)

[The Iraqi Election Information Network](#)

[HRW, "Iraqi Elections: Human Rights Concerns"](#)

[IWPR "Iraq Election Focus"](#)

Transitional government and Transitional National Assembly to draft new Constitution (2005)

- The January elections swore in Jalal Talabani as President of Iraq, and Vice Presidents Ghazi al-Yawar and Adel Abdul Mehdi
- The Transitional National Assembly (TNA) was formally inaugurated on 16 March 2005

- The TNA has 275 members, with the United Iraqi Alliance being the political party with the most seats
- One of the key issues facing the political process in Iraq concerns how to ensure adequate and legitimate representation of Arab Sunnis in the Transitional government, a majority of whom did not participate in the elections and who by consequence are under-represented in the TNA
- The transitional government is expected to serve until elections for a new constitutionally elected government by 31 December 2005 (in accordance with the timetable set by UN Security Council Resolution 1546 (2004))
- A Constitution Drafting Committee was established in May 2005 and is expected to draft a permanent constitution by 15 August, although a six-month extension period under the Transitional Administrative Law (timetable of UN Security Council Resolution 1546 (2004))
- The draft Constitution will be voted publically in a general referendum that is to be held no later than 15 October 2005 (timetable of UNSC Res. 1546 (2004))
- The security situation has yet to show any sign of improvement despite political developments

"During the period under review, the transitional process was focused on the convening of the Transitional National Assembly and its proceedings as well as on the formation of the Transitional Government of Iraq.

Due to delays in reaching agreement on the composition of the Government, it was decided to proceed with convening the Transitional National Assembly on the understanding that efforts for government formation would continue. On 16 March 2005, the Transitional National Assembly was formally inaugurated. After further negotiations, the Transitional National Assembly, on 6 April, elected Hajim Al-Hasani as its President. Hussain Sharistani and Aref Taifour were elected as Vice-Presidents.

The Transitional National Assembly is composed of 275 members and includes the following political entities: United Iraqi Alliance (140 seats), the Kurdistan Alliance List (75 seats), the Iraqi List (40 seats), the Iraqis (five seats), Turkman Iraqi Front (three seats), National Independent Cadres and Elites (three seats), National Union (two seats), Islamic Group of Kurdistan/Iraq (two seats), Islamic Action Organization in Iraq (two seats), National Democratic Alliance (one seat), Al Rafideen National List (one seat), Liberation and Reconciliation Gathering (one seat).

As a result of negotiations on the formation of the Presidency Council, Jalal Talabani was sworn in as President of Iraq on 7 April. Ghazi al-Yawar and Adel Abdul Mehdi were sworn in as Vice-Presidents on the same day.

During the reporting period, one of the key issues between the main political stakeholders was how to ensure adequate and legitimate representation of Arab Sunnis in the Transitional Government, many of whom did not participate in the elections. As a consequence, Sunni Arabs were under-represented in the Transitional National Assembly. Prolonged negotiations between the Kurdistan Alliance and the United Iraqi Alliance, the two political groupings with the largest number of seats in the new Assembly, resulted in a memorandum of understanding that laid the basis for government formation.

On 28 April 2005, the Transitional National Assembly endorsed the Transitional Government under the premiership of Ibrahim Ja'afari. The Government comprises 32 ministerial and 4 deputy ministerial posts.

The time taken to form the Government presented many opportunities to debate key political and constitutional issues. This was the first occasion for Iraq's political parties to have in-depth discussions and engage in negotiations on critical issues facing the new administration. As the attempts at government formation became protracted, many Iraqis expressed concern about the extent to which the process was focusing on ethnic and sectarian considerations. By contrast, other observers focused on the implications of the ongoing negotiations for the transitional timetable, notably the drafting of the constitution and the manner in which inter- and intra-party agreements might prejudice the Government's necessary freedom to manoeuvre.

The difficulties experienced in allocating posts to satisfy all ethnic and confessional groups in Iraq points to the considerable challenges ahead, particularly with regard to the constitution-making process. Under the timetable established by resolution 1546 (2004), the Transitional Government is expected to serve until elections under a new permanent constitution leading to a constitutionally elected Government by 31 December 2005.

On 10 May 2005, the Transitional National Assembly established the Constitution Drafting Committee. Under the timetable for the political transition, the Committee is expected to write the draft of a permanent constitution by 15 August, unless the six-month extension provided for in the Transitional Administrative Law is invoked. The draft permanent Constitution would then be presented to the Iraqi people for approval in a general referendum to be held no later than 15 October.

The Constitution Drafting Committee is chaired by Sheikh Humaam Al-Hammoudi of the United Iraqi Alliance. Fouad Ma'suum of the Kurdistan Alliance List and Adnan Janabi of the Iraqi List serve as deputy chairs. Fifty-five members of the Transitional National Assembly drawn from the various lists are members of the Constitution Committee. The United Iraq Alliance has 28 members, the Kurdistan Alliance 15 members and the Iraqi List 8 members. Smaller groups have four members on the Committee. These groupings represent Turkman, Assyrian Christians and Yezidis. In addition to the Constitution Drafting Committee, the Assembly has established 27 standing committees to assist it in exercising its legislative and oversight functions.

On 25 May the Constitution Drafting Committee established a subcommittee tasked with identifying mechanisms for making the Constitution-making process more inclusive. The subcommittee is expected to complete its task soon. The Constitution Drafting Committee has also established subcommittees on federalism and human rights. Meanwhile, the Government has formed an Inter-Ministerial Committee on Constitutional Affairs consisting of six Ministers (Justice, Governorate Affairs, Women's Affairs, Culture, Municipalities and Public Works) to be chaired by a Deputy Prime Minister. The Inter-Ministerial Committee has been tasked with supporting the Constitution-making process.

This new phase of Iraq's political transition takes place in a security environment that has yet to show any signs of improvement." (UNSC, 7 June 2005, paras 15 and 16).

Iraqis adopt new constitution and elect new Parliament (October and December 2005)

- Iraqis adopted a new constitution by referendum on 15 October 2005
- In December 2005, Iraqis voted for a new Parliament, the third national election during the year
- On 19 and 20 December 2005, the Electoral Commission announced partial election results
- 43 Iraqi political parties formed a group to protest against intimidation, ballot stuffing, over-registration, improper apportionment of seats to governorates

- An international monitoring team declared the elections to meet international standards--fair, genuine and transparent
- Compared to the January 2005 election, Sunni Arab voters participated in significantly greater numbers
- The election resulted in 12 political entities and coalitions
- The United Iraqi Alliance will remain the largest political bloc in the Parliament with 128 seats

UNSC, 3 March 2005, pp.1-3

"Following the adoption of the new Constitution by the Iraqi people in the referendum held on 15 October 2005, the December election for a new Parliament, the Council of Representatives, marked the beginning of the last phase of the political transition process set forth in the Transitional Administrative Law and endorsed by the Security Council in resolution 1546 (2004).

The election held on 15 December 2005 was the third major national electoral event in Iraq during the past year. Overall, election day was calm and no major incidents were reported. A total of 307 political entities and 19 coalitions encompassing more than 7,500 candidates representing almost all Iraqi communities and political affiliations entered the contest for the 275 seats in the Council of Representatives. Despite security concerns, voter turnout was high throughout the country. A total of 12,191,133 valid votes were cast in approximately 6,300 polling centres that accommodated over 30,000 polling stations. Of the valid votes, 295,377 were cast abroad and 203,856 were cast in 255 special polling centres for detainees, hospital patients and members of Iraq's security forces. These figures translate into turnout in the January 2005 election, which amounted to approximately 58 per cent.

Compared to the January 2005 election, Sunni Arab voters in the governorates of Ninewa, Salahaddin, Tamim and Al Anbar — the governorates with the lowest turnouts in the January election — participated in significantly greater numbers in the December 2005 election. Several Sunni Arab and tribal leaders encouraged local populations to support the electoral process and in some areas provided protection to polling centres.

Campaigning was robust across the country particularly through the use of television, radio, the press and street posters. While overall levels of violence did not increase in the pre-election period, there were several acts of campaign violence. The Independent Electoral Commission of Iraq received 190 complaints during the period leading up to polling day. The large majority of the complaints related to poster damage, intimidation and aggressive conduct by supporters of political entities. However, some of the complaints referred to acts of a criminal nature including violent attacks resulting in the death of candidates and electoral staff. The Electoral Commission and my Special Representative repeatedly called upon all concerned to refrain from violence and to ensure an environment conducive to full participation in the electoral process.

Under the new electoral law, parties were to present separate lists of candidates for each governorate instead of a single national list as required during the previous election. The lists were subjected to close scrutiny by the De-Baathification Commission as required by the electoral law. As a result, about 200 candidates were disqualified from the election as they did not meet the requirements of the De-Baathification regulations. In accordance with the electoral law, the Electoral Commission notified election entities and candidates of the decisions of the De-Baathification Commission. In response, some parties replaced disqualified candidates.

Numerous safeguards were established to ensure a fair, genuine and transparent electoral exercise and to discourage attempts at fraud. The Electoral Commission deployed pre-election and post-election auditors as well as field monitors. Audit teams, which included members of the International Electoral Assistance Team, visited Erbil, Kirkuk, Ninewa, Baghdad, Hilla and Babil.

Field monitors were deployed in most governorates to assess the implementation and conduct of operations on polling day. In addition, the Electoral Commission accredited over 270,000 political entity agents and more than 130,000 observers, including 949 accredited by international entities and institutions. Accredited observers were able to observe all stages of the electoral process, including the “special voting” on 12 December 2005 for detainees, hospital patients and members of the security forces. More than 3,000 political entity agents and observers were accredited to observe and monitor the out-of-country voting which took place in 15 countries from 13 to 15 December.

The Electoral Commission received a total of 1,980 complaints concerning the December election, of which 58 carried the potential to affect the outcome at a specific polling station. As a result of investigations into these complaints, the Electoral Commission annulled the results of 227 polling stations, issued penalties in 27 cases and dismissed polling staff involved in acts associated with attempts at fraud. The Electoral Commission also fined several political entities and coalitions for breaching electoral regulations.

On 19 and 20 December 2005, the Electoral Commission announced partial election results. In response, 43 parties — mainly belonging to the Iraqi National Front, the Iraqi Accord Front and the National Dialogue Front — formed a group to protest against intimidation, ballot stuffing, over-registration, improper apportionment of seats to governorates and other election-related practices and to lodge complaints against the Electoral Commission. Amid growing protests over the announced partial results, and calls by political parties for an external investigation, the Electoral Commission welcomed the decision of the International Mission for Iraq Elections, an international non-governmental body composed mainly of independent electoral management bodies, to deploy a monitoring team as part of its observation mandate.

The International Mission monitoring team, which included two senior officials from the League of Arab States, was deployed from 1 to 18 January and assessed post-election activities, including the complaints process and audit visits. The International Mission issued its post-election assessment report on 19 January and concluded that the election “generally met international standards”, thus paving the way for the announcement of uncertified results on 20 January. Twelve appeals of the uncertified results were then submitted to the Transitional Electoral Panel. Once those appeals were decided upon, the Electoral Commission on 10 February announced the certified results.

The election resulted in 12 political entities and coalitions, representing a broad political, ethnic and religious spectrum, winning seats in the Council of Representatives. According to the final certified results, the United Iraqi Alliance will remain the largest political bloc in the Parliament with 128 seats. The Kurdish Gathering won 53 seats. The Tawafoq Iraqi Front, an alliance of several parties including the General Conference for the People of Iraq, the Iraqi Islamic Party and the Iraqi National Dialogue, obtained 44 seats. The Iraqi National List won 25 seats, and the Sunni-dominated National Iraqi Dialogue Front gained 11 seats. The Islamic Union of Kurdistan secured 5 seats, and the Liberation and Reconciliation Gathering won 3 seats. The Progressives List gained 2 seats. Finally, the Al-Rafedeen List, the Iraqi Turkoman Front, the Mithal al-Aloosi List for the Iraqi Nation and Al Ezediah Movement for Progress and Reform won 1 seat each.

In conclusion, the election was conducted transparently and credibly. It was an inclusive exercise that succeeded in incorporating all of Iraq's numerous communities and political parties. The fact that it generally met international standards is not a small achievement, given that the election took place against the backdrop of an ambitious timetable and a very challenging political and security environment."

See a draft of the [Iraqi Constitution](#)

See also, IRIN, [Constitution approved despite rejections](#), 1 September 2005

UN approves extension of Multinational Force mandate into 2006

- In previous resolutions, the multilateral forces' mandate could be terminated at the request of the government constitutionally elected in December 2005
- Resolution 1637 extends the term until end of 2006 with a review of the mandate latest mid-June 2006 or at the request of the government

IRIN, 25 November 2005

"A unanimous decision this week by the United Nations Security Council to extend the mandate of the US-led multinational force in Iraq received a mixed reaction in the country.

Officials from the US-backed Iraqi government said the country was not yet ready to handle its security unaided and welcomed the extension.

[...]

Previous resolutions adopted by the 15-nation council had declared that the force's mandate could be terminated at the request of the Iraqi government, and would in any case expire once a permanent government was constitutionally elected at the end of 2005.

However, resolution 1637, passed on Tuesday, extended the term of the multinational force "until the end of next year," allowing for "a review of that mandate at any time, no later than mid-June 2006, or for its termination, at the request of the Iraqi Government."

There are close to 160,000 US soldiers currently serving in Iraq. On Monday, however, US military sources revealed that fewer troops - some 92,000 - were scheduled for service in the war-torn country from mid-2006 to mid-2008.

Demonstrators marched in Baghdad on Wednesday urging the UN to change its decision. Protesters called for the departure of foreign forces once the new elected government takes office, following a 15 December poll.

Sunni Muslims viewed the motion cynically.

[...]

Local people are concerned that continued US presence could lead to increasing insurgency, opposed to the occupation."

See: Iraq: [Resolution 1637 \(2005\)](#) adopted by the Security Council at its 5300th meeting, on 8 November 2005

Iraq forms first constitutionally elected government (May 2006)

BBC, 22 May 2006

"After five months of negotiations following December's general elections Iraq's parliament has approved a new government, including members of the main Shia, Kurd and Sunni parties.

The defence and interior remain unfilled, and no head of national security has been appointed. Here is the full list of ministers.

NOURI MALIKI (SHIA) - PM & ACTING INTERIOR MINISTER

Mr Maliki is a stalwart of the Dawa party, the Shia political group that for years led an armed underground resistance to the secular Baathist leadership of Saddam Hussein. Mr Maliki fled the country in 1980 and eventually finding refuge in Syria, returning after Saddam Hussein's overthrow.

BARHAM SALIH (KURD) - DEPUTY PM & ACTING NATIONAL SECURITY MINISTER

An official of President Jalal Talabani's Patriotic Union of Kurdistan since 1998, Mr Salih became prime minister of the PUK-led regional government in January 2001. He survived an assassination attempt at his home in April 2002. He joined the Iraqi transitional government in June 2004 as deputy prime minister for security affairs.

SALAM ZAUBAI (SUNNI) - DEPUTY PM & ACTING DEFENCE MINISTER

Mr Zaubai's political group is part of the main Sunni coalition, the Iraqi Accordance Front. Although from a well-known tribe, he has not been high profile. He heads the Agriculture Engineers Union.

HUSSAIN AL-SHAHRISTANI (SHIA) - OIL MINISTER

Dr Hussein Shahrستاني, a Shia nuclear scientist, was once director of research at the Iraqi Atomic Energy Commission. Whilst director he was imprisoned for possessing a subversive leaflet condemning the repression of Iraqi Shias. He fled Iraq in 1991 after being imprisoned for refusing to work in Saddam Hussein's nuclear programme and worked for human rights organisations in Iran and London thereafter.

HOSHIYAR ZEBARI (KURD) - FOREIGN MINISTER

Mr Zebari was the foreign spokesman for the Kurdistan Democratic Party for more than 10 years. He frequently represented the KDP in meetings with US State Department officials throughout the 1990s. He was born in 1953 in the Kurdish town of Aqrah, but grew up in the mainly Arab city of Mosul. He is a graduate of the University of Essex in the UK.

HASHIM AL-SHEBLI (SUNNI) - JUSTICE MINISTER

Previously appointed human rights minister, he rejected the post after being approved by parliament on 8 May, saying he had not been consulted.

OTHER MINISTERS

Ali al-Shemari (Shia) - Health minister
Khudayer al-Khuzai (Shia) - Education minister
Bayan Jabr (Shia) - Finance minister
Abed Falah al-Sudani (Shia) - Trade minister
Karim Waheed (Shia) - Electricity minister
Fawzi al-Hariri (Kurd) - Industry minister
Latif Rashid (Kurd) - Water resources minister
Bayan Dazee (Kurd) - Housing and construction minister
Yarrub Nazim (Shia) - Agriculture minister
Abed Theyab (Sunni) - Higher education minister
Karim Mahdi (Shia) - Transport minister
Abdul-Samad Rahman (Shia) - Migration minister
Adel al-Assadi (Shia) - Minister of state for civil society affairs

Safa al-Safi (Shia) - Minister of state for House of Representatives' affairs
 Jassim Mohammed Jaafar (Shia) - Youth and sports minister
 Liwa Semeism (Shia) - Minister of state for tourism and archaeology affairs
 Ali Baban (Sunni) - Planning and development cooperation minister
 Mohammed Twafiq (Shia) - Communications minister
 Mahmoud Mohammed al-Radhi (Shia) - Labour and social affairs minister
 Riyadh Gharib (Shia) - Municipalities and public works minister
 Narmin Othman (Kurd) - Environment minister
 Assad Kamal Mohammed (Kurd) - Culture minister
 Fatin Abdel-Rahman (Sunni) - Minister of state for women's affairs
 Saad Tahir Abid (Sunni) - Minister of state for provincial affairs
 Raed Fahmi (Sunni) - Science and technology minister
 Wijdan Mikaeil (Christian) - Human rights minister
 Rafaa al-Esawi (Sunni) - Minister of state for Foreign Affairs
 Akram al-Hakim (Shia) - Minister of national dialogue
 Mohammed Abbas Auraibi (Shia) - Minister of state
 Ali Mohammed Ahmed (Kurd) - Minister of state
 Hassan Rhadi Khazim (Shia) - Minister of state"

Causes of displacement

Inter-communal threats and attacks cause new wave of Iraqis to flee their homes (April 2006)

- At least 70,000 people are estimated to have fled their homes due to direct or indirect attacks (as of May 2006)
- Most are fleeing to areas where they are a majority (Shiites to the South) and Sunnis to the Baghdad and surroundings, though people have also moved within the same governorate
- Reports from Baghdad's neighbourhoods of Al-Hurriya, Al-Adhamiya, Al-Amriya, Al-Khadhraa, Abu Dsheer, Baghdad Aljedeeda and Al-Dura portray ongoing violence resulting in displacement of individuals and families to other neighbourhoods following threats and killings (2005)
- Similar displacements were reported to and from Basra, Baghdad, Ninewa and Al Anbar (2005)
- Voluntary displacements were also reported, as families expressed that sectarian pressures are too intense to permit them to remain in their neighborhood in Tal Afar, Tarmiya, Basra and other cities in the country (2005)
- AFP reported Shiite Muslims fleeing some areas of the South due to fear of violence by Sunni insurgents (2005)
- The Roma were well treated under the former regime, but since April 2003, around 2000 Roma were forced out of their homes
- IRIN also reported around 350 Assyrian Christians expressing a wish to move to Northern Iraq following attacks on churches (2004)

IDMC Note: Particular social groups, such as local doctors and foreigners, including Palestinian refugees in Iraq have faced attacks, causing them to flee their homes, seeking safety within Iraq or outside. See IRIN, "[Facing threats, local doctors flee Mosul](#)" and "[In deteriorating security environment, Palestinian refugees flee capital](#)"

IRIN, 17 April 2006

"Up to 35,000 more individuals have been displaced in the past two weeks due to ongoing sectarian violence, said officials from the Ministry of Displacement and Migration.

"Nearly 70,000 displaced Iraqis, especially from the capital, are living in deteriorating conditions," said ministry spokesman Sattar Nawruz.

According to ministry officials, the government is providing displaced families with essential materials, including food and medical supplies. Nevertheless, officials express alarm over a rising rate of displacement in recent weeks. "Families are leaving their homes every day because they're afraid of becoming the next victims of violence," Nawruz pointed out.

[...] Many Shi'ite Muslims, recently displaced from the western Anbar governorate and Baghdad, have taken refuge in southern areas, such as Basra, Najaf and Nassriyah. Numerous Sunni Muslim families, meanwhile, from Baghdad and the country's south, have fled to the cities and villages of Anbar, such as Fallujah, Rawa and Ramadi.

Displaced families complain that sectarian threats are increasing daily. "I have to leave because I received a letter saying that if I don't leave my district – where I've lived for more than 20 years – my family will end up in a cemetery," said Ahmed Shamari, a Sunni Muslim teacher who resides in a majority-Shi'ite district in the capital.

Some of those fleeing violence have avoided the refugee camps being set up for them, fearing that they, too, could become targets of violence. "These displaced people would rather seek shelter with relatives in safe areas or in abandoned schools or government buildings," said a volunteer with the IRCS."

IRIN, 21 March 2006

"The Iraqi Ministry of Immigration and Displacement said on Tuesday that 3,705 families had been displaced in the country, as a result of the ongoing sectarian violence.

It erupted following the 22 February bombing of a Shi'ite shrine, Al-Askariya, in Samarra, some 120 km north of Baghdad.

The attack on the Al-Askariya shrine spawned days of reprisal attacks between the country's two major Muslim sects, the Shi'ites and the Sunnis. At least 400 people were killed and dozens of mosques were damaged and destroyed, according to figures released last week by the Interior Ministry.

Sattar Nawroz, the spokesman for the Ministry of Immigration and Displacement, said that most of the displaced families went to the southern city of Najaf.

About 1,000 families had descended there from Baghdad's restive western neighbourhoods, and from the northern oil-rich city of Kirkuk as well as from Diyala, north-east of Baghdad.

The second largest number of the displaced families, 615, Nawroz added, have fled to the centre of Baghdad, from the capital's western and northern suburbs."

IRIN, 16 March 2006

"Dozens of families in the capital, Baghdad, have been displaced from their neighbourhoods due to the sectarian violence that has come in the wake of the Samarra shrine bombing in February and subsequent attacks.

...

On Thursday, the Ministry of Interior announced that at least 630 people had been killed as a result of sectarian violence since the Samarra bombing.

...

According to the IRCS, more than 300 families from different areas of the capital have been displaced, many of them Sunni residents of majority Shi'ite neighbourhoods.

...

Sunnis are not the only ones to have fled their homes in fear of reprisal. There are also numerous Shi'ite families who prefer to live in deteriorating conditions rather than risk being killed in their majority-Sunni neighbourhoods."

UNAMI, September - October 2005 Human Rights Report, p.2

"The proliferation of armed militias, criminal and terrorist organizations acting with impunity constitutes a major challenge to law and order and a threat to the security of the civilian population. Militias have been accused of kidnappings, extra-judicial executions and carrying out illegal policing and sectarian attacks. It is extremely worrying that some of these crimes are committed by individuals wearing police and military uniforms and using police or military equipment. In some areas, including Baghdad, sectarian violence increasingly seems to aim at disrupting the traditionally peaceful coexistence of communities. Reports from Baghdad's neighbourhoods of Al-Hurriya, Al-Adhamiya, Al-Amriya, Al-Khadhraa, Abu Dsheer, Baghdad Aljedeeda and Al-Dura portray ongoing violence resulting in displacement of individuals and families to other neighbourhoods following threats and killings. Similar displacements were reported to and from Basra, Baghdad, Ninewa and Al Anbar. There are also voluntary displacements, as families have shared the concern with the Human Rights Office that sectarian pressures are too intense to permit them to remain in their neighborhood. Such displacements have been reported in Tal Afar, Tarmiya, Basra and other cities in the country. There are continuous first hand reports that long term Arab residents are still victims of stigmatization, harassment and arbitrary detention because of their perceived association with "foreign fighters.""

IRIN, 3 March 2005

"During Saddam Hussein's rule, gypsies were reasonably well treated and given shelter. But after the 2003 conflict, as people returned to the village, many were forced out and are living in tents or have built mud homes.

[...]

In general, the gypsies are looked down upon by the rest of society and are often found selling alcohol. Some are forced to turn to commercial sex work to earn a living, according to local people.

[...]

In 2003, after the fall of the previous regime, the Medhi army attacked the houses of the gypsies in Diwanya and they cut off the electricity and destroyed the only school there."

UNHCR, October 2005, p. 16

"It is reported that sectarian violence is causing the displacement of hundreds of Shiite Muslims from the 'Triangle of Death' south of Baghdad which includes Sunni-Shiite mixed towns such as Latifiyah, Mahmoudiyah and Yusufiyah and other traditionally mixed areas such as the Dora neighbourhood in Baghdad Governorate, Salman Pak and Al-Madaen in the Governorate of Babil."

AFP, 20 May 2005

"Hundreds of Shiite Muslims are fleeing towns in lawless areas south of the Iraqi capital where killings and kidnappings by a ragtag army of Sunni extremists and tribal gangs have torn mixed communities."

IRIN, 22 November 2004

"[A]n estimated 350 Assyrian Christians families are ready to take matters into their own hands. After two coordinated attacks on Christian churches, one in August against five churches, four in Baghdad, one in Mosul, and another attack in October on up to seven churches, they want to move back to homes in northern Iraq out of fear of further attacks.

Relations between Christians and Muslims in Iraq have been peaceful in the past, although many Christians remained on the edge of Iraqi society. But now, in what is becoming an increasingly segregated Iraq, some feel the Christians, many of whom speak English in the predominantly Arabic-speaking country, are supporting the Coalition forces. As a result, some Christians are keeping their children home this school year, worried that increasing animosity against them makes them a target.

[...]

Some Christians were resettled from the region by former president Saddam Hussein while many others fled during the 1991 Gulf war. There are Christians living throughout Iraq, including a sizeable community in Baghdad - accurate figures are hard to find but various estimates put the number in the capital at somewhere between 20,000 and 50,000.

[...]

There's just one problem: Kurdish Muslims living on the land and in the homes the Christians once occupied in the north, don't want to leave, William Warda, leader of the Assyrian Christian political movement in Baghdad, told IRIN.

Workers at the Ministry of Displacement and Migration told IRIN they were aware of the issue, but had not been able to do anything to deal with it yet. The ministry is discussing building new housing in the region that could be used either for Christians or Kurds, a ministry official, who declined to be named for security reasons, said. United Nations officials in Jordan have also been approached, Warda said.

'Saddam destroyed 200 of our villages in the north and deported the inhabitants,' Warda said. 'We are asking the Kurdish authorities to remove these people. They are pleading that they need more time.'

Al Barwari, a security adviser and the Democratic Party of Kurdistan (PDK) director in Germany, who is currently living in Iraq, said Christians were talking to PDK officials about moving to land in and around Dahuk where Kurds currently live.

[...]

An estimated 60,000 Christians have fled Iraq for Syria and Jordan in recent months because of the unstable security situation, Warda said. About 1.3 million Christians registered for a 1987 census, he said, a number that has now dropped to about 70,000. However, without an official census accurate numbers are difficult to assess. There appears to have been a gradual reduction in the number of Christians in the country over the years as many left for economic reasons. But this has now been accelerated with the recent attacks.

However, other Christians in Baghdad are defiant about the threats, saying Iraq is their home, even if they are a minority."

Military operations: main cause of current population displacements (2003-2006)

- In 2005, thousands of people have been displaced by military raids conducted by the multinational and Iraqi forces, including in al-Qaim, Karabilah, and Haditha
- Also 2005, forced displacement occurred in Ramadi, Mosul and Kirkuk which continue to be monitored by the UN
- Skirmishes with Coalition forces in 2004, particularly in Fallujah, Najaf, Kufa, Karbala and Samarraha caused displacement
- In November 2004, over 200,000 people were displaced from Fallujah as a result of a US air strike and fierce fighting in the city
- In April 2004, some 70,000 people fled Fallujah as a result of the siege of the city by Coalition forces
- From March to May 2003, the governorates of Al-Anbar, Thi-Qar and Basra witnessed displacement due to the threat of air strikes and urban war-fare
- Displacements have often been of temporary nature with exceptions, in particular the siege of Fallujah in November 2004 which has resulted in more prolonged displacement
- A small number of people across the country remain have been displaced by Coalition forces for reasons of national security

UNHCR, October 2005, p.16

“Military raids are routinely conducted by the MNF/ISF in an attempt to put an end to insurgent activities. They have taken place in Fallujah, Ramadi and Mosul, and more recently in Al-Qaim, Karabilah and Haditha in Western Iraq. These raids, which aim to root out foreign fighters and insurgent support systems, often cause the death and displacement of civilians and the destruction of infrastructure and property.”

Selected reports of displacement caused primarily by military operations 2003-2006
Anbar province (2005)
UNAMI, July 2005, p.1
“The Governorate of Anbar in the west of the country was the principle focus of emergency humanitarian interventions in July, as a result of fighting shifting first from the city of Al Qa’im to Karabla and then towards the towns of Rawa, Haditha and Heet. Many of the towns and villages in Anbar affected by this recent fighting are recipient locations of internally displaced persons (IDPs) who moved as a result of previous clashes. [...] A recent UNCT NGO partner assessment estimated that over 6,200 families were displaced to over 30 locations in Anbar Governorate in July.”
UNAMI, November 2005, p.1
“Anbar: The western province of Anbar remained a focus of insecurity and humanitarian need throughout the period. An estimated 7,000 families in the Al Qa’im area were displaced in November due to military operations. Many were temporarily housed in tented camps or in public buildings in neighbouring locations. [...] NGO monitors estimated that the total number of displaced families in Anbar exceeds 11,000. The affected populations require both short term emergency relief but also longer term care and maintenance assistance as a result of successive waves of displacement.”
UNAMI, September 2005,p.2

"Anbar Update: Insecurity continued to affect the western districts of Anbar Governorate, where according to IOM monitors, over 11,000 families are currently living in displacement. At the beginning of the month, 800 families were displaced from Huseeba, Karabla and Ubaidi. Towards the end of the month, reports suggested an increase in humanitarian displacement around locations such as Sadah near the Syrian border." UNAMI, August 2005 Update, p.2 "Anbar Update: Military operations continued to affect the western districts of Anbar Governorate with approximately 800 families displaced to 21 different locations."
Ninewa province (2005)
UNAMI, July 2005, p.1 "Further north in the Governorate of Ninewa, the city of Tal Afar and its environs recently experienced significant displacement due to operations in the area."
Husbaya (2005-2006)
IIRIN, 9 January 2006 [June 2005:] "US-led offensive "Operation Spear" is launched, the second in the western Anbar governorate, resulting in over 7,000 families being displaced in surrounding areas" BBC, 6 November 2005 "About 3,500 US and Iraqi troops, backed by tanks and fighter aircraft, moved into Husayba two days ago. A US military official said 36 insurgents and one US marine had been killed in the operation so far. Medics working in the area said a similar number of civilians had died, and thousands had fled their homes. [...] There were reports that cluster bombs had been used, and that 4,000 people had fled the area. On Sunday the US said there were 450 civilian evacuees. [...]The Husayba offensive, known as Operation Steel Curtain, is aimed at blocking what American and Iraqi officials say is a major infiltration route for militants crossing into Iraq."
Hit (2005)
RIN, 19 January 2006 "Nearly 200 families have been displaced in the western governorate of Anbar as a result of a military offensive launched by US troops backed by the Iraqi Army on 15 December. The operation, dubbed "Koa Canyon," is ostensibly aimed at rooting out insurgents in the Jubbah/Baghdadi region and the city of Hit, 130 km west of the capital, Baghdad."
Haditha (2005)
IRIN, 6 October 2005 ""Nearly 1,000 families have fled their homes in Haditha in western Iraq following the launch of a US-led military operation to hunt down in insurgents in the town in the Euphrates river valley, according to residents in the area. [...] The combined military operation by 2,500 US and Iraqi government troops backed by warplanes began in Hadithi on Tuesday and followed on from a similar offensive against Islamic insurgents in villages near al-Qaim on the Syrian border which began on 1 October. [...]

The military operation in Haditha, code-named "River Gate," is a much larger affair and is shaping up to be the biggest military push by US-led forces in the Anbar governorate of western Iraq so far this year.

Residents in the district, which is mainly inhabited by Sunni Muslims opposed to the US-backed government in Baghdad, said people had been fleeing from Haditha and the nearby towns of Haqlaniyah and Barwana, following repeated air strikes."

Karabila (2005)

IRIN, 28 June 2005

"Thousands of residents are gradually returning to the town of Karabila, 325 km west of the capital, Baghdad, after fleeing a heavy US-led attack two weeks ago but for many there is little to go back to.

Nearly 7,000 residents were displaced to the desert near the Syrian border during the fighting, according to the Iraq Red Crescent Society (IRCS). The town, which is home to 60,000 people, showed signs of extensive devastation following the battle, a five day operation which ended on 22 June. Nearly 1,000 residents are still displaced and living in the desert.

[...]

The offensive, named "Operation Spear", was designed to root out insurgent strongholds. According to US forces, about 90 insurgents were killed and others detained for interrogation and they are calling the operation a complete success."

Al Qa'im (2005)

UNAMI, 3 January 2006, p.1

"An estimated 7,000 families in the Al Qa'im area were displaced in November due to military operations."

IRIN, 9 January 2006

"1 October [2005]: A US offensive in the city of al-Qaim, western Iraq leaves more than 3,000 families displaced.

5 October [2005]: Nearly 1,000 families flee their homes in Haditha, 220 km west of Baghdad, following the launch of an offensive against insurgents."

IRIN, 4 October 2005

"More than 900 Iraqi families have fled from the al-Qaim district near the Syrian border to escape a US military offensive against Islamic militants and the exodus is continuing, humanitarian workers in al-Qaim said.

Most of those running to escape the five day-old offensive by 1,000 US troops backed by warplanes have remained within Iraq.

[...]

Residents contacted by telephone said the fighting had been most intense around the villages of Romanna and Karabila. They said US troops were conducting house-to-house searches to hunt down insurgents and dozens of houses and shops had been damaged or destroyed."

IRIN, 2 October 2005

"Thousands of civilians have fled the Iraqi town of al-Qaim near the Syrian border following the start of a fresh US military offensive against insurgents in nearby villages, local government officials said on Sunday.

They told IRIN that about 600 families had abandoned al-Qaim, a small town in the Euphrates river valley, since the offensive began on Saturday. The number of people displaced by the fighting was expected to increase rapidly, they added.[...] The current military operation is code-named "Operation Iron Fist".

ICS, 13 May 2005

"Six month after the last dramatic crisis in Fallujah, the situation is again rapidly worsening in the Al-Anbar governorate, in the region of Qa'im near the Syrian border.

Clashes in Qa'im have started at the end of April, between the Arab fighters of Al-Zarwqawi group Al-Tawheed Wal Jihad and the main local tribe of Albu Mahal. The fighting exploded after the killing of a prominent police officer by the Arab fighters: according to different sources, the violent reaction of the local communities would have been triggered by their willingness to avoid the replication of a Fallujah-like crisis, with the presence of foreign combatants in a town put under siege by the MNF and the Iraqi army.

Nevertheless the phantom of Fallujah seems to emerge again in the difficult context of the Iraqi crisis», states Daunia Pavone, ICS humanitarian coordinator in Iraq. 'From last Tuesday, the city of Al-Qa'im is surrounded by the US troops and bombings are currently underway in the neighborhoods of Al-Jazeera, Al-Rumana, Al-Obaidi and Al-Karbala'.

UNAMI, 17 May 2005

"Over the past week, the military offensive 'Operation Matador' has resulted in the beginnings of a humanitarian situation requiring immediate response. Although it has been announced that the Operation is concluded, an estimated 2000 families have fled the city, seeking refuge in neighboring towns such as Anah, Rawa, and Al-Ubaydi, or into the surrounding desert in order to escape the fighting. Some Internally Displaced Persons (IDPs) are said to have sought refuge as far away as Fallujah and Baghdad. While some families were able to flee into Syria in the earlier stages of the Operation, the border has now been closed, forcing these families to find a second place of refuge."

Al Jazeera, 17 May 2005

"Thousands of people fled al-Qaim after US warplanes and helicopter gunships pounded the region earlier this week, flattening homes and buildings"

IRIN, 31 May 2005

"More families are reportedly leaving the western Iraqi town of al-Qaim in fear because of fighting, according to local aid agencies.

Hundreds of families remain displaced on the outskirts of the town, 320 km west of the capital, Baghdad, following clashes between US forces and insurgents in the second week of May.

According to the Iraqi Red Crescent Society (IRCS) nearly a thousand families were displaced and living in the desert of al-Jazera'a, west of al-Qaim but were returning when the offensive ended, leaving only 100 families there.

However, aid workers now say that hundreds more have started to flee the town again because of the possibility of another conflict starting in coming days.

'We have indications that fighting might start again in the town of al-Qaim. Maybe it's just a psychological response from the people in the town but many reports from volunteers are saying the same thing,' general secretary of the IRCS, Mazeen Sallon told IRIN in Baghdad."

Ramadi (2005)

IRIN, 18 October 2005

"Two days of US air strikes against insurgents in the western city of Ramadi have caused heavy casualties among the city's civilian population, a doctor and a senior Iraqi government official in Ramadi said. [...] Iraqi officials in Ramadi said more than 1,700 families had fled from the city since US air and ground forces began a big push against insurgents there last week."

IRIN, 24 February 2005

"Residents of Ramadi, the capital of Anbar province some 100 km east of Baghdad, have started to flee the city following the latest offensive launched by US Marines and the Iraqi army.

The military have carried out raids in the province over the past few days in an attempt to crack down on insurgents, with the main focus of operations being Ramadi, a rebel stronghold.

Worried that the offensive could proceed as it did in nearby Fallujah, where the majority of the city's population was forced to flee during a near three-month long campaign, many Ramadi families are taking personal effects and food supplies and heading to relatives' houses in the capital, or to the same camps where residents from Fallujah fled."

UNAMI, 27 February 2005

"The situation in the vicinity of Ramadi was also closely monitored as some families reportedly became displaced as a result of armed conflict along the Euphrates River. In particular, concerns were raised about the impact of military operations and road closures on humanitarian access and the protection of civilians."

UNAMI, 27 February 2005

"Population movement from Ramadi into the surrounding villages was reported by monitors throughout the last two weeks."

Mosul and Kirkuk (2005)

UNAMI, 27 February 2005

"In other parts of the country, insecurity in the areas of Mosul and Kirkuk also led to internal displacements as families reportedly left these areas amidst growing violence and tensions."

UNAMI, 30 January 2005

"Internal displacements throughout the rest of the country, whether due to military operations or ethno-religious tensions, remain a major concern, especially in the areas of Mosul and Kirkuk."

Generalised violence in Baghdad and surroundings (2005)

AFP, 20 May 2005

"Hundreds of Shiite Muslims are fleeing towns in lawless areas south of the Iraqi capital where killings and kidnappings by a ragtag army of Sunni extremists and tribal gangs have torn mixed communities.[...]

The Triangle of Death, which includes flashpoint towns such as Latifiyah, Mahmudiyah and Yusufiyah, is according to unofficial estimates almost evenly split between Shiites and Sunnis."

Najaf (2004)

UN SC, 3 September 2004

"While fighting has been ongoing in several localities in Iraq, the crisis in Najaf was particularly serious in scope and nature and attracted significant attention. The past weeks witnessed an escalation of fighting between an armed militia loyal to Moqtada al-Sadr, Iraqi security forces and the multinational force. Fighting was concentrated in and around Najaf, close to the Imam Ali Shrine and other areas. Several attempts by the Interim Government of Iraq and a delegation from the National Conference to mediate the crisis were unsuccessful. Regional initiatives by Iraq's neighbours to urgently discuss approaches to the resolution of the Najaf crisis were not pursued.

[...]

Of 300,000 persons living in the centre of Najaf, an estimated 25,000 have been displaced during the hostilities, seeking shelter with host families on the outskirts of the city, in mosques or public buildings on peripheral roads north and south of Najaf."

IRIN, 23 August 2004

"Fighting in the holy city of Najaf, about 160 km south of Baghdad has raged for more than two weeks between US forces and Mehdi Army forces loyal to anti-US cleric Moqtada Sadr.

[...]

At least 10,000 families have been displaced by fighting, according to figures from families staying at nearby religious sites. The International Committee for the Red Cross (ICRC) said the number could be as high as 50,000. At least 5,000 people are staying in tents or with relatives in the holy city of Kerbala, 100 km south of Baghdad and 80 km north of Najaf, to escape the fighting, according to the ICRC."

DPA, 20 August 2004

"The International Committee of the Red Cross (ICRC) Friday expressed concern over the situation facing ordinary Iraqi citizens caught in fighting between U.S. and Iraqi forces and 'Mahdi Army' insurgents in the holy city of Najaf.

[...]

Hundreds of families are understood to have fled from the centre of Najaf, where U.S. and Iraqi forces have for two weeks been fighting militia forces loyal to renegade Shiite cleric Moqtada al-Sader; the so-called Mahdi Army."

IRIN, 4 January 2005

"Residents in the southern holy city of Najaf, told to leave the besieged city by US troops, appeared to be staying with relatives in the nearby city of Karbala, an International Committee for the Red Cross (ICRC) spokesman told IRIN on 11 August. ICRC officials and other aid agencies are sending medical kits and food to the region for civilians trapped in the fighting, said Ahmed al-Rawi, the ICRC spokesman. Fighting intensified after almost a week of clashes between the Mehdi army and US-led Coalition troops in the southern city and in Sadr City, a northeast suburb of Baghdad. Mehdi army fighters are loyal to radical Shi'ite cleric Moqtada Sadr, who was wanted in connection with the murder of a rival. The latest fighting ended a truce brokered to end previous fighting with Mehdi forces in May and June. It appears to have started after US and Iraqi forces surrounded Sadr's home in Najaf.

[...]

Unconfirmed reports suggest between 25,000 and 50,000 people may have been displaced by fighting in Najaf, some 170 km from the capital, Baghdad."

Tal 'Afar (2004-2005)

IRIN, 9 January 2006

"10 September: US and Iraqi forces launch an offensive in the northern city of Talafar, causing over 10,000 families to flee the city.

[...]17 September: The number of displaced from Talafar rises from an estimated 10,000 to 20,000."

IRIN, 11 September 2005

"Thousands of families are fleeing the northern Iraqi city of Talafar, aid workers confirmed, as Coalition forces conduct a military operation against insurgents.

[...]

Heavy bombardment and artillery by gun-ship helicopters as well as street fighting could be seen in the al-Saray area of the city, Iraqi officials said.

The operation in the city, some 80 km east of Mosul city, and near the Syrian border, started on

10 September.

[...]

Based on the last humanitarian report on 10 September, the IRCS said nearly 3,000 families were already displaced in the area between Mosul and Talafar in a village called Abu Maria (Al-Nakhwa)."

UNAMI, September 2005,p.2

"NGO monitors reported that as of 18th September an estimated 5,579 families fled due to fighting in the city with some families moving to locations as far away as Najaf, Karbala and Sadr City in Baghdad."

Aljazeera, 11 September 2005

"Operation Restoring Rights is being conducted to remove terrorists and foreign fighters operating in Tal Afar. This operation is in support of the Iraqi governments efforts to bring safety and security to the citizens of the city," Colonel Billy J Buckner, a military spokesman, said on Sunday."

UNAMI, August 2005, p.2

"The city and surrounding districts of Tal Afar in the northern Governorate of Ninewa were the principle focus of emergency humanitarian interventions in August, as a result of sustained military operations throughout the month. The fighting resulted in significant displacement of civilians, and some reports suggested between 5,000 and 7,000 families were recently displaced from Tal Afar city to surrounding locations."

IRIN, 4 January 2005

"Fighting in the northern city of Tal Afar, thought to be a haven for insurgents, has displaced tens of thousands of people, aid agencies told IRIN on 13 September. At least 40 people have been killed in the city, which has fallen under insurgent control and is considered a 'no-go' area for US troops, according to news reports. The US Army says the city of 350,000 has become a haven for fighters crossing into Iraq from Syria. Iraqi Red Crescent (IRC) workers have set up 250 tents on the outskirts of the city to help the fleeing residents, Annas al-Azawi, director of the IRC, told IRIN. Many of the city's residents have moved into the tents, while others have moved to relatives' houses in nearby cities, he said."

Al Mahmoudya (2004)

IRIN, 4 January 2005

"Al-Mahmoudya city, about 20 km southeast of Baghdad and the base for British troops recently deployed in the area, is facing medical, food and water needs amid a deteriorating security situation. Some families have begun to leave the city and say that those who remain are risking their lives. Dr Mustafa Aydany from the local hospital told IRIN on 2 November that if serious fighting began they could offer little treatment for the injured. He said a shortage of medicines and emergency materials would mean that most of those injured in any fighting in the city would probably have to be sent to Baghdad. Leaflets have been distributed, forbidding women from leaving their homes without covering their heads with scarves and wearing traditional clothing, and threatening those who ignored such instructions. According to medical officials in the city, two women have been killed because they ignored such instructions. Other orders issued by the insurgents are that no families should leave their homes and that shops, schools and government offices should remain closed. The insurgents warn of a 'new Fallujah' in the city."

Samarrah (2004 - 2006)

IRIN, 19 March 2006

"Hundreds of families have fled the city of Samarra, some 120 km northwest of the capital, Baghdad, after US coalition and Iraqi forces launched the biggest air offensive in the country since 2003.

[...]

Launched on 16 March, the offensive named 'Operation Swarmer' is the largest air assault since the US invasion of Iraq, involving 650 US troops and some 900 Iraqis with the aim of rooting out insurgents believed to have taken refuge in the area."

IRIN, 9 January 2006

"26 September: Hundreds of families are reported fleeing the city of Samara, some 120 km north of the capital, following a defence ministry announcement that preparations are underway for a coalition offensive against insurgents there."

IRIN, 27 September 2005

"Hundreds of families have started to flee the Iraqi city of Samara, some 120km north of the capital, Baghdad, following a recent Ministry of Defense announcement that preparations had started for an offensive by Coalition forces against insurgents holed up there, officials said.

Hamad al-Kashty, governor of Salah al-Din province, said on Monday that nearly 500 families had so far fled the city. Many were presently in the outskirts, particularly around al-Dur, al-Salam, Baghdad and within empty schools and government buildings near the city of Tikrit"

IRIN, 26 July 2004

"Families started leaving the predominantly Sunni Muslim city [Samarrah] two weeks ago in fear that US forces were about to attack, Sheikh Ahmed Abdul Ghafoor al-Samarraie, a Muslim religious leader based in Baghdad, told IRIN. Samarrah residents are known for their loyalty to former President Saddam Hussein. The city is in an area northwest of Baghdad known as the 'Sunni Triangle' where attacks against US troops have been common."

Fallujah (April and November 2004)

IRIN, 4 January 2004

"On 8 November it was reported that thousands of US troops had positioned themselves on the outskirts of Fallujah as Iraqi Prime Minister Iyad Allawi gave the go-ahead for a major attack to flush out insurgents. Out of a population of 290,000 people the city is now home to around 30,000, Fadhel Youssef, a spokesman for the local governorate, told IRIN. Most of those left are men who have sent women and children to places of safety. Families in the town told IRIN they had no food or clean water and did not have time to store enough to hold out through the impending battle. The city is deserted, shops are closed and there are no people on the streets. As fighting began, agencies started to raise humanitarian concerns. On 11 November Amnesty International (AI) issued a statement saying it was seeking assurances from both the US and Iraqi governments that they will comply with their obligations under international human rights and humanitarian law. It also called on the armed groups in Fallujah to comply with the rules of international law."

UNHCR, 9 November 2004

"UNHCR is extremely concerned at the fate of tens of thousands of people who have fled the city of Fallujah to escape the fierce fighting there.[...] The majority of civilians appear to have left the city, although it is difficult to establish numbers with any certainty."

IRIN, 18 February 2005

"Before and during the battles, two-thirds of the city's population was said to have fled, according to aid agencies."

UNAMI Emergency Working Group, 11 November 2004

The total population of Falluja (pre crisis) is estimated at 300,000 persons. In addition to the identified 249,200 IDPs above, there are an estimated 35,000 IDPs in Baghdad and other areas, with the balance (approx. 50,000 persons, probably mostly men) remaining in Falluja. Please

note that the displacement figures above are preliminary estimates. The general profile of IDPs is reported as families."

UNAMI, 25 April 2004

"A lull in fighting in Falluja permitted the MoH to assess the humanitarian situation in the city. As a result of its investigations the MoH adjusted their figures for the number of people killed in the city since April 5th downward from 750 to approximately 360 (there are no official figures recognised by all parties). The MoH also confirmed over 1,000 other casualties. The displacement of Falluja's population remains an issue of concern. NGOs confirm that at least 40% of Falluja's population (estimated between 100,000-150,000 people) may have previously left the city. Many families took refuge in the neighbouring villages, where conditions are often poor and with little or no water, food and essential cooking items. The Iraqi Red Crescent, International Committee for the Red Cross (ICRC) and a number of non-governmental organisations (NGOs) are providing assistance to two IDP camps outside Falluja city."

IRIN, 26 July 2004

"International and local aid agencies launched a massive aid campaign for Fallujah residents in April as fighting caught some residents unaware. At one point, up to 100,000 people were estimated to have fled their homes. Many stayed in a refugee camp in west Baghdad."

IRIN, 22 July 2004

"Following recent air strikes in the Iraqi city of Fallujah, some 30 km west of Baghdad, aid workers are still trying to provide aid and carry out repair work."

A truce was declared there late in April, after weeks of fighting that killed up to 1,000 Iraq insurgents and more than 100 US soldiers, according to statistics from NGOs.

Families who had fled the fighting to stay with relatives, or in a camp in al-Hadhra district in western Baghdad, went home to assess the damage. Aid agencies at the time thought that up to 100,000 people might have been temporarily displaced. Human Relief Foundation, a local aid agency, estimates that up to 140 homes that were destroyed have still not been repaired."

Overview

UNCT, August 2004

"Over the last four decades, human rights abuses and various periods of conflict have resulted in many cases of protracted displacement in Iraq, the total number of displaced peaking at over one million persons. The expulsion of people along ethnic lines from their homes has long been a state policy. The 2003 conflict resulting in the fall of the former Government of Iraq and subsequent periodic fighting have resulted in further population movements throughout the country.

[...]

From March to May 2003, the governorates of Al-Anbar, Thi-Qar and Basra witnessed displacement due to the threat of air strikes and urban war-fare. Most moved to near-by rural towns where they lived with host communities or in public buildings. The vast majority returned to their homes immediately after the air strikes to protect their property from looting and squatters. However, a small number of people remain displaced. They are awaiting an improvement of the security situation and the reconstruction of or compensation for their destroyed houses. In addition, a small number of people throughout the country were forcibly displaced by Coalition forces for reasons of national security. In most cases, these IDP families resided in or close to strategic buildings or locations such as airports or military bases.

[...]

Skirmishes with Coalition forces have continued into 2004, escalating into battles in the cities of Fallujah, Najaf, Kufa, and Karbala leading to similar patterns of displacement to those in the 2003 conflict. In April 2004, over 70,000 persons were reported to have fled Fallujah to neighbouring towns as a result of the siege by Coalition forces on the city. Following the end of the fighting, as previously observed, families quickly returned to their homes in Fallujah.

In addition, a group of Kurdish families was displaced during the Falluja crisis.”

UNAMI, 1 March 2005

“Post-election violence sparked an increasing number of 'hotspots' throughout central Iraq with implications for further internal displacements as a result of military operations or ethno-religious tensions. In particular, the situations in Mosul, Kirkuk, and Ramadi were monitored for potential outbreaks of conflict and concerns regarding civilian protection.”

Alleged shelling from Iran causes Kurdish families to flee (2006)

- IRIN reported 200 families were forced to flee
- AFP reported dozens of families fled
- Iran neither denied nor confirmed having shelled areas in Iraq

IRIN, 2 May 2006

“About 200 families fled their homes on the Iraq-Iran border on Monday as Iranian forces shelled areas used by Iranian-Kurdish rebels, according to Kurdish officials.

“The shelling began on Sunday and continued until Monday morning,” said Azad Waso Hassan, member of the Patriotic Union of Kurdistan, which controls the area. [...]

Hassan added that about 1,500 people from several villages in and around Sulaimaniyah, some 260km north-east of Baghdad, had been forced to flee as a result of the violence.

“Bombs shook our houses that night; we thought we wouldn't see the sun again,” said Qader Ali, a 43 year-old farmer forced to flee his home along with five family members. “We suffered under Saddam, and continue to suffer now – the government must do something to help us,” added Ali, who is currently staying at his brother's house in a nearby village.

According to Hassan, more than 180 artillery rounds were fired into the area, many of which landed near the Iraqi village of Haj Umran outside of Erbil, roughly 5km inside Iraqi territory. No casualties were reported in either attack. Iranian forces reportedly launched a similar artillery barrage in the area on 21 April.

Kurdish rebels have recently staged attacks against Iranian army and Revolutionary Guard positions from territory in Iraq. In response, Teheran has reportedly massed troops on the border, near the mountainous areas close to Haj Umran, which has been used in the past by anti-Iranian fighters thought to be linked to the militant Turkish Kurdistan Workers' Party, or PKK.

The Iraqi Red Crescent Society (IRCS), meanwhile, has said it has no specific reports about those displaced by the shelling. “But we have sent blankets, food and other things to help these families,” said IRCS Director Dr Saad Haqi.”

AFP, 1 May 2006

"Iranian forces shelled Kurdish rebel positions in Iraq for the second day, forcing dozens of Kurdish families to flee.

"The Iranians shelled PKK positions from 9 pm (1700 GMT) on Sunday until 5 am (0100 GMT) on Monday," Rustom Judi, a leader of the rebel Kurdistan Workers' Party (PKK) in Iraq's northern province of Sulaimaniyah, told AFP.

"Dozens of families were forced to leave their homes," he said Monday.

"We have casualties," he added, but did not provide further details.

Iranian troops targeted positions around the villages of Laradu, Rushga and Qalaa Tuka about 190 kilometers (118 miles) north of Sulaimaniyah in the region's rugged mountains, Judi said.

On Sunday, Iraq's defence ministry said Iranian forces had entered Iraqi territory and shelled PKK positions over a period of 24 hours.

Iran on Monday refused to confirm or deny its troops had crossed into Iraqi soil.

"I do not confirm the entry of our forces into the territory of neighbouring countries, notably Iraq," government spokesman Gholam Hossein Elham told reporters.

"We have security cooperation accords with neighbouring countries and we act within the framework of these accords. There is no cause for concern over this kind of thing with neighbouring countries," he said.

On April 20, Iranian shelling killed at least two people and injured 10 others in Iraq, the PKK said, while a group linked to the rebels, Pejak, killed four fighters inside Iran in weekend violence.

Iran is bound by treaty with Turkey to fight the outlawed PKK, which has waged a 15-year insurgency against Ankara for self rule in Turkey's mainly Kurdish southeast.

In return, Turkey has pledged to fight the Iranian armed opposition group, the Iraq-based People's Mujahedeen."

Many refugees return to a situation of displacement (2005)**UNHCR, October 2005, p.24**

"In addition, many returnees from abroad ended up in internal displacement, largely because of the lack of absorption capacities, ongoing conflicts and property disputes."

OHCHR, 9 June 2004, p.21

"[B]y April 2004, an estimated 80,000-120,000 persons had returned from, inter alia, the Islamic Republic of Iran, Lebanon and Saudi Arabia. Most of the returns have been unassisted and spontaneous. It is assumed that many of those who have returned did so to a situation of displacement."

Note: *There are also cases of other non-Iraqi Arabs (mainly Palestinians and Sudanese) who have been living in Iraq for more than two decades being forced to leave their homes due to*

discrimination by Multinational Forces and Iraqi forces. (For more information, see "[Focus on treatment of foreign Arabs](#)", IRIN, 21 June 2005)

See also the section on return

Flooding has also caused displacement (2006)

- More than 5,000 people displaced in March 2004 by flooding in the Marshlands area
- Around 36,000 people (6,000 families) displaced due to flooding in the south in February 2006
- 100 families were displaced by floods in January 2006

UNAMI, December and January 2006, p.2

"In mid January approximately 100 families were displaced from their houses in Basrah Governorate as a result of floods"

IRIN, 21 February 2006

"Nearly 6,000 families forced to leave their homes in the wake of heavy flooding in northern and southeastern Iraq earlier this month remain displaced, mostly due to the destruction of their houses.

"The devastation by heavy rains of hundreds of houses countrywide has worsened the situation and prevented families from going back, forcing them to stay in improvised camps or with relatives in safe areas," said Ferdous al-Abadi, spokeswoman for the Iraq Red Crescent Society (IRCS).

Nearly 150 houses in Missan governorate and 75 in Salahuddine and Diala governorates have been totally destroyed by the flooding, while more than 900 homes have been partially damaged countrywide, according to the IRCS. Continuous rains, which fell for over two weeks in the first half of February, finally stopped last week.

According to al-Abadi, a total of 7,500 families were displaced in different areas of the country when flooding began on 5 February, with some 1,500 returning to their homes in northern areas where the fall was less heavy. "Around 1,000 families are still staying in camps improvised by the IRCS," she said, adding that the relief effort had been facilitated by the "good relationship between tribes" in the north of the country.

The IRCS has received supplies – including medicines, food parcels, blankets and heaters – from a number of aid organisations, which are expected to last for a month. Nevertheless, the organisation is also calling on the government to find a speedy solution for people whose homes were destroyed. "We call on the Iraqi government to address the problems of the displaced and offer help," al-Abadi said."

UNCT, August 2004

"Floods in the lower southern Governorates of Missan, Thi'Qar and Muthana are an almost annual occurrence when the waters of the Euphrates rise. The former Marshlands would normally expand in size during the flood season absorbing most of the floodwaters. However, since the

drainage of the marshes, populations now settled on dry marsh lands often find themselves displaced by the rising waters.

In March 2004, the grid of dykes set up to drain the marshes broke in several locations resulting in the displacement of over 5,000 persons and threatened to displace a further 10,000 people."

Returns cause secondary displacements in and around Kirkuk (2003)

- Thousands of displaced Kurds, Turkomans and others began returning to Kirkuk and some other Arabised regions in April 2003 to reclaim their land and homes, most of whom were expelled during Saddam Hussein's regime in the 1980s and 1990s
- Their return caused the displacement of Arab families brought to the region
- Refugees International estimates that around 100,000 Arabs were displaced following the fall of the former regime (November 2003)
- Local authorities say that nearly 16,830 Kurdish families have moved to the city since March 2004 and were living in old government buildings or were camping on the outskirts of Kirkuk, waiting to return to homes they said they had been evicted (May 2005)
- Local sources estimate the number of displaced Arab families to be around 4000
- Many displaced Arabs continue to refuge in military camps around Kirkuk, whereas others have fled to the outskirts of the Southern provinces, also remaining in a situation of displacement
- Turkomen are reported to be leaving the city due to fear of discrimination by the predominantly Kurdish population (May 2005)
- IRIN reports in September 2004 indicate that Arabs continue to be displaced from Kirkuk

Overview of the situation

Refugee International, 21 November 2003

"The return of Kurds to their former homes has in turn displaced the Arabs living in them. About 100,000 displaced Arabs are living in poor conditions in public buildings or in military camps. The UN reports that inadequate water, sanitation, and shelter, and the presence of unexploded bombs are the main problems they face."

HRW, 3 August 2004

"Since April 2003, thousands of internally displaced Kurds, Turkomans and others have returned to Kirkuk and other Arabized regions to reclaim their homes and lands which have since been occupied by Arabs from central and southern Iraq. These returnees were forcibly expelled from their homes by the government of Saddam Hussein during the 1980s and 1990s.

'Kurds are flocking back to Kirkuk, but the city has little capacity to absorb them,' said Whitson. 'They are living in abandoned buildings and tent camps without running water or electricity supplies, and they face precarious security conditions.'

At the same time, little effort has gone into finding just and durable solutions for the so-called Arabization Arabs who, in their turn, have become the latest victims of internal displacement. Many such families fled their homes during the U.S.-led invasion or were forced to do so subsequently, particularly in rural areas, but have remained in the vicinity in makeshift shelters and without basic amenities. Others living in urban areas, notably Kirkuk, never left and are waiting for their own property claims to be resolved."

HRW, August 2004

"Human Rights Watch researchers who were present in northern Iraq at the time of the fall of Kirkuk found looting and expulsions taking place in rural villages built for Arab settlers just south of Kirkuk. In early April 2003, about 2,000 members of the al-Shummar tribe had been evicted by force from the villages of al-Muntasir, Khalid, al-Wahda, Umar Ibn al-Khattab, and Sa'ad, where they had been resettled in 1973 on agricultural land seized from Kurds. The Arab families told Human Rights Watch that they had been forced to abandon their homes at gunpoint by armed Kurds, and ordered to leave possessions such as cars, tractors, and household goods behind. 'They would have killed us if we hadn't left,' one elderly Arab woman explained. When Human Rights Watch visited the area again later that month, it found the village of al-Muntasir abandoned and ransacked, and some of the homes had been spray-painted with the names of Kurds to whom the Kurdish authorities had apparently given permission to return. A PUK official in the nearby town of Daquq explained that his party had adopted the policy that all persons resettled by the government in the north should return to their original homes.¹²¹ Senior PUK leaders denied that they were implementing a forced expulsions policy and said they would take measures to prevent further abuses."

There continued to be reports of ongoing Kurdish return movements, particularly end 2004. Many of these returns are believed to have been linked to the January 2005 elections and rumors that a national census was being undertaken.

IRIN, 3 May 2005

"A local government official, who did not want to be named, said that nearly 16,830 Kurdish families have moved to the city since March 2004 and were living in old government buildings or were camping on the outskirts of Kirkuk, waiting to return to homes they said they had been evicted.

The official confirmed that an additional 830 families had joined the group three weeks ago, putting further pressure on Arab residents of the city to leave.

He ventured the opinion that since the new Iraqi president, Jalal Talabani, was of Kurdish origin, other Kurds might infer from this that they now had the right to return.

The Kurds have 77 parliamentary seats out of 275 in the new national assembly. A spokesman at Talabani's office in Baghdad said the new president had not yet decided on the sensitive issue of Kirkuk, but affirmed to IRIN that Kurds would be welcome to return.

[...]

According to the Arab Displacement Union (ADU), a local NGO, more than 4,000 Arab families have been made homeless since the conflict of 2003.

Less than 25 percent can return to the south of Iraq and most are camped outside the region, in the cities of Diwania, DIALA and near the southern city of Basra, according to the ADU."

IRIN, 23 September 2004

"There are reports of the continuing displacement of Arabs from Kirkuk in the north of Iraq, many of whom are living around old military bases 10 km north of the city, according to local aid agencies.

Others have taken refuge in abandoned schools inside Kirkuk or in small villages after being forced out by the Kurds.

'The Kurds have been forced by Kurdish officials to return to the city before a national census takes place in October 2005,' officials of the Islamic Arabic Union in Iraq told IRIN in Kirkuk. The organisation is helping the displaced by providing food, but say that much more aid is needed.

[...]

The International Committee of the Red Cross (ICRC) said there were difficulties in assisting the displaced Arabs since they were widespread and their numbers were not known. 'This situation should be taken care of by the government as soon as possible,' Ahmed Rawi, an ICRC spokesman, told IRIN in Baghdad.

[...]

The Kurdish government says its aim is to ensure a favourable ethnic balance before the start of a national census and a planned referendum on Kirkuk's future, to be held in early 2005 as part of the national election.

[...]

There are reports that Kurds are moving back to the city and are waiting for houses in tents, in the hope that houses are being vacated.

'There were more than 800 here but every day dozens more are arriving,' Kharish Rozbayani, who deals with resettlement issues under the Patriotic Union of Kurdistan party, told IRIN in Kirkuk. 'More than 250,000 Kurds were forced to leave here for the sake of Saddam's inspiration of independence, and we are preparing to get our rights to return to our land,' Rozbayani said. 'We are from Kirkuk and we are back now,' he added.

Many of the displaced Arabs have gone to live with relatives in southern Iraq, particularly Nasiriyah and Basra, but others who don't have a place to go are living in unused or damaged buildings, according to some humanitarian organisations.

Their living conditions are said to be bad due to the absence of sanitation and potable water. Some Arabs claim they didn't have time to move their belongings as the Kurds pushed them out. 'Saddam forced us to go in and now the Kurds have forced us to leave, and we didn't get anything but suffering for our family,' Ahmad Abo-Abdu, 55, whose displaced family now lives at the military base near Kirkuk city, told IRIN.

Arab leaders in Kirkuk claim that some people refusing to vacate their houses have been abducted by Kurds. 'The [political] parties are pushing the population back and trying to kick out the Arabs,' Mohammed Khalil al-Jaboury, 38, an Arab city council member, told IRIN. He added that the local authorities in Kirkuk were not doing anything to help them and had made false promises."

Efficient forced displacement: a policy of the Iraqi Government (2002)

- Expulsions from homes has been used as a punishment, to obtain economic resources or undermine political opposition
- Overwhelming force used to achieve expulsions and destroy villages, but more bureaucratic methods used if villages used for Arab inhabitants

Fawcett & Tanner, Oct 02, p1

"In Iraq, the expulsion of people from their homes has long been state policy. Expulsions have been undertaken to punish and subdue recalcitrant populations. To this end, genocidal acts have taken place against the Kurds in the 1980s and against the Marsh Arabs in the 1990s. On other occasions, expulsions have been part of a strategy to secure valuable economic resources, as with the on-going 'Arabization' campaign against the Turkmen, Kurds, and Assyrians. Expulsions have also been used to undermine the growth of political opposition as with the Shi'a in the south, or to forestall a fifth column as with the *taba'iyya*, those thought to be sympathetic to Iran, at the beginning of the war in 1980. In Iraq, over the last thirty years, there has never been a time when one group or another was not being expelled from their homes.

The tactics used to accomplish the expulsions have included the use of overwhelming force, with the full-fledged deployment of infantry, armor and weapons of mass destruction, backed up by village demolition crews. In cases where the regime wished to retain physical infrastructure and merely change the identity of the inhabitants, more bureaucratic processes were used and continue to be used, such as regulations imposing national or religious restrictions on land ownership, employment, access to health and education, and humanitarian assistance. Carefully planned and executed expulsion operations sometimes occurred virtually overnight, with large numbers of people on the run, with only the clothes on their backs. Another method of expulsion, a slower, albeit surer, one which we will examine more closely below, were large-scale construction projects that radically altered the environment – the draining of the southern marshes is the prime example – in order to accomplish military, political, or even economic goals. Indeed, the expulsion of the Marsh Arabs can be viewed as a form of development-induced displacement – beneath what used to be marshland lie some of the world's largest untapped oil fields."

Difficult to assess extent of internal displacement caused by US and British bombing raids (2000)

- Since the end of 1998 US and UK forces have been carrying out regular strikes on Iraqi targets inside the no-fly zones
- The extent of internal displacement caused by U.S. and British bombing raids could not be determined

AI 24 November 1999, "Background"

Since the end of December 1998 US and UK forces have been carrying out regular strikes on Iraqi targets inside the two air exclusion zones in northern and southern Iraq. These zones, north of the 36th parallel and south of the 33rd parallel, were imposed by allied forces at the end of the Gulf War in 1991 and were intended to protect Iraq's Kurdish and Shi'a Muslim population. These strikes have reportedly resulted in the deaths of dozens of civilians and the destruction of civilian property and left many more injured."

Reuters, 17 December 1998

"The United States and Britain said the attacks were launched after Baghdad refused to cooperate with the inspectors, who are charged with ridding Iraq of its weapons of mass destruction."

USCR 2000, "Southern Iraq"

"The extent of internal displacement caused by U.S. and British bombing raids could not be determined, but such raids continued in the skies over southern Iraq throughout 1999. By mid-August, 134 Iraqis had reportedly been killed by bombing raids. Press reports indicated that this figure includes civilians, such as 11 members of one family who were killed in Jassan, 125 miles southeast of Baghdad on August 17."

Turkish, Iraqi and Iranian incursions all caused internal displacement in the north (1998-2002)

- Turkey incursions against the PKK (Kurdistan Workers' Party, based in Turkey) and fighting between the PKK and the KDP (Kurdish Democratic Party, based in northern Iraq)
- On a smaller scale, guerrillas of the KDPI (Kurdish Democratic Party of Iran) have been bombarded by Iranian troops, generating displacement of both Iranian and Iraqi Kurds

- Iraqi incursions into northern Iraq despite no-fly zone reported in 2000 and 2001

Graham-Brown, April 1998, "Conflicts Intersect"

"In northern Iraq the causes of internal displacement are complex: they include Turkish military incursions, PKK activity, internal conflict between Iraqi Kurdish political parties, and deportations of Kurds and Turcomans from government-controlled areas of Iraq. "

Turkish incursions against the PKK (Kurdistan Workers' Party)

Dammers, 1998, p.183

"Despite increasing hostility for the KDP [Kurdish Democratic Party], guerrillas of the PKK (Kurdistan Workers' Party), which pursues a separatist guerrilla war in Turkey, have established bases in northern Iraq. These have been the target of frequent Turkish bombardments and incursions, with major invasions taking place in October 1992, March 1995, June 1996, May 1997 and September/October 1997. Fighting between the PKK and KDP has continued intermittently since 1995, and was a significant factor in the displacement of late 1997."

UNHCR June 2000, p.5

"The Turkish army signed an agreement with the KDP in May 1997, reportedly to use its forces as a border police. The truce of 1998 between the PUK and the KDP further came under strain since several thousand PKK fighters moved back into Northern Iraq in 1999, after withdrawing from South-Eastern Turkey, disestablishing the political and military balance in the area. However, there are no reports of renewed alliance between the PUK and the PKK. A prominent member of the KDP has referred to the PKK as a terrorist organization who is responsible for the massacre of Kurdish villagers along the border with Turkey.

Turkey continues raids into Iraqi Kurdistan in search of Kurdish rebels and this in turn has led to Iran to search for Kurdish organizations in Northern Iraq to use as proxies. Iran, Turkey, Syria and the Government of Iraq are all opposed to the creation of a Kurdish state."

HRW, December 2000, "Human Rights Developments"

"Further incursions [by Turkey's armed forces into northern Iraq] were carried out in April, May, and August 2000, resulting in one case in the killing of thirty-eight Iraqi Kurdish civilians."

Iranian incursions and the KDPI

Dammers, 1998, p.183

"A parallel situation, though on a smaller scale, has existed on the Iranian border, with guerrillas of the Kurdish Democratic Party of Iran (KDPI) being bombarded by Iranian troops, generating displacement of both Iranian and Iraqi Kurds. Iranian conflict with its own Kurdish separatists has not, however, precluded cooperation between Iran and the PUK, especially when the rival KDP has allied itself with the Iraqi or Turkish governments. Indeed, the events of 1997 generated common interest between the KDP, Iraq and Turkey on the one hand and the PKK, PUK and Iran on the other, which proved quite capable of translating into unlikely alliances on the ground."

Iraqi troops incursions into Northern Iraq

RFE/RL 8 December 2000

"Iraqi military forces have entered areas lying north of the 36th parallel, a reliable Kurdish source in Irbil has told London's 'Al-Sharq Al-Awsat' on 10 November [2000]. The paper noted that Iraqi forces are forbidden from entering these regions which have been subject to British and American patrols of the no-fly zone for the past nine years. This latest encroachment reportedly took place in a village in the Irbil plain close to the area which separates the governorate of Ninaweh from the Kurdish regions outside of Baghdad's control.

The Kurdish source said government forces 'came to the edge of the village where they dug trenches and set up fortifications. The soldiers began intimidating the people of the village to

force them to abandon it.' In the preceding year, Iraqi forces had crossed the demarcation line at the village of Unwaynah, between Irbil and Ninawah, and also shelled the villages and areas along the line."

HRW, 2002

"Iraqi troops were deployed to the northern region on several occasions, apparently with the aim of launching armed attacks on Kurdish-controlled territory. In mid-June, the government deployed tanks, armored personnel carriers, artillery and infantry units south of Arbil, coinciding with efforts by the U.K. and the U.S. to restructure the economic embargo imposed on Iraq and to impose "smart sanctions." Government troops clashed with PUK forces in the Kifri region on September 9 [2001], and in early October they reportedly entered and occupied the village of Sadawa, south-west of Arbil. The KDP said that repeated artillery bombardment of some thirty front-line villages by government troops had resulted in the displacement of their inhabitants."

Kurdish in-fighting has caused internal displacement in the North (1998-2002)

- Displacement of Kurdish families in northern Iraq due to clashes between PUK and Islamic opposition (2001-2002)

Dammers 1998, p.182

"Since 1994, displacement has most commonly followed conflict between the two main Kurdish parties, the KDP and the PUK, usually along the border between their respective territories: in and around the city of Arbil and along a fluctuating front line from Arbil to the Iranian border. People identified with one party (an identification generally based on clan loyalty rather than ideology) living in territory controlled by the other feel highly vulnerable and have frequently been displaced."

The 1988 Anfal Campaign

- The Anfal campaign followed the 1980 Iran/Iraq war
- Under the direction of Ali Hassan al-Majid, a cousin of Saddam Hussein, chemical weapons were used against Kurds in northern Iraq
- The Anfal campaign reached genocidal proportions, around 100,000 Kurds were murdered
- Also in the context of Anfal, the Iraqi government destroyed between 3000 and 4000 Kurdish villages and towns displacing hundreds of thousands of Kurds
- It is believed that some were settled in government controlled settlements while others were deported to southern Iraq or fled to neighboring countries

HRW, August 2004

"During the 1980-88 war between Iraq and Iran, the Kurdish *Peshmerga* reconstituted itself, with backing from Iran. Towards the end of the Iran-Iraq war, from February 23 until September 6, 1988, the Iraqi government launched its Anfal campaign against the Kurds, under the direction of 'Ali Hassan al-Majid, a cousin of Saddam Hussein who earned the nickname 'Chemical Ali' for his use of chemical weapons against Kurds in northern Iraq. The Anfal campaign reached genocidal proportions, resulting in the 'disappearance' of some 100,000 Kurds, whose bodies are now being recovered in mass graves located across Iraq. During the Anfal campaign, the Iraqi government destroyed between 3,000 and 4,000 Kurdish villages and towns, displacing hundreds of thousands of Kurds. Some of the displaced Kurds were settled in army-guarded 'collective settlements,' while others were deported to southern Iraq or fled to neighboring states, notably

Iran. The Anfal operation devastated Iraqi Kurdistan, leaving the entire region in ruin and a large proportion of the population displaced.

The genocidal nature of the Anfal campaign made it drastically different from the earlier and later Arabization campaigns. However, for the displaced Kurds, the impact of the Anfal campaign was similar. After the 1991 Gulf War (see below), Kurdish villagers displaced during the Anfal campaign were able to return to many destroyed villages that were within the zone controlled by Kurdish forces. However, some villages destroyed during the Anfal fell outside that zone – for example parts of Makhmour district – and displaced Kurds were unable to return to those areas."

See also, [Ali Hassan al-Majid and the Basra Massacre of 1999, HRW, February 2005](#) and the ["Anfal Campaign" maps](#)

Marsh Arabs forcibly displaced from the traditional marshlands (1980-1990s)

- During the Iran-Iraq war in the 1980s, many Marsh Arabs were forced to flee due to military operations and the presence of Iranian soldiers in the marsh area
- Others were forced to flee in the 1990s for political reasons, many Marsh Arabs perceived to be allied with Shi'a opponents of the former regime
- Since 1992, the government forcibly resettled some 4,000 Marsh Arabs to houses along the highway between Basra and Al-Qurna
- In 1991, it was believed that some 250,000 people were living in the Marsh area, today it is estimated only 10,000-20,000 remain
- Human Rights Watch believes that many of the acts of the Iraqi government's systematic repression of the Marsh Arabs constitute a crime against humanity
- Displacement was used as a strategy to punish and subdue recalcitrant populations, to secure valuable economic resources and to undermine the growth of political opposition
- In the Marsh area, government forces have burned and shelled villages, and built dams to divert water from the marshes to depopulate the area
- Population in the Marsh area had to submit to compulsory resettlement within Iraq, leave the country, or remain in the drained marshlands, deprived of their water-based means of livelihood
- UNEP study: experts predict that unless urgent action is taken to reverse the trend and rehabilitate the marshlands, the entire wetland system is likely to be lost within three to five years

UN Cluster 8 on IDPs and Refugees and UNCT August 2004

"Tensions between the former Government (largely Sunni) and the majority Shi'a population often mirrored the events in the north. There were numerous confrontations between the Government and the Shi'a population culminating in the 1991 Shi'a uprising following the Gulf War. The military crushed the revolt forcing many Shi'a to flee to the northern protected areas, into Iran, or deep the southern marshlands. In 1992 the Government implemented a housing programme to move some 4,000 Marsh Arabs to houses along the highway between Basra and Al-Qurna. The forced resettlement policy allowed the marsh drainage programme to begin. The Government ordered the destruction of the southern villages and had dams built to divert water from the marshes allowing the army to infiltrate areas where many Shi'a had found refuge.

Over ninety percent of the Marshlands were destroyed by the project creating a socio-environmental catastrophe of epic proportions. Along with the destruction of the marshes, the livelihood and homes of the people were destroyed. In 1991, it was believed there were 250,000 people living in the Marshes. Today it is estimated a mere 10,000-20,000 remain. Most have established makeshift settlements at or near their original marsh locations and a minority have

resettled in and around the towns. Marsh Arab IDPs have been located as far north as Baghdad, however the numbers decline significantly as distance increases from the marshlands.

Differing opinions exist regarding durable solutions for the Marsh Arabs. The older generation want to see the marshes re-flooded to allow a return to their traditional way of life. The younger generation wants to have stable employment, secure agriculture and better access to services, and question a return to their traditional lifestyle. This remains to be a major national challenge which requires a comprehensive policy and national strategy led by the Iraqis and supported by the international community including the United Nations.”

HRW, January 2003, p2
“Population & Tribes

With an estimated population of 200,000 – 300,000 persons the Marsh Arabs are divided into a large number of tribes and further sub-divided into clans [...]. For the areas visited during this assessment, information on the tribe concentrations and an estimate of number of families was collected. The average family size was found to be 10 persons. It is worthy of note as the marsh dwellers live in extended family structures, a household often includes two to four families.

The Destruction of the Mesopotamian Marshlands [1]

Historically the Mesopotamian marshlands have constituted an integral part of south-west Asia's largest river system, which is centered on the Tigris and the Euphrates. However, since the 1950's the basin's ecology has been fundamentally altered by the construction of dams and drainage schemes (including major projects in Turkey, where the Tigris rises), which have substantially reduced the water supply and eliminated the flood pulses that have historically sustained the wetland ecosystems in the lower basin. Following the end of the Iran-Iraq War, the diking and diversion of Euphrates waters into the canal originally intended solely for saline irrigation waters greatly accelerated the drying out of the Al Hammar marshes to the north-west of Al Basrah [...]. A large swathe of the Central Marshes was drained to facilitate the movement of military units during the Iran-Iraq War and in 1992 a major drainage project was initiated in this region. In parallel, the marshlands hold almost 50% of the total proven oil reserves in Iraq. According to UNEP both the Al Hammar and the Central Marshes no longer exist. By 1994, following the canalization of the two main Tigris tributaries replenishing the Al Hawizeh marshes, these were drying out quite rapidly – the same year the Iraqi government intensified its campaign against the Marsh Arabs and dissidents who had been taking refuge in the inaccessible marshlands. The above drainage projects and the coincidental impoundment of the Ataturk Dam (which reduced the flow of the Euphrates to an all-time low) caused extensive areas of the marshlands to disappear completely, to be replaced by bare land and salt crusts which are incapable of supporting traditional Marsh Arab society, the existence of which has, from time immemorial, been entirely dependent on the wetland ecosystem. In 1973 the marshlands covered an area of 8,926 km², extending to 20,000 km² during seasonal inundation of land. By the year 2000 this had been reduced to just 1,297km². Although they are regarded as a semi-nomadic people, many Marsh Arabs had settled in villages located on the edges of the marshes or on artificial floating islands in the wetlands themselves. Their main income-generating activities were fisheries, livestock breeding, hunting and woven reed mats which were sold in markets throughout Iraq.

Displacement of the Marsh Arabs

During the Iran-Iraq war (1980-88) the marshes, particularly the Al Hawizeh Marshes (lying to the south-east of Al Amarah) became a front-line combat zone and many of the Marsh Arabs were forced to flee both the encroaching Iranian soldiers and the military operations of their own troops, which included the electrification of the marsh waters. In 1991, in the immediate aftermath of the Gulf War, some Marsh Arabs joined in an uprising by southern Shi'a against the Iraqi

regime. This uprising was brutally suppressed, many Marsh Arabs, and other Shi'a who had taken refuge amongst them were killed and their villages destroyed. As the marshlands began to dry out in the early 1990's the Marsh Arabs began to flee in even greater numbers. During the 1990's the government also instituted a policy of forced resettlement, moving many Shi'a from the southern marshlands to replace the Kurds, Turkomen and Assyrians who had been expelled from the major northern cities.

Current Situation

Whether the traditional marshland environment and society can ever be recreated is the subject of some debate. In the meantime, the most Marsh Arabs continue to endure the privations suffered by all vulnerable peoples within this desperately poor country. Today few Marsh Arabs (perhaps only 10,000) are living in their traditional marshlands, less than 10% of which can now sustain their traditional way of life. Estimates of the number of internally displaced Marsh Arabs range from 100,000 to 200,000 and up to 100,000 are believed to have left the country as refugees, of which 40,000 are currently in Iran and have been known to cross back and forth over the border." (UNOCHI, June 2003)

Footnotes

[1] Information in this section was paraphrased from the UNEP Report 2001: The Mesopotamian Marshlands; The Demise of an Ecosystem. Oil comment: Human Rights Watch, "The Iraqi Government Assault on the Marsh Arabs." January, 2003.

"Human Rights Watch believes that many of the acts of the Iraqi government's systematic repression of the Marsh Arabs constitute a crime against humanity. The crimes were committed as part of a widespread and systematic attack against the civilian population of the Marsh Arabs during the decade of the 1990s. The attack involved the multiple commissions of acts in furtherance of state policy. The underlying crimes include:

- Murder of thousands of unarmed civilians following the abortive March 1991 uprising, through summary execution and the indiscriminate bombardment and shelling of residential areas in towns and villages in the vicinity of Basra, al-Nasiriyya, al-'Amara and across the marshes region;
- Forcible population transfer—coercive expulsion of part of the Marsh Arab population from their native villages to settlements on dry land on the outskirts of the marshes and along major highways to facilitate government control over them;
- Arbitrary and prolonged imprisonment of thousands who had been arrested during and in the aftermath of military bombardment of residential areas in the marshes, including civilians and others suspected of anti- government activities;
- Torture of Marsh Arab detainees held in government custody, in order to extract information from them, as punishment, and as a means to spread fear among the local population;
- Enforced disappearances of many of the Marsh Arabs arrested during the 1990s, whose fate and whereabouts remain unresolved to date;
- Persecution of the Marsh Arabs through the intentional and severe deprivation of their fundamental rights on the basis of their religious and political identity as a group."

UNEP, April 2003

"The entire Marsh Arab community has suffered huge social and economic upheaval as a result of the marshlands' destruction, with about 40,000 people forced to flee to southwest Iran and hundreds of thousands internally displaced within Iraq. The impact on biodiversity has also been catastrophic. A new study conducted by UNEP indicates that, of the remnant wetlands surviving in 2000, one-third had disappeared by 2002. UNEP experts predict that unless urgent action is taken to reverse the trend and rehabilitate the marshlands, the entire wetland system is likely to be lost within three to five years. This will only be feasible through regional cooperation."

USCR 2000, p.188

"The Iraqi government has long been openly hostile to the Marsh Arabs, or *Maadan*, people living in the marshlands between the Tigris and Euphrates rivers in a triangle-shaped region formed by the cities of Amarah, Basra, and Nasiriyah. Following the suppression of the 1991 Shi'a uprising in southern Iraq, many opponents of the Baghdad regime fled to the marshes, and the Iraqi government intensified a pacification campaign it had been directing toward the *Maadan* since 1989.

Since 1991, government forces have burned and shelled villages, and built dams to divert water from the marshes to depopulate the area. Repressive policies in 1999 included diverting water from the marshes and denying food rations to thousands of people allegedly associated with opposition groups."

AMAR, 21 May 2001, p.6

"The construction of dams, forcible migration of communities, the draining of the Marshlands that was carried out in the 1990s was an extension of earlier trends. However an obsession for security drove the agenda. By depopulating the Marshlands, by reducing the area to desert, the region was no longer able to provide a sustainable refuge for dissidents. Saddam Hussein was able to impose his own will on the refractory people of the Marshlands. The drainage was carried out with no regard to international obligations concerning water rights or the environment. [...] The Marsh Dwellers had limited options. Like hundreds of thousands of other Iraqis they could submit to compulsory resettlement in an environment not their own. Or they could leave the country as refugees, as about 200,000 did. Or they could remain in the drained Marshlands, deprived of their inherited water-based means of livelihood."

See also: [Crimes of War Project, "The Iraqi Marshlands: A Pre-war perspective" \[Internet\]](#)

The "Arabization" policy of the former regime (1970s-1990s)

- Mainly from the 1970s and onward, Iraqi administrations displaced hundreds of thousands of ethnic Kurds, Turkomans, and Assyrians from Northern Iraq, repopulating the region with Arabs from central and southern Iraq, a policy known as "Arabisation"
- Arabisation was carried out to gain government control of valuable oil resources
- By the late 1970s, the Iraqi government had forcibly evacuated as least a quarter of a million Kurds from areas bordering Iran and Turkey and the inhabitants relocated to settlements in army-controlled areas of Iraq Kurdistan
- The majority of the displaced Kurdish population were expelled or fled to the Kurdish Autonomous Region,
- Others were resettled in the large-scale 'complexes' or 'collective villages' built by the Iraqi government
- Some were forcibly settled far away in central and southern Iraq
- The government used military force and intimidation primarily but also legal means, invalidating property deeds of the displaced Kurds
- The government nationalized the agricultural lands, making them the property of the Iraqi state
- Arab farmers and their families were resettled in the formerly Kurdish areas
- The majority of Sunni Arabs from the al-Jazeera desert seem to have moved to the north voluntarily or with minimal coercion
- A small number of Shi'a tribes who were moved to the north appear to have been largely forced

- In the 1990s the Iraqi government focused its Arabization efforts on the oil-rich city of Kirkuk and its surrounding area
- Kurds, Turkomans, and Assyrians came under constant pressure to sign 'ethnic identity correction' forms relinquishing their ethnicity and registering officially as Arabs

HRW, August 2004

"Since the 1930s, but particularly from the 1970s onwards, successive Iraqi administrations have forcibly displaced hundreds of thousands of ethnic Kurds, Turkomans (a Turkish-speaking Iraqi minority), and Assyrians from northern Iraq, and repopulated the area with Arabs moved from central and southern Iraq.[2] This policy, known as 'Arabization' (*ta'rib*) was conducted in order to consolidate government control over the valuable oil resources and arable lands located in northern Iraq. The massive forced displacement of Kurdish families from northern Iraq is not synonymous with Arabization, as armed conflict and the genocidal Anfal campaign of 1988 also accounted for large numbers of displaced Kurds. But even when Kurds were displaced by armed conflict or the Anfal campaign, the Iraqi government often ensured that their displacement became permanent and brought in Arab settlers to take over their homes. For the hundreds of thousands of Kurds displaced from their homes by Arabization, armed conflict, and genocide in Iraq, their continued displacement represents a crime that must be redressed.

The first massive wave of forced displacement in northern Iraq followed the 1974 unilateral declaration by the Iraqi government of a Kurdistan Autonomous Region covering the northern governorates of Arbil, Sulaimaniyya, and Dohuk. The area comprised some 14,000 square miles but included only half of the land area claimed by Iraq's Kurds, and excluded the oil-rich lands around the city of Kirkuk. In the wake of the 1974 autonomy decree, the Ba'th Party embarked on the Arabization of the oilproducing areas around Khanaqin, evicting Kurdish farmers and replacing them with Arab tribal families from southern Iraq. Tens of thousands of villagers from the Barzani tribe were also forcibly removed from their homes following the collapse in 1975 of the Kurdish revolt, led by Mulla Mustafa Barzani. The villagers were relocated to barren sites in the southern deserts, where they had to rebuild their lives from scratch. By the late 1970s, the Iraqi government had forcibly evacuated as least a quarter of a million Kurdish men, women, and children from areas bordering Iran and Turkey. Their villages were destroyed to create a *cordon sanitaire* along these sensitive frontiers, and the inhabitants relocated to settlements built for that purpose located on the main highways in army-controlled areas of Iraq Kurdistan.[3]

The scale of the displacement of Kurds in the north during the mid-1970s was immense, displacing the entire Kurdish population from an area reaching from the town of Khanaqin, close to the Iranian border, to the Syrian and Turkish border areas around Sinjar. Many Kurdish villages were bulldozed, and new Arab settlements were built nearby. The bureaucratic nature of the Iraqi state makes it possible to reconstruct the scale of the displacement, as many of the landownership records of the pre-Arabization period still exist. The decrees passed by the Ba'th government in implementation of its Arabization policy also exist, as do detailed records of the Arab families that were brought to inhabit the vacated areas. An official of the Agricultural Department in Shaikhan district, located in Mosul governorate (renamed Nineveh by the Iraqi government), listed forty-six originally Kurdish and Yazidi villages that had been Arabized in the 1970s.[4]

Tens of thousands of displaced men, women, and children fled into Iran. Most returned to Iraqi Kurdistan after the establishment of Kurdish self-rule in the aftermath of the 1991 Gulf War, but were unable to return to their original villages located outside Kurdish-controlled areas. The majority of the displaced Kurdish population were expelled or fled to the Kurdistan Autonomous Region, or were resettled in the large-scale 'complexes' or 'collective villages' built by the Iraqi government. Others were forcibly settled far away in central and southern Iraq, often in majority Sunni towns that formed the backbone of support for Ba'th Party rule. When Human Rights

Watch researchers visited the Sunni towns of al-Ramadi and al-Falluja in April and May 2003 respectively, they found entire neighborhoods of desperately poor Kurds who had been forcefully displaced from their homes in the north since the mid-1970s, and had never been allowed to return home.

[...]

The Repopulation of the North with Arab Tribes

The methods used by the Iraqi government to effect the forced displacements of the 1970s and 1980s involved first and foremost military force and intimidation: entire Kurdish villages were completely depopulated and bulldozed by Iraqi forces. But the Iraqi government followed up the brutality with legal decrees aimed at consolidating the displacement. First, the property deeds of the displaced Kurds were invalidated by legal decree, most frequently without compensation or with nominal compensation. The

Iraqi government nationalized the agricultural lands, making them the property of the Iraqi state.

The Iraqi government simultaneously embarked on a massive campaign to resettle the formerly Kurdish areas with Arab farmers and their families, thus completing the Arabization process. The Iraqi government did not have to look far for eager recruits for its Arabization campaign: located southwest of Mosul was the large al-Jazeera desert, home to hundreds of thousands of loyalist nomadic Sunni Arab tribesmen. Enticed with free, irrigated land, and encouraged by their tribal shaikhs, the al-Jazeera tribesmen abandoned their hard lives in the desert and moved north en masse.

One elderly Arab tribesman from the al-Hadidi tribe recounted how his family and other tribesmen had moved north in late 1974 to be resettled in an emptied Kurdish village:

We went to Hin Djok at the end of 1974, October or November. Before this, we used to live like shepherds with our sheep, south of Mosul. We had no lands, and we used to take our sheep [grazing in the desert.] In 1974, the government came and asked if we wanted lands in the north. We were very grateful and voluntarily went to the north. We built our own houses, all of our families built new houses, and we also dug water wells. Each farmer got sixty dunums⁵ of irrigated land.[6]

Another elderly Arab tribesman from the al-Hadidi tribe explained how forty-seven families from his tribe went to the Kurdish village of Khani Siddiq in 1975:

We went to Khani Siddiq in 1975. Before, we were living from place to place in the al-Jazeera desert, in our tents. We owned no land. The government came to us and said they would take us to villages in the north. The government kicked out the Kurds and gave them compensation, and then brought us. The government didn't force us to go to the north. They came and asked us if we had lands and we said no. They said that if anyone wanted to the north, they would take us. We were very happy to go to the north because we had no irrigated lands in the south. There were little houses in the village. We reconstructed those houses and built some new ones. They gave us sixty dunums each, but this was different in each village.[7]

The process by which Arabs came to the north was remarkably similar throughout the vast region the Iraqi government repopulated with Arabs, stretching from Khanaqin near the Iranian border to Sinjar near the Syrian border. 'Alaiwi Sanur Hamid al-Sayeh, an elderly Arab farmer who moved with about thirty Arab families to the village of Suhaila near the Syrian border in 1974, described his move in nearly identical terms to the version given by the al-Hadidi tribesmen above, who settled in Shaikhan district hundreds of miles away:

We came to Suhaila in 1974. We came from Salahuddin governorate, from the al-Jazeera desert. The government and the Ba`th moved us from al-Jazeera to this village. The government came to us, and announced that there were lands in these villages, and if we wanted to register [for land],

we could. We registered, and one day they brought vehicles to transport us. Before this, we were living like bedouin in tents. They assigned each farmer 100 dunums.[8]

The shaikhs of the Arab tribes of the al-Jazeera desert—the area from which the largest number of Arab settlers came—confirmed this version of events in interviews with Human Rights Watch. According to Shaikh Nawwaf Hawwaz al-'Atmi al-Shummari, a leader of the al-Shummar tribe in the north, Iraqi government representatives came to the al-Jazeera desert in 1974, asking them to move north: 'The government came to us and told us to go live there [in the north], saying they would give us some land, just to protect the oil fields. We went to live in seven villages, each with 100 to 150 families.' [9] Shaikh Mustafa Ahmad al-Warsan, the head of the large al-Hadidi tribe that settled dozens of Kurdish villages in the north, gave a similar explanation:

Prior to the 1970s, the Arabs of our tribes used to live in the al-Jazeera desert, and none of them used to own any land. Or they lived in villages that belonged to other people and worked their land [as sharecroppers]. The people who lived in the al-Jazeera desert lived in temporary settlements [i.e. tents] because there was no water there, so their life depended on the rain. The land in the al-Jazeera doesn't belong to anyone [individually], so some people used 500 dunums, others 1,000 dunums. ...The government announced [in the mid-1970s] to all the tribes in the al-Jazeera that there were irrigated lands in the north. Most of the people went north because of these lands. It was different from village to village—some farmers received twenty dunums, others thirty. This depended on the size of the village and the number of people who went to the village. ...The agreement they gave us was that we had rental contracts with the government. Each farmer had a contract and we used to pay a rent rate every year. This contract was renewed annually.[10]

Shaikh Mustafa made a point of crucial relevance to the resolution of the property disputes in the north, namely that the majority of Arabs who came to the north to resettle rural villages were not given title to the land they farmed, but rather worked under annual rental contracts. While the rights of these Arab farmers, who built their homes on the land and often lived there for decades, should not be minimized, at the same time it is of legal relevance that most Arabs were never made the actual owners of the land taken from the Kurds—a situation different from the urban Arabization of Kirkuk, where the Arabs who came to the area were given full title to the land.

Human Rights Watch interviewed dozens of Arab families and Arab tribal leaders who ventured to the north under the Arabization campaign, and the majority of those interviewed clearly stated that they had come to the north by choice, after being offered lucrative irrigated land by the government. Some stressed, however, that their desperate economic situation in the al-Jazeera desert gave them little choice. Shaikh Hamdi Idbis Hussain, head of the al-Luhaib tribe, explained why he decided to accept a government offer to settle formerly Kurdish villages in the Makhmour district in the mid-1990's: 'We went there because the members of my tribe are very poor and had no land. Most of them used to live on just one meal a day.'[11] An Arab farmer who had resettled from the al-Jazeera desert to the village of Shamarash in Shaikhan district stressed that he had little choice in the move: 'We moved because there was an order from the government to move to this village. Whether I was happy or unhappy, I had to obey that order. During the last regime, if the government gave an order to the people to do something, they had to obey.'[12]

While the majority of Sunni Arabs from the al-Jazeera desert appear to have moved to the north either voluntarily or with minimal coercion, a small number of Shi'a tribes who were moved to the north appear to have come under much greater pressure to do so. For example, the government in 1975 ordered some 150 families from the Shi'a al-Shuraifi tribe to leave their ancestral home in al-Nassiriyya and to resettle in Khanaqin. Their ancestral lands were then given away to other tribes, and they were registered as residents of Khanaqin. The al-Shuraifi leadership claims they were moved against their will and lost their ancestral lands because they refused to join the Ba'th

Party and were suspected of being sympathetic to the outlawed Islamic Da'wa and Iraqi Communist parties.[13]

Another Shi'a tribe from the south, the Albu Mahmoud tribe from Kut, also claimed to have been similarly forced to resettle in Khanaqin in 1975: 'We were displaced by the government in 1975 to Khanaqin, because they wanted to take us to the Kurdish areas. We were forced to go to the north: They displaced us to replace the Kurds.'[14] A third Shi'a tribe, the al-Fahd from Kut, also claimed to have been forced to go north, 'because of the ethnic cleansing of the Kurds.'[15] Altogether, Human Rights Watch found about 450 Shi'a families who claimed to have been forcefully resettled by the Iraqi government to Khanaqin. Following the March 2003 war, they were evicted by the original Kurdish owners and were living in abandoned government buildings when Human Rights Watch met them.

The Arabization of the Kirkuk Region

Following the failed 1991 uprisings, the Iraqi government focused its Arabization efforts on the oil-rich city of Kirkuk and its surrounding area. Kurds, Turkomans, and Assyrians came under constant pressure to sign 'ethnic identity correction' forms relinquishing their ethnicity and registering officially as Arabs. [20] Non-Arabs were also required to become members of the Ba'th Party, and to serve in 'volunteer' militias such as *Jaysh al-Quds* (Jerusalem Army) or the *Fida'iyyi Saddam* (Saddam's Martyrs, often referred to in Western media as the Fedayeen). Families that refused to comply were issued formal expulsion orders requiring them to leave their homes and move to Kurdish-controlled areas. The government of Iraq displaced approximately 120,000 persons from Kirkuk and other areas under government control from 1991 to 2000 in furtherance of its Arabization campaign. [21] Arab families were given financial incentives to move north, and the Iraqi government embarked on housing construction projects to bring more Arab families north in order to change the demographic make-up of the north."

See also Noori Talabany, Iraq's Policy of Ethnic Cleansing: Onslaught to Change National/Demographic Characteristics of the Kirkuk Region (1999) .

[Footnotes]

2 For a historic overview of Iraq's Arabization policies, see Noori Talabany, *Iraq's Policy of Ethnic Cleansing: Onslaught to Change National/Demographic Characteristics of the Kirkuk Region* (1999) [...].

3 Human Rights Watch, *Iraq's Crime of Genocide: The Anfal Campaign Against the Kurds*, New Haven and London, 1995.

4 Human Rights Watch interview with Haji Muhammad Ya'qub Hussain, assistant to the director of the Agriculture Department of Shaikhan, June 10, 2003.

5 The dunum is a Middle Eastern unit used for measuring land areas, dating back to the Ottoman period. The actual size of a dunum varies among Middle Eastern countries. An Iraqi dunum is equivalent to 2,500 square meters.

6 Human Rights Watch interview with Sulaiman Muhammad Ibrahim al-Hadidi, June 6, 2003.

7 Human Rights Watch interview with Muhammad Hassan 'Alawi al-Hadidi, June 7, 2003.

8 Human Rights Watch interview with 'Alawi Sanur Hamid al-Sayeh, June 21, 2003.

9 Human Rights Watch interview with Shaikh Nawwaf Hawwaz al-'Atmi al-Shummari, June 7, 2003.

10 Human Rights Watch Shaikh Mustafa Ahmad al-Warsan, June 8, 2003.

11 Human Rights Watch interview with Shaikh Hamdi Idbis Hussain, June 7, 2003.

12 Human Rights Watch interview with 'Ali Dabas Ibrahim al-Hadidi, June 6, 2003.

13 Human Rights Watch interview with Shaikh 'Ali 'Aziz al-Shuraifi, May 11, 2003; Human Rights Watch

interview with Muhsin Murshid Shulfat, May 9, 2003; Human Rights Watch interview with Karim Khudair

Buwajid, May 9, 2003.

14 Human Rights Watch interview with Sayyid Bashir Saleh Taher, May 11, 2003.

15 Human Rights Watch interview with 'Ali Tajir, May 10, 2003.

20 *Tashih al-qawmiyya* has frequently been referred to as “nationality correction” but “ethnic identity correction” is more accurate.

21 See Human Rights Watch, *Iraq: Forcible Expulsion of Ethnic Minorities* (New York: Human Rights Watch, March 2003). See also, The Iraq Foundation, “Ethnic Cleansing in Kirkuk,” January 26, 2001, (concluding that “the deportation of Kurds and Turkomans from areas under government control, and particularly from the Kirkuk governorate, has left over 100,000 people from northern areas homeless and destitute.”); UNHCR/ACCORD, 6th European Country of Origin Information Seminar, November 14, 2000, p. 57 (stating that “an estimated 100,000 people...were deported from government-controlled areas, especially from Kirkuk, Khanaqin, and Mosul. They were sent to Northern Iraq for several reasons, yet the majority of them were accused of having affiliations with the opposition parties in the north or abroad. Being a Kurd or Turkmen also sufficed as a reason.”).

POPULATION FIGURES AND PROFILE

Global figures

81,000 newly displaced from their homes due to intercommunal violence (as of 22 May 2006)

- More than 81,000 people are estimated to be displaced by sectarian violence (as of 22 May 2006)

IDMC Note: The figures for the number of people displaced as a result of sectarian violence which began at the end of February, sparked by the bombing of the Al Ashkari shrine, continue to fluctuate. Initially, it was estimated 100,000 people had been displaced. Figures were also incorrectly reported by several newspapers (See New York Times and BBC in sources). Estimates from mid May, suggest that 76,000 people are estimated to be displaced. All figures should be taken with caution, given that displacement is ongoing and monitoring of population movements is complicated by the poor security situation.

IOM/MODM Figures as of 22 May 2006

81, 000 people displaced by sectarian violence

IOM/MODM Figures as of 17 May 2006

Following are numbers of displaced **as per reports received from monitoring partners since 22 February 2006** (details per governorate further below). ***As displacements are occurring continuously, these tables are not complete and IOM is updating the figures on a continuous basis.***

Origin	Displaced to	No. of Families
Baghdad, Anbar, Salah al-Din	Basra	71
Baghdad, Salah al-Din, Babylon, Tameem, Anbar, Diyala	Thi-Qar	440
Tameem, Baghdad, Diyala, Salah al-Din, Anbar,	Kerbala	610
Sha'ab, Dawra, Nahrawan	Baghdad/Tarmiya	96
Baghdad, Thi-Qar, Babylon, Kerbala, Missan, Basra	Anbar	2,554
Diyala, Baghdad, Salah Al-Din, Anbar, Wassit, Babylon, Kirkuk, Ninewa,	Baghdad (various locations)	2,620
Baghdad, Diyala (Baquba, Muqdadia), and Salah Al Din	Diyala	976
Anbar, Baghdad, Salah al-Din, Baghdad, Ninewa	Najaf	1392
Bagdad (Al Madaen, Al-Nahrawan, Abu Ghraib, Dora and Abu Desher)	Qadis	200

	siy a	
Various	Wassit	1393
Various (see report below)	Ba byl on	410
Iraq/Ninawa/ Talafar	Ninewa	319
Samarra, Salah al-Din	Tikrit (27 families) Baghdad (18 families) Thra'a Dijlah (17 families)	62
Salah Al-Din / Beiji	Sal ah al- Din / To oz	38
Basra, Thi Qar, Kerbala	Sal ah al- Din	279
Northern, southern and western parts of Baghdad in particular Abugreb, Aldora and Mahmodiyah	Mu tha nn a	463
Northern, southern and western areas of Baghdad mainly Abugreb, Dora and Mahmodiyah	Mi ss an*	850
	Ta me em	
Total IDP families		12,773

Total number of individuals, based on 6 individuals per family, is **76,638**.

*Total as per a combination of MoDM and IOM partner information

UNHCR (Cluster F), 26 April 2006

Newly displaced in Iraq

Governorate	22/Mar	26/Mar	27/Mar	30/Mar	4/Apr	5/Apr	6/Apr	11/Apr	12/Apr	16/Apr	17/Apr	18/Apr
Kirkuk		49	49	49	49	49	85	85	98	85	124	124
Ninewa	535	535	535	535	535	535	535	535	535	535	535	535
Anbar	800	800	800	800	800	800	864	864	1,223	1,223	1,223	2,269
Baghdad	761	781	781	781	781	1,000	3,598	3,598	3,598	3,598	3,598	3,598
Dyala	436	629	629	629	629	629	750	750	993	993	1,16	1,163

											3	
Salah Al-Din	1	73	73	73	230	230	356	356	802	356*	1,102	1,423
Babylon (Al-Hela)	300	300	300	330	350	350	450	450	450	450	450	450
Basra	20	46	189	175	230	250	280	350	350	450	535	450
Kerbala	350	389	389	389	706*	706*	400	400	400	1,398	1,393	1,393
Missan (Amara)	63	66	66	355	160	320	320	320	320	515	517	517
Najaf	1,000	1,250	1,250	1,250	1,250	1,250	1,600	1,600	1,600	1,600	1,600	1,600
Qadissiyah (Dewanlia)	220	250	250	400	400	400	410	410	410	410	410	420
Samawa (Muthanna)	175	421	447	457	575	575	606	606	635	708	722	722
Thi Qar (Nassiriyah)	430	450	450	675	700	700	840	711	711	1,020	1,250	1,250
Wasit (Kut)	213	215	312	300	360	360	316	324	324	350	354	354
	5,304	6,254	6,520	7,198	7,049	7,448	11,410	11,359	12,449	13,335	14,976	16,268

* These figures need clarification.

(Source: MoDM, but IOM and implementing partners for Ninewa and Anbar)

Total displaced families: 16,268

Approximate **number of individuals** (6 per family): 97,608

Main reasons for fleeing: direct or indirect threats, attacks

Sects: Both Shiites and Sunnis are fleeing.

Movements:

Most of the Shiites are fleeing Central Governorates (mainly Baghdad, Anbar and Salah al Din) towards Southern Governorates (mainly Najaf, Qadissya, Wassit and Karbala).

Sunnis are moving towards the Governorates of Baghdad, Dyala and Anbar from Southern Governorates.

It is important to note that there is also a high intra-governorate movement, particularly in the Governorates of Baghdad and Dyala (Shiites and Sunnis), and inter-governorate movement within the Central Governorates, from Dyala and Anbar to Baghdad (Shiites).

Trends: Displacement is continuing.

Governorates: Governorates with the highest numbers of displaced families are Baghdad, Najaf, Dyala, Salah al Din, Wasit, Thi Qar and, according to information from IOM, Anbar."

Total internally displaced population is estimated to be 1.2 million (as of December 2005)

- It is estimated that there are over 1.2 million internally displaced people in Iraq today (figure as of December 2005)
- All figures should be approached with caution given that monitoring is complicated by ongoing insecurity and displacement
- The figure is an accumulated figure

Total figure estimated in December 2005 based on IOM and UNOPS monitoring: 1,200,000 Internally Displaced Persons (Source: UNHCR, April 2006)

IDMC Note: The total figure is an accumulated figure. UNHCR, IOM and UNOPS monitor IDP and returnee movements, however monitoring activities are restrained by ongoing insecurity and ongoing displacement.

UNCT, September 2005

based on monitoring by IOM and UNOPS the total figure was estimated to be 1,330,476 individuals (221,746 families)

see chart below

Northern Governorates	Post 1991	Pre 1991	Sub-total IDPs
Dohuk	1,103	22,184	23,287
Erbil	6,249	24,377	30,626
Sulaymaniyah	1,956	48,560	50,516
Sub-total 1	9,308	95,121	104,429
Centre Governorates	Post 2003 Conflict	Pre 2003 Conflict	Sub-total IDPs
Ninewa*	4,970	2,655	7,625
Salah Al Din	3,103	359	3,462
Tameem	1,241	248	1,489
Diyala	6,653	2,351	9,004
Anbar	8,847	543	9,390
Baghdad*	1,930	2,176	4,106
Sub-total 2	26,744	8,332	35,076

Southern Governorates	Post 2003 Conflict	Pre 2003 Conflict	Sub-total IDPs
Babylon	731	1,238	1,969
Kerbala	998	17,512	18,510
Najaf	505	7,300	7,805
Wassit	1,232	70	1,302
Qadissiya	776	675	1,451
Missan	566	18,763	19,329
Muthanna	437	424	861
Basrah	451	28,098	28,549
Thi'Qar	220	2,245	2,465
Sub-total 3	5,916	76,325	82,241
Grand Total	41,968	179,778	221,746

IOM Monitoring, September 2005

UNHCR, August 2004

"In the North, there are, among others, the Kurds, Turkmen and Assyrians who were victims of both the "Arabization" and Anfal campaigns, the Kurds who were displaced as a result of the war between the main two Kurdish parties (the PUK and KDP), and Iraqis of different ethnic and religious backgrounds who opposed the former regime and had to flee their governorates.

The UN estimates that a total of 805,505 individuals (141,234 families) were displaced in the three northern governorates over a thirty- year period. The majority of this group (approximately 74%) were displaced between 1974 and 1990, while the remaining (approximately 26%) were displaced post 1990. 42% of the IDPs originate from former Government of Iraq controlled areas and were primarily displaced as a result of expulsions carried out by the former regime that aimed to change the ethnic balance of the population in resource-rich regions such as Kirkuk.[4] The remaining 58% originate from within the three semi-autonomous Kurdish areas (Dahuk, Erbil, Sulaymaniyah), displaced primarily as a result of inter-Kurdish fighting.

Cause	Period	Percentage
Expelled as part of the Arabization campaign	1974-1987	46%
Victims of the Anfal campaign	1988	28%
Expelled due to the Arabization campaign	Early 1990	7%
Returnees from Iran unable to return to place of origin in GoI territory	Early 1990	5%
Displaced as a result of fighting between PUK and PDK	Early-mid 1990's	9%
Displaced as a result of conflicts with PKK	1980s and early 1990s	2%
Others		2%

[Footnote 4] This campaign has commonly become known as the Arabization campaign in which the GOI expelled Kurds, Turkomen and Assyrian populations from areas rich in resources and resettled Arabs from the south to the same areas."

IRIN, 7 February 2005

"'Iraq and accurate statistics,' said one senior Iraqi official in Kirkuk, 'are two entirely different things.' Nowhere is this truer than when it comes to internally displaced persons (IDPs) in northern Iraq. Officially, 20 years of village clearances, Arabisation campaigns in ethnically mixed areas and a Kurdish civil war have forced around 800,000 people - out of a total population of four million - to leave their homes. A UN-Habitat survey of October 2000 put the total at 805,505, not including IDPs who had fended for themselves and disappeared into the general population.

However, some experts suggest that such figures need to be viewed with skepticism, for several reasons. The word IDP summons up images of dire poverty and tarpaulin. While living conditions in the collective towns built by Saddam Hussein at Binaslaw near Arbil or Shorj near Sulaymaniyah are far from good, they are not significantly worse than in towns under central government control until 2003 that were left untouched by the former regime."

UNHCHR, 9 June 2004

"The pre-conflict estimate that as many as 800,000 persons were internally displaced throughout Northern Iraq and an additional 100,000 to 300,000 persons were displaced in the center and south. However these are estimates and obtaining reliable figures has not been possible in the post-conflict climate."

UN OCHA, 5 January 2004

"With an estimated 900,000 internally displaced people (IDPs) in Iraq, humanitarian organisations are putting the emphasis on providing proper shelter in the coming year for homeless people uprooted by the troubles that have plagued the country not only over the past year but the past few decades. [...]While there are no current accurate statistics at present, based on pre-war figures, the largest population of between 600,000 and 800,000 IDPs are living in the north with up to an estimated 100,000 in the south and centre, many with limited access to basic facilities. Prior to the second Gulf War a UN Habitat survey found that 40 percent of the displaced had no access to health care and that only some 57,000 people were living in adequate housing.

With some signs of IDPs returning following the fall of Saddam Hussein, as of the beginning of June 2003, the International Organisation for Migration (IOM) has confirmed up to 40,000 registered IDPs in the south and central governorates, with other sources suggesting up to 75,000. Aid agencies say that although some IDPs have returned home it is very difficult to establish exact figures due to a lack of staff on the ground because of insecurity."

Survey indicates 100,000 displaced Arab IDPs following the fall of Saddam Hussein's government (October 2003)

- About 100,000 newly displaced IDPs have been identified, concentrated in Diyala, Ninewa and Tameem governorates
- Major concentration is in Diyala where about 50,000 IDPs have been displaced from Khanakhin and Kifri
- The only big concentration is in Saar military camp (4000 individuals)
- The same pattern has been identified in Ninewa, where around 20.000 have been displaced since the war

"In the north, Kurds have also begun to return to their homes. The beginning of these return movements has caused a new wave of displacement. As several thousand Kurds have begun to reclaim their homes in the north of Iraq, about 100,000 Arabs who were installed there by the previous regime have fled in the months following the end of the war." (OHCHR, 9 June 2004, p.21)

"IOM and NGO partners continued to survey displaced communities in the center/south of Iraq. By the end of September about 100,000 newly displaced IDPs have been identified, concentrated in Diyala, Ninewa and Tameem governorates. These IDPs are mainly Arabs forced to move by the former regime to Kurdish areas. With the end of the regime, these Arabs were forced to vacate the occupied homes in advance of Kurdish returns.

The major concentration is in Diyala where about 50,000 IDPs have been displaced from Khanakhin and Kifri. The IDPs have found shelter in abandoned military installations and public buildings. Most are living in small groups, while the only big concentration is in Saar military camp (4000 individuals). The same pattern has been identified in Ninewa, where around 20.000 have been displaced since the war. In Tameem/Kirkuk, Most displaced are staying with host families, or have returned to their area of origin, and are reported to have quite good resources and coping strategies in place." (UN OCHA, 10 October 2003).

At least 40,000 people displaced as result of the US led invasion (as of June 2003)

- IOM preliminary numbers 2 June 2003: 40,000 IDPs in Southern/Central areas
- Other sources report as many as 80,000 new IDPs
- Ongoing uncertainty of numbers and needs

IOM reported numbers of *new* IDPs per district by NGO governorate focal points (GFP), 2 June 2003 (Source: IOM):

Governorate	GFP	No of IDPs	Total population
Al Anbar	LWF	1,747	1,271,000
Ninawa	WVI	3,383	2,521,000
Al-Ta'meem	NRC	15,600	881,000
Salahadin	CONCERN	50	976,000
Diyala	DRC	1,922	1,271,000
Baghdad	PU	96	6,500,000
Babylon	NRC	0	1,409,000
Al-Muthanna	ACTED	0	570,000
Al-Basrah	SCUS	2,808	570,000
Maysan	Ockenden	12,000	848,000
Wasit	MCI	2,350	939,000
TOTAL NO IDPs:		39,956	

Ongoing uncertainty over number and needs of IDPs

"(...) the exact number of internally displaced persons (IDPs) continues to elude aid workers, This week, however, a clearer picture of the situation in southern and central Iraq shed some light on the scope of the problem. Chris Petch, the deputy programme manager for IDPs in Iraq for the International Organisation for Migration said initial reports from 12 of the 92 southern and central districts identified 58,000 IDPs, but other unconfirmed reports could mean that this number was actually over 80,000. Those IDPs who had been identified were in real need of assistance, he added. Ongoing uncertainty over the number and needs of the IDP population have been attributed to ongoing displacement in some places and confusion among the local population of what constituted an IDP." (IRIN, 23 May 2003)

Assessing IDPs in the south

"A clearer picture of the number of internally displaced persons (IDPs) in southern and central Iraq is emerging as initial data begins to come in. Chris Petch, the deputy programme manager for IDPs in Iraq for the International Organisation for Migration (IOM), told IRIN that while there were still large areas of the country to be covered and assessed, it was clear there were many thousands of Iraqis who had shifted from their homes during the war and had not yet returned. IOM is the lead agency for IDPs in the south and centre of the country.

And while the numbers were not as great as had been predicted or feared before the war, those IDPs who had been identified were in real need of assistance. Initial reports from 12 of the 92 southern and central districts had identified 58,000 IDPs, but other unconfirmed reports could mean that this number was actually over 80,000, Petch said. He said one of the big problems in trying to accurately assess the scale of the problem was that the situation was very complicated

and constantly changing. For example, IOM had received a report of 50,000 IDPs camped near the Iranian border, but when they investigated, found only 2,000.

By contrast, in another case there was a report of up to 50,000 IDPs in one location during the war, but IOM now knows there were close to 100,000 people there at the time. Petch said it was a very fluid picture, and security concerns meant that NGOs had been unable to reach into many areas until now to check on the problem. Numbers could fluctuate every day in an area, with displacement still going on in some places, but he hoped to obtain a clearer picture of the problem within a month. One of the current problems was that some areas were not deemed safe to travel to, such as the region around Tikrit, about 150 km northwest of Baghdad. However he was confident that IOM had access to enough resources to cope with the IDP situation whatever the final figures turned out to be."

Peter Nuttall, a team leader for the Irish NGO, GOAL, which is helping with IDP assessments in the southern governorate of Dhi Qar, told IRIN it had only been in the last two weeks that they had begun locating IDPs. He said this was in part due to misunderstandings among Iraqis about what constituted an IDP, but better information was now coming in. For example, GOAL staff had found four families living in the back of a building, and when locals were asked where they had come from, staff were told they were just poor people. It transpired, however, that the families had been renting houses which had been destroyed, thereby turning them into IDPs. Nuttall said GOAL was continuing its work and would have a clear picture of the overall situation in the area within a few weeks.

Another NGO involved in the IDP assessments, the Lutheran World Federation (LWF), said it had completed its assessment in the Al-Anbar Governorate west of Baghdad. Its programme coordinator, John Damerell, told IRIN the security situation, including an armed attack on two of its vehicles, meant it had been unable to visit all areas or complete its work. While unable to give definite figures, he said the number of IDPs remaining in Al-Anbar was not appreciable, although there would still be several thousand. He added that the plight of those found was not deemed to be chronic, and they all intended to go home as soon as possible. Most IDPs had stayed with families or friends, or been put up by benevolent locals, including one hotel which had opened its doors to them and accommodated them gratis. Damerell stressed that all the information LWF had received pointed to the number of IDPs having been much greater when the fighting was still in progress. However, when looting broke out, many people quickly returned to their homes in places such as Baghdad to try and protect their possessions, he said" (IRIN, 20 May 2003)

"In order to ascertain the trend for old caseload IDPs who left their homes prior to the conflict to return to their places of origin, UNOPS launched a survey on 5 May in Erbil and Sulaymaniyah. Of the new IDPs caseload, only 17 persons remain in one site in Dahuk. UNOPS reported that local authorities are assisting the return of IDPs previously settled in the Arab Singles Camp in Dahuk to their places of origin in centre/south of Iraq. As of 6 May, 6 persons are still in the camp." (HCI, 6 May 2003)

"The old caseloads of IDP, who predate the recent conflict, are continuing to return to their places of origin in the centre and south but this return is going on at a very slow pace. In this regard, UNOPS-IDP is launching a survey on the trend for the old IDP to return to their places of origin in the centre and south. Following a two-day training course on how to conduct this assessment and the form to be used, this survey was launched in Erbil and Sulaymaniyah today. In Erbil the survey started in the public shelters and in Sulaymaniyah it was completed in 5 randomly selected locations today (5 May 2003). It is expected that the survey should be concluded in these two governorates over the coming three days. In Dahuk, the project has engaged in the necessary contact and coordination with the Governor's office and the Internally Displaced Persons Liaison Office to obtain their support in carrying out the survey and it is anticipated that the survey will therefore commence shortly.

Virtually all the caseload of new IDP, who resulted from the recent conflict, have returned to their places of origin whether they originated from the northern governorates or from the centre and south.” (UNOPS-IDP SitRep 5 May 2003)

“As humanitarian workers begin to gain access to Iraq, IOM is starting to build up a picture of the number of internally displaced people (IDPs) in the south and center of the country, based on assessment missions carried out by NGO partners. Reports from the Lutheran World Federation, ACTED, Save the Children, the Danish Refugee Council, Ockenden International and Mercy Corps have already identified some 58,000 IDPs in just 12 districts partially assessed. To date the NGOs have visited only 40 of 4,082 settlements identified in the south and center of the country. Of the IDPs they have identified, about half are living in abandoned public buildings, a quarter are staying with host families and a quarter living rough in tents or in the open. Unconfirmed media and other reports that have already identified a further 82,000 IDPs in various locations are under investigation. World Vision International, IOM's partner in the northwestern governorate of Ninewa, is currently investigating media reports of another 10,500 IDPs in public buildings in Mosul.

The task of identifying and assessing the needs of IDP populations throughout Iraq - a country the size of France - is labour intensive and time consuming, and with the ongoing lack of security, can be dangerous. The risks were underlined last week when two vehicles belonging to the Lutheran World Federation (LWF), IOM's partner NGO in the western Al Anbar governorate, were forced off the main road and robbed by gunmen 100 km west of Baghdad near Ar Ramdi. LWF staff, who were shocked but unhurt in the attack, believe that there still may be as many as 30,000 IDPs in Al Anbar. Large numbers of people fled Iraq's cities to the Al Anbar towns of Ar Ramdi, Hit, Hadita and An'Nah during the bombing, but many subsequently returned to Baghdad and other cities. Elsewhere in the country, Premiere Urgence, IOM's partner NGO in Baghdad governorate, believes that there may be as many as 35,000 IDPs in and around the city. The Danish Refugee Council (DRC), IOM's partner in Diyala, says that there are an estimated 50,000 IDPs in governorate, which borders Iran. DRC has already assessed their food and other needs. Ockenden International, IOM's partner in neighbouring Maysan governorate to the south, has identified an estimated 12,000 IDPs staying with host families in Al Amrah.

Ockenden has already assessed their non-food needs, which IOM will meet with items donated by the USAID's Office for Disaster Assistance (OFDA) and already positioned inside Iraq. Mercy Corps, IOM's partner in Wassit governorate, reports some 2,000 IDPs in camps in Badreh. IOM led an assessment mission to Badreh from Iran on April 14th. Save the Children, IOM's partner in Basrah governorate, where IOM deployed permanent international staff last weekend, reports about 190 IDPs in public buildings in Umm Qasr and Al Zubair. IOM, at the request of the UN and under the overall responsibility of the UN Humanitarian Coordinator for Iraq, is coordinating the efforts of NGOs and others in registering IDPs, managing camps, distributing non-food items, and eventually helping people to return to their homes. Its network of 15 governorate focal point (GFP) NGOs use a standardized, IOM-designed framework, database and reporting structure to target assistance at the most vulnerable IDPs. Under the programme, which is supported by USAID's OFDA, IOM also provides limited funding to GFP NGOs to support their activities.” (IOM 13 May 2003)

700,000 to 1 million internally displaced persons in 2001 (2002)

- Estimated number of internally displaced persons is very difficult to assess because of lack of reliable sources
- A survey by UN Habitat estimated the number of IDPs in northern Iraq at 805,000 in Oct 2000

- PUK and KDP officials reported that 119,000 IDPs in the North were expelled from government-controlled to Kurdish controlled areas
- USCR estimated the total number of displaced at 700,000 for 2001

"A preliminary survey carried out in northern Iraq by the U.N. Centre for Human Settlements (Habitat) estimated the number of internally displaced persons at 805,000 by the end of October 2000, comprising 23 percent of the population. [...]"

A major factor in the rising number of internally displaced persons was the government's continued expulsion of Kurds and Turkmen from their homes in Kirkuk, Tuz Khormatu, Khaniqin, and other districts as part of its "Arabization" program. Most were expelled to areas controlled by Kurdish opposition forces and a smaller number to central and southern Iraq. According to PUK officials, those expelled between January 1991 and December 2000 and resettled in areas under its control totaled 93,888, while some 25,000 others expelled during the same period were resettled in KDP-controlled areas. Scores more were reportedly expelled between January and March, particularly from the Tuz Khormatu area. In August and September, Kurdish opposition sources said the government was intensifying the rate of resettlement of Arab families in areas from which Kurds and Turkmen had been expelled, including the Lailan, Shwan, and Qara Hanjir districts of Kirkuk." (HRW Dec 1999)

See the [UN-Habitat Survey](#)

USCR estimate: 700,000 as of End of 2001

"The estimated 600,000 internally displaced persons in the three northern governorates of Dohuk, Erbil, and Suleymaniyah included not only long-term internally displaced persons and persons displaced by Kurdish factional infighting, but also more than 100,000 persons, mostly Kurds, Assyrians, and Turkomans, more recently expelled from central-government-controlled Kirkuk and surrounding districts in the oil-rich region bordering the Kurdish-controlled north. At least another 100,000 persons were internally displaced elsewhere in Iraq, mostly in the southeastern marshlands." (USCR 2002)

UNEP estimate of IDPs in Southern Iraq in 2001

According to the UN Environment Program, "Of the 95,000 southern Iraqis who sought refuge in Iran since the end of the Gulf War in 1991, an estimated 40,000 are Marsh Arabs. The fate of those who stayed inside Iraq remains poorly documented, but an estimated 200,000-250,000 are considered to be internally displaced." (Patrow 2001, pp33-34)

End of Year	Conservative estimated number of IDPs	Source
2001	700,000	USCR 2002
2000	700,000	USCR 2001, p.6
1999	900,000	USCR 2000, p.6
1998	1,000,000	USCR 1999, p.6
1997	900,000	USCR 1998, p.6
1996	900,000	USCR 1997, p.6
1995	1,000,000	USCR 1996, p.112
1994	640,000	USCR 1995, pp.115-116

Geographical distribution

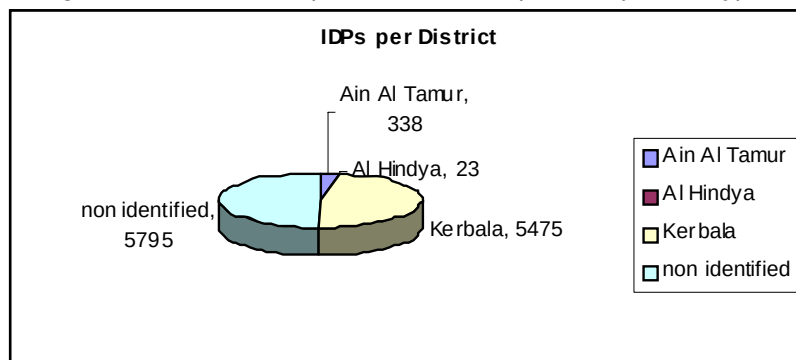
Upper south: Wassit, Qadissiyah, Najaf, Babylon, and Kerbala (April 2005)

- In Kerbala, most IDPs are Bedouins (nomads), Marsh Arabs, and Bidoons (Iraqis who were living in Kuwait before the Gulf War without any citizenship) who were expelled to Iraq during the Gulf war of 1990)
- The majority of IDPs in Najaf are pre-conflict, including some Marsh Arabs from the south
- There are also a number of IDPs in Najaf displaced as a result of skirmishes between the multinational forces and some of the local groups in Najaf in August
- An estimated 25,000 persons fled Najaf city in August 2004 mainly to surrounding villages within Najaf, however, most returned back to their homes once the fighting stopped
- By August 2004 and during fighting between militias and the multinational forces the population of IDPs in Babil increased
- The majority of the IDPs in Babylon is originally from the marshlands of Missan, Basrah and Thi'Qar and is concentrated around Baghdad and Hillah towns
- Most of the families displaced in the governorate of Wassit is located in the districts of Al-Suwaira and Kut
- In Qadissiya the displaced are mainly Arabs returning to the south from the centre region as a result of reverse Arabisation, and the consequent return of Kurdish and Turkmen families to Diyala and Kirkuk
- Most of the displaced families in Qadissiya are concentrated in Diwaniyah and Afaq districts

Kerbala governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
834	10,728	0	23	46	11,631

"All figures are in families (on the basis of 6 persons per family)



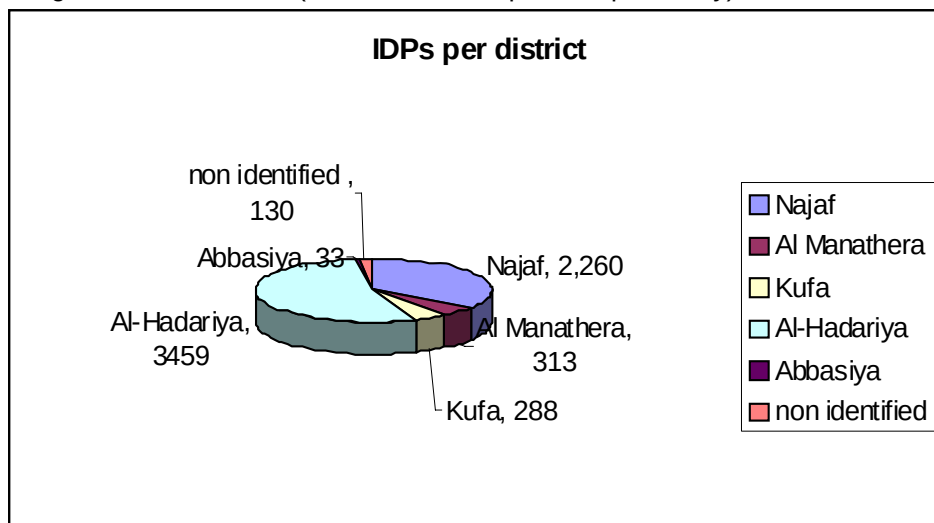
An estimated 11,562 displaced families have been monitored in Kerbala. Almost all are predominantly pre-conflict displaced. These groups include: Bedouins (nomads), Marsh Arabs, and *Bidoons* (Iraqis who were living in Kuwait before the Gulf War without any citizenship) who were expelled to Iraq during the Gulf war of 1990). The main reasons for displacement are reported to be; the draining of marshes in southern Iraq, the Iran/Iraq war, political pressures from former regime, and expulsion from land.

There does not appear to be on-going displacement from within the governorate rather at times, Kerbala has been receiving IDPs from the conflict in the surrounding governorates."

Najaf governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
380	4,555	0	139	1,409	6,483

All figures are in families (on the basis of 6 persons per family)



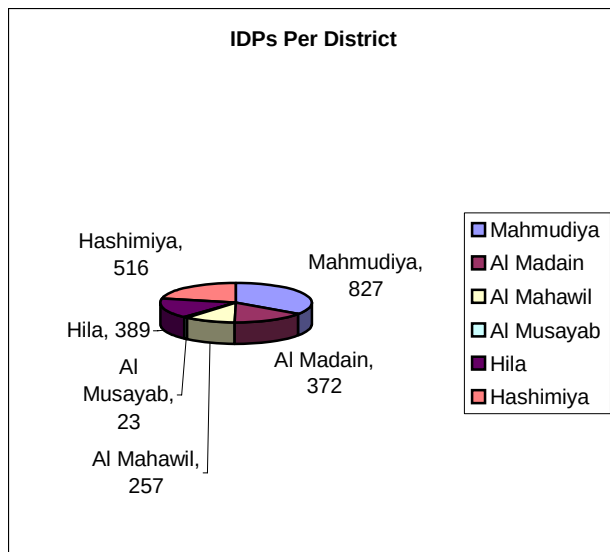
The number of monitored families in Najaf Governorate is 6,483 families, out of which 4,935 are IDP families. The majority are IDPs pre-conflict, including some Marsh Arabs from the south. [...] On the other hand, the post conflict IDPs are displaced as a result of skirmishes between the multinational forces and some of the local groups in Najaf experienced in August. An estimated 25,000 persons fled Najaf city in August 2004 to surrounding villages within Najaf, with few families fleeing to Babil, Kufa, Kerbala and Baghdad. However, once fights stopped all the people returned back to their homes.

Source: IOM Survey 2005

Babil governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
401	1,062	0	23	898	2,384

"All figures are in families (on the basis of 7 persons per family)



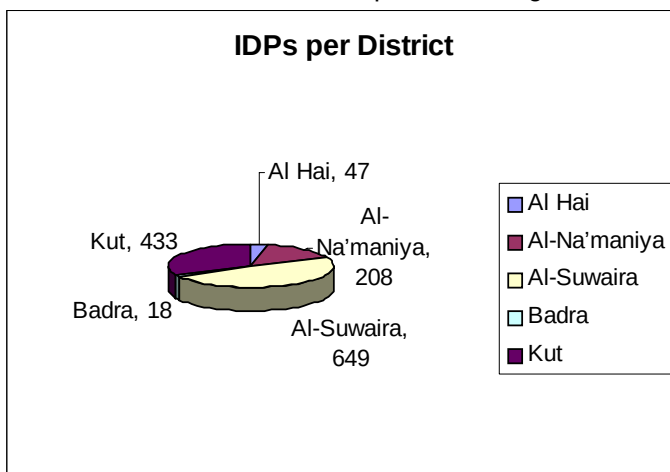
By August 2004 and during the fighting between the Sadr Militias and the multinational forces the IDP caseload in Babil increased from 2,616 identified families to 3,609. Currently the number of families assessed is 1,463 IDP families. The majority of the IDPs is originally from the marshlands of Missan, Basrah and Thi'Qar and is concentrated around Baghdad and Hillah towns; 30% are coming from Upper South Region, while the remaining 12% come from the North, Central and Baghdad Regions."

Wassit governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
591		765			1,356

"All figures are in families (on the basis of 6 persons per family)

To date more then 1,300 families have been estimated as displaced in the governorate of Wassit. These are families affected by the hostilities in April 2003 between the MNF and local militias throughout the southern part of the country. The majority of the caseload is located in the districts of Al-Suwaira and Kut, where 66% are accommodated in camp like settlements in the outskirts of the main urban centers, 17% in public building and few mixed with the host communities.



Also included are some secondary displaced Arab families who after the fall of the former regime and the reversal of the Arabisation policy, fled from the centre governorates of Kirkuk and Diyala.

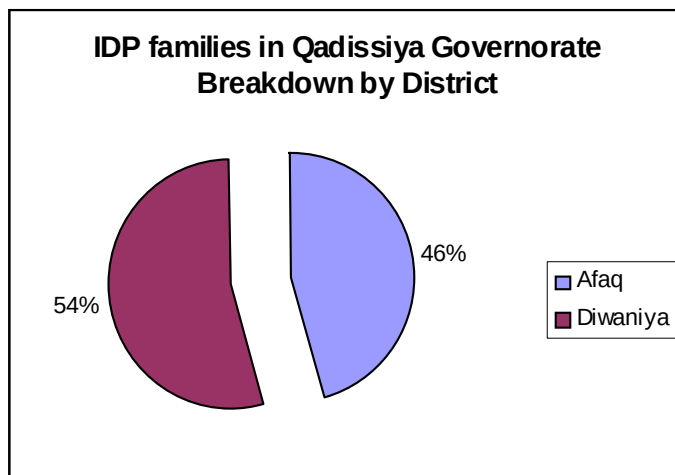
More than 50% of the families displaced in Wassit are IDPs who have tried to move back to their villages of origin over the past 18 months. However, the destruction in locations of origin and the lack of resources to rebuild houses and infrastructures have prevented these families from successfully returning to their villages of origin."

Qadissiyah governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
829	504	927		86	2,346

All figures are in families (on the basis of 6 persons per family)

In Qadissiya the displaced caseloads are a mixture of pre and post conflict caseloads. Around 70% of the caseload is made up of Arabs returning to the south from the centre region as a result of reverse Arabisation, and the consequent return of Kurdish and Turkmen families to Diyala and Kirkuk. The families are concentrated in Diwaniyah and Afaq districts. Marsh Arab families originally from Thi'Qar constitute the pre-conflict caseload and are currently residing with host communities in Diwaniyah.



[...]

Characteristic of the governorate is also the short-term periodical displacement of families due to the waves of armed violence, which have been directly or indirectly affecting Qadissiyah since 2003. Despite not resulting in chronic displacement and being contained within few kilometers from IDP homes, these movements exist and occur every time there are skirmishes between MNF and local militias; either in Qadissiyah or in neighbouring governorates like Najaf."

(Source: IOM/UNOPS Survey, April 2005)

Lower south: Basrah, Thi'Qar, Muthanna and Missan (April 2005)

- IDPs are found in all districts of Basrah Governorate
- Basrah City hosts the largest population of post conflict IDPs, while Al Qurna and Al Midaina hold the Marsh Arab concentrations
- Most movement in Basra governorate has been within the governorate

- Most displaced families in Thi'Qar are Marsh Arab of origin, while a few post conflict IDPs have come to Thi'Qar from Kirkuk as a result of the reverse arabisation process
- Thi'Qar: the majority of IDPs live in the districts of Nassriya, Suq Al-Shoyokh and Al-Chibayish
- Missan: pattern of movement is mostly intra-governorate displacement with a few post-conflict IDPs who arrived from Tameem as a result of reverse Arabisation
- The majority of the caseloads in Muthanna are in the north in Al-Rumaitha and Al-Samawa towns
- The majority of the IDPs in Muthanna are originally from Abu Hassan in Al-Rumaitha

Basrah governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
451	28,098	0	0	0	28,549

All figures are in families (on the basis of 6 persons per family).

An estimated 28,549 IDP families are accommodated in Basrah governorate. This figure encompasses three main caseloads: Marsh Arabs displaced as result of the drainage of the Marshes; families displaced in relation to the Iran/Iraq conflict; families displaced following the 2003 conflict (either returning from the centre areas due to the reversal of the Arabisation campaigns, or displaced because of the damages on their houses). IDPs are found in all the districts throughout Basrah governorate: Basrah City hosts the largest portion of the post conflict IDPs, while Al-Qurna and Al-Midaina hold the Marsh Arab concentrations. The trend emerging from the assessed IDPs indicate movement within governorate mainly.

Thi'Qar governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
220	2,245	2,648	240	31	5,348

All figures are in families (on the basis of 6 persons per family)

"A total of 5,000 IDP families have been assessed in Thi'Qar by end April 2005. The families currently displaced in Thi'Qar are for the most part Marsh Arabs forced to move away from their residences of origin in the Marshlands in the 1990s following the destruction of the Marshlands by the former regime.

Approximately 1000 Arab families have moved to Thi'Qar during the 1990s to escape the repercussions of Saddam's regime following the failed Shi'a uprising in 1991. A few post-conflict IDPs have come to Thi'Qar from Kirkuk as a result of the reversal of the Arabisation policy and the consequent return of the Kurdish families to Kirkuk.

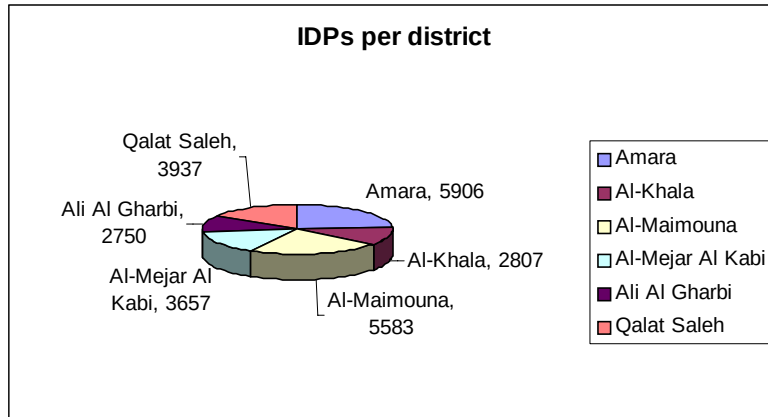
The majority of IDPs are now located in the districts of Nassriyah, Suq Al-Shoyokh and Al-Chibayish."

Missan Governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
413	15,621	7,100	1,840	1,061	26,039

All figures are in families (on the basis of 6 persons per family)

“The total assessed families to date in Missan governorate are **26,039** families, out of which 23,123 are IDP families. The majority of these represent pre-conflict IDPs, mostly Marsh Arabs. The displacement betrays long-term tenure and even some level of integration into host communities. The majority of the IDPs, however, are still living in collectives or public building. The vulnerability groups are living in urban centers and on the peripheries of towns where access to services is limited.



In Amara District 5,906 IDP families have been assessed. Out of them, 224 are IDP Returnee families, 81 are displaced as a result of 2003 conflict, whereas 4,342 have been living in displacement since the pre-conflict period in reason of political persecution, human rights violation perpetrated by the former regime, or as a result of the Iran-Iraq war. Priority humanitarian and protection concerns are housing, unemployment, sanitation, health.

In Al-Kahla district, 2,807 IDP families have been assessed so far; 164 of them are displaced in reason of 2003 conflict, 1,737 are IDP returnee families and 429 forced to flee their place of origin during Saddam's regime. [...]

In the district of Al-Maimouna, 5,583 IDPs have been assessed. The majority of them are are IDP returnee families (2,492) and families, who have been displaced since the pre-conflict period (3,016). [...]

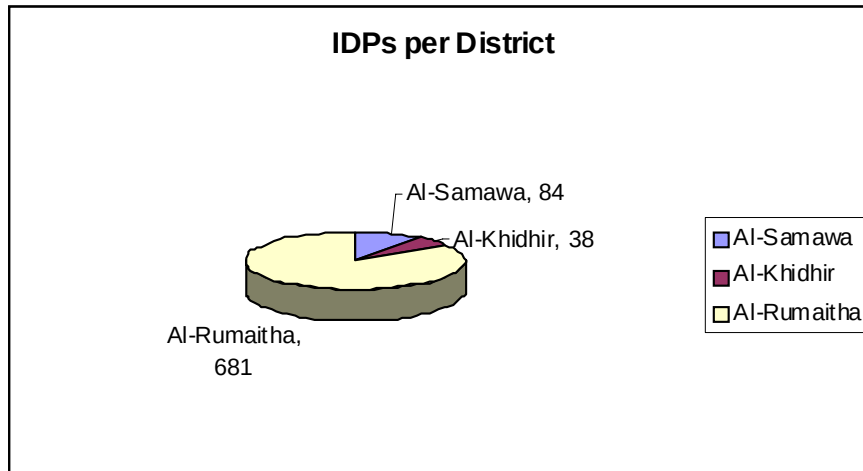
3,657 families are currently displaced in the district of Al-Mejar Al-Kabir. Among them, 3,549 have been displaced before 2003 conflict, 76 of them being instead displaced as a result of 2003 war between the former regime and the Coalition forces; 32 families have been assessed as IDP returnees. [...]

In Ali Al-Gharbi 1,206 pre –2003 coflict IDP families have been assessed, along with 1,397 IDP returnee families and 57 families forced to leave their place of origin as a result of 2003 conflict. In Qal'at Saleh district the monitoring exercises have allowed to identify 1,679 families displaced since the period of Saddam's Regime, 5 families displaced as a result of 2003 conflict and 1,218 IDP returnees.”

Muthanna governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
82	424	297			803

Note: All figures are in families (on the basis of 6 persons per family)



"A total of just over 800 IDP families are found in Muthanna governorate. The IDP profile of Muthanna is characterized by the presence of two main caseloads, both pre conflict: Arab-Shia families displaced for political reasons by the former Iraq regime, and Marsh Arabs who fled from their residences after the drainage of the marshes carried out by Saddam during the 1990s. As far as this latter group is concerned, the drainage operations, which resulted into an ecological catastrophe, deprived them of their houses and livelihood means.

The majority of the caseloads in Muthanna are found in the north in Al-Rumaitha and Al-Samawa towns. 90% of the IDPs are from Abu Hassan in Al-Rumaitha and 10% from other locations, mostly from Al-Hammar Marsh (Suq Al-Shoyokh and Al-Chibaish) in Thi'Qar and Al Mudeina in Basrah governorate."

(Source: IOM/UNOPS, April survey 2005)

Centre: Salah Al Din, Ninawa, Tameem and Diyala (April 2005)

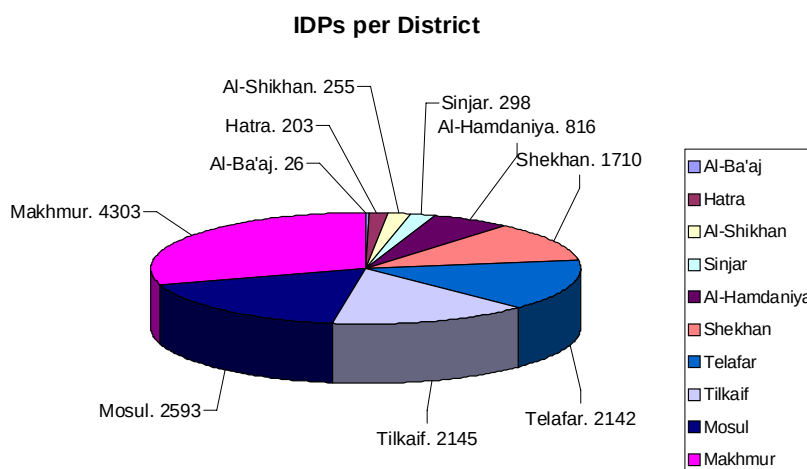
- In Ninewa governorate most of the IDPs are displaced from within the governorate, mainly concentrated in Mosul, Makhmur, Telafar and Tilkaif
- Ninewa: Two-thirds of the caseload is Kurdish IDP returnees who were displaced during Arabisation and Anfal campaigns to the northern governorates and who have started to steadily return to their locations of origin
- In Tameem governorate, the majority are IDP returnees, both Kurds and Turkmen with the highest concentration of IDPs in Kirkuk City and its surrounding areas
- The majority of IDPs in Salah Al Din suffered displacement after the 2003 conflict. Most of the families are from Tameem Governorate where due to forced recovery of property and ethnic discrimination some were displaced within Salah Al Din Governorate
- Salah Al Din: The displaced are found in all the districts though mainly concentrated in Tikrit, Al Daur, Baiji and Al Shirqat
- Since the fall of the former regime in 2003, Diyala Governorate has witnessed the highest number of post-conflict IDPs among all of Iraq's 18 Governorates
- Diyala: The majority of the IDPs are displaced within the governorate, while some families are coming from the neighbouring Sulaymaniyah, Tameem, Baghdad, Anbar and Salah Al-Din Governorates
- Most of the displaced in Diyala governorate are living in Ba'qubah, Khanaqin and Al Muqdadiya districts

Ninewa governorate

Post-2003	Pre-2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
3,038	1,700	5,038	39	4,676	14,491

"All figures are in families (on the basis of 6 persons per family)

The number of monitored families in Ninewa governorate is 14,491 families, out of which 9,776 are IDP families. 30% of the caseload are post-conflict secondary displaced Arabs who have been settled two decades ago in Ninewa as part of the Arabisation campaign, and moved from their homes near the 'Green Line' to avoid conflict with advancing Kurdish families and forces.



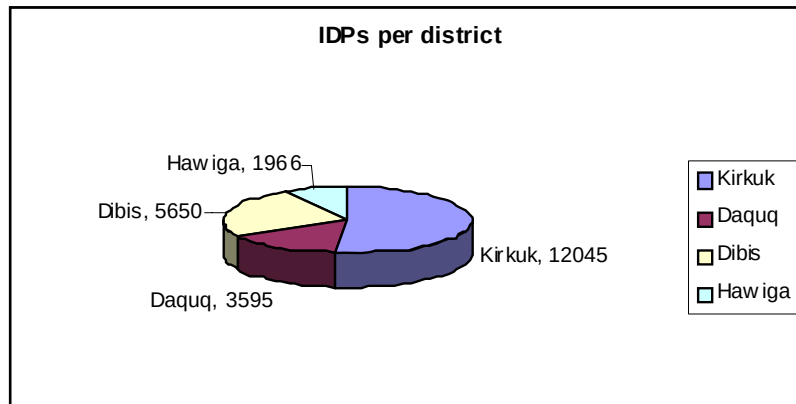
Half of the caseload is IDP Returnees who were originally displaced during the Arabisation and Anfal campaigns to the northern governorates, and who have started to steadily return to their locations of origin, and in turn cause the displacement of other groups. Most of the IDPs are displaced from within the governorate, of whom the majority appears to be concentrated in Mosul, Makhmur, Telafar and Tilkaif. 59% of the IDP families denounce Violation of the Human Rights as a reason of displacement, while 24 % argues armed conflict."

Tameem governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
1,206	247	20,399	2	1401	23,255

All figures are in families (on the basis of 6 persons per family)

The overall IDP figures estimate is 21,852 families. The displacement and return dynamics in the oil-rich Tameem Governorate are among the most complex in Iraq. This is mainly due to the varying groups present in the area and the long history of displacement of the Kurds and Turkish populations as part of the Arabisation and Anfal campaigns throughout the past thirty years, whereby these groups were replaced with Shi'ia Arabs from the south, and some Sunni populations from the centre.



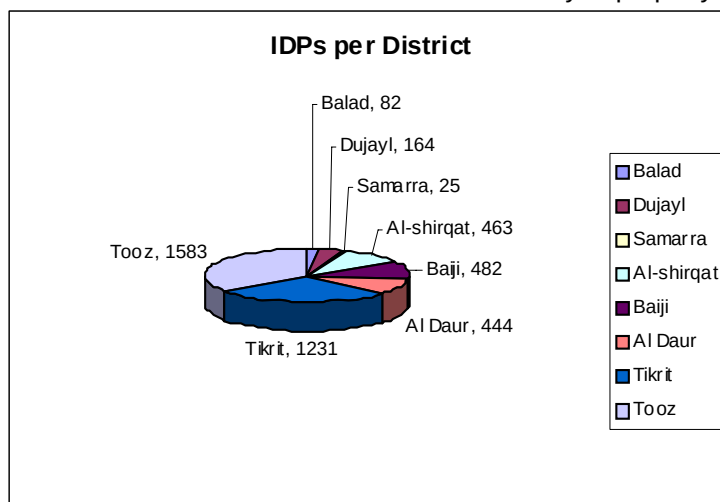
The majority are IDP returnees, both Kurds and Turkmen with the highest concentration of IDPs in Kirkuk City and its surrounding areas."

Salah Al Din governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
2,792	210	1,085	242	145	4,474

"All figures are in families (on the basis of 6 persons per family)

During the month of April, 4,087 families were recognized as IDPs in the governorate. The IDP population belongs to three ethnic groups: Arabs, Kurds and Turkmen out of which a majority 73% are Arabs. The majority of these families were displaced after the 2003 conflict from Tameem Governorate due to the forced recovery of property and ethnic discrimination.



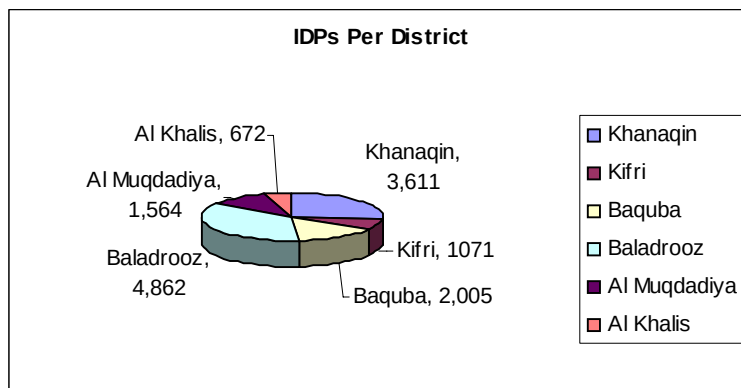
Some were displaced within Salah Al Din Governorate. The displaced Arabs are found in all the districts though mainly concentrated in Tikrit, Al Daur, Baiji and Al Shirqat. The other main caseload in the governorate is the Kurdish IDP Returnees who constitute 26% of the displaced population and are all located in Tooz district. Approximately 4% of the total IDP population is Turkmen, mainly returnee refugees from Iran and Turkey. Approximately, 56% of these families live with the host community while 40% live in public buildings and 4% in camps/settlements."

Diyala

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others at Risk	Total
6,916	4,029	2,387	208	245	13,785

All figures are in families (on the basis of 6 persons per family)

“Since the fall of the former regime in 2003, Diyala Governorate has witnessed the highest number of post-conflict IDPs among all of Iraq’s Governorates. Approximately 13,332 IDP families had been identified in Diyala since the end of the 2003 conflict. Out of which 6,916 are secondarily displaced Arab families. The majority of the IDPs are displaced within the governorate, while some families are coming from the neighbouring Sulaymaniyah, Tameem, Baghdad, Anbar and Salah Al-Din Governorates. Old caseloads from the Iran/Iraq war are also reported in the governorate.



Ba'qubah, Khanaqin and Al Muqdadia are the districts accommodating the highest numbers of secondarily displaced. Ba'adrooz District (Mandali) hosts the highest number of Iran/Iraq war IDPs and Khanaqin the highest number of IDP/returnees caseload.”

(Source: IOM/UNOPS, Survey, April 2005)

Baghdad and surroundings (April 2005)

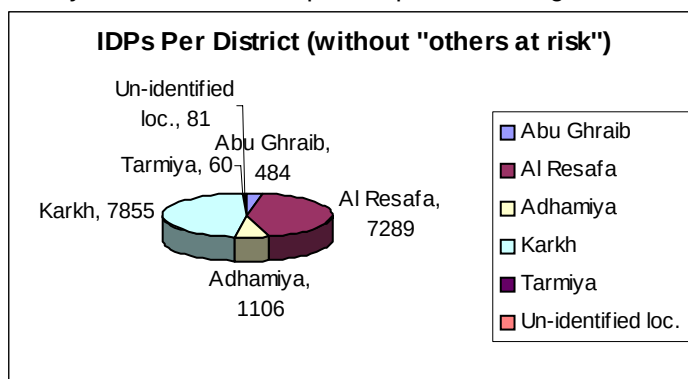
- Since September 2004, the number of displaced in Baghdad has increased, in particular as a result of population movements in and out of Anbar following the attacks on Fallujah district by the multinational forces in April 2004 continued as fighting continued albeit sporadic
- People fleeing Fallujah in October 2004 also fled to the capital city
- Military activities in southern Baghdad also resulted in a new wave of displacement
- Anbar: In April 2004, attacks on Fallujah and Ramadi districts by the multinational forces instigated major population movements in and out of Anbar creating a trend of short term displacements during and following the fighting where families returned back to their homes right after the situation stabilised
- A second offensive launched by the multinational forces on Fallujah in November 2004 led to the displacement of over 250,000 persons (almost the whole population of the town)
- Most of the displaced moved to the outskirts of the city and Baghdad
- An estimated 38,000 families are expected to have returned to Fallujah, though population movements in and out of the city continue due to lack of basic services

Baghdad governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
1,882	2,204	325	305	12,208	16,924

"All figures are in families (on the basis of 6 persons per family)

Until September 2004 IDPs in Baghdad were a small number in the capital city. Much of the population movement in Baghdad focused around urban and rural poor who either were looking for employment opportunities, or have used the vacuum created by the lack of law and order following the conflict in 2003, to camp in public buildings and receive assistance. The genuinely displaced were few and mainly persons whose houses were damaged/destroyed during the 2003 conflict or who fled persecution in the south pre-2003 conflict. The IDPs are scattered throughout the city, mixed with urban poor in public buildings, most under threat of eviction.



A large change in these dynamics occurred in October 2004 when the military offensive on Fallujah (see Anbar profile) led to the displacement of over 12,000 families into Baghdad over the course of two weeks. Reconstruction efforts and attempts to revive basic services, has encouraged the return of the majority of the displaced families. The current figure is 191 families dispersed mainly in Tarmiya, Karkh and Adhamiya. The families are living with hosting community and in public buildings with no near future intentions of return.

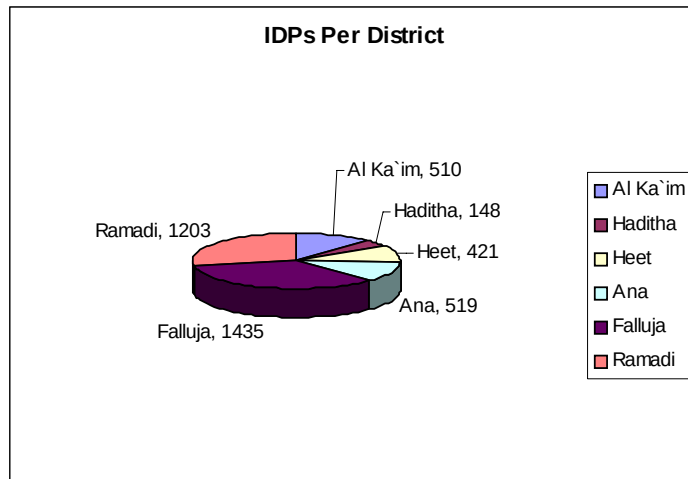
The recent military activities in Madain district in southern Baghdad in April 2005 also brought on a new wave of displaced families to Baghdad. Families fleeing the skirmishes found shelter in the southern parts of Baghdad, in Za'afaraniya, Diyala Bridge and Al-Nasser quarter. Despite the fact that the major wave of displacement was towards Wassit governorate, in Suwaira and Hafraiya districts, around 40 families were identified to be displaced with relatives and in rented houses in Baghdad."

Anbar governorate

Post 2003	Pre 2003	IDP Returnee	Refugee Returnee	Others At Risk	Total
4,037	199	38,000	0	0	42,236

"All figures are in families (on the basis of 6 persons per family)

Until early 2004, Anbar governorate hosted just over 750 IDP families. This caseload included Kurds displaced from the northern parts of Iraq during the late 1970s and post-conflict Arab IDPs who have been displaced as a result of reverse Arabisation in the centre governorates of Diyala and Tameem. In April 2004, attacks on Fallujah and Ramadi districts by the multinational forces instigated major population movements in and out of Anbar creating a trend of short term displacements during and following the fighting where families returned back to their homes right after the security situation stabilised.



A second offensive launched by the multinational forces on Fallujah in November 2004 in search of the resistance pockets believed housed in the city, led to the displacement of over 250,000 persons (almost the whole population of the town). Most moved to the outskirts of the city and Baghdad, in 15 main locations (in Anbar mainly Amiriyah, Habaniyah, Neimiyah, Saglawiyah and, Karma; in Baghdad mainly Abu Ghraib, Taji and Adamiya). Though the destruction scale in the city is reported large, by end of January, an estimated 38,000 families returned to Fallujah, with an estimated 3,000 families still displaced on the outskirts and in Baghdad. As the basic services are reported inadequate inside Fallujah, and as such population movements in and out of the city continue to date.”

(Source: IOM/UNOPS Survey, April 2005)

North: Sulaymaniyah, Dahuk, and Erbil (April 2005)

- Most of the displaced families in Sulaymaniyah governorate are the victims of Collectivization, Arabization and Anfal operations that had occurred in the 1970s and 1980s
- They are concentrated mainly in Sulaymaniyah centre, followed by Rania and Chamchamal
- Dahuk: Majority of the IDPs are found in all the districts of Dahuk, concentrated mainly in Semel, Amedi and Shekhan (Dahuk part of Shekhan)
- Dahuk: Majority of IDPs are in Amedi District center, others mainly in Zakho, Dahuk and Sumel Districts
- Dahuk: The majority of IDPs are Kurds most originally from Dahuk Governorate
- Erbil: IDPs are concentrated mainly in Erbil center, followed by Soran and shaqlawa
- Only 17% of IDPs originate from within Erbil Governorate while the rest 83% originate mainly from Sulaymaniyah 61.7%

Sulaymaniyah governorate

“After the 1991 gulf-war and the subsequent uprising in the North, thousands of IDPs came from Kirkuk and the Kurdish areas of Diyala governorate to Sulaymaniyah. Many of these IDPs occupied public buildings and military barracks. In 1996, due to the internal KDP-PUK fighting, a large number of families were displaced from Erbil toward Sulaymaniyah. In 2002 and 2003, the

conflict related to Islamic extremist groups such as Ansar Ul-Islam caused another wave of displacement. Up to date, 31 Public Buildings are recognized.

With the fall of the former Government in April 2003, people who were displaced started to return spontaneously to their places of origin in the Governorates of Tameem, Diyala and Salah Al Din. While many of the returns were voluntary, some had been influenced by the assistances of KRG like allocating a plot of land in Kirkuk and other non food items like tents, blankets etc.

At the same time other IDP families who are originated within Sulaymaniyah and who were living in rented houses or in collective towns started moving to public buildings evacuated by IDPs moved to Kirkuk to get better access to public services and job opportunities.

The above table shows that 39% (547 out of 1388 families) were displaced after 1991 due to armed conflicts. Sulaymaniyah local authorities assisted IDPs in particular those from Erbil because they were displaced as being loyal to PUK. The assistance included renting for public building, free supply of water & electricity.

Category	Post 1991 IDPs	Pre 1991 IDPs	IDP Returnee	Others At Risk	Others	Total
Number of Families	547	210	0	381	250	1388

[...]

IDPs are concentrated mainly in Sulaymaniyah center (91.1%) followed by Rania (5.7%) and Chamchamal (3.2%)."

Place of origin

The table below shows that only 37.4% of IDPs are originated from within Sulaymaniyah Governorate while the rest 63% are originated from other Governorates with the maximum from Kirkuk 44.5% who were displaced between 1991 to 2003."

Place of Origin / Governorate	Family No.	%.
Dahuk	5	0.4%
Diyala	63	4.5%
Not answered	3	0.2%
Erbil	180	13.0%
Kirkuk	618	44.5%
Sulaymaniyah	519	37.4%
Total	1388	100%

Dahuk governorate

"After the 1991 gulf-war and the subsequent uprising in the North, Dahuk Governorate received a big number of returned refugees who had fled to Turkey between 1988-1991 also a big number of IDPs from Ninawa Governorate moved towards Dahuk fleeing from GOI persecution in the aftermath of the uprising. Most of these returned refugees and IDPs occupied public buildings because their villages had been destroyed and they did not own houses. In 1998 and thereafter, influx of returnees from Iran became the main issue of humanitarian concern. Many families returned and settled mainly in Amedi and Zakho districts. Up to date, 298 Public Buildings are recognized. With the fall of the former Government in April 2003, people who were displaced

started to return spontaneously to their places of origin in Ninawa Governorate. Many of the returns were voluntary.

[...]

Category	Post 1991 IDPs	Pre 1991 IDPs	IDPs Returnee	Others At Risk	Others	Total
Number of Families	650	1308	2	84	1076	3120

[...]

The majority of IDPs are in Amedi District center (44.8%). Others are found mainly in Zakho, Dahuk and Sumel Districts [...]. The majority of IDPs are Kurds. 89.8% are originated within Dahuk Governorate while 9.4%, 0.3% & 0.1% are from Ninawa, , Erbil, and Tameem Governorates respectively.

[...]

Place of origin

The table below shows that 89.8% of IDPs are originated from within Dahuk Governorate while the rest 10.2% are originated from other Governorates with the maximum from Ninawa 9.4%.

Place of Origin / Governorate	Family No.	%.
Dahuk	2802	89.8%
Erbil	9	0.3%
Hasaka (Syrian Kurds fled to Iraq in 2004)	13	0.4%
Ninawa	292	9.4%
Sharnakh(Turkish Kurds fled to Iraq in 1994)	1	0.0%
Tameem	3	0.1%
Total	3120	100%

Erbil governorate

"After the 1991 gulf-war and the subsequent uprising in the North, Erbil received a big number of IDPs from Kirkuk and Ninawa Governorates. In 1996, due to the internal KDP-PUK fighting, thousands of families were displaced from Sulaymaniyah toward Erbil. Most of these IDPs occupied public buildings. Up to date, 115 Public Buildings are recognized. The table below shows that 80% (1217 out of 1519 families) were displaced after 1991 as result of armed conflicts. Erbil local authorities assisted IDPs from Sulaymaniyah because they were displaced as being loyal to KDP. The assistance included renting public building, free supply of water and electricity from 1998 and thereafter. With the fall of the former Iraqi regime in April 2003, people who were displaced started to return spontaneously to their places of origin in the Governorates of Tameem and Ninawa. While many of the returns were voluntary, some had been influenced by the assistances of KRG like allocating a plot of land in Kirkuk and other non food items like tents, blankets, etc.

[...]

Category	Post 1991 IDPs	Pre 1991 IDPs	IDP Returnee	Others	Others At Risk	Total
Number of Families	1217	193	0	103	6	1519

[...]

IDPs are concentrated mainly in Erbil center (76.1%) followed by Soran (11.6%) and shaqlawa (6.4%)

[...]

Place of origin

The table below shows that only 17% of IDPs are originated from within Erbil Governorate while the rest 83% are originated from other Governorates with the maximum from Sulaymaniyah 61.7% who were displaced in 1996 for being loyal to PDK during the internal fighting between PUK & PDK."

Place of Origin / Governorate	Family No.	%.
Baghdad	1	0.1%
Basrah	6	0.4%
Dahuk	153	10.1%
Erbil	258	17.0%
Kirkuk	104	6.8%
Mosul	8	0.5%
Tameem	52	3.4%
Sulaymaniyah	937	61.7%
Grand Total	1519	100%

(Source: UNOPS Survey, April 2005)

Most internally displaced people are believed to be located in Sulaymaniyah, Northern Iraq (2004)

- Sulaymaniyah has the largest concentration of IDP families
- The North hosts most IDPs with 145,356 families, the South has 53,402 families and the centre 29,959

Note: UNHCR and other UN agencies are relying on pre-war estimates. Exact figures of IDPs in Iraq are not known due to the ongoing poor security situation and ongoing displacements which makes it difficult to make assessments.

"The following table provides an overview of the current scale of displacement in Iraq, but the accuracy of these figures is not certain given the difficulties of reaching a credible global figure:

Location	No. of IDP Families
North	
Erbil	29,536
Dohuk	35,483
Sulaymaniyah	80,337
Sub-total	145,356
Centre	
Ninawa	1,213
Al Tameem	12,000
Salah Ad Din	4,595
Al Anbar	610
Diyala	8,269
Baghdad	1,272
Sub-total	27,956
South	
Karbala	14,364

Najaf	600
Babil	1,298
Qadisiyah	1,217
Wasit	1,477
Al Muthana	823
Dhi Qar	374
Maysan	7,142
Basrah	22,773
Sub-total	50,068
Total	223,380 families

(UNHCR, August and October 2004)

Southern Iraq: estimated numbers of displaced people (1994-2002)

- Because of lack of access to the government-controlled part of Iraq, estimates of the number of internally displaced in the South varied from 40,000 to 1 million between 1994 and 1997
- In 1999, USCR adopted the conservative estimate of 100,000 internally displaced persons and confirmed this estimate for 2000 and 2001
- According to Brookings Institution report, there are at least currently 300,000 IDPs in government-controlled Iraq

Southern Iraq

End of year	Estimated number of IDPs in Southern Iraq	Source
2001	100,000	USCR 2002
2000	100,000	USCR 2001, p.180
1999	100,000	USCR 2000, p.188
1998	No figure for the South	USCR 1999, p.153
1997	40,000-1,000,000	USCR 1998, p.145
1996	40,000-1,000,000	USCR 1997, p.152
1995	40,000-1,000,000	USCR 1996, p.113
1994	40,000-1,000,000	USCR 1995, p.116

"The number of persons displaced in the south, including to, from, and within the marshlands, is nearly impossible to determine with any degree of certainty because the Iraqi regime denies the UN and other relief agencies access to the area. Estimates of the number of displaced and at risk Maaden (i.e. Marsh Arabs) range from 40,000 to 1,000,000." (USCR 1995, p.116)

USCR quoted the same estimate (40,000 to 1,000,000) for 1995, 1996 and 1997 (USCR 1996, p.113, USCR 1997, p.152, USCR 1998, p.145). It renounced to provide any estimate for 1998 because of lack of access for independent sources to the area. (USCR 1999, p.153). It stated for 1999 and 2000 that "[a]lthough there are no reliable sources on the number of displaced people in southern Iraq, the U.S. Committee for Refugees (USCR) conservatively estimates that about 100,000 are internally displaced from and within the southern region." (USCR 2000, p.188 & 2000 p.180)

According to report by Brookings Institution

"The best estimate on numbers comes from a paper given at the AMAR conference in May 2001. At the start of the 1990s, prior to the initiation of the large scale marsh-draining program, an estimated original population of 400,000 Marsh Arabs had dwindled to about 250,000 people still living in the marshes and its vicinity. The reason for this reduction in numbers was essentially economic migration. Of this remaining number, 40,000 made it into Iran as refugees, and another estimated 20-40,000 remained in their homes. This leaves 170,000 to 190,000 people who are either dead or displaced. Although there have been anecdotal reports of massacres by Iraqi forces, no reliable figures exist.

Numbers for other Shi'i Arabs expelled either because of political activity or for living in the wrong place are equally hard to determine. While there have been anecdotal accounts of entire villages being destroyed and hundreds of people expelled, the only firm numbers are the 4,000 families (25,000 people) that the government itself has admitted to expelling from a Baghdad neighborhood in 1998.

The only figures we have on the al-Qilaa or Jash Kurds come from the Iraqi Red Crescent, which puts the figure at 8,000 families. Using the UN-Habitat average of 5.7 persons per family, this population is over 45,000. Finally, there are reports of some non-Arabs who, forced out of Kirkuk, have moved south instead of north and into the Kurdish areas. This may be because they are joining family members in the South, or because they are at odds with authorities in the North, or, perhaps because of some governmental measures not yet known or understood, or simply because of the vagaries of violence and expulsion.

All told, if one systematically takes the low estimates and the confirmed numbers – 80,000 from the Iraq/Iran war now living in Basra, 170,000 for the Marsh Arabs in the 1990s, 25,000 for expellees from Baghdad, 45,000 of the al-Qilaa Kurds, and an unknown number from the Arabization campaign – it is hard to see how there could be any fewer than 300,000 IDPs in South/Central Iraq." (Fawcett & Tanner, Oct 02, p33)

Northern Iraq: estimated numbers of displaced people (1994-2002)

- Although accurate figures are not available, estimates fluctuated between 600,000 for 1994 to 800,000 for 1999
- USCR estimates that the number of persons still displaced in northern Iraq is about 600,000
- Current estimates include short and long-term displacement within northern Iraq, but also about 100,000 persons expelled from the government-controlled area to northern Iraq

Northern Iraq (including people displaced from Kirkuk)

End of year	Estimated number of IDPs in Northern Iraq	Source
2001	600,000	USCR 2002
2000	600,000	USCR 2001, p.180
1999	800,000	USCR 2000, p.185
1998	800,000	USCR 1999, p.150
1997	At least 500,000	USCR 1998, p.144
1996	At least 666,000	USCR 1997, p.152
1995	No figure for the North	USCR 1996, p.112
1994	600,000	USCR 1995, p.115

1988-1995

"In the 1980's, the Iraqi government launched a punitive campaign known as Anfal, which destroyed up to 4,000 Kurdish villages. In 1988, tens of thousands fled into Iran and Turkey.

Following a failed Kurdish uprising in early 1991, some 1.5 million sought temporary refuge in Iran and along the Turkish border. By the end of 1991, most Kurdish refugees had returned, but some 700,000 remained displaced within northern Iraq. Many of these had been displaced two or more times, as fighting continued between Kurdish and Iraqi government forces. [...]

During 1992 and 1993, more Kurds were displaced by skirmishing and shelling along the confrontation line dividing the Kurdish zone from government-controlled Iraq, and government forces expelled many Kurds into the Kurdish zones. [...]

During 1994, about 100,000 previously displaced persons were able to return to their home villages, many of which had been destroyed during the Anfal, but were being rebuilt with UN and NGO assistance. However, an estimated 600,000 persons remained displaced within northern Iraq. Of those, about 400,000 were not able to return to their places of origin in government-controlled Iraq or along border areas due to fears for their safety. The remainder were displaced from one area of northern Iraq to another. For example, about 100,000 persons in Aqra, Shekan, and surrounding areas – dependent on the government-controlled energy grid – had to abandon their homes for lack of electricity, water, and sanitation. Others fled areas subjected to shelling either from Iraqi government forces or from Turkey." (USCR 1995, pp.115-116)

1996

"It was almost impossible to calculate the number of internally displaced people in northern Iraq. Many people had been displaced multiple times, many also for brief interludes during sporadic fighting. Persons also fled or continued to be displaced as result of various conflicts and threats, including displacement in some cases from government-controlled Iraq into the north as well as displacement within the north. During the year, displaced persons fled incursions by Turkish and Iranian military forces. [...] Although the incursion of government forces into Erbil caused additional displacement, the most significant cause of internal displacement in 1996 was fighting between the KDP and PUK, as well as fighting between the KDP and the PKK. WFP was targeting assistance to 666,000 persons in the north, although this number was based on an assessment of need, not displacement per se." (USCR 1997, p.152)

"Kurdish nationalist aspirations have experienced rivalry between the main parties, reaching a peak in September 1996 when the KDP briefly allied with the Government of Iraq regime to oust the PUK from its main bases. The crisis of September 1996 caused the largest population displacement since 1991 (approximately 200,000 persons), as the population feared the Iraqi army and its security services as well as the rivalry between the Kurdish factions. In the North-East, when the PUK announced an imminent Iraqi attack on Suleymaniya, it contributed to an exodus of 40,000 people towards the Iranian border, while another 40,000 were displaced in Suleymaniya itself." (UNHCR June 2000, p.3)

"UN figures for those displaced by the fighting in 1996 and the first half of 1997 were: Dohuk governorate 13,281; Erbil governorate 67,283; and Suleimaniyeh governorate 38,453 (total 119,017)." (Dammers 1998, p.182)

1997

"Factional fighting among the Kurds in the north, particularly in the last three months of the year, and Turkish incursions into northern Iraq in May and September [1997], internally displaced, at least temporarily, 30,000 to 100,000 people. Another 500,000 long-term internally displaced people remained in the three northern governorates of Dohuk, Erbil and Suleymaniya. [...]

The UN secretary general reported in 1997 that about half of the 500,000 people displaced in northern Iraq left their homes before 1991, that 150,000 became displaced between 1991 and 1995, and that 100,000 were displaced in 1996. [...]

In 1997, Baghdad intensified its systematic efforts to 'Arabize' the predominantly Kurdish cities of Kirkuk, Khanaqin, and Douz at the edge of government-controlled Iraq near the Kurdish-controlled zone. To solidify control of this strategically and economically vital oil-rich region, the government expelled Kurds, Assyrians, and Turkomans – at times, entire communities – from these cities and surrounding areas. [...] Although it was difficult to find a credible estimate of the number of internal expulsions in 1997, reports indicated that large numbers were involved." (USCR 1997, pp.143-144)

"A WFP survey conducted in August 1997 reported 1291 people still displaced from the border regions of northern Iraq affected by the Turkish incursions. In November, a UN security report revised this to '600 families'." (Dammers 1998, p.183)

1998-1999

In 1998 "The Special Rapporteur [of the Commission on Human Rights on the Situation of Human Rights in Iraq] [...] cited the more than 150,000 persons of Kurdish origin who had been evicted from the oil-rich regions, where the policy of 'Arabization' continued. That number did not include the problem of more than 200,000 internally persons in the rest of the country, mainly in the southern regions of Iraq." (UN GA 4 November 1998)

"[T]he following figures were provided in respect of the number of families forced to leave the area: 13,367 families from 1991 to 1993; 112 in 1994; 395 in 1995; 282 in 1996; 710 in 1997; 394 in 1998; 449 in 1999; and 155 in 2000 (as of 4 June). The total number of individuals who were forced to leave Kirkuk since 1991 reportedly amounts to 94,026. (UN GA 14 August 2000)

USCR mentioned the number of 800,000 internally displaced persons in the north for 1998 and 1999, but 600,000 in 2000 and 2001. (USCR 1999, p.150 & USCR 2000, p.185 & USCR 2001 p.180; USCR 2002)

PATTERNS OF DISPLACEMENT

General

The return of Kurds to their former homes has in turn displaced the Arabs living in them (2003)

- Returning Kurds reportedly force Arab settlers out of homes
- In northern Iraq most returnees are Kurds displaced by Saddam Hussein
- About 100,000 displaced Arabs are living in poor conditions in public buildings or in military camps

"Iraq's 800,000 or more displaced persons are in a variety of situations. In northern Iraq most are Kurds displaced by Saddam Hussein, but many of them have returned to their homes. However, often their homes have been destroyed or are occupied by other persons, and thus the returnees often live in tents next to their destroyed houses. Disputes about property ownership are a major factor in preventing many displaced from returning to their former homes. UNHCR estimates that 70,000 to 100,000 Kurds are vulnerable." (Refugee International, 21 November 2003)

Iraq: Diffusing an Ethnic Time Bomb

"The collapse of Saddam Hussein's regime has left coalition forces scrambling to restore order in a nation suddenly bereft of the instruments of government. In central and southern Iraq, this has meant detaining looters, securing safe passage for aid trucks, and working to repair damaged utilities. In northern Iraq, where ethnic tensions are already erupting in violence, the task will be more daunting still and the stakes extraordinarily high.

Northern Iraq is home to a mixed population of Kurds, Turkmen, Assyrians and Arabs. During Saddam's rule, it was also home to a program of ethnic cleansing referred to as "Arabization," under which an estimated 600,000-800,000 Kurds were forced from their homes in Kirkuk, Mosul and the surrounding countryside. As they fled, Arab Iraqis were offered incentives to settle in their place. Many Kurds have been waiting years to return to their homes. With the fall of Saddam, the opportunity has finally arrived.

With no organized process in place to accept returnees or settle property disputes, however, the two populations have been left to handle matters themselves. Since the fall of Mosul, at least 40 civilians have died as a result of ethnic violence, and more than 2,000 Arab Iraqis have fled their homes, either due to force or fear. With no police or peacekeeping force in place and more than 70,000 heavily armed Kurdish peshmerga roaming the area, the potential for these pockets of violence to spread is high.

Complicating the situation is a substantial population of Turkmen, whom the Turks consider brothers and have sworn to protect. Like the Kurds, many Turkmen were also expelled from northern Iraq during Saddam's reign. With several thousand troops inside the country and another 40,000 amassed on the border, the Turkish government has made it clear that perceived abuses of the Turkmen population will not be tolerated. Though reports have not been substantiated, the Turkish press is already claiming that Kurdish looters are destroying land records in an effort to facilitate the expulsion of Turkmen from the area.

To date, the United States has acknowledged the sensitivity of the area, but has outlined no clear strategy for easing tensions in volatile northern Iraq. There are few more urgent tasks than for the American forces to secure this area and establish an orderly and controlling process to handle the return of the displaced. To this end, the United States should announce that a commission with representative ethnic and religious makeup will be promptly established to enable Kurds, Turkmen and others to return and regain land and property lost as a result of forced displacement. As part of this effort, a mechanism for adjudication of property disputes will have to be created, as well as a task force set up to coordinate returns while also assuring fairness to the more than 200,000 Arabs brought in under Saddam Hussein's Arabization policy.

The most qualified organization to assist in these tasks is the United Nations. It has long experience in setting up claims commissions and courts to deal with property disputes and organizing returns of displaced persons and refugees. The UN has taken on this role in Bosnia and should be called upon as a matter of urgency to address the situation in Iraq.

The United States does not have weeks or months to deal with this problem. Efforts must be made now, before passion, fear, and competing claims for the area's substantial oil wealth plunge the region into violence that would undermine the stability and unity of Iraq and call into question the coalition's victory." (Refugees International, 17 April 2003)

"Meanwhile, "Kurdistani Nuwe" reported on 23 April that PUK head Talabani has held a series of meetings with the heads and shaykhs of Arab tribes on 21 April. Shaykh Muhammad Shaykhali, and leaders from Arab tribes including, the Azza, Albumu Faraj, and the Rabi, Bani Tamimi, Janabiyin, Dilemi, Ubed, Jibur, and Al-Azzawi tribes met with Talabani. According to the Kurdish daily, the participants thanked the PUK and the KPF (Kurdistan Peshmerga Force) for their role in protecting the liberated Iraqi citizens and towns. Talabani also announced that Iraq will set up a commission to resolve disputes between Kurds and Arabs to resolve issues related to the forced displacement of thousands of citizens under the Hussein regime's "Arabization" policy. The decision for a commission came following separate meetings on 22 April between U.S. administrator Jay Garner, Talabani, and Barzani. "There will be a committee later representing all sides under the guidance of the United States to arrange how people must go back home in a regular way, not in chaos," Reuters quoted Talabani as telling reporters in Sulaymaniyah on 23 April. Talabani added that the committee had first been proposed by U.S. envoy Zalmay Khalilzad in Ankara in March." (RFE/RL, 26 April 2003)

Most Marsh Arabs have been displaced or had to give up their traditional way of living (2003)

- To escape government repression aimed at Shi'a uprising in 1991, many insurgents fled to the marsh areas in central and southern Iraq
- Government drained the marshes to regain control of the region and most of an estimated 200,000 'Marsh Arabs' (1993 estimate) have been displaced, or have had to abandon their traditional livelihoods
- Iraqi government adopted a compulsory resettlement program for the Marsh Arabs in 1992
- The Special Rapporteur of the UN Commission on Human Rights Iraq has received lists of allegedly destroyed villages and houses, located in the marsh area and in Baghdad
- The government has also reportedly forced the Shi'a population from the marshlands to relocate in the Kirkuk area

In southern Iraq, the displaced are primarily Marsh Arabs, forced off their lands by politically motivated reclamation projects in the 1990s. In addition to tens of thousands of Marsh Arabs who

are refugees in Iran, tens of thousands more are displaced in Iraq. USAID has begun a project to restore at least part of the 20,000 square kilometers the marshes previously covered." (Refugee International, 21 November 2003)

"In 1993, Human Rights Watch estimated the rural population of the marshlands to be around 200,000, which took into account the huge amount of army deserters and political opponents seeking shelter in the region after 1991. Today, there may be as few as 20,000 of the original inhabitants remaining, the rest having fled or migrated to Iran and elsewhere, while an estimated minimum of 100,000 have become internally displaced in Iraq." (HRW Jan 03, p6)

"In April 1992 (as part of the plan to "regroup the marsh villages on dry land" [...]), the Iraqi National Assembly approved a new housing program for the Ma'dan. According to then speaker of the Iraqi parliament, Sa'di Mahdi Saleh, the government's intention was to relocate some 3,000-4,000 inhabitants of the marshes to houses constructed along the highway between Basra and al-Qurna, to "provide them with electricity, clean water, schools and medical care," and to "make them good citizens." Saleh told the media that the plan approved by parliament "does not specify [whether the families to be relocated] will be given a choice to move or stay ... whether we say it is compulsory or optional is of no significance to them". The initiative was widely understood as a means through which the government could force political and military fugitives out of hiding, enable its program of drainage of the marshes to proceed without hindrance, and subjugate the local population once and for all.

Moreover, the forced relocation served as a means of depriving the marsh villagers of all sources of economic livelihood—mirroring precisely what had happened to the Kurds when they were forcibly relocated to resettlement camps in the 1980s as a prelude to the Anfal campaign.

The parallel between the Kurds and the Ma'dan was not lost on the speaker of the parliament. Referring to the Kurds, Saleh told the Reuters news agency: 'At the time we evacuated those people and put them in complexes and provided them with amenities, [but] for political reasons there was a row against us in the West. Concerning the marsh people the West should help us to move their homes, build schools for them, improve their health conditions, instead of criticizing. America wiped the Red Indians off the face of the earth and nobody raised an eyebrow.'

The forced resettlement program in the marshes was accompanied by a counterinsurgency campaign that included indiscriminate attacks by artillery, helicopter gunships and fixed-wing aircraft on villages. The attacks were reportedly accompanied by the arrest and execution of civilians, including tribal leaders, the destruction of property and livestock, and the razing of entire villages. Those targeted included whole families that had refused to vacate their homes. The waves of arrests were soon followed by reports of mass summary executions. Among the reports received by Human Rights Watch at the time was one incident involving the execution of some 2,500 villagers in August 1992. The victims, among them women and children, were rounded up in the marshes of al-Chibayish (west of al-Qurna) together with captured fighters of the opposition SCIRI. According to testimony obtained by Human Rights Watch, including that of a survivor, they were taken to an army camp in northern Iraq, where they were executed over a period of about two weeks. The UN special rapporteur on Iraq detailed similar reports he had received." (HRW Jan 03)

"As to where the Marsh Arabs went, little is known. The British NGO AMAR says some 40,000 people made it into refugee camps in Iran. Some tens of thousands may still be trying to scratch a living out of whatever remains of the marshes. Some were certainly killed by the Iraqi security forces during the 'drainage' operations. But upwards of 100,000 (see numbers section below)

must be displaced. Neighboring urban centers such as an-Nasiriyah and al-Amara are thought to hold some people. Larger centers like Baghdad and Basra may provide havens as family members had been migrating there for decades. Finally, it is thought that some Marsh Arabs may be part of the people being sent north to inhabit former Kurd and Turkmen properties, under the Arabization campaign, although it is unclear how the necessary selection process unfolds." (Fawcett & Tanner, Oct 02, p31)

"The practice of the security services to force large numbers of Shi'a inhabitants of the southern marshes to relocate to major southern cities and to areas along the Iranian border probably is connected to the destruction of villages. Special Rapporteur van der Stoep described this practice in his February report, and added that many other persons were transferred to detention centers and prisons in central Iraq, primarily in Baghdad." (US DOS 25 February 2000, "Respect for human rights, g.")

Security forces also have forced Shi'a inhabitants of the southern marshes to relocate to major southern cities and to areas along the Iranian border. [...] The Government reportedly also continued to move forcibly Shi'a populations from the south to the north to replace Kurds, Turkomen, and Assyrians, who had been expelled forcibly from major cities. (US DOS 5 September 2000, Sect.I)

"Reports of the destruction of civilian settlements have been received by the Special Rapporteur on an intermittent basis since 1991. The Special Rapporteur [of the Commission on Human Rights on the situation of human rights in Iraq] has received lists of allegedly destroyed villages and houses, located in many parts of the vast marsh area (now mainly drained), as well as in Baghdad.

It was reported that, in late March 1999, Armoured Division Six carried out operations surrounding and bombarding a number of residential areas of some of the tribes living in the Governorate of Basra. Such operations reportedly took place in the areas of Al-Ghameigh, Bait Wafi and Bait Sayed Noor.

Since the beginning of 1999, the Special Rapporteur has regularly received reports indicating that the Government of Iraq has been destroying the houses of opponents with bulldozers, operating during the daytime in full view of the occupants. [...]

The Special Rapporteur has received a list of names of hundreds of people so affected, indicating their addresses, the date of destruction of their homes and the action taken against the families (arrests, executions, expulsions etc.)." (UN GA 14 October 1999, para.15-19)

Internal displacement forecasts in case of war (2002-2003)

- In Jan 2002, the UN estimated that an additional 900,000 people could be internally displaced in case of a war
- Rumor of the use of WMD might generate panic to instigate large scale flight
- Iraqi regime could force people in the South to flee as part of its war strategy
- Massive displacement to and from Kirkuk and Mossul is expected

"Up to 900,000 people may be displaced in addition to the 900,000-1,000,000 existing IDPs." (UN OCHA Jan 03, p10)

U.N. agencies predicted in December 2002 that war could displace an additional 1.1 million people inside Iraq and 900,000 would become refugees outside the country.

To view the UN confidential report mentioning this information, please see: UN 10 Dec 2002, Likely Humanitarian Scenarios [reference and link below]

"Scenarios for large-scale population displacement:

1) Refugee flow from northern Iraq to neighbor states. Despite the past history (1988 and 1991) and the publicly and forcefully articulated fears of Turkey and Iran, this is an unlikely scenario. The reasons for this are the following:

The Kurds are far better organized than in the 1980s or 1991. Administrative structures that can channel assistance and defuse popular panic exist both at the government and at local levels.

Most Kurdish households, from prime minister to taxi-driver, have several weeks / months worth of food stocks in the house.

Since 1991, circa 3000 villages have been at least partially rebuilt. They will provide a protective buffer between the towns and the mountainous borders, with access to food and water. (In 1991 there was nothing between the towns and the mountains.)

Indications are that a key trigger to large-scale displacement – a prolonged Iraqi military attack -- will be met with an overwhelming US-led military response.

2) Flight from the northern cities to surrounding areas. As noted above, any large-scale Iraqi military action against cities such as Erbil, Sulaimaniah, or Dohuk is expected to be met with a prompt coalition response. Therefore it is only the use of or rumor of the use of WMD that might generate sufficient panic to instigate large scale flight.

3) New IDPs coming into northern Iraq from the South. This could be any of a number of populations including non-Arabs expelled from Kirkuk, Mosul or even Baghdad, as well as the general population of the first two cities. These are likely to be people that are expelled by the Iraqi regime, as part of its strategy of fighting the war with 'population bombs.'¹ Weapons of mass destruction (WMD) may be used to instigate large-scale displacement.

4) Rapid population movements from and to Mosul and Kirkuk. Upon the withdrawal of Iraqi forces from the northern cities, which could happen even prior to the outbreak of hostilities, there are likely to be two types of population movements: Arab populations will flee south, and the former non-Arab residents will flood home. These movements will happen spontaneously and will be largely uncontrollable." (CHC 23 Dec 02)

"An attack on Iraq, starting with an air assault against Baghdad and other strategic targets, would generate huge flows of refugees and a serious nutritional and public health crisis. More than a million people fled Iraq during and after the 1990–1991 Gulf crisis, when Saddam Hussein crushed ethnic rebellions that the United States refused to support. Surrounding countries, the United Nations, and relief agencies are bracing for flows at least as great this time. There could also be massive internal movement, with people fleeing cities for the country. Many of the roads that U.S. and allied troops would need to bring troops and equipment into Iraq could be clogged with people fleeing for their lives.

Most of Iraq's 24 million people depend on food rations provided under the U.N. Oil for Food Program. Any break in the food pipeline would create a nutritional crisis, forcing hungry Iraqis to besiege invading troops for food.

Relief agencies have been working for years in Afghanistan, but there is little infrastructure to deal with a humanitarian disaster in Iraq. Stockpiling food, assembling supplies and medicine, and building relief teams will take time and money—mainly from the United States. During and immediately after a conflict, occupying forces are often the only source of food and medical care.

If Saddam Hussein were to use chemical or biological weapons to blunt an attack, the humanitarian crisis could be far worse. Thousands of people would be killed or incapacitated, but relief workers—the world's first responders to complex emergencies—would find it difficult to provide aid. Humanitarian workers are completely unprepared to work in the toxic conditions they could encounter in the country." (Bacon Jan 03)

Eviction of Kurds, Turkmen and Assyrians from the Kirkuk area (2002)

- Since 1997, Iraqi government forced Kurds, as well as a number of Turkmen and Assyrians to leave the Kirkuk area as part of its policy of 'arabization'
- Most of the people expelled from Kirkuk decided to go north, despite government decree that doing so would cause them to lose their property and food rationing cards
- Families perceived to be opposed to the regime, families who have relatives outside Iraq or in southern Iraq and those who have relatives in detention or executed are said to be the first targeted in the process of forced displacement
- Baath Party members are responsible for ordering the eviction of families viewed as opponents of the Iraqi regime
- Kurdish sources reported acceleration of forced displacement of non-Arab citizens in 2001 and 2002

"Since mid-1997 thousands of Kurds and a number of other non-Arabs, including Turkmen and Assyrians, who have lived all their lives in the Kirkuk region, which is about 260 kilometers north of Baghdad, have been expelled to the Kurdish provinces in the north controlled by the Kurdistan Democratic Party (KDP) and the Patriotic Union of Kurdistan (PUK) because of their ethnic origin and because of Kirkuk's strategic location as well as its oil fields. The authorities have given Kurdish families targeted the choice of either going to Southern Iraq or to the Kurdish provinces. If the families choose Southern Iraq then they are allowed to take some of their possessions with them. However, if they choose to go to the north their properties, as well as their food rationing cards are confiscated by the authorities. The majority of the families have reportedly chosen to go north. [...]"

Once in Northern Iraq some of the families expelled tried to live with relatives. The majority, however, have been resettled in camps such as the al-Salam camp near Chamchamal and Benislawa camp near Erbil. The KDP, PUK and UN agencies have provided them with basic food, tents, blankets and other items. Their empty properties in the Kirkuk region and in Khanaqeen are given by the authorities to pro-government Arabs brought from other regions in Iraq. Thus far thousands of Arabs from other regions in Iraq have been resettled in the Kirkuk governorate." (AI 24 November 2000, "Forcible expulsion")

"Forced displacement of the Turkomen was reported to have resumed in the last months of 1998, particularly in the Kirkuk area. The head of the coalition of the Turkoman parties stated that about 5,000 evicted Turkomans were living in 'sub-human conditions in Northern Iraq.'" (UNHCR June 2000, p.12)

In 2000 "The government continued its forced expulsion of Kurds and Turkmen from Kirkuk, Khaniqin, Makhmour, Sinjar, Tuz Khormatu, and other districts as part of its 'Arabization'

program.[...] Over 800 people were reportedly expelled between January and June, bringing the total number of those expelled since 1991 to over 94,000, according to Kurdish opposition sources." (HRW December 2000, "Human Rights Developments")

In 2001 "Iraqi authorities have forcefully deported five Kurdish families in Tuze Khurmatoo south of Kirkuk city. Their documents were ceased and their houses were expropriated and given to Arab families. The families were asked to register as Arabs or face deportation to the areas controlled by the Kurdish authorities. The deportees who arrived in Kurdistan asked UN to pressure Iraqi government to allow them back to their land and to halt further deportation activities. The deportees numbered 33 persons, all from the farm lands near Tuze Khurmatoo." (Kurdistan Observer 26 March 2001)

"Emanuel Khoshaba, an official with the Assyrian Democratic Movement, said that '10 Assyrian families have been forced to move to...Baghdad since the beginning of the year,' according to 'Zinda' on 12 February. The deportation of these families is part of the arabization campaign spearheaded by the ruling Iraqi Ba'th Party." (RFE/RL 15 February 2002)

"The Iraqi government's ethnic-cleansing campaign against the country's non-Arab citizens has accelerated, according to the Patriotic Union of Kurdistan (PUK) Kurdish-language daily "Kurdistan Nuwe" on 17 April [2002]. "Daily, the Iraqi government further intensifies the policy of ethnic cleansing and deportation of Kurds in the regions under its own control," reported "Kurdistan Nuwe." The article continues, "Whenever the global problems become more intricate and more threatening, the Iraqi government finds it an opportune time to further implement its schemes against the Iraqi people in general and the Kurdish people in particular.[...]"

'On 5 January 2002, [Saddam Hussein's] Presidency Council issued a directive through the Interior Ministry, to the Kirkuk Governorate in which it called for probing into the causes of death of all the Kurdish citizens from 1991 to 1996 in Kirkuk, for the purpose of expelling...the families and relatives of the Kurds who were martyred in the battles for liberating Kirkuk..., ' the report said. The battles for liberating Kirkuk refer to the brief seizure of Kirkuk by Iraqi Kurdish forces during the abortive March 1991 Kurdish uprising." (RFE/RL 26 April 2002)

For more information on forced displacement from Kirkuk, please see Zanger, Maggy, April 2002, "Refugees in Their Own Country, War Without Borders", Middle East Report 222, Spring 2002, [[External Link](#)]

Multiple displacements in northern Iraq (2001)

- In 1998 UN-Habitat estimated that out of 3 million people in northern Iraq, 1 million had been internally displaced at one time or another
- The displaced include victims of the Anfal campaign, people expelled from government-controlled regions, people displaced by Kurdish in-fighting, or people close to the border

"Many residents of northern Iraq have been displaced multiple times. In 1998, the UN Center for Human Settlements (UN-Habitat) estimated that more than 1 million people (out of a population of 3 million) were internally displaced in the three northern governorates at one time or another. At least 100,000 of the displaced in the north are people from the government-controlled regions of Kirkuk, Khanaqin, and Sinjar bordering the north who have been expelled into the north in recent years, including 1999.

Those displaced in northern Iraq also include people previously displaced from government-controlled Iraq; about half of the displaced were forced out before 1991, many during the 'Anfal'

campaign in the late 1980s when Baghdad forces wiped out about 4,500 Kurdish villages, including virtually all villages near the borders of Turkey and Iran. The rest of the displaced have been uprooted from one part of northern Iraq to another by factional Kurdish in-fighting or, for people living in border areas, by incursions or shelling from outside the Kurdish-controlled region by Turkish, Iranian, or Iraqi government forces." (USCR 2000, "Northern Iraq")

"At 1999 Sulaimaniyah Conference the following category definition was produced:

Those from Kirkuk (old and new caseload). Khanaqin, Kifri, Makhmour, Sinjar, Tala'far, Mosul and other areas.

Those displaced as a result of conflict between the two major factions in Iraqi Kurdistan.

People affected by conflict involving the Kurdistan Workers Party (PKK).[...]

Others in collective towns including widows and children, who would like to return to places of origin if given the opportunity to do so.

All other citizens of Iraq displaced/expelled for political reasons." (Habitat Jan 2001, p1)

"The composition of the displaced population now includes: (a) those in collective towns who are unable to return; (b) those who do not wish to return; and (c) those displaced persons who have taken refuge in urban and semi-urban areas and who, because of their vulnerable position, require water and sewage and other infrastructure services. [...] These two groups [(a) and (c) make up 0.8 million persons." (UN SC 19 November 1998, Sect. IV)

"About 900,000 internal refugees – as much as a third of the region's population – are scattered across Iraqi Kurdistan. Some of them have been displaced several times in the last twenty years by violence between the Kurds here and Turkey. Some are unable to return home because the soil is still strewn with landmines. About 200 people each month are killed or maimed by mines, according to the UN de-miners." (Aquila Lawrence Summer 2000)

"The other kind of displacement happened in Northern Iraq after the conflict between the PUK and the KDP, especially after the KDP gained the control over Arbil City, which had been in the hands of the PUK since 1995. A forcible exchange of population took place from Arbil City to Sulaymaniyah City and vice versa, affecting around 50,000-55,000 people respectively (100,000-110,000 all in all). These people were sent to the other town just because they were accused of being affiliated with the other party. They lost their social status and support as well as their property: houses, cars, land." (UNHCR/ACCORD 14 November 2000)

Local officials in Kirkuk are granted impunity to carry out expulsion process described in government decree (2000)

- Procedures during the expulsion process included confiscation of property, of ration cards and of membership cards to government agencies
- One member of each Kurdish family expelled was often detained and had to sign a note acknowledging to move voluntarily
- Special Rapporteur of the Commission on Human Rights on the Situation of Human Rights in Iraq observes that the Baath Party and its members are effectively granted impunity in carrying out forced displacement policy
- To prevent the return of displaced persons the government would mine the area, set-up military checkpoints and demolish Kurdish sites
- Other measures included sealing off entire districts and taking children from families of minority groups hostage to intimidate their families into leaving their home regions

"The Kirkuk Governorate was renamed 'Al-Ta'mim' which means in arabic 'nationalization'. On 12 January 1998 a decree was issued by the Governorate of al-Ta'mim ordering the expulsion of 1468 families from the governorate because of its 'very important security status and geographical location'. The decree was based on directives issued by the office of the President of Iraq. It sets a date, between 15 April 1998 and 15 June 1998, for the deportation of the 1468 families. The decree gives details of the number of families to be expelled from different neighbourhoods in the Kirkuk governorate. It also includes details of the procedure to be followed by the security forces, it states:

1. One member of each Kurdish family expelled to the northern provinces should be detained;
2. Confiscation of property belonging to the expelled;
3. Confiscation of ration cards;
4. Confiscation of membership cards to government agencies;
5. Notification of the decree to: the head of security of each district; the Ba'ath party official of each district, the chief of each village. [...]

The expulsion of Kurdish families and other non-Arabs continued throughout 1998 and 1999. The same procedure described above is followed on each occasion. (AI 24 November 1999, "Forcible expulsion")

"According to several persons interviewed, Baath Party members from the local offices of the Baath Party in the city of Kirkuk are responsible for implementing the decision to forcibly remove the targeted families. They are in possession of lists of people living in the neighbourhood under their 'jurisdiction'. These lists contain information on each household of the neighbourhood. Baath Party members are responsible for implementation of the decisions. Aside from the various human rights which are violated in the process of forced displacement (e.g. the rights to privacy, property, movement and personal integrity), the Special Rapporteur [of the Commission on Human Rights on the Situation of Human Rights in Iraq] observes that the practice of forced displacement as carried out by the Baath Party is an extralegal use of self-ascribed authority; to the extent that the ostensible authorities permit the practice to occur, the Baath Party and its members are effectively granted impunity.

According to testimony received, the following is the typical experience of those families subjected to forced displacement. Once the decision is taken to expel a family, Baath Party members present themselves at the residence of that particular family and order them to leave the area within 24 to 48 hours. In order to ensure that the family will effectively move, Baath Party members usually withhold the identification cards of the members of the family. In some cases a member of the family is put in detention in order to accelerate the process. Once the family is ready to leave their home, they need to pass by the local police station and fill in a form stating that they are voluntarily changing their residence. Their identification cards are only then returned to them and if a member of the family was detained, only then is he or she released.

[...]

Iraqi authorities used to issue a 'displacement order' to families who were required to leave. However, it was reported that the Government of Iraq stopped this practice when they learned that the document was being used by asylum seekers outside Iraq as proof of their claims." (CHR 10 March 1998, "Forced displacement")

"In Kirkuk the regime periodically sealed off entire districts and conducted day-long, house-to-house searches, evidently as part of its 'Arabization' campaign to harass, and expel ethnic Kurds and Turkomen from the region. Government officials also take hostage children from families of minority groups to intimidate their families into leaving their home regions. [...] As part of its policy, the authorities demolished the houses and detained and executed family members of Shi'a who protested government actions." (US DOS 25 February 2000, "Respect for human rights, f.")

"The Government of Iraq has reportedly been using other measures aimed at encouraging departures and preventing displaced persons from returning. The Government has reportedly declared the area around Kirkuk, including the oil-fields and production facilities, a military and security zone and has mined the area to impede transit. The roads into the area have been heavily fortified with military checkpoints. The regime has also changed the administrative composition of Kirkuk governorate, eliminating four predominantly Kurdish districts and effectively reducing the Kurdish population to minority status. Most recently, the Iraqi Government has reportedly evicted the residents of Kirkuk's citadel and begun the demolition of this ancient Kurdish site, claiming that the envisioned new construction will generate considerable tourist revenue." (CHR 26 February 1999, para.24-28)

Other displacements include flight of political opponents and forced relocation of people who had found refuge in Baghdad (2000)

"Thousands of non-Kurdish opponents of the Saddam Hussein regime have also sought refuge, or a base for continuing their opposition, in the Kurdish-controlled regions of Iraq, particularly since the Gulf War. The entry of Iraqi government troops and agents into these regions in 1996 left them particularly vulnerable - many were captured or killed, particularly in Arbil. In late 1997, the Iraqi National Congress reported that around 2000 non-Kurdish political displaced were still sheltering in PUK-controlled regions, mainly in Suleimaniyeh. Many reportedly had difficulty finding work, and were often regarded with suspicion (as potential government agents) by the PUK authorities." (Dammers 1998, p.184)

"Thousands of Gulf War refugees who sought haven in Baghdad were relocated forcibly to their home provinces." (US DOS 25 February 2000, "Respect for human rights, d.")

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Physical Security

No improvement in the security situation (2006)

- Violence has been particularly high in Baghdad, Mosul and the western province of Al Anbar as well as Basra in the South and Kirkuk in the north
- The attacks continue to result in large numbers of casualties among civilians
- Increased levels of sectarian strife, including intercommunal intimidation and murder, especially in and around Baghdad
- High civilian death tolls due to continuing armed attacks on MNF/ISF and deliberate attacks on the Iraqi civilian population
- Displacement of the civilian population due to ongoing armed hostilities, mainly in the Centre but also in other areas (Mosul in the North)
- Lack of a properly functioning judicial system and a continued need for judicial reform

UNSC, 3 March 2006, p.12-13

“The political transition and attempts to maintain security by the Multinational Force and Iraqi security forces have been accompanied by the development of an increasingly complex armed opposition capable of maintaining a consistently high level of violent activity across the country. Baghdad, Mosul and the western province of Al Anbar have been experiencing the worst of the destruction. Although the southern and northern governorates are less affected, some areas, particularly Basra and Kirkuk, have recently witnessed increased tension and a growing number of violent incidents.

The attacks remain highly lethal in character, producing large numbers of casualties among civilians, particularly those seeking to join the security forces. Trends in both targeting and technology are disturbing. In terms of targets, Iraqis involved in work associated with the Multinational Force, foreign construction companies and infrastructure concerns (such as oil production companies) are seen to be of interest to the various armed opposition groups, as well as politicians, Government workers and their families. Attacks and kidnappings of foreigners, including journalists and humanitarian workers, have once again increased. The attacks, coupled with the destruction of critical infrastructure, have resulted in severe disruptions to the delivery of essential services across the country, including fuel, water and electricity. The targeting of the diplomatic community continues, as embassy staff are being abducted and killed and their facilities are being attacked. As for technology, the percentage of casualties and deaths caused by improvised explosive devices has increased, a trend which can be attributed to improvements in their design, especially in terms of their detonation and armour penetration capabilities.

The deteriorating situation is further evinced by the increased levels of sectarian strife, including almost daily reports of intercommunal intimidation and murder. In Baghdad and its surrounding areas, there are regular reports of bodies of Shia and Sunni men with signs of torture and summary execution. Violence affecting Kurds and Arabs has also been reported in Kirkuk, while the abduction and intimidation of ordinary Iraqis is a growing problem.

The situation in Basra has also been tense and the Multinational Force has restricted the freedom of movement in the area. Recently, the airport was partially closed under order from the Ministry of Transportation in Baghdad. Demonstrators have demanded the handover of security responsibilities to local authorities.”

UNHCR, October 2005, p.1-3

“Up until the invasion of Iraq in March 2003 by the US-led Coalition Forces, Saddam Hussein’s ruling Ba’ath party was one of the strongest and most severe state regimes in the region. The use of brutal force and repressive policies deprived the Iraqi people of the exercise of many basic human rights. It created a climate of fear and oppression under which the punishment meted out to anyone suspected of not agreeing with or supporting the regime ranged from interrogation to imprisonment, torture, disappearances and even death. The fear created by this system was nevertheless effective in deterring criminality and hence ensuring the general (albeit superficial) security of the population. The system, although corrupt, also controlled and met most basic daily needs in Iraq, although there were many shortages. These needs included, *inter alia*, health services, education, water, electricity and sanitation services.

Since the collapse of the former regime Iraq has been plagued by violence, including car bombings, kidnappings and assassinations. The fall of the former Government in April 2003 signalled the collapse of the Iraqi state apparatus. Since that time, daily life in Iraq (with the exception, to some extent, of the three Northern Governorates of Dohuk, Sulaymaniyah and Erbil) has essentially been governed by an extremely precarious security situation due to the activities of various insurgent groups. The loyalties of the insurgents lie with various sources of power, but they share a common aversion to the presence of foreign troops in Iraq, particularly the Americans. The general chaos created by the invasion and subsequent toppling of the former Government provided fertile space for many organized armed groups to resist the occupation and target any perceived collaborators through the use of violence, often with total impunity. Furthermore, the dismantling of the Iraqi army and security forces has, further, created a security ‘gap’ in the country which the current authorities are unable to fill as members of the new Iraqi Security Forces (ISF) – and especially new recruits – are among the prime targets of the insurgents. Despite efforts to reform and rebuild the ISF, they are not yet capable of independently fighting the insurgency and rely heavily on the presence of the Multinational Forces (MNF). The MNF have committed to not withdraw from Iraq before the ISF are able to ‘stand on their own feet’. While re-establishing security remains a priority for the Iraqi authorities, tangible improvements in security will likely require much more time and further political initiatives.

As a result of the situation described above, Iraq is currently faced with the following problems, among others:[...]

- high civilian death tolls due to continuing armed attacks on MNF/ISF and deliberate attacks on the Iraqi civilian population, often intended to cause large numbers of casualties;
- displacement of the civilian population due to ongoing armed hostilities, mainly in the Centre but also in other areas (e.g. the Governorate of Mosul in the North);
- waning public confidence in the ability of the Iraqi Transitional Government (ITG) and the Transitional National Assembly (TNA) to improve the situation; a high criminality rate;
- the lack of a properly functioning judicial system and a continued need for judicial reform;
- weakness of local security system (police forces) resulting in impunity for crimes committed;
- slow reconstruction and a lack or instable supply of proper health, education, water, electricity and other social facilities; significant housing shortage; the impossibility, due to the security situation, for many people to enjoy basic human rights ranging from the right to life to freedom of speech, religion (for members of religious minorities), association, etc.;
- rampant unemployment;

-a continuous trend of kidnapping; - widespread corruption undermining confidence in the authorities and hampering reconstruction.”

Allegations of widespread abuses continue to be reported (2006)

- The UN continues to receive regular allegations of human rights violations
- The government's ability to protect its citizens is undermined by persistent attacks by armed groups
- Militias and other groups that act with impunity at both the local and regional levels
- Thousands of Iraqis continue to be arbitrarily detained by the Multinational Force and the Iraqi authorities in violation of international law
- Military operations conducted by the Multinational and Iraqi security forces, especially in Al Anbar governorate, have raised a number of human rights concerns
- Allegations of restrictions on freedom of movement, excessive use of force, mistreatment and theft during raids of private homes, evictions and demolitions of houses have been received by the UN

UNSC, 3 March 2006, p.10-12

“The human rights situation in Iraq remains a cause of great concern. The UNAMI Human Rights Office continues to receive consistent allegations of human rights violations from individuals, local and national human rights groups and domestic and foreign media. While investigations into these allegations remain difficult owing to the prevailing security situation, the Human Rights Office has been able to corroborate claims through contacts with key ministries, local authorities and a country-wide civil society network.

The Government of Iraq faced persistent attacks and terrorist actions by armed groups in large parts of the country, challenging the stability of the country, its ability to protect its citizens and its capacity to provide basic services. Repeated bombings against civilians, mosques and more recently against churches are creating fear, animosity and feelings of revenge within the communities. A new high in this trend has been observed during the reporting period. In Baghdad alone, 787 bodies were received by the Forensic Institute in December 2005, 479 of which had gunshot wounds. In general, violent tactics have been used by armed groups to kill thousands of police officers and members of the Iraqi security forces over the last months. Other professional groups such as journalists have also paid a high price — since March 2003, more than 80 journalists and media workers have lost their lives as a result of terrorist attacks.

The rule of law continues to be challenged by the existence of militias and other groups that act with impunity at both the local and regional levels. In northern Iraq, thousands of Kurdish militias (*Peshmerga*) have been recruited into Iraqi army divisions. The consolidation of local militia power in southern Iraq is resulting in systematic acts of violence against members of the Sunni community in the area. Such developments, including recent efforts to form a Sunni Arab militia, could seriously hamper efforts at promoting national accord.

At the same time, the internment of thousands of Iraqis by the Multinational Force and the Iraqi authorities constitutes de facto arbitrary detention. The extent of such practices is not consistent with the provisions of international law governing internment for imperative reasons of security. The problems faced by the prison system in Iraq also remain a matter of particular concern. These detentions are of dubious consistence with Iraqi law, which provides safeguards, limits and conditions that govern authorities other than the Ministry of Justice entitled to hold people in detention.

On 14 November 2005, the Multinational Force and Iraqi security forces carried out a joint inspection of Al-Jadiryia detention facility run by the Ministry of the Interior and revealed the confinement of 170 detainees. According to various sources, 101 detainees bore signs of torture and 18 were reported to have died while being detained. The Prime Minister's decision to establish an investigative committee to examine Al-Jadiryia abuses was welcomed by all communities. However, the results of the investigation, which were to be published at the end of November 2005, have not yet been made public, nor have any individuals been brought to justice. I am concerned by the delay in publishing the results of the investigation and in bringing the perpetrators to justice. On 10 February, the United Nations High Commissioner for Human Rights wrote to the Prime Minister asking for the report of the investigation to be released promptly. A separate inquiry was launched to determine the legality and conditions of detention in Iraq, but the findings of that inquiry have not yet been made public.

Military operations conducted by the Multinational Force and Iraqi security forces, especially in Al Anbar governorate, have raised a number of human rights concerns. Allegations of restrictions on freedom of movement, excessive use of force, mistreatment and theft during raids of private homes, evictions and demolitions of houses have been received by UNAMI. Such allegations were also raised during the visit of my Special Representative to Ramadi and Fallujah on 20 and 21 February 2006. UNAMI is following up on these issues with the Multinational Force and the relevant Iraqi authorities."

UNAMI Human Rights Report, January-February 2006, Summary

"The human rights situation in the country remains a matter of serious concern. Following the events of 22 February 2006, which included the destruction of Al Askari Shrine in Samarra, there has been a marked deterioration in the security environment, resulting in hundreds of cases of killings, torture, illegal detention and displacement.

Serious allegations have been received by UNAMI Human Rights Office regarding the actions of some segments of the security forces, in particular the police and special forces, and their apparent collusion with militias in carrying out human rights violations. Allegations that "death squads" operate in the country grew stronger following the discovery by the Multi-National Forces in Iraq (MNF-I) and the Iraqi Security Forces of a suspicious group, acting within the structures of the Ministry of Interior. This re-affirms the urgent need for the Government to assert control over the security forces and all armed groups. Throughout the reporting period, insurgent activities, including terrorist acts, intensified after 22 February and continue to affect the civilian population.

The legality and the conditions of detention in Iraq, under the authority of the MNF-I and the Government of Iraq continue to warrant attention. UNAMI has repeatedly expressed concerns to relevant members of the Government about allegations of systematic human rights violations in detention centers under the direct or indirect control of the Ministries of Interior and Defense.

Minorities groups, including Palestinians, continue to be the victims of discrimination, labeling, detention and torture because of their alleged association with foreign Arabs supporting the insurgency. During the reporting period, specific religious groups have also been targeted."

UNAMI Human Rights Report, November-December 2005, Summary

"The persistent conflicts affecting the country and weaknesses in law enforcement continue to have a serious and adverse effect on the enjoyment of human rights. Ongoing attacks by armed groups, acts of terrorism, violent crimes, large-scale arbitrary arrests and evidence of mistreatment in detention centres together presented a pattern of major human-rights violations. The examination of places of detention run by the Ministry of Interior and apparently operated outside the law confirmed serious shortcomings in the functioning of law-enforcement agencies and other groups associated with them.

The rule of law continues to be challenged by the existence of militias and other groups who continue to act with impunity, confirming an urgent need for the State to assert control over its security forces and all armed groups in the country.

Significant military operations continued in the run-up to the December elections, resulting in increasing numbers of detainees without access to judicial review and ongoing reports of displacement of people in conflict areas."

UNAMI Human Rights Report, September-October 2005, Summary

"Large parts of Iraq continue to experience a general breakdown of law and order, characterized by violence across the country. Hundreds of civilians have been killed and wounded as a result of terrorist attacks, targeted assassinations and extrajudicial execution-style killings. Massive security operations by the Iraqi police and Special Forces continue to disregard instructions announced in August 2005 by the Minister of Interior to safeguard individual guarantees during searches and detaining operations.

Repeated bombing campaigns by armed groups against civilians and Mosques, are increasing fears that community relations are descending into a pattern of fear, animosity and revenge.

Ongoing military operations, especially in western and northern parts of the country, continue to generate displacement and hardship for thousands of families and to have a devastating effect on the civilian population."

UNAMI Human Rights Report, July-August 2005, Summary

"The reports received during the reporting period reveal continuing concern for the lack of protection of civilians in regard to their civil, cultural, economic, political and social rights. This, together with continuing allegations reflecting deficiencies in the administration of the justice system, and in particular the handling of the circumstances and conditions for detention, continues to present a major challenge to the Iraqi authorities and to UNAMI.

The insurgency targeted innocent civilians including children, as well as police officers, politicians, foreign diplomats, human rights defenders and those associated with the MNF or perceived to be so. Corpses appear regularly in and around Baghdad and other areas. Most bear signs of torture and appear to be victims of extrajudicial executions."

For further details see the full UNAMI Human Rights Reports in the sources below

Displaced face multiple threats to their physical security (2005)

- Patterns have emerged which highlight specific security concerns
- Inadequate shelter can leave IDPs more vulnerable to attack
- Authorities charged with protection severely under-funded, under trained and coping with precarious security

UNHCR, October 2005, p. 24

"While the Iraqi population in general suffers from a lack of security and public services, displaced persons or those returning from displacement are often even more affected by these factors due to their particular vulnerability and lack of social networks."

"Due to difficulties in obtaining access to many communities because of the security situation, information regarding the physical, material and legal safety of some pockets of IDPs is limited. However, from the monitoring conducted several key patterns are emerging.

[...]

The general insecurity faced by the population of Iraq as a whole, affects IDPs more due to their particular vulnerabilities and lack of community protection. The **physical safety and security of IDPs** in the centre and south of the country is of concern. This is especially the case for newer caseloads since they have fewer support networks in their areas of displacement. For example, IDP groups moving with their belongings have become the regular targets of looters. Inadequate access to shelter, and discrimination renders IDPs more vulnerable to attack. Increasingly, IDP groups have organized themselves and developed their own protection network through community watch programs." (UNHCR, 9 August 2004)

"Human Rights Watch's research inside Iraq and neighboring countries has identified a range of protection issues specific to IDPs and returning refugees, including the closing of checkpoints and other restraints placed upon Iraqi civilians attempting to flee to safe areas; the potential for physical violence and other abuse resulting from inadequate housing and lack of provision of basic material support in IDP camps; and the prospect of heightened ethnic tensions, including possible violent reprisals, when IDPs attempt to return home." (HRW, 24 June 2003)

At least 25,000 civilians killed in Iraq in past two years (2005)

- On average, 34 civilians have been killed per day
- The majority of deaths have been caused by the actions of foreign troops
- Other institutions estimate that up to 98,000 people have died

"Almost 25,000 Iraqi civilians have been killed since US and British troops invaded the country two years ago, an average of 34 every single day, a British study said on Tuesday.

More of the deaths overall have been caused by the actions of foreign troops than insurgents within the country, the study by Iraq Body Count and the Oxford Research Group said.

However, the report stresses that the vast majority of civilian deaths caused by US and British troops took place in the weeks following the start of war in March 2003, while currently far more deaths occur due to insurgency.

The estimate of 24,865 deaths over the two-year period to March this year is considerably lower than a number of 98,000 suggested in a study published last October by British-based medical journal The Lancet.

Nonetheless, the new report focuses attention on the suffering of Iraq's civilians, following a recent spate of suicide bombings which have killed more than 100 people in the past few days.

The report, "A Dossier on Civilian Casualties in Iraq 2003-2005", by a team led by John Sloboda from Britain's Keele University, analysed more than 10,000 media reports, many from Iraqi journalists and sourced from mortuary officials and medical staff.

In contrast, the study by The Lancet was based on a sample of 988 households in 33 randomly-selected neighbourhoods in Iraq, with the figures extrapolated for the whole country.

The new report attributes 37 percent of civilian deaths to foreign forces and nine percent to insurgents targeting occupying troops or Iraqi government agencies such as police.

However, a further 11 percent of deaths are recorded as the responsibility of "unknown agents" -- meaning suicide bombs and other attacks not directly aimed at foreign or official Iraqi targets but possibly still intended to destabilise society.

The report also highlights "extraordinary" levels of criminal violence, recording almost 9,000 deaths -- more than a third of the total -- not directly related to the occupation and insurgency.

These fatalities, recorded by Iraqi morgues, include people killed in robberies and kidnappings and battles between criminal gangs.

The figures say that 30 percent of the total casualties happened during the US-led, British-backed invasion, a total of 7,088 people, of whom 6,882 died as a result of foreign military action.

After the invasion had ended, almost twice as many civilians died in the second year of the occupation as the first -- 11,351 against 6,215 -- as the insurgency increased and US troops targeted militants in the city of Fallujah.

Despite the media profile given to suicide blasts, just 7.7 percent of the civilian deaths were caused by vehicle bombs, just over half of which were suicide bombs.

More than three-quarters of the civilian deaths occurred in 12 of Iraq's biggest cities and towns, with almost half of the total in Baghdad.

[...]

The new figures were simply meant to be "an absolutely firm, unshakeable baseline" for the minimum number of violent deaths, he said."

Military operations raise many human rights concerns (2005)

- Claims relate to death, injury and displacement of non-combatants as well as damage to civilian property and facilities
- Claims have been made to the effect that Tel Afar Hospital has been occupied by MNF-I and ISF forces for six months
- During MNF-I military operations at Obeidi in November 2005, water and electricity supplies were badly disrupted and a large number of houses were destroyed or otherwise damaged
- A number of non-combatants were reportedly killed
- Similar claims were made during and in the wake of MNF-I operations that same month in Al-Qaim, Hadithah, Karabila and Heet
- The impediment of the delivery of humanitarian assistance to areas and individuals affected remains a key point of concern
- Growing number of humanitarian actors detained or imprisoned while attempting to carry out their work

UNAMI, November - December 2005 Human Rights Report, p.5

"MNF-I operations in Anbar Governorate during the reporting period have raised a number of human-rights concerns, relating in particular to the death, injury and displacement of non-combatants as well as damage to civilian property and facilities. In addition, the Human Rights Office is in receipt of numerous allegations that medical facilities have been damaged and their

operations otherwise disrupted by MNF-I raids, involving in some cases the detention of medical personnel.

Without prejudice to any determination of violation of International Humanitarian Law, claims have been made to the effect that Tel Afar Hospital has been occupied by MNF-I and ISF forces for six months, limiting patients' access to the facility and putting at risk the lives of staff and drivers observed by insurgent forces entering the hospital premises. According to non-governmental organization monitors, the ISF continues to maintain a presence in and around the hospital which exacerbates the problem of limited patient access to the facility. Reports have also been received alleging that access to Ramadi Teaching Hospital has been severely restricted for several months by MNF-I roadblocks placed in the vicinity. The teaching hospital was reportedly searched on 8 November 2005 by MNF-I troops claiming that they were looking for insurgents.

More generally, during the course of MNF-I military operations at Obeidi in November 2005, water and electricity supplies were badly disrupted and a large number of houses were destroyed or otherwise damaged. A number of non-combatants were reportedly killed, although precise figures concerning these losses are not available to the Human Rights Office. Similar claims were made during and in the wake of MNF-I operations that same month in Al-Qaim, Hadithah, Karabila and Heet, where it was further reported by local actors that up to seven thousand families had been displaced. At the conclusion of the military operations, some of those displaced returned to their homes although living conditions were reported to be inadequate, that is, services remained disrupted and security cordons around the towns severely restricted the movement of residents."

UNAMI, September - October Human Rights Report, p.2

"Ongoing military and security operations by MNF-I and Iraqi forces with the stated aim of restoring law and order, including the resort to aerial bombardment, also had a negative impact on human rights. The United Nations has been unable to obtain accurate figures concerning civilian losses following such operations but reports received from civil society organizations, medical sources and other monitors indicate that they are significant and include women and children. According to figures released by the MNF-I and NGOs, more than 10,000 families have been displaced due to ongoing military operations in Al Anbar and Ninewa Governorates. Displaced persons' access to basic services has been severely hampered. Similarly, the impediment of the delivery of humanitarian assistance to areas and individuals affected remains a key point of concern, as is the growing number of humanitarian actors detained or imprisoned while attempting to carry out their work. According to reports from the World Health Organization, during military operations in Al Anbar Governorate in October, medical doctors were detained and medical facilities occupied by armed forces. The UN has repeatedly raised this issue with the Ministry of Health. Such actions are contrary to international law governing armed conflict and in any event they constitute a denial of the protection of international human rights law. Many homes have been damaged or destroyed and restrictions on freedom of movement have added to civilian hardship. The price paid by civilians, including women and children, during military activity currently underway calls for further reflection on the nature and conduct of the conflict and on the proportionality of the use of force."

Fallujah: Allegations of violations of international human rights and humanitarian law (2004)

- The UN and other organisations have expressed concern for violations of human rights and humanitarian law during the fighting in Fallujah

- Civilians were deliberately targeted, attacks were disproportionate and indiscriminate, human shields were utilised
- Humanitarian agencies also were impeded access to the city to assess the needs of displaced people and to deliver food
- A representative of the US led armed forces told IRIN that NGOs were being refused permission to enter the city for their own safety

"As fighting continued in Fallujah, the Iraqi Red Crescent Society (IRCS) and other NGOs on 11 November succeeded in delivering the first food and medical supplies to those displaced in areas surrounding the city. However, the organisations were waiting for authorisation from the Iraqi government and the Coalition forces to enter Fallujah itself. Food and medical aid received by the IRCS from other NGOs was distributed on 12 November among over 5,000 displaced people in the nearby settlements of Shaklauya and Habanya, where many have been in serious need of basic supplies since the fighting started. The ICRC said that inside the city many injured people were dying due to lack of medical care and that the situation contravened international humanitarian laws. A spokesman for the US Marines, Lieutenant Lyle Gilbert, told IRIN that NGOs were not being granted permission to enter the city primarily for their own safety.

[...]

After reaching Fallujah's main hospital on 13 November, the IRCS couldn't get authorisation to go to the centre of the city to deliver food and medical supplies. The NGO left the hospital area on 16 November taking supplies to Amrya near Fallujah, where almost 3,500 displaced families have fled. Colonel John Ballard, the officer in charge of the US Marines humanitarian effort, told IRIN that he was sceptical about the humanitarian crisis announced by the IRCS and had come to the city to see for himself. 'The US troops are able to deliver any supplies to the people here and haven't seen civilians in trouble,' he added. But residents speaking to IRIN said that conditions were bad. 'My son is bleeding and I cannot take him to the hospital. He was wounded by shrapnel last night and my other sons are sick, most of them with chronic diarrhoea,' Jalal Taha, a father of seven in Fallujah told IRIN as he broke down in tears.

[...]

After more than two weeks of conflict inside Fallujah, the IRCS delivered aid to the heart of the city on 25 November. Thousands of families are said to be in a critical humanitarian situation after the Iraqi government and US forces prohibited NGOs from delivering supplies, due to safety concerns. A convoy carrying thousands of food parcels, blankets, tents and medical supplies arrived in Fallujah with the help of the US-led forces who gave authorisation to the IRCS to deliver and allowed for one of the clinics to be converted into a temporary hospital for treating the injured. " (IRIN, 4 January 2005)

"The UN has expressed concern for the continuing violation of human rights and disregard for Geneva Conventions by parties to the conflict." (UNAMI, 13 December 2004)

"On 16 November UNHCR called for protection of civilians still in Fallujah. 'All violations of international humanitarian law and human rights law must be investigated and those responsible for breaches - including deliberate targeting of civilians, indiscriminate and disproportionate attacks, the killing of injured persons and the use of human shields - must be brought to justice, be they members of the Multinational Force or insurgents,' UNHCR spokesman José Diaz said. The World Food Programme (WFP) said it was closely monitoring the situation of internally displaced persons and others affected by the events in Fallujah and has pledged to help Iraqi institutions provide food through the public distribution system if necessary. " (IRIN, 4 January 2005)

"On 16 November, Lousie Arbour, the UN High Commissioner, expressed deep concern about the situation of civilians caught up in the fighting in Falluja. In her public statement, Ms. Arbour stressed that all allegations of violations of international humanitarian law and human rights law

must be investigated and those responsible for breaches -- including deliberate targeting of civilians, indiscriminate and disproportionate attacks, the killing of injured persons and the use of human shields -- must be brought to justice, be they members of the Multinational Force or insurgents." (UNAMI, 13 December 2004)

"UNAMI continues to raise the issue of unimpeded access to Fallujah and the IDP locations for humanitarian actors to conduct independent needs assessments and assistance delivery. The EWG has issued concerns through the SRSG to address specific questions to the IIG regarding the extent of destruction and civilian deaths due to the recent conflict, and the access of IDPs to food rations at their current places of displacement." (UNAMI EWG, 18 January 2005)

"Medical relief charity Merlin has accused coalition forces in Iraq of breaking the Geneva Conventions by killing civilians and blocking aid supplies. The charity says it own sources on the ground report 'untargeted fire resulting in civilian deaths' in the city of Fallujah. It also blames coalition forces for obstructing lifesaving supplies such as food and medicine by holding them up at checkpoints and stopping civilians from seeking safety outside the city." (Merlin, 28 April 2004)

See also, reports on the situation in Fallujah sourced below

IDPs face aggressive searches by Coalition Forces (2004)

- Newly displaced Arabs are particularly affected
- Men have been detained without charge for several months
- Many have been accused of supporting the former regime as well as "terrorist" organisations

"Physical insecurity and harassment of newly displaced caseloads in the centre especially has been reported. Harassment by looters and thieves attacking the vulnerable groups is one concern. Searches by the Multi-National Forces (MNF) of IDPs has also been reported." (IOM, September 2004)

"Some IDP populations, particularly newly displaced Arabs, have faced **aggressive searches** by Coalition Forces. This has been repeatedly reported in Tameem, Ninewa and Diyala. Men have been detained without charge for several months. Many have been accused of being associated with the former Government and more recently with terrorist organizations." (UN Cluster 8/UNCT, August 2004)

Freedom of movement

State of Emergency in place (2005)

- The interim government declared a state of emergency on 7 november 2004
- To date, the state of emergency is still in place
- Under the emergency law, measures including searches, arrest and detention and restrictions on freedom of movement can be taken

UNHCR, October 2005, p.3

“On 7 July, 2004, the Iraqi Interim Government (IIG) passed the *Order for Safeguarding National Security* (Order 1 of 2004) which consists of 13 articles referring to the state of emergency, and measures that can be taken during such a state. These include searches, arrest and detention, interference with correspondence, the confiscation of property and weapons, and restrictions on freedom of movement, association and commercial activities. The Order gives the interim Prime Minister the power to declare martial law for up to sixty days, beyond which period such a state can only be prolonged with the approval of the Presidency Council. The Order also empowers the Prime Minister to impose curfews, order the closure of roads, sea-lanes and airspace, declare restrictions or bans on public gatherings, order the surveillance of electronic and other communications, and gives him wide powers to search property and detain suspects. The Order stipulates that no person can be arrested except upon the issuance of arrest warrants from the judicial authorities, and that the persons in question should be brought before an investigative judge within twenty four hours. Only in ‘extreme exigent circumstances’ does the law permit arrests or searches without a warrant, although the parameters of this clause have not been elaborated upon in the law.

Article 1 of the *Public Safety Law* allows for the declaration of a state of emergency ‘upon exposure of the people of Iraq to a danger of grave proportions, threatening the lives of individuals and emanating from an ongoing campaign of violence by any number of people, for the purpose of preventing the establishment of a broad-based government in Iraq, or to hinder the peaceful participation of all Iraqis in the political process or for any other purpose’. On 7 November 2004, the Prime Minister declared a state of emergency for a period of sixty days ahead of the military intervention in Fallujah. This state of emergency was extended during the elections which took place in January 2005. To date, the Emergency law is still in place.”

Mines and unexploded shells pose physical threat to IDPs and returnees (2005)

- There are approximately 10 million mines in Iraq dating as far back as WWII
- Iraq is one of the most mine/uxo affected countries in the world
- A landmine survey conducted by the Iraqi authorities in June 2005 found a higher prevalence of contaminated areas in the North but more landmine victims in the South
- New mines were planted in areas of return before and during the Coalition Forces intervention
- Spontaneous returnees are particularly vulnerable because they are unaware of recently laid mines
- Displaced people often find shelter in public buildings where UXOs are left
- Displaced people and returnees are at particular risk as they are often unfamiliar with the areas where they are in
- There is a lack of rehabilitation and reintegration of persons with disabilities and shortage of rehabilitation equipment
- Mine and unexploded ordnance were reported as a major problem to return to Fallujah (January 2005)

UNHCR, October 2005, pp. 73-74

“After decades of war and internal conflicts, Iraq is one of the most mine/UXO-affected countries in the world.[...] Most affected are border areas, in particular the Iran-Iraq border. Approximately one out of every five Iraqis lives within one kilometre of areas highly contaminated by the explosive remnants of war.[...] Children are exposed to a particular risk and are injured or killed on a daily basis, such as when working in the street or living in abandoned buildings.

The Landmine Impact Survey (LIS), which was undertaken by the Iraqi Ministry of Planning and Development Cooperation (MoPDC)/National Mine Action Authority through the Vietnam Veterans of America Foundation, found that by 20 June 2005, 26 percent of the communities in the three Northern and 11 percent of the communities in the four Southern Governorates were contaminated (a total of 1,464 communities). Despite the higher prevalence of contaminated areas in the three Northern Governorates, the survey found many more victims in the South. The LIS established that all in all, an estimated 2400 km² is suspected mine or UXO contaminated, mostly in the South near the Iranian border. There are some 1,777 km² of contaminated area in the Governorate of Basrah alone, as it was one of the main battlegrounds during the eight-year long Iraq-Iran War.[...]

Mine clearance and explosive ordnance disposal is carried out by numerous actors, including local authorities, MNF, commercial companies and several NGOs. Ongoing insecurity in Iraq has seriously hampered these activities and has resulted in the withdrawal of several international NGOs as well as UN mine action staff. To date, the UN has cleared almost 12 km² by removing more than 900,000 mines or other explosive ordnance items. Full clearance will require many years, provided that sufficient resources are made available.[...] Mines and UXO represent major obstacles to reconstruction and development in certain areas.[...] They prevent people from having access to fields for grazing, land for cultivation and water for irrigation. The LIS found that in 60 percent of the accidents, the victims had been herding or farming.[...] While local communities are often aware of the approximate whereabouts of mined areas in their environment, IDPs and returnees are at particular risk as they are often not familiar with the areas they are in. In addition, they are exposed to such risks when returning to Iraq through mined border areas or upon return when they live in vacated public buildings (such as former military sites) due to a lack of housing. Many cannot return because their villages of origin have been destroyed and mined: many villages in the North were depopulated during the *Anfal* campaign and villages along the border with Iran were heavily mined during the Iraq-Iran War. UNHCR is aware of 28 Iranian refugees (including 14 children) from the Al-Tash Camp that have sustained injuries caused by UXO during the past months.

According to the Mine Advisory Group, there were an average of 20 mine/UXO-related casualties per month in Northern Iraq in early 2004.[...] The Landmine Monitor Report 2004 accounts for at least 2,189 new mine/UXO casualties in Iraq in 2003.⁴⁹⁶ Data collected in the four Southern Governorates found that mines and UXO caused 324 casualties over a six-week period from 16 June to 1 August 2003. The figures obtained for the Southern Governorates are extremely high when compared with other countries such as Afghanistan where on average 150 victims are recorded per month. In the three Northern Governorates, 70 casualties were reported over the period of 18 June to 29 July 2003. Adult males and boys are most at risk, with 75 percent of children's injuries attributed to playing or tampering with explosive ordnance. [...] The NGO Norwegian People's Aid (NPA) estimates that between 1991 and 2002, 3,500 Iraqi civilians were killed and 6,000 were injured in the three Northern Governorates alone. [...] The UN/World Bank estimated that under the strategy and funding scenario outlined in the Joint Iraq Needs Assessment of October 2003, 'freeing northern Iraq from the impact of landmines and UXO will take eighteen years'.[...]

In addition to the general dire state of the health system, [...] rehabilitation and reintegration of persons with disabilities, including mine victims, is hampered by the following factors: shortage of raw materials for prosthetic and orthotic manufacturing workshops,⁵⁰¹ a lack of rehabilitation equipment and aids such as wheelchairs and crutches, a lack of transport to existing facilities, a lack of psychosocial support programmes, insufficient knowledge, training and skill among rehabilitation specialists and a lack of vocational training programmes and income generation opportunities.[...]"

UNSC, 7 June 2005, para. 56

"Landmines and unexploded ordnance pose two of the greatest obstacles to reconstruction and development in some areas. The completion of a landmine impact survey, the recovery of 13,812 items of mines, explosive ordnance and unexploded ordnance and the clearance of 225,400 square metres are critical steps towards overcoming those obstacles."

UNAMI EWG, 18 January 2005

Fallujah: "According to an NGO assessment, the presence of mines and UXOs remains a major concern, as reports suggest that homes and public buildings have not been systematically cleared and demarcated and that public information campaigns have not been effectively disseminated to returnees"

IOM, September 2004

"The presence of mines and unexploded ordnance (UXOs) in public buildings, former military barracks, and rural areas where IDPs are returning to is common. This is particularly evident along the Iranian border and in former militarised zones. Highlighted in the centers areas along the green line, along borders (especially in Missan and Basrah where the Iranian border runs) and in former military barracks where many IDPs currently live."

UNHCR, 9 August 2004

"Unexploded Ordnances (UXOs) and landmines are a major problem for IDP groups residing in public buildings or spontaneously returning to rural areas. Many IDPs are residing in former military sites that were targeted by the Coalition during active combat; others are residing in locations that were used by the former Government to hide weapons; while others reside on land that was newly mined during the coalition intervention. De-mining activities have been hampered by security conditions."

UNHCR, 12 August 2004

"There are approximately 10 million mines in Iraq. The mines date from various conflicts as far back as World War II. As a result of the Iraq-Iran war in the 1980s, a great deal of the approximately 1200 Km border between Iraq and Iran, including the hydro dams, is littered with mines and UXOs (unexploded ordinances).

This situation is particularly hazardous for spontaneous returnees who generally use illegal border crossing points and has already resulted in a number of deaths. While demining activity is currently on-going, it is far from completed and the presence of mines will continue to pose a serious threat to physical safety for many years to come.

Also, new mines were planted in areas of return before and during the Coalition Forces intervention. Returnees are generally not aware of the existence of these sites. As for those Iraqi refugees who find themselves displaced upon return, they often find shelter in public buildings where UXOs have been left as a result of the last war.

The Coalition Provisional Authority established the Iraq National Mine Action Authority (NMAA) and Iraq Mine Action Centre (IMAC) in Baghdad as a part of the Planning Ministry, to plan and coordinate the mine action response. The NMAA became operational on July 9, 2003, and is responsible for mine action policy development and providing stakeholders with guidance on standards and other requirements to operate in Iraq. It will be responsible for the development of legislation for mine action in the country."

"Laden with their possessions, the majority of [returning] families walk down to a small cluster of buildings 200 metres from the Iranian checkpoint. Here bureaucratic requirements must be fulfilled in order for them to obtain continued support within northern Iraq. They are vitally in need of this support because crossing the border is not the end of their journey. Some villages have been bulldozed or occupied by other families, and many more are littered with landmines and unexploded ordnance. Most of the refugees cannot return immediately to their former homes and stay at a camp until arrangements can be made for their relocation.

Refugees and displaced people are particularly vulnerable to the threat of landmines. Poor and landless, they are often pushed to the margins of society and the economy. Through economic necessity, they are likely to be under pressure to use land that may be mined. Furthermore, refugees may be unfamiliar with the appearance of landmines and unexploded ordnance and will lack knowledge of the landmine threat in local areas." (MAG, 5 February 2004).

See also:

"Desk Study on the environment in Iraq", UNEP, May 2003 [Internet]

"UXO poses great problem in the south", IRIN, May 2003 [Internet]

Freedom of movement a problem for all Iraqis (2005)

- Legal restrictions to movements ceased but security limits have same effect
- Mines, legal and illegal checkpoints hinder movement
- Restricted movement reduces self sufficiency
- Many IDPs face harassment and restrictions on freedom of movement
- Some IDPs face difficulty accessing public services

UNHCR, October 2005, pp. 90-91

"All vehicular travel in Iraq is extremely dangerous and there have been numerous attacks on civilian vehicles as well as military convoys. Attacks occur throughout the day, but travel at night is exceptionally dangerous. Travel in or through Ramadi and Fallujah, travel between Hilla and Baghdad and between the International Zone and Baghdad International Airport is particularly dangerous, however, no major route into Iraq is to be considered safe. Main risks include:

- *Ongoing armed conflict between MNF/ISF and insurgents*, mainly near Fallujah and Ramadi (highway to Jordan/Syria) and near the Syrian border, but also on the roads to Samarra, Tikrit and Mosul, as well as on the roads leading South;
- *Ambushes/hostage taking by insurgents/criminals*, mainly on the road from Baghdad to Fallujah as well as South of Baghdad ('Triangle of death'). The kidnappers often demand money but have also carried out kidnappings for political/religious reasons;
- *Highway robbery/car-jacking* by armed thieves are very common, even during daylight hours, and particularly on the highways from Baghdad to Jordan and Kuwait;
- *Roadside bombs*, in particular near Baghdad, mainly targeting MNF/ISF, but often causing civilian deaths;
- *Mines/UXO*, in particular near Iraqi-Iranian border and along the former 'green line';
- *'Friendly fire'*: there have been a number of incidents in which civilians were killed at MNF/ISF checkpoints or when getting close to a military convoy.[...]

Freedom of movement is further restricted due to the numerous military checkpoints which have been set up, especially in and around Baghdad as well as at the former 'green line', which

separates the Northern Governorates from Central Iraq.[...] In addition, there are illegal checkpoints set up by armed groups and militias. For security reasons, airports and border crossings may be closed, for example on religious holidays or political. At times however, such closures are imposed without prior notice."

UNHCR, 12 August 2004

"Most legal restrictions to freedom of movement disappeared as a result of the fall of the former regime. Nevertheless, freedom of movement in all parts of Iraq is severely restricted due to the security situation. While there is no formal prohibition of movement, many people have chosen to 'self impose' a curfew and do not venture out in the evening. Road travel is hazardous due to the possibility of mined areas, and is further restricted due to the numerous military checkpoints which have been set up, especially in and around Baghdad as well as at the 'green line', which separates the northern governorates from central Iraq. Freedom of movement is further hindered by the additional illegal checkpoints, which have been set up by armed groups linked to various political parties."

UNHCR, 8 August 2004

"Many Arab IDPs within areas just below the green line face harassment and are increasingly finding their freedom of movement restricted. For example, some IDPs residing in Diyala were initially refused access to public services such as health and education. While not a generalised pattern, individual cases have been monitored."

Vulnerable groups

Mixed families vulnerable to displacement (2006)

- Iraq does not have a history of violence based on religious differences
- With the current sectarian violence, mixed families may be particularly vulnerable to separation

IRIN, 6 April 2006

" According to estimates, two million out of Iraq's 6.5 million marriages are unions between Arab Sunnis and Shi'ites. [...]

Many of the doctrinal differences between Sunnis and Shi'ites are minor enough to be dismissed, except by puritans of both sects. Mixed marriages between Arab Sunnis and Shi'ites – and also between the predominantly Sunni Kurds and Arabs of both sects – have been common, even in the days of former president Saddam Hussein, when Shi'ites were heavily discriminated against.

Hadeel's husband, Jamal Jomaa, noted that the current wave of sectarian violence was unlikely to disrupt the homes of mixed marriages, since they were living proof that such violence was useless and unnecessary. "During the Saddam Hussein regime, we never heard of sectarian violence, despite all the problems that we went through," Jomaa said. "Now we have to be strong to show our children that those committing sectarian violence are doing wrong."

According to sociologists, one of the major problems facing mixed families is displacement. "When these families are being displaced, their main concern is where to go, because each one

has a particular sectarian area to run to,” said Marouf Abbas, a sociologist in Baghdad. “Usually the wives follow their husbands so as to keep their families intact.”

More than 40,000 families have been displaced in Iraq due to ongoing sectarian violence, according to estimates by the Ministry of Displacement and Migration. “My husband is Sunni, but I’m a Shi’ite from Basra, in south Iraq,” said Samira Kadham, a Baghdad resident. “We were forced to leave our house in Kadhmiya because my family received anonymous threats accusing my husband of terrorism.”

“We’re here now taking refuge with Sunnis in an abandoned building on the outskirts of the capital because I will never leave my husband,” Samira added. “How you pray isn’t important – what’s important is to show your children that differences of opinion can still exist in our country.”

Millions of Iraqi children are the products of Sunni-Shi’ite unions, brought up in homes where different beliefs coexist peacefully. In today’s Iraq, however, they are being forced to think differently. “There’s no sectarian violence in my home because my parents live harmoniously with each other,” said Hala Kubaissy, 12, daughter of a Sunni father and a Shi’ite mother. “But when I reach school, I’m confronted with a different reality.”

Local NGOs working with children say that sectarian violence has seriously affected the psychology of children, especially those born of mixed marriages. “They suffer more because society accuses them doubly,” explained Ahmed Farid, a psychologist and spokesperson for Peace for Iraqis Association (PIA), a local NGO devoted to the issue. “They’re accused by Sunnis for being Shi’ite and also by Shi’ite for being Sunnis.”

Break down in security renders women vulnerable (2005)

- A recent survey undertaken by NGOs found that women were able to exercise their rights more freely prior to 2003
- The new Iraqi Constitution, approved in October 2005, makes Shari’a law the primary source of national law
- Violence and criminality, low living standards and slow reconstruction have had an increasing negative impact on the lives of women
- High rates of crimes against women, including honor killings and domestic violence are reported due to the lack of security and rule of law
- A survey showed that the Multi National Forces are defined as the most important threat by more than half of the women in the governorates of Anbar and Salah Al-Din
- Displaced women, in camp or camp-like situations are more likely to be exposed to sexual assault and abductions
- Women and children residing in camps face particular protection problems
- CEDAW calls on interim government to ensure participation of women and non discrimination in the new constitution

IRIN, 13 April 2006

“According to the findings of a recent survey by local rights NGOs, women were treated better during the Saddam Hussein era – and their rights were more respected – than they are now.

[...]

According to the survey, women’s basic rights under the Hussein regime were guaranteed in the constitution and – more importantly – respected, with women often occupying important

government positions. Now, although their rights are still enshrined in the national constitution, activists complain that, in practice, they have lost almost all of their rights.

Women's groups point to the new government, many members of which take a conservative view when it comes to the role of women. [...]

Government officials disagree saying that women's political views are respected and that they are better represented in government than was the case during the previous regime.

Female activists, on their part, agree with the survey's results.

"Before the US-led invasion in 2003, women were free to go to schools, universities and work, and to perform other duties," Senar added. "Now, due to security reasons and repression by the government, they're being forced to stay in their homes."

The new constitution, approved in October 2005, makes Shari'a [Islamic Law] the primary source of national law. According to Senar, however, Shari'a has been misinterpreted by elements within the government and by certain religious leaders, which has resulted in the frequent denial of women's rights. This is particularly the case in matters pertaining to divorce, she said."

UNHCR, October 2005, pp.34-40

"Continuing violence and high criminality, slow reconstruction, low living standards and the increasing tendency to apply strict Islamic behavioural and dress codes have taken a toll on women in Iraq. Indiscriminate attacks by insurgents have resulted in the death and injury of scores of civilians, many of them women.[...] Women of all religions risk being targeted if they do not comply with strict Islamic dress codes (e.g. not covering their hair or wearing Western style fashions). [...] According to police officials, dozens of women have been attacked with acid by religious conservatives in Baghdad[...] and many others have been killed outright. [...] Furthermore, the IWCP reports that unveiled women are frequently denied governmental jobs. [...] Among the Shiite community, the practice of *muta'a*, or temporary marriage, which was considered adultery by the former regime and punishable with fines or imprisonment, appears to be on the rise. The manner in which *muta'a* is practised in Iraq, which is meant to provide an income and protection for widowed or divorced women, strongly favours men as only they can decide to end a *muta'a* marriage (unless it was agreed at the outset that the women can end it as well). Furthermore, women cannot inherit from their *muta'a* husbands. [...]

Lack of both security and proper law enforcement has led to high rates of crime against women, in particular in the months after the 2003 conflict. A survey undertaken by the 'Organisation of Women's Freedom in Iraq' recorded that 400 women that were raped in Baghdad between April and August 2003. [...] Human Rights Watch has documented reports from Iraqi police officers that 'the number of (rape) cases reported [now is] substantially higher than before the war'. [...] Fear of harassment, abduction and rape prevents women from moving freely, thereby restricting their personal freedom, access to schools and universities, [...] opportunity to work[...] and access to health services.[...]

The ILCS revealed that 40 percent of surveyed women identified criminals as a direct threat to their safety, while 12 percent say that the MNF represents the main threat. There are significant differences in safety for women among the different Governorates. More than 85 percent of the women in the Governorates of Sulaymaniyah, Erbil, Dohuk and Muthanna report no direct threats, but 91 percent of women in Missan, 73 percent of women in Thi-Qar, 65 percent of women in Baghdad and over 40 percent of women in Wasit and Kerbala identify criminals as a threat. The MNF are defined as the most important threat by more than half of the women in the Governorates of Al-Anbar and Salah Al-Din. While 49 percent of all Iraqi women (92 percent of women in Al-Anbar and more than 70 percent of women in Thi-Qar and Missan) think that the

security in their area has worsened compared to one year ago, 20 percent (70 percent in Sulaymaniyah and more than 90 percent of women in Erbil and Dohuk) think security has improved or is the same compared to one year ago. [...]

There have been reports of abuse, including sexual abuse, of Iraqi women detained by the MNF in Abu Ghraib and other detention facilities. [...]

The social stigma attached to rape and domestic violence in Iraq, the insensitivity of the Iraqi police to such crimes (combined with the lack of female police officers), the lack of support services for victims of sexual violence (such as counseling, forensic testing, health and medical services, legal and financial services) and fears of retaliatory violence by male family members are all factors which may prevent women from reporting such incidents or seeking legal redress. [...]

Politically active women have increasingly become the targets of insurgents. [...] There have also been killings of professors, [...] women's rights activists[...] and humanitarian workers. [...]

Domestic violence (including 'honour killings') continues to take place in Iraq, and some observers believe it has increased since the fall of the former regime, given the corresponding rise in conservative attitudes. [...] 'Honour killing' is a term used to describe a murder committed by a family member to protect the family's honour. Many women and girls are at risk of death if they are accused of behaviour believed to have brought shame on the family, such as a loss of 'virginity' (even by rape), infidelity, a demand for divorce or a refusal of marriage. Many women are killed based on suspicions of a family member and are not given the chance to defend themselves.

As described above, the Iraqi *Penal Code* provides for lenient punishment of perpetrators of 'honour killings'. While it is encouraging that the Kurdish authorities have cancelled the relevant provisions in recent years and qualify the killing of a family member for honour reasons as straightforward murder, there is still a need to change people's way of thinking and to make 'honour killings' socially and morally unacceptable.

No exact figures on the extent of the practice are available and many cases undoubtedly go unreported. 'Honour killings' occur mainly in conservative Muslim families (both Shiite and Sunni, of both Arab and Kurdish backgrounds), in all areas of Iraq. 'Honour killings' cannot be justified by Islam or Sharia law, but are a 'tribal custom stemming from the patriarchal and patrilineal society's interest in keeping strict control over familial power structures'. [...] Tradition often serves as an excuse for violent acts 'against women daring to choose how to lead their lives'. [...] It cannot be excluded that 'honour killings' also take place among other religious groups as it has been observed in other countries.¹⁹² 'Honour killings' have also been reported among Iraqis abroad. [...]

A study done by Rewan Women's Information and Cultural Centre (RWICC), based in Sulaymaniyah, recorded 3,979 cases of women killed as the result of domestic violence in the North in the 1980s. [...] According to Kurdish Women's Action Against Honour Killings (KWAHK), [...] – a network of Kurdish and non-Kurdish activists, lawyers and academic researchers – between 1991 and 2000 more than 4,000 women were killed in the North in the name of honour, with the authorities failing to punish the perpetrators. [...] Despite the suspension of the relevant articles of the Iraqi *Penal Code* by the Kurdish authorities in 2000 and 2002 respectively, 'honour killings' continue to take place in Northern Iraq. The RWICC claims that either the bodies of victims of 'honour killings' are hidden or mutilated to make identification impossible, or their deaths are claimed to have been the result of an accident. One reported case involved the payment of compensation to a victim's family, of which the local authorities were aware and about which no criminal investigation took place. [...]

There are no figures available for the Centre and the South, however NGOs believe that the situation there may be even worse as cultural values and traditions remain very strong. According to the German NGO Wadi, which has conducted assessments on domestic violence in some areas of the South, 'the situation is much worse in the South; it has been completely neglected, and the fact that there is no data on this issue shows that there is no assistance for women suffering there'. [...] Amnesty International's report 'Iraq - Decades of Suffering' includes some references to 'honour killings' in Central and Southern Iraq, however the full extent of the practice is unknown. [...] A study conducted by the Ministry of Women's Affairs found that more than 400 women have been raped since the fall of the former regime and more than half of this group were later killed for honour-related reasons. [...]

Some women try and commit suicide, particularly through self-immolation, in order to 'cleanse' the honour of the family or to escape killing or other forms of violence. In the Governorate of Sulaymaniyah, [...] cases of self-immolation were recorded by RWICC in 2002. [...] The practices of hymen reconstruction on girls that have lost their virginity[...] and backstreet abortions[...] both pose a serious health risk but appear for some girls to be the only way to escape killing.

Women's shelters were established in Sulaymaniyah in January 1999 (*Nawa Centre*) and Erbil in April 2002 (*Khanzad Centre*). A third centre, opened by the German NGO Wadi in Mosul at the end of January 2004, was forced to stop working due to the continuous violence and threats by Islamists.[...] The centres provide food and accommodation, psychological treatment, social assistance, legal aid as well as a mediation programme. *Asuda*, the first protection centre for women endangered by 'honour killings', was opened in a hidden place in Sulaymaniyah in 2000. [...] Since women seeking protection often have to stay for long periods of time, *Asuda* offers a 'home' which includes education, leisure and daily activities. Mediation between the women and their families aims at enabling the women's return, but this may not always be possible and there have been cases of fathers assuring their daughters that they have forgiven them, only to murder them once they are back in the family home. Sometimes, *Asuda* sends women to far away villages and places in other regions of Northern Iraq, where they are not known and can find protection. However, in some cases there are no alternatives other than remaining in the protection centre or finding solutions outside Iraq.

A safe house for victims of domestic abuse was established within Baghdad's International Zone, [...] but was reportedly closed down in early 2005 on the order of former Interim President Ghazi Al-Yawer for 'security reasons'. [...] UNHCR has been informed that the shelter will be re-opened late in 2005 and will be operated by the Department of Social Welfare (Ministry of Labour and Social Affairs, MoLSA). Iraqi law provides that NGOs need to obtain MoLSA's authorization to open a social institution such as a women's shelter or an orphanage. [...]

During the summer of 2004, the Iraqi NGO 'Organization of Women's Freedom in Iraq' (OWFI) opened two shelters – one in Baghdad and one in Kirkuk – both of which are in secret locations and have the capacity to host up to 20 women at a time. The Chairwomen of OWFI reported that they face 'extreme difficulties' of reaching out to women, who are often unable to even leave their homes. While the organization was able to find solutions for a number of women to return to their families, other women are at such serious risk of being killed by their families that they cannot leave the shelter. [...] Despite these efforts by Iraqi authorities and NGOs, many women do not have access to shelters or legal, social and psychological counselling. [...]

Women and girls in Iraq may be exposed to harmful traditional practices such as forced and/or early marriage (including exchanging of women between families for marriage purposes and marriages between young women and much older men, [...] female genital mutilation (though limited to a few areas in Northern Iraq), [...] trafficking and prostitution. [...]

Women suffer most from economic and social deprivation. According to the ILCS, illiteracy rates[...] and maternal mortality rates[...] are extremely high. Girls have a significantly lower enrolment rate in primary schools than boys, [...] in particular in rural areas, and women's participation in the labour market is very low when compared with the wider region. [...]Many women who lost their husbands in one of Iraq's wars or in governmental campaigns against the civil population bear the full responsibility of providing and caring for their families. [...]"

CEDAW, 28 July 2005

"As Iraq has been a State party to the Convention on the Elimination of All Forms of Discrimination against Women since 1986, the Committee has, on previous occasions, expressed concern about the situation of women in Iraq and has called on the interim Government to do its utmost to ensure equal participation of women in the reconstruction process and full compliance with all provisions of the Convention in the development of Iraqi society.

The Committee now urges the Government of Iraq to ensure that the principles of gender equality and non-discrimination, as they are enshrined in the Convention, are fully reflected in the new Constitution of Iraq which will become the basis for the entire legal framework of the country, including the family and personal status laws. The Committee further emphasizes once again the urgent need to take special measures to rehabilitate and reintegrate women and children victims of war.

The Committee calls on the Government of Iraq to ensure that full attention is given to the Committee's concerns and to the country's obligations as a State party to the Convention."

IRIN, 21 May 2004

"At least 10,000 of the women and children who fled Fallujah are in camps outside Fallujah and in and around Baghdad"

UN Cluster 8/UNCT, August 2004

"The breakdown of general security has particularly affected women and girls. Armed fundamentalist groups target high-profile women, and the general lack of safety has left women exposed to sexual assaults and abductions. Displaced women, especially in camps or camp-like situations, are particularly vulnerable to such violations."

UNHCR, 12 August 2004

"In the centre, women are particularly affected by the security and situation of lawlessness in Iraq, especially as concerns their freedom of movement due to the threat of kidnapping. In the North, despite the fact that a law now defines honour killings as straightforward murder, crimes of this type still take place, and women who are, for example, victims of sexual aggression, are nevertheless frequently ostracized by their family members in an attempt to preserve the family's honour. There is currently one centre for women who are victims of honour crimes. However UNIFEM stated that they do not believe that the existence of the centre is well-known among the female population in the North."

IRIN, 20 May 2004

"In the Kirkuk area in the north, where ethnic tensions are high, Arabs and Turkmen need to be protected from arbitrary displacement and violence. Mines and unexploded ordnance are also a serious protection concern in the north. In the centre/south, IDP women heads of household face protection problems as do women and children fleeing Fallujah who have taken refuge in tents.

More than 50,000 displaced persons in Baghdad, according to the NGO Premiere Urgence are reported to be in need of protection and security. In particular, several thousand Roma need protection from harassment and expulsion."

"Both women and men have suffered from the impact of the conflict on civilians, injuries and death as a result of fighting, the deterioration in standards of living resulting from exposure to conflict, damaged infrastructure and the collapse of public security. However, women felt specifically vulnerable during the past year owing to the deteriorating security situation including the kidnapping of civilians, which has led to increased restrictions on their freedom of movement and their access to education, health services, and employment opportunities." (OHCHR, 9 June 2004, p.23)

OHCHR, 9 June 2004, p.24

"The Transitional Administrative Law (TAL), adopted by the Governing Council on 8 March 2004, prohibits sex discrimination but does not offer adequate protection against discrimination in marriage (no equal rights to marry, within the marriage, or to divorce), inheritance and ability to pass citizenship on to their children."

AI, 22 February 2005

"Women and girls in Iraq live in fear of violence as the conflict intensifies and insecurity spirals. [...] The lawlessness and increased killings, abductions and rapes that followed the overthrow of the government of Saddam Hussain have restricted women's freedom of movement and their ability to go to school or to work. Women face discriminatory laws and practices that deny them equal justice or protection from violence in the family and community. A backlash from conservative social and political forces threatens to stifle their attempts to gain new freedoms. The general lack of security has forced many women out of public life, and constitutes a major obstacle to the advancement of women's rights.

[...]

Under the government of Saddam Hussain, women were subjected to gender-specific abuses, including rape and other forms of sexual violence, as political activists, relatives of activists or members of certain ethnic or religious groups. War and economic sanctions had a particular effect on women. They left women and households headed by women, many of them war widows, among the poorest sectors of the population. In the 1990s the mortality rate for pregnant women and mothers increased, and became one of the worst in the world for children under the age of five.

Since the 2003 war, women's rights activists and political leaders have been threatened by armed groups and a number have been killed. Women have been subjected to sexual threats by members of the US-led forces [1], and some women detained by US forces have been sexually abused, possibly raped."

Footnotes

1 The term "US-led forces" is used in this report to refer to both coalition forces (during the 2003 invasion and occupation of Iraq) and multinational forces (since the handover of power in June 2004).

See also, *"Violence against women in Iraqi-Kurdistan", 18 May 2005, Wadi e V. and "Focus on women's rights", IRIN, 6 June 2005*

Children gravely affected by the situation in current Iraq (2005)

UNAMI, November - December 2005, p.2-3

"Children remain gravely affected by the situation in current Iraq. According to some sources, women and children account for twenty percent of all civilian deaths. Although the exact number of children who have been killed as well as the extent of the trauma they have suffered as a result of the conflict are difficult to determine, the extent of the suffering of children is unacceptable. Scores of children have been killed in indiscriminate bombings and by indirect fire. Some surveys suggest that a large number of children in Iraq have lost one or both parents as well as close family members to violence. The Iraq Living Conditions Survey by the UNDP/Ministry of Planning showed that thirteen percent of Iraqis surveyed who were between the ages of fifteen and nineteen had lost their fathers (while in neighbouring Jordan only eight percent of the same age group had lost their fathers). Of particular concern are reports of attacks involving children acting as combatants. On 1 November 2005, a boy said to be aged between ten and thirteen years allegedly carried out a suicide bombing targeting the police commander in the city of Kirkuk. Later that month, two boys aged twelve and thirteen years reportedly carried out attacks against MNF-I patrols in Fallujah and Hweeja, respectively."

SUBSISTENCE NEEDS

IDP needs in Baghdad and surroundings

Assistance needed for displaced in Anbar province (2006)

- Local NGOs and relief workers have appealed for further humanitarian assistance for isolated groups of displaced persons who fled their homes due to fighting between the US led coalition forces and insurgents and military operations
- Many displaced in Anbar province are reported to assistance
- A demonstration was held in Baghdad to call for government and international assistance

IRIN, 31 January 2006

"Relief workers in Anbar governorate say that humanitarian aid is still badly needed for isolated groups of displaced persons who fled their homes due to recent fighting between insurgents and US troops.

"Hundreds of displaced are still taking refuge in abandoned government buildings in isolated areas of Anbar," said Muhammad Kubaissy, a volunteer for the Iraqi Red Crescent Society (IRCS) from the city of Ramadi, some 110 km west of the capital, Baghdad.

"These families are suffering from a lack of food, clean water and the heaters necessary for this year's harsh winter," Kubaissy added.

According to Anbar municipality officials, 1,000 people have been displaced from al-Qaim and Romanna - both located close to the Syrian border - and Ramadi since the end of November, and continue to live in tenuous circumstances. Many have lost their jobs and had their homes destroyed during fighting in the area.

An estimated 20,000 people were registered by the IRCS as having fled their homes three months ago, mostly from al-Qaim and Romanna. Over 19,000 of these have since returned home, leaving several hundred stranded along the Syrian border.

"No one is watching this issue because the displaced are scattered in different areas," said Ahmad Rabia'a, a senior official in Anbar municipality.

The Baghdad-based IRCS has sent a specialised team to the Anbar governorate in the hopes of locating displaced families and providing them with badly needed aid.

"Continuous fighting and the vast amounts of displaced people have made it difficult to follow up with different groups," said IRCS spokeswoman Ferdous al-Abadi. "Some families have been overlooked but we will soon have a full picture of the situation."

Some of those involved in the relief effort, meanwhile, have criticised the government's seemingly apathetic approach to the situation.

"We've informed the central government about the displacement issue many times, but we have never received a response – not even from the Ministry of Human Rights," complained Rabia'a.

According to Karam Obaid, a senior official at the human rights ministry, the government has been preoccupied over the past few months with December's parliamentary elections and security issues. But he insisted that a fund would be set up for displaced families as soon as a new government was formed in February.

In the interim, though, aid workers say the situation remains desperate.

"Residents from Ramadi, al-Qaim and Romanna are still suffering from a lack of supplies," said Kubaissy.

"They have been forgotten," he added..

IRIN, 21 December 2005

"Some 400 people demonstrated in the Iraqi capital, Baghdad, on Tuesday, calling for more aid for people displaced in the western Anbar governorate, due to ongoing clashes between US forces and insurgents.

Anbar residents, now living with relatives in the capital, and others took to the streets shouting slogans urging the government and international aid agencies to help families in need of vital supplies.

Many don't have adequate food or shelter and are living in improvised camps and abandoned buildings near the cities of Ramadi and al-Qaim, they said.

"They are human beings, not animals. They need a roof over their heads, food to eat and healthcare," demonstrator Ibrahim Rabia'a said.

"Instead of discussing who will run the country, the government should open its' eyes to the deteriorating conditions of families who are homeless in Anbar," he added.

According to the Iraqi Red Crescent Society (IRCS), more than 300 families from the war torn governorate remain displaced, afraid to return to a city which could turn violent again.

"We are struggling to help these families due to a lack of resources, and as long as they remain displaced, their situation will deteriorate," Ferdous al-Abadi, a spokeswoman for the IRCS in Baghdad, noted.

The US military says the security operations, which often include air strikes and began several months ago, are necessary to flush out insurgents and make the areas safe.

Rabia'a, who is a resident of Ramadi and has taken refugee at his parents' home in the capital, explained that many children in the area were suffering from a lack of health care. He added that families would be subjected to harsh winter weather conditions in the coming weeks.

The government did not react to the protest, but has defended official inaction in the past saying that it has limited resources and manpower."

See also: IRIN reports from November and May 2005 in sources below

IDP needs in Baghdad and surroundings (April 2005)

- There is an urgent need for shelter, particularly for IDPs in the cities
- A number of IDPs are living in temporary shelters, often in inadequate housing conditions, such as in buildings without windows, tents, schools and in a mosque
- Water is scarce in certain areas, often in combination with electrical power shortages
- Lack of water and sanitation services is a main concern in public buildings
- The housing destruction in Fallujah has been particularly extensive
- Some IDPs/returnees were in need of food ration cards
- Already exhausted health services in some areas are further undermined by the arrival of IDPs
- School attendance is lower among IDP children than local resident children
- There is a need to increase income generating activities for the displaced

Baghdad	Housing: The needs for a national shelter programme that would house the IDPs and urban poor in the cities are paramount. As evictions are a recurrent concern, there is a need to work on alternative locations. It is hard to find available locations in Baghdad Governorate, as most of the empty locations are public sites and dedicated for use by the Iraqi government. Any rehabilitation of these public sites would create a pull factor for more opportunists. IDPs in several locations were evicted during this month by authorities such as Ministry of Trade and Ministry of Interior, the evicted families were scattered around with difficulties of tracking them down by the Monitoring team. Water & Sanitation: Water is scarce in areas of Abu Ghraib for families living in schools; with intermittent cut-off of main water supply due electrical power shortages and fuel shortages. There is also a shortage of water supply in most of Baghdad neighborhoods, due to long hours of electricity cuts and fuel shortages. In Abu Ghraib and Khana Dhari, families living in rural areas are suffering from potable water sources due breakdown of piping systems in parts of the area. In Taji and Tarmiya Districts, the host community and displaced families are consuming well water as the main source of potable water due to scarcity of piped water sources. This has lead to an increase in the incidence of Gastro-intestinal disorders among the community. Public buildings were often looted after the fall of the previous regime, and are not equipped for hosting families. They lack domestic water and present deficiencies in sewerage systems. Baghdad municipality is not willing to improve the situation in order not to create a pull factor. Health: Poor hygienic environment due to lack of water & sanitation services is the main concern in the public buildings. Access to public health facilities is poor (especially for the Roma community). Shortage of medication in Taji area due to waves of displacement from Fallujah. No epidemics or spread of infectious diseases prevailing in the area of Abu Ghraib. Employment: With many of the post-conflict IDPs originally farmers, they face difficulties in finding jobs, as they are not skilled and not adapted to work in the cities. General unemployment is a concern for all groups surveyed." (IOM, April 2005)
Anbar	Emergency Assistance: Since October 2004 the local communities and the humanitarian agencies provided large amounts of NFIs, food and medical assistance to the displaced families. The needs were exceptionally urgent as the displacement occurred in the middle of the harsh winter months. Over 40,00 families in Anbar and Baghdad received blankets, cooking stoves, mattresses,

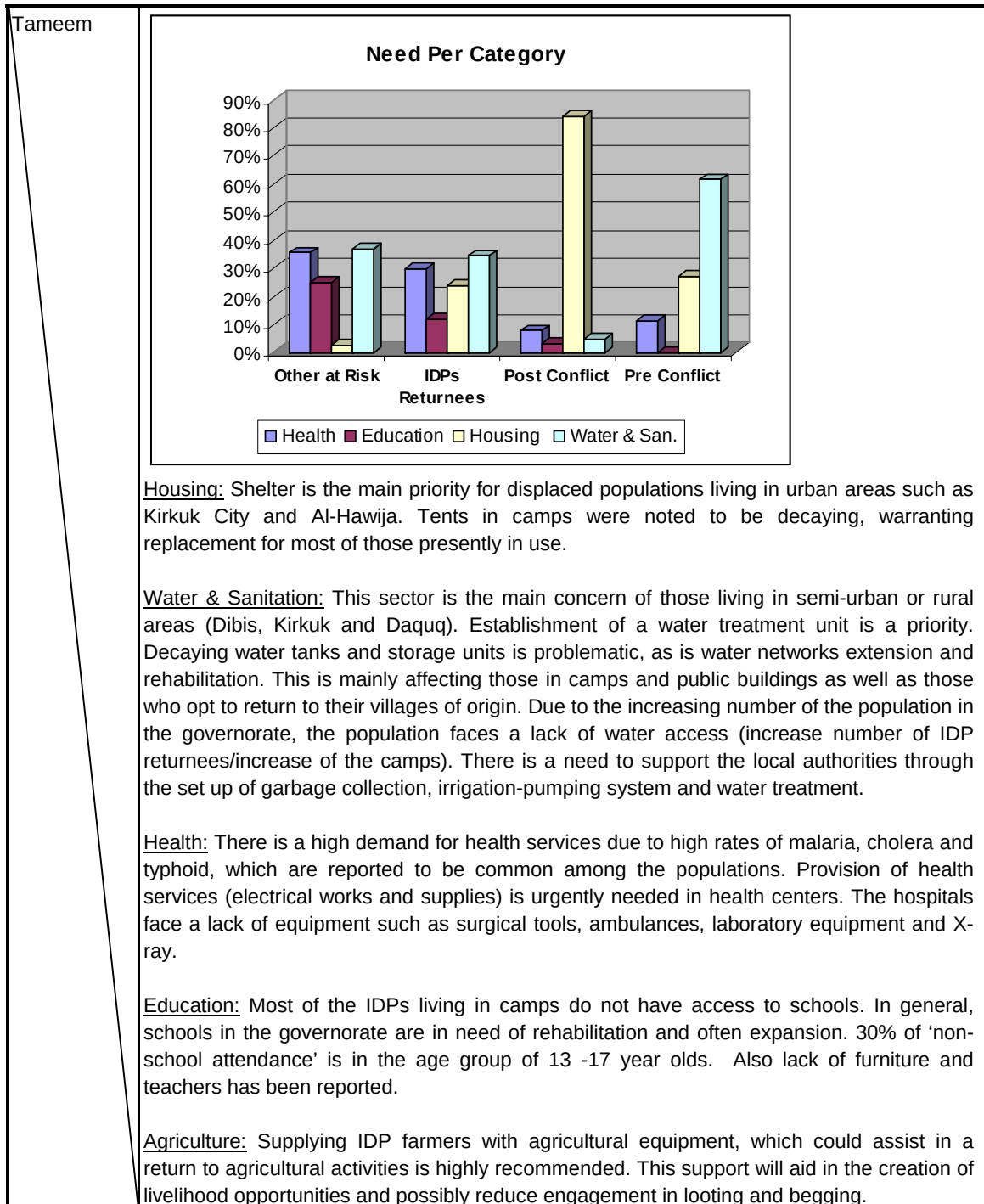
	buckets, jerry cans, plastic sheeting, clothes packages, canned food, winter medicines, domestic hygiene kit, cooking sets, personal hygiene kits, heaters, chlorine tablets, baby kits. Needs for NFI and food remains high with those who returned and those in displacement. <u>Water & Sanitation:</u> Water is taken from river and lakes in the area and there is a need of chlorine tablets for purification. Families are using the facilities of the hosting buildings except for those living in tents, which are approaching open areas. Some agencies are in the process of repairing the main generators in Amiriyah for the water treatment plant, the hospital, as well as the generator of Saglawiyah water treatment plant. Lack of sanitation facilities in Saglawiyah, Ana and Amiriyah are reported. <u>Food:</u> In October, November and most of December, Ministry of Trade did not distribute food to the displaced people from Fallujah, relocated on the outskirts. Recent information indicates that MoT has resumed distribution of food in the villages around Fallujah. In the meanwhile, the international community, with the supply of intermediate food packages, has provided assistance to the displaced people in need. There are still families in different locations that do not benefit from the PDS distribution. <u>Housing:</u> IDPs live in public buildings or with host families. Though tents were set up in open areas, most of the families preferred not to use them for fear of multinational forces attacks. In Karma, 25 families are living in rooms near a school without roofs. In Al Julian (on the periphery of Fallujah) poor public infrastructure and services (no paved roads, lack of electricity, lack of proper sanitation and sewage collection) is coupled with extensive house damage during the last military operations. Families are currently living with host community and do not have proper accommodation. <u>Employment:</u> Beside the current crisis that is affecting all the Governorate, income generation is one of the main needs in the governorate for all IDPs and the host community, as IDPs continue to deplete their limited assets. Unemployment is very high in Fallujah, and risks to become a major factor of social instability in the city." (IOM, April 2005)
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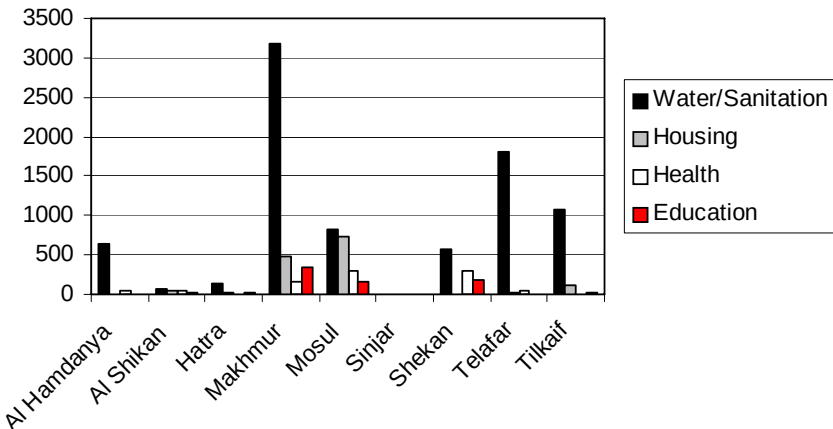
IDP needs in central Iraq

IDP needs in central Iraq (April 2005)

- Shelter is a priority need for the displaced in urban areas, e.g. Kirkuk, where shelters like tents are found to be in poor condition
- In some areas, over 80 per cent of the displaced population is living in camps/settlements
- Lack of water and sanitation present major problems for the displaced living in semi-urban and rural areas, particularly those living in camps and public buildings
- There is also a need for improvement in health services, with high rates of malaria, cholera and typhoid being reported among displaced populations
- Schools need rehabilitation and expansion
- Most displaced living in camps do not have access to schools
- Poverty among displaced farmers could be reduced by supporting livelihood opportunities, including supplying IDP farmers with agricultural equipment

- Electricity is also a need in some areas
- Safe drinking water represents an immediate need for displaced populations in camps and public buildings
- Food needs are generally met, however some displaced are unable to meet other basic needs (medicine, fuel and clothing) and are forced to resort to other means to finance these needs (including child labour and selling part of food rations)



	<u>Food:</u> The majority of Tameem's population has access to regular food through the PDS rations. Nevertheless, IDP families have reported to be excluded from the monthly rations due to the fact that families experiencing multiple displacements do not have the appropriate card for their new location." (IOM, April 2005) See also, "Displaced Arabs from Kirkuk in need of supplies" IRIN, 7 March 2005																																																		
Niawa	"The main priority remains related to the provision of water and sanitation. Obviously, the approach of the cold season heightens the need for appropriate shelter and heating, as the vast majority of the IDPs are still located in camps and settlements. In Mosul, Makhmur and Telafar the need of housing is clearly emerging as more than 74% of the population is living in camps/settlements. Electricity is also a major need particularly in Sinjar, Telafar and Mosul. The community of Sinjar lives in camps without electricity. Regarding the health issue, basic health services seem to be well provided all over the Governorate but hospital services are demanded: hospitals being too far for some communities particularly in Mosul, Makhmur and Al Hamdanya.  <table><thead><tr><th>District</th><th>Water/Sanitation</th><th>Housing</th><th>Health</th><th>Education</th></tr></thead><tbody><tr><td>Al Hamdanya</td><td>600</td><td>100</td><td>100</td><td>100</td></tr><tr><td>Al Shikan</td><td>100</td><td>100</td><td>100</td><td>100</td></tr><tr><td>Hatra</td><td>100</td><td>100</td><td>100</td><td>100</td></tr><tr><td>Makhmur</td><td>3200</td><td>500</td><td>100</td><td>100</td></tr><tr><td>Mosul</td><td>800</td><td>700</td><td>800</td><td>100</td></tr><tr><td>Sinjar</td><td>100</td><td>100</td><td>400</td><td>100</td></tr><tr><td>Shekan</td><td>500</td><td>100</td><td>100</td><td>100</td></tr><tr><td>Telafar</td><td>1800</td><td>1800</td><td>100</td><td>100</td></tr><tr><td>Tilkaif</td><td>1100</td><td>1100</td><td>100</td><td>100</td></tr></tbody></table> <u>Water & Sanitation:</u> Most IDPs and returnees have limited or no access to essential basic water and sanitation. The implications out of this are health risks associated with contaminated water supplies, inappropriate handling of waste, and disposal of sewage. The most important of these are diarrhea diseases and others transmitted by the inadequate sanitation, poor hygiene, and contaminated and inadequate water supplies. Provision of potable water is the main priority for the entire population. <u>Housing (Shelter & tents):</u> The vast majority of the IDP families are living under tents and in old military barracks. The families interviewed expressed the need to rehabilitate and renovate their building/houses or build new houses. <u>Health Services:</u> Primary health centers exists but need rehabilitation. The main problem seems to be the access to the health centers for the families and an improvement of the coverage is requested. <u>Education:</u> There is a need for school renovation in Tilkaif, Telafar, Makhmur and, Shekhan Districts." (IOM, April 2005) See also, "Displaced Talafar families living rough-IRCS", IRIN, 17 Sept 2005 "Urgent aid required as displacement increases in Talafar", IRIN, 14 Sept 2005	District	Water/Sanitation	Housing	Health	Education	Al Hamdanya	600	100	100	100	Al Shikan	100	100	100	100	Hatra	100	100	100	100	Makhmur	3200	500	100	100	Mosul	800	700	800	100	Sinjar	100	100	400	100	Shekan	500	100	100	100	Telafar	1800	1800	100	100	Tilkaif	1100	1100	100	100
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Diyala	<u>"Water is a priority:</u> in many IDP settlements there is limited or no access to water services. Sanitation facilities, though considered less important by families, are nevertheless in a very																																																		

	poor state. NGOs are implementing small interventions on the water supply system, repairing and/or providing water pumps/pipes, in order to provide water to some IDPs camps; at the same time it is continuing to distribute water by tanker in a few camps where IDPs cannot afford to do it by themselves. <u>Shelter:</u> remains one of the highest priorities needs in Diyala. There is a high need for carrying out basic repairs on many public buildings which were looted and where IDPs are now residing, while also remaining cognizant to the on-going eviction process. Minor rehabilitation of some military barracks was conducted and a plan for further interventions has being developed. <u>Food:</u> Unfortunately, many IDP/returnees in the area of Khanaqin are still waiting for their food rations cards to be transferred. Approximately 400 families have been reported by Local NGOs as not receiving the food ration for months. A food distribution by an NGO will be soon conducted, with the support of an ad hoc set up Local Committee. <u>Health:</u> Apart from the distance, the families did not report any problems of accessibility to the health centers. Mobile health staff visits might improve families' access to health services, but this has to be carried out by the existing health structures in the area to avoid creating an unnecessary parallel system. The health structures, as most of the public facilities, are generally in poor conditions and their capacity to provide essential services is currently even more undermined due to the high increase of the population. Three Hospitals have been rehabilitated by IOM Partner: Muqdadiya, Jalawla and Baquba Hospitals. Rehabilitation of some PHCC is planned by IOM Partner and other NGOs. Recently, shortage of medical supplies has been reported. <u>Education:</u> The level of school attendance is reported to be lower between the IDP children population compared to residents. Awareness on the importance of education, for boys and girls, shall be increased. Rehabilitation of 4 schools in need is planned. <u>Income opportunities:</u> the location of the camps is an important factor in terms of job opportunities. It determines the possibilities for the families to continue their traditional livestock activities (when land and fodder are available) or the possibilities for the families to find new income generating activities. The majority of the families claim to be jobless, yet the solidarity systems in place still partially allow for these families to benefit from the small percentage of the population who have income generating activities. Most of the HoHs are farmers and/or livestock-breeder, thus self-reliance activities shall mainly enhance/build on their own capacities. In the next period, focus of monitoring will be given on assessing current capacities/assets of IDP families in some specific villages, at the same time paying attention to the need of the whole host community. <u>Capacity Building Initiatives:</u> there is a need to increase the level of collaboration with local counterparts in Iraq (local communities, civil society and NGOs) as well as to increase capacities of its local staff related to consistent programme implementation and planning. Such an effort will also contribute to an increased sustainability of programmes currently implemented in Iraq. Specific local initiatives are planned, in order to increase awareness on protection issues, management skills and local networking." (IOM, April 2005)
Salah Al Din	<u>"Water & Sanitation:</u> Safe drinking water represents the biggest need for displaced populations in public buildings and camps during summer time. Local authorities confirmed that gastrointestinal diseases, mainly during the summer months are directly related to unsafe drinking water being consumed by the populations and is the underlying cause of health problems. Unsafe drinking water, overflow of grey water, poor self-built latrines, lack of garbage disposal and overcrowded conditions increase the health risks and over-all vulnerability of IDPs.

	<u>Housing:</u> Shelter, including tents, is one of the biggest priorities for the displaced populations in Salah Al Din, especially those in public buildings and camps. The sub-standard living quarters and the overcrowded conditions warrant assistance for those living in public buildings and camp. Poor housing in winter season contributes to a high prevalence of respiratory tract infections among the IDPs. However, a longer term solution for shelter should be considered. <u>Food:</u> In general food needs appear to be covered for most of the displaced populations. However, some of the IDPs and vulnerable families are not able to purchase fresh vegetables and meat to complement the uniform food ration. Selling part of the food ration, child labour and depletion of household assets are common to finance other urgent needs in the family such as medicine, fuel, clothes, etc. It is very likely that the intended cease of the 'food ration' program will negatively affect the needs of IDPs and others at risk. If this is confirmed, plans should be contemplated to quickly act to meet such needs. <u>Health:</u> Health risks are associated to the lack of safe drinking water, especially during this summer period, and to the poor housing conditions during wintertime. The rehabilitation of health centers in areas inhabited by displaced population or vulnerable groups is encouraged. To further increase outreach, mobile medical teams are encouraged to provide services to IDPs and other vulnerable groups. Assistance should be provided within the department of health. Parallel systems will hinder rehabilitation of the health structure. <u>Household Assets and Non Food Items:</u> Traditional safety networks which normally support families during periods of economic stress appear to have been exhausted in Salah Al Din. Increase on the cost of kerosene has affected seriously poor and vulnerable families in the region. A high price of kerosene during December-February has hindered families' ability to cope with cold nights during the winter time. Lack of kerosene has put vulnerable segment, such as women, children and old people, of this already vulnerable group at the brink of health risks. Depletion of assets has been commonly cited to cover basic family needs such as purchase of safe drinking water, supplementing food items and medicines ." (IOM, April 2005)
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IDP needs in the lower south region

IDP needs in the lower south region (April 2005)

- The displaced in the lower south region lack of access to adequate water, shelter and health facilities
- Many displaced families live in settlements or public buildings without direct connection to water sources, forcing them to walk long distances to reach potable water or to rely on contaminated sources
- Limited access to potable water has meant high incidence of diarrhoea and other water-borne diseases among the displaced
- Many displaced live in inadequate or not durable shelters, including mud/reed shelters, public buildings, and rented rooms which are often overcrowded and lack general services
- IDPs living in public buildings (often with no access to water, sanitation and electricity) also face evictions and will need alternative accommodation

- Lack of access to health clinics along with shortages in equipment and medicines has been a key problem for IDPs living in remote areas
- Despite rehabilitation in school facilities by international and local actors, lack of adequate school facilities remain a problem in areas where the displaced are living
- Displaced families have also expressed the need for shelter assistance to repair destroyed houses as well as income support

Basrah	" Access to basic health service, Access to Water and Access to Primary Education have been mentioned by the IDP families displaced in Basrah as priority needs. In Abu Al Khaseeb, district located in the eastern part of Basrah governorate at the border with Iraq, about 1500 IDP families are living in camp like settlements or in public buildings without direct connections to water sources. Water pipes and water tanks have either being damaged or do not exist at all. IDP families have to walk several hundreds meters, in some cases kilometres, to access the closest source of potable water. On the other side of Shatt Al Arab river, in Shatt Al Arab district, access to water is limited to the extent that the 2,000 IDP families located in the area often get water directly from the river; this resulting in an high incidence of diarrhoea and other water-born diseases. In Al Midiana, North-West of Basrah, about 26,000 IDPs are living in remote areas, kilometres away from urban areas and from the closest health clinic, which often can't provide even the minimum emergency assistance due to shortage of equipment and drugs. In the area of Huwair, for example, 2,015 hundred families have to walk 40 minutes to reach the closest Health facility. At primary education level, international community and local authorities have been very successful on mapping the school facilities in need of rehabilitation and refurbishment. Despite the high pace of the school rehabilitation effort, still a lot of the gaps remain unaddressed: in Al Qurna, Northern part of the governorate, where 12,000 IDP families are displaced, children in several villages are attending school in old buildings made up of mud and reed." (IOM, April 2005)
Missan	"Water & Sanitation, housing, and access to health facilities represent the priority needs for IDP families currently displaced throughout Missan Governorate. These problems affect both IDP families living in the urban areas of Amara, capital of the Governorate, and IDP communities isolated in the remote districts of Ali Al-Gharbi, up north, or around Al-Mejar Al Kabi and Qal'at Saleh districts in the southern part of Missan. Families displaced in Amara are accommodated either in host families, in public buildings, or in collective towns built right outside the city. The accommodations are in most cases overcrowded, with poor or non existing water and sanitation facilities. Outside of Amara, IDP families living in the rural areas, at the edge of the Marshes are forced to live in shelter made up of mud and reed, with very limited access to drinking water and no sanitation facilities. Emblematic is the case of IDP families originally from the villages of Al Kheir and Al-Uzeir, displaced as a result of the floods occurred in the Southern part of the Governorate in April 2004. Approximately 2,000 families have been assessed living in mud/reed shelters. Several individuals in these communities have been affected by water born health diseases related to the absence of Water and Sanitation facilities. The health emergency is a two-folded problem: on one hand, water-born and air born diseases are spreading among the population due to poor living conditions (latest reports speak for an alarming high increase in cases of tuberculosis); on the other, there is a shortage of equipped health clinics capable of identifying and effectively tackle health epidemics." (IOM, April 2005)

Muthanna	"Housing and Water & Sanitation represent the priority needs for the IDP families displaced in Muthanna Governorate. In the northern district of Al-Rumaitha about 1,800 IDPs are accommodated either in host communities or public buildings, where potable water is scarce and often contaminated. Emblematic is the situation in the village of Al Assakery, where 56 IDP families are living in rented rooms or in public buildings, without access to sanitation facilities and surrounded by swamps. Monitoring assessments indicate the presence of many individuals affected by water born diseases and of children in precarious health conditions due to unhealthy living conditions. In Al-Samawah urban area, about 300 IDPs are still occupying public buildings that have no access to water, sanitation facilities and no electricity connection. While evictions appears inevitable, no alternative accommodations are available to these families, whose situation is made even more complicated by the lack of employment and income to support their most basic survival needs. In the district of Al Khidhir, southern part of the governorate, around 150 IDPs have found accommodation in host communities. When assessed, the families have voiced their concern for the lack of housing alternatives to their current accommodation in host communities. The monitors have reported a high incidence among the population of water-born diseases, due to poor water and sanitation condition in the village" (IOM, April 2005)
Thi'Qar	"Housing and Water & Sanitation have been assessed as being priority needs of the IDP families currently displaced in Thi-Qar Governorate. In Al Rifa'i and Al-Shatra districts, in the northern governorate remote areas, the vast majority of the IDPs, approximately 2,500 individuals, are living in collective towns, in overcrowded accommodations, and with no access to proper water & sanitation facilities. When assessed, families have expressed their dire needs for shelter assistance to repair and upgrade their houses, often too small to accommodate all members of the extended family. Many assessed individuals, young people in particular, have asked support for income generation activities such as agricultural tools or craft-workshops, that would help them taking care for their families and for the community. Moving down to Nassiriyah, the capital of the governorate, more than 5,000 IDPs have found provisional accommodation in host families. These solutions have proven to be effective on avoiding the marginalization and the discrimination of the IDP populations; however, they don't represent an option in the long term. About 200 IDPs have been reported being accommodated in public buildings, mixed with other vulnerable families. Health surveys conducted by local authorities and partner NGOs on this caseload have highlighted a significant widespread of water-born diseases due to the absence of proper water & sanitation facilities. All these families have reported having no problems on accessing PDS food distributions. IDPs dependency on the food distributions, however, is playing against their empowerment and integration within the society, especially in the absence of employment schemes and income generation opportunities. In the southern districts of Suq Al-Shoyokh and Al-Chibayish, about 7,000 IDPs are accommodated either in collectives or in host communities. Similarly to the situation in the northern villages of the governorates, IDP families can't count on long-term shelter options and have to confront severe constraints in terms of access to basic public services." (IOM, April 2005)

See also "UN Inter-Agency Assessment of Vulnerable Groups: Marsh Arabs", June 2003, UNOHCI in the sources below

IDP needs in the North

IDP needs in the north (April 2005)

- Safe drinking water represents the biggest need for displaced populations in public buildings and camps
- Sanitation is also a problem for many displaced families (e.g. 61 per cent of displaced families in the Sulaymaniyah province lack proper sanitation facilities)
- Shelter is another key priority for the displaced, especially those in public buildings and camps
- While food needs are generally covered, there are cases of very poor IDPs being unable to purchase fresh vegetables and meat to compliment the food ration

Sulaymaniyah	"The three most urgent need priorities of the IDPs were recorded during the survey. [...] Apparently, Water, housing & Electricity were the first priority needs, 26.8%, 17.4 % and 10.2% respectively.[...] Food All the families are benefiting from PDS but for most of them the quantities of the food items included in PDS are not covering their needs particularly cooking oil, sugar & rice thus they are obliged to buy them in the local markets. There are cases of very poor IDPs and vulnerable families who are not able economically to buy meat & vegetables which are also not covered by public Distribution system. The means of livelihood are mainly being a member of local armed units, security staffs and casual job opportunities like construction labour & service works. Only 36% have regular income sources while 64% of are depending on PDS and assistances from Local Authorities and relatives. [...] Water & Sanitation: Most of public buildings are sub standards and lacking a proper water & sanitation facilities. [...] 34% do not have bathrooms. 61% families have very bad latrines and 37% have very bad bathrooms Safe drinking water represents the biggest need for IDPs. There is shortage of safe drinking water. The quantity of the available water is also another problem because in many cases the water is of good quality but the supply duration is only few hours per day. One can imagine the problem the case where 24% of families are sharing one tape per 2-4 families for short supply duration while for 40% no taps atoll are made available. The very bad sanitation and hygiene conditions were observed in many public buildings in addition to over flow of grey water and lack of garbage management. [...] Health: IDPs living in public buildings particularly those buildings located in city, District and Sub _District centres, almost have the same chance as the rest community to have access to the existing public health
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	centres and they are not distinguished for being IDPs [...] 92% have access to the health facilities. It is worth mentioning that most of the existing public health facilities are facing the shortage in the quantity and the type of the drugs required to cover the population needs. Some health facilities are facing shortage of medical staffs. [...] Housing: Shelter is one of biggest needs of IDPs because the Public buildings are of sub standards and in need of rehabilitations and repair. [...] 51% of buildings are very bad and 22% are bad while only 9% is good. Most of the families are living in one room with a space not exceeding 20 square meters. In most cases IDPs made partitions from nylon to divide the large spacing of the buildings." (UNOPS, April 2005)
Dahuk	"The three most urgent need priorities of the IDPs were recorded during the month. [...] Apparently, housing, Food items & Water (domestic use), were the first priority needs, 51.8%, 23.2 % and 15.9 % respectively. [...] Food All IDP families are benefiting from PDS but for most of them the quantities of the food items included in PDS are not covering their needs particularly cooking oil, sugar & rice .Thus, they are obliged to buy them in the local markets. There are cases of very poor IDPs and vulnerable families who are not able economically to buy meat & vegetables which are also not covered by public Distribution system. The means of livelihood are mainly being a member of local armed units, security staffs and casual job opportunities like construction labour, loading and unloading workers & service works. 95% have regular income sources but the earned money is hardly covering the day to day family requirement. Thus, only 17% are able to stock foods while 83% of are depending on PDS and assistances from Local Authorities and relatives.[...] Water & Sanitation: Most of public buildings are sub standards and lacking a proper water & sanitation facilities. 23.2% of IDPs have very bad latrines and 52% have bad bathrooms. 17.7% have latrines of bad conditions. 44% of IDPs sharing two taps per 2-4 families. Safe drinking water represents another need for IDPs. There is shortage of safe drinking water. The quantity of the available water is also another problem because in many cases the water is of good quality but the supply duration is only few hours per day. The problem becomes worse when 44% of families are sharing two taps per 2-4 families for short supply durations. The very bad sanitation and hygiene conditions were observed in many public buildings in addition to over flow of grey water and lack of garbage management. The Watson system is in under standard conditions in many locations. [...] Health IDPs living in public buildings particularly those buildings located in city, District and Sub - District centres, almost have the same chance as the rest community to have access to the existing public health centres and

	they are not distinguished for being IDPs . 100% have access to the health facilities. It is worth mentioning that most of the existing public health facilities are facing the shortage in the quantity and the type of the drugs required to cover the population needs. Some health facilities are facing shortage of medical staffs. [...] Housing: Shelter is one of biggest needs of IDPs because the Public buildings are of sub standards and in need of rehabilitations and repair. The table below shows that 57% of buildings are bad and 23% are very bad while only 4% is good. Most of the families are living in one room with a space not exceeding 20 square meters. In most cases IDPs made partitions from nylon to divide the large spacing of the buildings.” (UNOPS, April 2005)
Erbil	“The three most urgent need priorities of the IDPs were recorded during the survey. The most urgent requested by the IDPS are shown in the table. Apparently, shelter, water & Electricity were the first priority needs, 70.8%, 8.4 % & 8.2% respectively. [...] Food All the families are benefiting from PDS but for most of them the quantities of the food items included in PDS are not covering their needs particularly cooking oil, sugar & rice thus they are obliged to buy them in the local markets. The means of livelihood are mainly member of local armed units, security staffs and casual job opportunities like construction labour & Taxi driver. Only 61% have regular income sources while 39% of are depending on PDS and assistances from Local Authorities. [...] Water & Sanitation Most of public buildings are sub standards and lacking a proper water & sanitation facilities. The tables below show that 56% of families do not have latrines and 61% do not have bathrooms. 14% families have very bad latrines and 13% have very bad bathrooms Safe drinking water represents one of the biggest needs for IDPs. The quantity of the available water is also another problem because in many cases the water is of good quality but the supply duration is only few hours per day. One can imagine the problem when 43% of families are sharing one tape per five families for short supply duration. [...] Health IDPs living in public buildings particularly those buildings located in city, District and Sub _District centres, almost have the same chance as the rest community to have access to public health services and they are not distinguished for being IDPs as shown in the table below 99% have access to the health facilities. It is worth mentioning that most of the public health facilities are facing the shortage in the quantity and the type of the drugs required to cover the population needs. Some health facilities are lacking the required medical staffs. [...] Housing: Shelter is one of biggest needs of IDPs because the Public buildings are of sub standards and in need of rehabilitations and repair. The table below shows that 42% of buildings are very bad and 35% are bad while only 1% is good. Most of the families are living in one room with a space not exceeding 20 square meters. In most cases IDPs made partitions from nylon to divide the large spacing of the buildings.” (UNOPS, April 2005)

IDP needs in the upper south

IDP needs in the upper south (2006)

- The most urgent needs of the displaced population in the upper southern governorates are shelter, health and water
- A number of displaced families are living in inadequate shelters, including collective towns with poor housing conditions like no housing isolation, no connection to water and sanitation facilities, and one room accommodating a ten person family
- There is an urgent need to improve water and sanitation for the displaced, particularly those living in collective and crowded public structures in order to avoid an increase in disease outbreaks like diarrhoea, typhoid fever and cholera
- The displaced also have poor access to local medical facilities or existing facilities lack the supplies and infrastructure to respond
- IDPs also have difficulty ensuring education for their children- schools are reported to be overcrowded and lack basic supplies and furniture
- While the displaced generally have their food needs covered, some displaced families without documentation have been unable to obtain food ration cards
- Families living in public buildings face eviction need alternative accommodation

Qadissiyah	<u>Shelter:</u> With regard of the housing situation, in the district of Afaq, approximately 500 IDP families are accommodated in collective towns, with the remaining part of the caseload accommodated in host communities. Assessments in the collective towns have revealed severely compromised housing conditions: 1 room-accommodations, poorly insulated and with no connection to water & sanitation network and electricity are home for up to 10 member families. Similar conditions are characterizing the housing arrangements of the 700 families living in host communities in Afaq and in the district of Diwaniya. The monitoring teams have met several IDP families living in rooms owned by the host families, to whom in some cases a monthly rent is paid. These accommodations are often unfinished lacking of windows, doors or pavement insulation. <u>Water & Sanitation:</u> The assessed IDP groups have voiced serious concern for the water sanitation conditions they have to confront. Water-born diseases (such as diarrhea) spread periodically due to drinking of contaminated water. This problem, however, can not find adequate solution unless addressed via comprehensive infrastructural intervention resulting from the joint effort of governorate authorities and international community." (IOM, April 2005)
Najaf	IRIN, 10 April 2006 "A growing number of displaced families in the southern city of Najaf are in urgent need of food supplies and health care, local aid agencies said. "The number of displaced moving to Najaf is increasing everyday with the ongoing sectarian violence. We're having difficulties supplying all of them," said Hassan Dureid, spokesperson for Iraqi Brothers Relief, a local NGO working in southern Iraq. "We require urgent help from international aid agencies and the central

	government.” [...] The majority of the refugees are Arab Shi'ites fleeing violence in Baghdad and in neighbouring cities. Most of them are currently taking refuge at a temporary camp called al-Kafal, about 25km from Najaf. “We lack blankets, tents, food and medical care and children are having serious problems with diarrhoea and vomiting,” Dureid said. The Ministry of Displacement and Migration said it had sent a special team from the ministry's Disaster Department to evaluate and assist refugees by providing them with electricity, water and health care. However, local officials say that little has been done so far. “The problem grows every day,” said senior Najaf governorate official Ali Kadham. “We need urgent help and funds because the amount sent to us isn't enough. When the money is divided amongst the displaced, each will get less than US \$10 for the whole month.” The funding is part of US \$400,000 allocated by Baghdad to assist displaced families countywide. The Iraqi Red Crescent Society (IRCS) is dispatching weekly convoys of food parcels, cooking stoves and tents from the capital. According to Kadham, however, this is not enough to ensure that displaced families get everything they need to survive.” IOM, April 2005 <u>“Water & Sanitation:</u> Water and Sanitation has been the most urgent need for all IDPs and vulnerable populations in the governorate. Several NGOs make some emergency-kind of improvements, but in general still lot has to be done in this field. <u>Health:</u> There are four governmental hospitals in the area. The only teaching hospital has been functioning since April when the multinational forces occupied the lone hospital that caters to the major surgical operations, CT-scans etc, leaving the inhabitants to travel into Baghdad and Babil neighbouring governorates for such treatment and medical services. The other three, Al-Zahra Maternity & Children Hospital, Al- Hakim General Hospital and General Hospital in Kuffa suffered structural damages during 2004 armed conflicts, but also received emergency kind of support and interventions (increasing of hospital beds, operation theatres, some essential equipment, etc. Some essential support on the sub-clinic level could be useful for the surrounding population.”
Kerbala	<u>“Water & Sanitation:</u> Water and Sanitation is the highest priority. Sanitation can be integrated as part of the cash-for-work projects by which actual clean up for money by IDPs will create the desired effect of cleanliness and income-generation. <u>Food:</u> Legal services are needed to provide official status to unregistered persons and allow them access to food through the PDS food ration card from the Ministry of Trade. <u>Health:</u> Only one hospital is functioning since in April 2004 the multinational forces have occupied the lone hospital that caters to the major surgical operations, CT-scans etc, leaving the inhabitants to travel into Baghdad and Babylon Governorates for such treatment and medical services. While there are no emergency humanitarian needs, the health of vulnerable groups (particularly children and elderly persons) remains of high importance. This situation appears to be directly related to poor sanitation and a lack of safe drinking water. <u>Winterization:</u> Last December, distributions of winterization NFIs took place in Kerbala Governorate in favor of 2,021 vulnerable families.” (IOM, April 2005)

Babil	<u>"Water & Sanitation:</u> Water, hygiene and sanitation remain issues of immediate concern for those IDPs squatting in the collectives and abundant public structures. Unless the water quality is improved shortly, it is expected to have severe implications for the general health situation within the IDP groups. High-risk drinking water is anticipated to increase the risk of disease-outbreaks of such as Diarrhea, Typhoid Fever, and Cholera. From May to October, the hot weather in Iraq and the shortage of water is expected to increase dramatically. Therefore, providing potable water to the most vulnerable IDPs is considered a high priority. The sites of major concern in Babylon are the two major settlements Al-Teen and Al-Sinaae in Hashimiya district, with 516 IDP-families and Urban/Rural poor. All families lack access to potable water. The existing open water-sources are chronically and heavily polluted and settlements have open sewages. 'Mahawil Camp', the former military base in Mahawil District of Babylon Governorate has equally urgent needs. The camp provides temporary accommodation for 200 vulnerable families, half being IDPs, half Others-at-Risk. Their needs are sanitation, sewage system, water supply and a general lack of adequate health services. <u>Health:</u> The existing health clinics are not able to give special attention to IDPs and face a severe lack of essential drugs. Most of the IDPs assessed complained about poor access to local medical facilities - being too far or being too expensive for the people with no sustainable incomes. Resulting from this assessment, a project is being implemented by an NGO, aiming at providing a better access to Primary health centers in Al Qassim area. <u>Education:</u> IDPs and urban/rural poor have access to education; however, the limited school capacity, overcrowded rooms, lack of supplies and furniture are some of the challenges students are facing. In Hashimiya District schools are in poor condition and lack basic supplies and furniture. Most of the schools work in two or even three shifts to accommodate all students but this is not sufficient. <u>Food:</u> In general, food needs appear to be covered for most of the population in Babylon. Most of the rural-families are farming or have well developed gardens. Dozens of families that were hiding from the previous regime have no documents and therefore cannot get food ration cards. <u>Environment & Road improvement:</u> Other than the Baghdad-Hillah highway and a few main arteries, most of the governorate faces serious access problems. <u>Employment:</u> It is reported that at least half of Babylon's population is unemployed and dependent on PDS ration cards. Few job opportunities reach IDP or urban/rural poor households. Small-scale business and/or labor- intensive programs could bring benefits to the vulnerable populations." (IOM, April 2005)
Wassit	"Housing, Water & Sanitation, Health and Employment have been reported being the priority needs of the IDP populations displaced in the Governorate of Wassit. With regard of the housing problem, the most pressing emergency is represented by the families, who have been occupying public buildings in the district of Al Na'maniya (100 families) and in Kut (246). Some of them have already received eviction letters from the authorities, which intend to recover at least some of the occupied buildings before the end of the year. To date, no alternative accommodations have been thought at as provisional accommodations for these families, who due to legal or security issues can't return yet to their place of origin. In the district of Al Suwaira, around 700 families are living in Camp like settlements. Narrow

	rooms, with no connection to water, electricity and sewage are home to the IDPs accommodated in these camps. Despite the high incidence of water-born and air-born diseases caused by the poor hygiene conditions, access to health services is in most case prevented: health clinics are either not present, or not equipped to respond to the recurring emergencies. In the region of Kut, about 250 IDP families have found provisional accommodation in host communities. The solution has proven to be effective on fostering the integration between IDP families and resident communities. However, it doesn't represent a viable solution for the long-term: rooms available are small and unfit to accommodate all family members. Water & Sanitation is a problem affecting IDPs displaced in host communities, camps and public buildings alike. In urban centers, the poor maintenance of the existing water system has cut off of the network vast portions of the buildings where IDPs are living; camps don't have functioning water system, they mostly rely on wells often hundreds of meters away from the settlement. In both cases quality of water is poor and at the origin of periodical widespread of water born diseases among the IDP populations." (IOM, April 2005)
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General

Government and UNDP survey shows grave deterioration in Iraqi living standards (2005)

- The comprehensive survey on living conditions in Iraq was undertaken by the Iraqi Ministry of Planning and Development Cooperation in collaboration with the United Nations Development Programme
- The survey was conducted from a sampling of 22,000 households in 2004
- It reveals grave deterioration in living standards in the country over the past 25 years with Iraq
- The Survey found that Unemployment among young men with secondary or higher education stands at 37 percent
- Even though most Iraqis are now connected to water, electricity or sewage networks, supplies remain unstable and unreliable
- Almost a quarter of children between the ages of six months and five years suffer from malnutrition
- More young people today are more illiterate than in previous generations
- Just 83 percent of boys and 79 percent of girls of school age are enrolled in primary school.

"A comprehensive survey on living conditions in Iraq released here today by the Iraqi Ministry of Planning and Development Cooperation in collaboration with the United Nations Development Programme reveals grave deterioration in living standards in the country over the past 25 years, with Iraq now suffering from some of the region's highest rates of joblessness and child malnutrition and continuing severe deficiencies in sewage systems, electric power supplies and other essential public services.

The survey, conducted from a representative sampling of 22,000 households in 2004, provides one of the largest and most comprehensive statistical portraits of the country in recent years. The survey [...] found that:

- Unemployment among young men with secondary or higher education stands at 37 percent
- Even though most Iraqis are now connected to water, electricity or sewage networks, supplies remain unstable and unreliable
- Almost a quarter of children between the ages of six months and five years suffer from malnutrition
- More young people today are illiterate than in previous generations
- Just 83 percent of boys and 79 percent of girls of school age are enrolled in primary school.

'This survey shows a rather tragic situation of the quality of life in Iraq,' Iraqi Minister of Planning Barham Salih said at the news conference where the report was released in Baghdad today.

Also speaking at the launch of the survey, Staffan de Mistura, the Secretary-General's Deputy Special Representative in Iraq, said the study would serve as an important tool for policy makers, development planners and experts. 'It not only provides a better understanding of socio-economic conditions in Iraq,' he said, 'but it will certainly benefit the development and reconstruction processes in Iraq. The survey will help us address the grave disparities, between urban and rural and between governorates, in a more targeted fashion.'" (UNDP, 12 May 2005)

The three volumes of the report are available in Arabic and English at [UNDP's Iraq Country Page](#) [Internet]

Many IDPs living in public buildings and camps/settlements do not have electricity (2005)

UNHCR, October 2005, p. 113

"Electricity is a major problem for IDPs and returnees living in public buildings and camps/settlements. In the Governorate of Ninewa, electricity has been identified as a major problem for IDPs residing in Sinjar, Tal Afar and Mosul. The whole community of Sinjar lives in a camp where electricity is completely unavailable.[...] Increases in kerosene costs have affected poor families the most, as it is they who cannot afford required amounts of kerosene for heating."

Food

Poor security has delayed delivery of food to IDPs (2005)

- Most IDPs, like other Iraqis, rely on the food distribution system to obtain food
- Newly displaced people may face problems obtaining food rations as ration cards link the receipt of food to one location
- Lack of security for transport of rations has also caused delays in delivery to IDPs
- Food shortages have been reported in northern and western Iraq by local NGOs in 2005, especially in areas where military operations have taken place
- Security conditions have also prevented the displaced from accessing food including in Fallujah and Najaf in 2004

- Sixty percent of Iraqi families rely on food rations
- Oil-for-food Programme is discontinued at the end of 2003
- The Public Distribution System (PDS) was set up in the mid 1990s

UNHCR, October 2005, p.93

“Refugees, returnees and IDPs are entitled to register with a food distribution agent and obtain food through the PDS. Like most Iraqis, they tend to sell some part of the monthly ration and use the income from the sale (along with any other income and savings they may have) to buy fresh food such as fruits, vegetables and meat as a supplement to their diet.[...] Most families have no food stocks. [...]

Newly displaced persons may face problems obtaining their food rations in their place of displacement, as their ration cards only allow receipt of food in a particular location. The transfer of food ration cards is often delayed by bureaucratic procedures, leaving families without food for several months. In addition, security conditions may prevent access to IDPs as observed in Fallujah in late 2004[...] and in Najaf during August 2004. [...] At times, returnees face delays in obtaining their food ration cards.”

UNSC, 7 Sept 2005, p.9

“The Emergency Working Group also learned that internally displaced persons were having great difficulty in collecting food rations from the Iraq public distribution system, owing to their relocation and the inability of the system to respond to moving beneficiary populations. In addition, lack of security for transport of rations caused further delays in delivery to beneficiaries.”

IRIN, 22 August 2005

“Food shortages have been reported in northern and western Iraq by local NGOs.

The town of Talafar, north east of the Mosul governorate and near the Syrian border in the western Anbar governorate, are worst affected following military operations there.

US forces are fighting insurgents in both areas.

“Many areas in Anbar governorate have been suffering from food shortages and especially those cities under military operations like al-Qaim and Haditha due to no access to the area. We have been working hard trying to cover their needs, but the requirements are very high,” Ferdous al-Abadi, a spokesperson for the Iraq Red Crescent Society (IRCS), said.”

IRIN, 8 June 2004

“An estimated 60 percent of Iraqi families depend entirely on the monthly food ration distributed under the Public Distribution System (PDS) managed by the Iraqi Ministry of Trade (MoT). The PDS was funded through the Oil-for-Food Programme (OFFP) between 1996 and until late last year, when the OFFP was discontinued.

The PDS was introduced by the Iraqi government 13 years ago. Under this system, since 1996 food, has been imported from abroad and was stored in MoT warehouses. Although estimates vary, the food basket had a monetary value in Iraq of roughly US \$8 to 10 per person per month when under the OFFP.

The MoT distributed food to Iraqis in the central and southern region during the OFFP days. However, now the MoT distributes to all Iraqis, including the north, continuing under the PDS.

Prior to the closure of the OFFP, in the north, where the UN was mandated to implement OFFP activities on behalf of the Iraqi government, WFP was responsible for the collection of food from WFP-managed warehouses in Kirkuk and Mosul, its transport to Arbil, Sulaimaniyah and Dahuk governorates and distribution to beneficiaries.

However, it became clear that the PDS would be disrupted by the hostilities in 2003 and therefore WFP launched an emergency operation in order to ensure that food distribution to the vulnerable would continue. More than 2 million mt of food were delivered to Iraq in 2003 over a period of six months, making this the WFP's biggest humanitarian operation ever.

Although there is no recent information on how much of the population is still dependant on the rations since the fall of Saddam Hussein, preliminary results of a December 2003 WFP household survey indicate that 14.3 percent of the Iraqi population is 'extremely poor' (those who spend less than US \$35 per month on food) and 47 percent are 'poor' (those who spend between \$35 and \$90 per month on food).

Today, nearly 27 million Iraqis nationwide continue to receive their food rations from over 40,000 distribution agents. The monthly 18 kg ration includes basic food commodities such as wheat flour, rice, sugar, pulses and vegetable oil. Families use their food ration cards, distributed under the PDS, to receive a monthly ration.

Markets are full of fresh fruit, vegetables and meat but they are very expensive, and with unemployment at an estimated 50 percent or more, most families say they cannot afford to buy even the most basic items.

Although the OFFP was handed over to the Iraqi Ministry of Trade (MoT) and the US-led administration in November 2003, the WFP continued procurement of 1.6 million mt of food and dispatched commodities, after being asked by the Coalition Provisional Authority (CPA) and MoT who needed additional help. In addition to this, the food agency is still assisting, by training MoT staff.

WFP work is continuing in the country under the new UN Country Team strategy for 2004 and the agency is heading the Food Security Cluster and cooperating with UNICEF and the World Health Organization (WHO) in nutrition and supplementary feeding programmes.

[...]

Although malnutrition rates had fallen in the late 1990s, chronic malnutrition stands at 28.8 percent and acute malnutrition at 6.7 percent, according to the December 2003 WFP survey of the central and southern governorates."

Almost a quarter of Iraqi children suffer from malnutrition (2005)

- UNICEF expresses concern at impact of hostilities on children and notes that acute malnutrition among children has doubled since March 2003
- A nationwide survey by the Iraqi Planning Ministry and UNDP found chronic malnutrition among 23 per cent of Iraqi children
- At the UN 60th Human Rights Commission, Special Rapporteur on food, Ziegler reported that increasing numbers of Iraqi children do not have enough food to eat and more than a quarter are chronically undernourished

- Ziegler's report says that under the former regime 4% of Iraqi children under five were going hungry; now that figure has almost doubled to 8%
- Ziegler blamed the worsening situation in Iraq on the war led by coalition forces
- Local NGOs working in Diyala governorate also report signs of malnutrition among internally displaced children
- A survey carried out by a local organisation among children aged between six months and six years found 800 children suffered from vitamin deficiencies and abnormally low body weight
- 500 of the children surveyed are living in and around Mugdadiyya, a town with one of the highest concentration of IDPs in Diyala governorate
- Normally, the countrywide monthly rations system should act as a barrier against child malnutrition, but local officials say that some families may slip through the net

"On 23 November the United Nations Children's Fund (UNICEF) expressed deep concern again about the devastating impact the hostilities are having on the overall well-being of the country's children. 'Latest reports are showing that acute malnutrition among young children has nearly doubled since March 2003,' UNICEF Executive Director Carol Bellamy said. 'This means that hundreds of thousands of children are today suffering the severe effects of diarrhoea and nutrient deficiencies,' she added. Bellamy noted that Iraq already had severe problems with malnutrition, water and sanitation before the war, when 1 in 8 Iraqi children died before the age of five." (IRIN, 4 January 2005)

"Malnutrition may be the result of too few calories, lack of particular elements in the food, or inadequate uptake by the body, for instance, during diarrhea. The indicator of malnutrition chosen to monitor the first MDG is underweight-for-age ('general malnutrition'). Preferably, however, to be able to interpret the combination of acute and chronic malnutrition, the height-for-age ('stunting'), and weight-for-height ('wasting') is also monitored. While 'stunting' reflects chronic malnutrition and shows little seasonal variance, 'wasting' is a measure of acute malnutrition and has large seasonal variance.

-12% of the Iraqi children in the age group 6 months – 5 years suffer from general malnutrition.

-8% of children suffer from acute malnutrition.

-23% of children suffer from chronic malnutrition.

-Acute malnutrition in the South reaches 9%, compared to 4% in the North.

-Chronic malnutrition mostly occurs in the Centre, where it reaches 26%, where 9% also suffer from stunting.

-The highest occurrence of acute stunting was in Erbil and Dahouk, where it reached 13%

-The levels of acute malnutrition are the same across the five quintile income groups, whereas general and chronic malnutrition is more prevalent among the poor.

-Levels of chronic and general malnutrition are found to be much more closely related to the caretaker's levels of education than to family income. Stunting was found to decrease to 17% for children whose caretakers have attained secondary or higher education, where general malnutrition also goes down to 8%. However, the situation is different with acute malnutrition, where no relation was found to the educational level of the children's caretakers."(UNDP, 13 May 2005)

"Increasing numbers of children in Iraq do not have enough food to eat and more than a quarter are chronically undernourished, a UN report says.

Malnutrition rates in children under five have almost doubled since the US-led invasion - to nearly 8% by the end of last year, it says.

The report was prepared for the annual meeting of the UN Human Rights Commission in Geneva. [...]

Jean Ziegler, a UN specialist on hunger who prepared the report, blamed the worsening situation in Iraq on the war led by coalition forces.

He was addressing a meeting of the 53-nation commission, the top UN rights watchdog, which is halfway through its annual six-week session.

When Saddam Hussein was overthrown, about 4% of Iraqi children under five were going hungry; now that figure has almost doubled to 8%, his report says.

[...]

That point is aimed clearly at the US, but Washington, which has sent a large delegation to the Human Rights Commission, declined to respond to the charges, says the BBC's Imogen Foulkes in Geneva." (BBC, 30 March 2005)

"With backing from international NGOs, a local organisation in the northeastern Iraqi governorate of Diyala is distributing specially prepared food packages to internally displaced children who show signs of malnutrition.

Based in the mainly Kurdish town of Khanaqin, al-Salam Organisation began handing out rations of fish, chicken, corned beef, honey and protein-rich biscuits this August after a survey of children aged between six months and six years found 800 with vitamin deficiencies and abnormally low body weight.

Of the total, 300 are from mixed Arab and Kurdish villages around Khanaqin. Heavily arabised by the former Iraqi regime in the 1970s, the area has seen a large number of Kurds returning over the past 12 months.

The other 500 children are living in and around Mugdadiyya, an Arab town 60 km further east that has the highest concentration of internally displaced people (IDPs) in Diyala governorate. Aid agencies say 3,200 Arab families evicted from Kurdish areas after the war are living there in extremely primitive conditions.

In normal circumstances, the countrywide monthly rations system should act as a barrier against child malnutrition. But local officials say that, in the chaos caused by large-scale movements of people in Diyala governorate, some families may have slipped through the net.

'Village children have the additional problem of suffering from diseases caused by dirty water and lack of hygiene, worms and dysentery for instance,' Dilshad Othman, director of health in Khanaqin district and organiser of the July survey in 35 surrounding villages, told IRIN. 'We were not surprised to find cases of mild anaemia to be common.'

Dr Othman's surveyors compared the weight and height of all village children between six months and six years to standards set by the United Nations Children's Fund (UNICEF). For those found to be below, special rations are distributed every 20 days." (IRIN, 30 November 2004)

WFP survey indicates food insecurity among Iraqi population (2005)

- WFP undertook a survey in the second half of 2003 among 28,500 households in 95 districts of the country
- The survey undertaken by WFP found that 25 per cent of the Iraqi population remains dependent on food rations

- Around 14 per cent of the population would become food insecure if the food rationing system was discontinued
- Extreme poverty is high in rural areas, particularly among women and children
- 27 percent of children up to the age of five are malnourished

"The United Nations World Food Programme (WFP) announced the results today of an unprecedented survey in Iraq which concludes that some 6.5 million people – 25 percent of the entire population – remain highly dependent on food rations and are therefore vulnerable.

According to WFP's Baseline Food Security Assessment, the first of its kind in Iraq, of these 6.5 million people, some 2.6 million are so poor that they have to resell part of their food rations to buy basic necessities such as medicines and clothes. A further 3.6 million Iraqis, 14 percent of the population, would become food insecure if the rationing system was discontinued.

The survey was conducted during the second half of last year against a background of potential policy reforms of the state-run Public Distribution System (PDS), which provides the monthly food rations to most of Iraq's population. It covered 95 districts and 28,500 households in the 15 centre/south governorates as well as the governorate of Sulaymaniyah. Iraq's Ministry of Planning and Development Cooperation/Central Statistics Office and Ministry of Health/Nutrition Research Institute collaborated.

The results show that despite the PDS, the prevalence of extreme poverty is high in rural areas, particularly among women and children. The study adds that around 27 percent of all children up to the age of five are chronically malnourished. Without the current PDS, this number would increase dramatically, the survey adds.

'The political environment before the war made it impossible to analyse the level of poverty and hunger in the country,' explained Torben Due, Country Director for WFP's operations in Iraq. 'For the first time, we are getting an accurate picture of people's access to food. As a result, we are much better able to plan assistance.'

Years of international sanctions and nearly two decades of wars have destroyed Iraq's economy. Today's security situation is hampering effective social and economic recovery.

'Despite receiving food rations from Iraq's Public Distribution System, these people are still struggling to cope,' said Due. 'Although food is generally available, the poorest households cannot afford to buy from the markets.'

Following the survey, WFP has launched a one-year emergency operation costing US\$60 million, targeting the most vulnerable groups in Iraq." (WFP, 28 September 2004)

See the full report, "[Baseline Food Security Analysis in Iraq](#)", WFP, September 2004 [Internet]

Security measures are reported to have affected distribution of food by slowing down delivery to Iraqis, see for example, "[Food supplies affected by security checks at Syrian border](#)" (IRIN, 7 May 2005)

For specific information on the needs related to the Marsh people, see, "[UN Office of the Humanitarian Coordinator for Iraq \(UN OHCI\), 30 June 2003, United Nations Inter-Agency Assessment of Vulnerable Groups Part I: Marsh Arabs](#)"

Health

Lack of access to basic services raises health risks of displaced populations (2005)

- IDPs and returnees have the same level of access as the rest of the Iraqi population
- However health problems including gastro-intestinal disorders are more common among IDPs living in public buildings and camps where access to clean water is limited
- Displaced people also have health problems in the winter related to poor housing conditions and the costs of kerosene for heating
- IDPs living in settlements or camps are often far away from health centres
- There is a critical need for medical supplies in the central areas of Iraq, particularly Ramadi, Fallujah and Samarra which have been targeted by US troops fighting insurgents
- Among the current problems are lack of health personnel and medicines, non-functioning medical equipment and destroyed hospitals and health centers
- Health services are also heavily affected by infrastructure problems, including infrequent electricity supply, clean water, and communications
- The highest record of people not able to meet treatment costs was reported in the South (27%). The highest number of cases where external help was not sought was in the North (11%).
- 95% of Iraqi people live within 60 minutes to the nearest hospital. 89% need less than 30 minutes to reach the hospital

UNHCR, October 2005, p. 105

"Refugees, returnees and IDPs have the same level of access to health services as the general population does. As access to safe drinking water is a major problem for IDPs and returnees living in public buildings and camps, gastro-intestinal disorders are highly prevalent among these populations, particularly during the summer. Contaminated drinking water also increases the risk of diseases such as typhoid fever and cholera. UNHCR was informed by the local authorities in Missan that the most recent tuberculosis outbreak affected a particularly high number of returnees and IDPs. Accordingly, UNHCR temporarily suspended the repatriation of Iraqis from Iran to the Governorate until the health situation stabilized. [...] In the winter, IDPs' and returnees' health is particularly at risk due to poor housing conditions and the high cost of kerosene for heating. IDPs living in settlements or camps are often far away from health centres. For example, in the area of Huwair in the Governorate of Basrah more than 2,000 IDP families must walk more than 40 minutes to reach the nearest health facility, which is often underequipped. [...] National vaccination campaigns tend to reach out to displaced populations. Even though refugees are entitled to equal access to public health services, UNHCR has learned that Ahwazi refugees face difficulties in receiving subsidized medicine and secondary health care from government-supported clinics. Furthermore, most Ahwazi children are suffering from malnutrition."

IRIN, 4 January 2005

"The three cities of Ramadi, Fallujah and Samarra, west of Baghdad, in the 'Sunni triangle' where US troops are fighting insurgents, are in desperate need of medical supplies and other aid, hospital staff said on 18 October. The Ministry of Health (MoH) and NGOs around Baghdad add that the situation is critical as they are having difficulties in accessing the area and are prevented from delivering aid due to insecurity. Medical officials in the cities have warned that the delay in

the arrival of aid is affecting life-saving treatment. They are calling on government officials to take urgent action in a critical situation."

UNDP, 12 May 2005

"In the 1980s, Iraq was widely considered to have one of the region's best health care systems, with advanced, technological specialist care, and an extensive net of primary health care. However, after years of war and sanctions, this situation has changed completely.

Among the current major problems are lack of health personnel, lack of medicines, non-functioning medical equipment and destroyed hospitals and health centers. The health services are also heavily affected by infrastructure problems, including degraded or disrupted electricity supply, sanitation, and communications.

Chronic Illness

Chronic illness refers to physical or psychological illnesses of prolonged nature, or any afflictions due to an injury, a handicap, or age.

- 8% of the respondents said that they suffer from chronic illness
- Of the male respondents, 15% said that the cause was of war versus 7% of female respondents
- In the 2003 war, the number of ill children under 9 years of age exceeded the number of the ill people in the age group 20-29. This indicates that civilians may have suffered more in the war than the military.
- 12% of respondents in the South who had chronic disease said that war was the cause of their illness, compared with 11% in Baghdad, 10% in the North, and 7% in the Centre.

Acute Illness

- 4% of respondents reported that they had at least one case of illness or acute illness one week prior to the survey
 - 59% of the reported cases hindered normal activities for at least three days.
 - The number of cases of acute illness in urban areas reached 5%, whereas it was 3% in the rural areas.
 - The number of acute illness cases was 7% in the North, 6% in Baghdad, 4% in the South, and 3% in the Centre.
 - 83% of people who had acute illness sought external assistance of some kind.
 - 91% of people suffering from critical acute illness, which limited their activity for three days or more, sought medical assistance. The number went down to 69% for those who suffered less critical illness.
 - 50% of the ill people consulted specialized doctors, 45% consulted general practitioners, 3% consulted pharmacists, and less than 1% asked the help of nurses, religious helpers, traditional healers, neighbours, and others.
 - 71% of the ill not seeking help preferred to treat the illness by themselves, while 18% said they could not afford the cost of treatment; 4% did not have nearby medical services.
 - 35% of the ill people in the rural areas who did not seek assistance provided that they could not afford it. 16% reported that there were no adequate services in the area.
 - 15% of ill people in the urban areas reported that they could not afford medical assistance. 2% said that the services were not available or they could not access the hospital
- The highest record of people not able to meet treatment costs was reported in the South (27%). The highest number of cases where external help was not sought was in the North (11%).

Proximity to Medical Services

An important aspect of health services is whether one can reach them in time.

- 95% of Iraqi people live within 60 minutes to the nearest hospital. 89% need less than 30 minutes to reach the hospital.
 - 14% of people in the rural areas need more than one hour to reach the nearest hospital. 36% need 30 minutes to reach the nearest medical centre.
- 32% of the people in the Muthana Governorate have to travel more than 30 minutes to see a doctor, whereas 10% have to travel more than one hour for the same purpose."

IRIN, 15 February 2005

"One of the most affected areas after the US-led war in Iraq to topple Saddam Hussein was the health system, according to government officials.

Doctors throughout hospitals in the capital complained of a lack in electricity and clean water. They also added that many foreign companies which started working in hospitals had pulled out and new equipment promised had yet to reach them.

[...]

A shortage of medicine is still the main problem throughout the country. Doctors and pharmacists claim that simple medication such as pain killers and antibiotics are unavailable and sometimes they run out of needles and syringes.

[...]

The International Committee of Red Cross (ICRC) in a press statement in January also complained of a shortage of medicines in all Iraqi hospitals and problems caused by the lack of water and electricity."

Water and sanitation

IDPs living in camps, settlements, public buildings and tents face problems to obtain enough drinking water (2005)

- Large numbers of returnees and IDPs add a strain to the weak water networks
- Public buildings and camps/settlements often lack sanitation facilities
- 3.2 million families suffer from the instability of electricity supply
- There are wide differences between the urban and rural areas in the use of alternates to electrical power sources
- A very low percentage of people in Muthana and Qadisiya (the two poorest governorates in the South) have alternate sources of electricity despite the instable power supply in these governorates
- 54% of families in Iraq have access to drinking water
- 17% of families in Iraq have stable access to potable water
- There are wide differences in the availability of safe drinking water between the urban and rural areas: 60% of families in urban areas receive stable safe water yet only 33% in rural areas
- 80% of families in rural areas use unsafe water
- The situation is critical in the southern governorates of Basra, Dhi Qar, Qadisiya, Wasit, and Babil that are nearby the southern parts of the Tigris and Euphrates, where a large percentage of the population rely on water from the rivers and streams

UNHCR, October 2005, p.95

“Returnees and IDPs living in camps/settlements, public buildings or tents face major problems to obtain adequate amounts of drinking water. In addition, large numbers of newly arriving returnees and IDPs put an additional strain on already weak water networks. In the Governorate of Erbil, 43 percent of the IDP families have to share one tap between five families and 25 percent share two taps between 2-4 families, often for short duration due to unstable supply. [...] Public buildings and camps/settlements often have no sanitation facilities. For example, among the 1,519 IDP families (8,267 persons) living in public buildings in Erbil, 56 percent have no latrines, 61 percent have no bathrooms, 31 percent have bad or very bad latrines and 28 percent have bad or very bad bathrooms.[...]”

“The intensive use of the infrastructure in Iraq combined with three wars, sanctions, and improper policies of the former regime, contributed to the deterioration of the infrastructure, services, and maintenance.

Infrastructure and services provided to the families were administered by the government and funded by the general budget, which led to the provision of electrical, water, and sanitation services to most of the families. However, the bigger challenge was to maintain the stability of the services, as opposed to mere connection.

Despite the violence in the country and the deliberate destruction of the infrastructure, there are noticeable changes in the level of these services, as the Government of Iraq, UN and other International Organizations, in addition to the Coalition Forces in Iraq are putting effort into improving the infrastructure in the country.

Usage of Electricity in Iraq

Most families in Iraq get electricity from the national grid in both urban and rural areas. However, there is an exception to this norm in the rural areas in the Northern Region:

- 98% of families in the urban areas and 93% of those in rural areas are linked to electricity networks.
- 11% of families in the North use private generators.

[...]

Principle Problems in Electricity Supply

Stability of electrical supply is a major challenge in Iraq today. Families in the country have suffered for a long time from the low quality and instability of electricity supply. This is clearly evident in the urban areas, where the supply was more stable. The instability has led to the use of alternate sources.

- 3.2 million families suffer from the instability of electricity supply
- 29% of families rely on alternate sources of electricity (private generators)

There are wide differences between the urban and rural areas in the use of alternate power sources, which is attributed to the higher incidence of poverty in the rural areas. This is evident from the very low number of people in the poorest two governorates of the Southern Region, Muthana and Qadisiya, where families have no alternate sources of electricity despite the instable power supply in these governorates.

[...]

Sources of Potable Water

The results of the Iraq Living Conditions Survey 2004 have shown that:

- 78% of families are connected to the water network, 88% in the urban areas and 43% in the rural areas.
- 39% of families in Iraq suffer from instability of supply of potable water

Supply of Safe Drinking Water

- 54% of families in Iraq have access to drinking water
- 29% of families get unstable drinking water
- 17% of families have stable access to potable water

Household Sanitation

Private toilets (within dwelling unit) are the most common. Public toilets (shared by three or more households), outdoor areas, and other areas, are also customary in certain parts of the country.

- 72% of urban families and 70% of rural families use private toilets.
- 28% of urban families and 20% of rural families use public toilets.
- 11% of families in rural areas use the outdoors and other areas as toilet facilities. This rises to 15% in the Southern governorates only.
- 45% of rural families in the governorate of Muthana, 36% of those in Qadisiya, and 23% on Wasit do not have toilets in their dwelling units.

Safety of Drinking Water and Residence

There are wide differences in the availability of safe drinking water between the urban and rural areas in Iraq:

- 60% of families in urban areas and 33% of those in rural areas receive stable safe water.
- 80% of families in rural areas use unsafe water

The situation is alarming in the southern governorates of Basra, Dhi Qar, Qadisiya, Wasit, and Babil that are nearby the southern parts of the Tigris and Euphrates, where a large percentage of the population rely on water from the rivers and streams.

Alarming Problems in the Old and Destructed Sanitation Networks

Many problems have been reported about the old and war-destructed sewage network from which sewage seeps to the ground and contaminates drinking water systems.

- 37% of households in Iraq are connected to sewage networks, 47% in the urban areas and 3% in the rural areas.
- 79% of families in Baghdad compared with 3% in Diyala are connected to the sewage network.
- 40% of families in the urban areas and 30% of those in the rural areas live in neighbourhoods where sewage could be seen in the streets.
- 51% of families in the urban areas in the south live in neighbourhoods where sewage could be seen in the streets." (UNDP, 12 May 2005)

Shelter

Many displaced people shelter in public buildings, tented camps and other temporary shelter (2006)

- Other IDPs are hosted with relatives
- In Kirkuk for example, it is estimated of 21,800 IDPs families, a quarter of the IDPs are reported to be living in tent camps, a quarter in public buildings, a quarter in collective settlements and the remaining quarter mixed with the host communities
- Public buildings are often overcrowded and lack sanitation services and drinkable water
- Lack of housing is a problem in all governorates: more than 1 million housing units are needed in addition to occupied and destroyed housing
- Local authorities in some parts of the country have allocated families land or provided reconstruction grants however assistance has stopped due to financial limitations
- In January 2004, it was estimated around 400,000 IDPs lived in collective towns and 300,000 displaced lived in homes
- Over 80,000 IDP and returnee families live in camps and public buildings according to the MoDM
- In North Iraq, 20 per cent of the population lacks adequate housing

UNAMI, February 2006, p.1 (Anbar province)

"NGO monitors reported that at least 3,590 families remained displaced in 15 different locations with many being temporarily sheltered in public buildings or tented camps and some were mixed with host communities."

UNHCR, October 2005, p.97-100

"IDP and returnee monitoring has revealed that shelter is one of the most pressing concerns for IDPs and returnees. Large numbers of Iraqis cannot return to their places of origin as their villages were either destroyed by the former regime, either as part of the *De-villagization* and *Anfal* campaigns in Northern Iraq [...] or the drainage of the Marshes in Southern Iraq. In addition, Iraqis' financial resources are often limited, impeding them from reconstructing or rehabilitating their houses or paying rents. A lack of shelter is one of the major reasons for returnees and IDPs not being able to return to their places of origin and instead returning into a situation of internal displacement. Many are hosted with relatives, in public buildings or even in tents. Public buildings housing returnees and IDPs are usually overcrowded and lack hygienic facilities and potable water. Their residents are at risk of being evicted by the authorities that wish to use such buildings for their original purposes.

The following figures from IOM/UNOPS IDP Monitoring provide an overview of the extent of the shelter problem faced by IDPs (note: housing is a problem prevalent in all governorates; the data below does not cover all governorates but should illustrate the extent of the problem):

- In the *Governorate of Dohuk*, 3,120 IDP families are living in public buildings that are substandard and lack adequate water and sanitation facilities. Almost two thirds of the buildings are in either bad or very bad condition. [...] According to the local authorities, 5,018 IDP families were living in 374 locations such as health centres, kindergartens and schools, military buildings, factories and police stations by the end of May. This significant increase in the number of IDPs living in public buildings (in July 2004, the local authorities accounted for 1,728 families) is linked, *inter alia*, to the return of refugees from Iran, many of whom cannot return to their homes near the Iraq-Turkish border due to security reasons, and the numbers of Iraqis who have relocated to Northern Iraq, seeking refuge from persecution and general violence in other parts of the country.

The local authorities have been reluctant to accept these persons given the already dire housing situation in the North. In addition, the increase of rental prices for apartments has forced impoverished IDPs to leave their apartments and begin residing in public buildings. [...]

- The local authorities in the *Governorate of Sulaymaniyah* have done an inventory of all public buildings currently being used by IDPs and other populations and introduced a programme to provide US \$2,000 to each family to vacate public buildings, provided that the authorities have the necessary financial resources.⁶⁶⁶ To date, a number of IDPs have made use of this programme, in particularly those originating from Kirkuk as they also benefit from land allocation. [...] However, for those not originating from Kirkuk, the amount is hardly enough to rent an apartment, given the increased rental prices,⁶⁶⁹ and accordingly there are still 1,388 IDP families (8,849 persons) living in public buildings in the Governorate. The majority of such buildings are in either bad or very bad conditions (80 percent), while the others are in fair or good condition (20 percent). [...] UNHCR was informed by the local authorities in the *Governorate of Erbil* that they are planning to implement a similar initiative to vacate public buildings in Erbil city, providing US \$3,200 per family in addition to a piece of land (200m²) outside the city, access to public services and shelter materials. It remains to be seen to what degree resources will be available for this initiative. If the programme succeeds, it might be expanded to other towns in the Governorate and the Governorate of Dohuk.⁶⁷¹

- In the *Governorate of Kirkuk*, 25 percent of the 21,800 IDP families are reported to be living in tented camps, 25 percent in public buildings, 25 percent in collective settlements and the remaining 25 percent mixed with host communities. [...]

- The vast majority of the 9,776 IDP families in the *Governorate of Ninewa* are living in tents and in old military barracks.⁶⁷³ • In the *Governorate of Diyala*, 15 percent of the secondary displaced Arabs live in public buildings and military barracks and more than 400 IDP returnee families live in tents. In addition, 238 refugee returnee families from Iran were found to be living in public buildings and IDP camps/settlements. [...]

- In the *Governorate of Salah Al-Din*, 62 percent of secondarily displaced Arabs live in public buildings, 73 percent of Marsh Arabs (who were displaced as a result of the drainage of the Marshes) live in camps/settlements (the remainder live in public buildings) and 94 percent of the Kurdish IDP returnees are mixed with host communities, (the remainder live in public buildings or in camps or settlements). [...]

- In the *Governorate of Baghdad*, there are, *inter alia*, 605 Roma families, who were displaced after the fall of the former regime due to their different social practices. 90 percent of them are living in public buildings. [...] • In the *Governorate of Wasit*, 66 percent of the 1,300 IDP families are accommodated in camp-like settlements on the outskirts of the main urban centres, 17 percent in public building and few mixed with host communities. [...]

- In the *Governorate of Thi-Qar*, 65 percent of the 5,000 IDP families reside in public buildings, with a few living in camp-like settlements and some living in mixed/host communities. [...]

- In the *Governorate of Qadisiya*, half of the 2,300 IDP families are being hosted by local communities, 35 percent are living in collective towns and 15 percent are living in camp-like settlements or public buildings. Assessments in collective towns have revealed dire housing conditions, usually with one family of up to ten members sharing a single room which is poorly insulated and has no water/electricity supply or sanitation facilities. Among the IDPs living with host families, several were found to live in rooms with unfinished or missing windows, doors or pavement insulation. [...]

- In the *Governorate of Basrah*, 98 percent of the more than 11,600 IDP families that were displaced as a result of the drainage of the Marshes and 92 percent of the 16,417 families that

were displaced by the Iraq-Iran War are living in camp-like settlements with little or no access to water and sanitation facilities. [...]

[...]

Most public buildings will almost certainly be repossessed by the Government in the future, and also remain at risk from mines and unexploded ordinance."

[...]

"Apart from damaged and illegally occupied property, the UN Development Group/World Bank estimate that there are currently 1-1.5 million housing units missing, affecting up to 9 million people, thereby representing a housing 'crisis'."

See also "[Displaced Iraqis find unusual shelter](#)", *Al Jazeera*, 3 May 2005 and "[Housing Problems increase as conflict hits hearth and home](#)", *IRIN*; 4 Aug 2005 in Sources below

UNAMI, July 2005, p.2 [Tal Afar]

"Initial reports indicated that several hundred IDP families were displaced from the most conflict affected areas of the city and were living in substandard conditions in schools, mosques or other public facilities in surrounding villages."

UN OCHA, 5 January 2004

"With an estimated 900,000 internally displaced people (IDPs) in Iraq, humanitarian organisations are putting the emphasis on providing proper shelter in the coming year for homeless people uprooted by the troubles that have plagued the country not only over the past year but the past few decades.

Of this figure the majority, some 400,000 live in what are called 'collective towns' or purpose built settlements. Another 300,000 live in homes and the rest are in government or other types of accommodation.

Prior to the second Gulf War a UN Habitat survey found that 40 percent of the displaced had no access to health care and that only some 57,000 people were living in adequate housing."

MoDM, September 2004

"Over 80,000 IDP and returnee families currently live in camps or public buildings"

UNHCR, 19 August 2004

"Housing is one of the biggest challenges facing all Iraqi people, and especially those who have just returned to the country or have been internally displaced.

In the north of Iraq alone, where over 20 percent of the people are reported to be lacking adequate housing, "

Forced evictions from public buildings cause grave concern (2005)

- Many IDPs in the north and the centre/south are in need of adequate shelter
- Some returnees are living with families, many others live in collective centres and public buildings

- Evictions of IDPs from public buildings without provision of alternative shelter is a pressing issue in the country
- Evictions of IDP families from public buildings continued to occur during 2005 across the country
- All over Iraq, displaced and vulnerable families with no place to live are illegally occupying former government buildings
- Evictions have been pronounced in Baghdad, Mosul and Kirkuk but are imminent in all urban areas (2004)
- New housing projects (promised by the US administration) and compensation (promised by the interim Iraqi government) were promised but neither have been implemented efficiently
- Under the former regime, rents were heavily subsidised by the government and many families cannot afford the current market prices
- In 2005, a demonstration against such evictions in Baghdad was reported by IRIN

UNAMI, August 2005, p.3

"Police evicted 20 families including 18 IDP families from a military building in Diyala Governorate before a suitable solution was found for alternative accommodation. The local Ministry of Displacement and Migration office was aware of this development and IOM was assessing the immediate needs of the evicted families. Evictions also affected IDP families temporarily residing in public buildings such schools across other areas of Iraq, including Tal Afar and western Anbar."

IRIN, 16 February 2005

"[K]urds too who have returned to Kirkuk are living in temporary accommodation while awaiting a solution from the government.

According to a government official from Kirkuk, nearly 16,000 Kurdish families have moved back to the city and are living in tents in a very distressing situation.

Nearly 1,558 Turkmen, 1,804 Arab and 16,714 Kurdish families have moved to Kirkuk and are living in old government buildings or schools, or are camped on the outskirts of the city, local authorities said."

IRIN, 7 March 2005

"Nearly 600 families camped in Diwania, 77 km south of the Iraqi capital, Baghdad, are living in poor conditions and in need of supplies, according to local aid agencies.

The internally displaced people (IDPs) were living in the oil-rich city of Kirkuk and say they were forced out by returning Kurds.

[...]

Many other families are living in abandoned schools and government buildings in the area. The places can be seen surrounded by rubbish and to get potable water they have to walk nearly 2 km."

UNAMI, 2 May 2004

"In northern Iraq, evictions of displaced persons, recent returnees and other vulnerable groups have also been reported, and people living in several public buildings in Mosul and Kirkuk have been threatened with eviction."

IOM, September 2004

"Evictions from public buildings without the provision of alternative shelter for IDPs and the vulnerable communities remains a major concern throughout the country. This has most recently become more pronounced in Baghdad."

UNHCR, 8 August 2004

"Evictions continue to be a primary protection issue for all groups residing in public buildings throughout the country. Reports have been received from every urban town in Iraq that evictions are imminent. While some evictions have been conducted, it has mostly been a case of threats rather than action. In response, Cluster 8 has developed a policy paper and guidelines for the humanitarian community. These have been provided to national authorities who are considering incorporating elements into a national response."

IRIN, 20 May 2004

"Protection concerns of displaced people in the north include the threat of eviction of those living in public buildings by the authorities reclaiming the public building or by individuals returning to their homes.."

"Substantial numbers of IDPs in both the north and the centre/south are in need of adequate shelter. In the Kirkuk area in the north, tens of thousands of returning Kurds are staying with host families, while thousands more have been living in public buildings, including squatting in a sports stadium. Kurdish IDPs in 'collective centres' also need improved shelter, as many of these are decaying. Moreover, newly displaced Arabs from Kirkuk, whether in the north or centre/south, require adequate shelter, as do tens of thousands of returning Shi'ites from Iran, many of whom have taken refuge in public buildings or former military barracks. At least 10,000 of the women and children who fled Fallujah are in camps outside Fallujah and in and around Baghdad."

UNAMI, 2 May 2004

"In northern Iraq, evictions of displaced persons, recent returnees and other vulnerable groups have also been reported, and people living in several public buildings in Mosul and Kirkuk have been threatened with eviction."

IRIN, 6 September 2004

"[A]rmed Iraqi police moved the families' furniture and other belongings out of government houses where they had been living illegally since US-led forces began fighting to topple Saddam Hussein in March 2003.

The government housing complex near new Interior Ministry offices used to be used to house visiting foreign delegations. 'We don't have any houses, so the government promised us they would find something for us after the fall of the former regime,' Khaedher Abbas Jassem, 42, told IRIN. 'The Ministry of Housing and Reconstruction said they would compensate all of us, but we have not received any money.'

It was the first time the police have cracked down on the large number of people who illegally occupy numerous government buildings around the country, including many former government buildings in Baghdad.

Interior Ministry officials declined to comment officially on the crackdown. But police at the scene said that, while they sympathised with the people's plight, the new government had to take control.

'This is a general campaign. We will make not only the people who live here leave, but those living illegally in any government building,' Khanem Bender Mohammed, a police officer helping to move furniture out of a house, told IRIN.

[...]

Families with no place to live taking over former government buildings is a pressing issue all over Iraq, according to aid agency workers who declined to be named. Many of the families were forced to leave rented accommodation when landlords raised the rent drastically last year. Others are victims of Saddam Hussein's 'Arabisation' programme, in which he gave houses in northern Iraq to Arabs. After the regime fell last spring, original owners of the houses often came back to reclaim their houses. There are about a million internally displaced people (IDPs) in Iraq today with the majority, some 800,000, in the north of the country.

US administrators catalogued the displaced and pledged new housing costing millions of dollars, but so far no new housing projects have been finished. Other displaced people live in former army barracks around Iraq; some live along the Tigris River in former army officer houses and in damaged buildings in the capital.

In the meantime, police said they would help people they were throwing out of the houses in Jadriyah with up to 600,000 Iraq dinars, or about US \$400, in compensation. Families on the street said they heard they would receive less than \$200 and that they hadn't seen any money from the police.

[...]

Under the former regime, their rents were heavily subsidised by the government. It was unclear if UNHCR would be involved in helping find places for the newly displaced people. By Monday, most families had gone to stay with relatives in Baghdad." ()

Demonstration against forced evictions (2005)

IRIN, 22 March 2005

"Over 300 people demonstrated on Tuesday at the gates of the heavily fortified Green Zone in the Iraqi capital Baghdad, calling on the government to allow them to stay in government buildings as they have no homes following the conflict in 2003.

Nearly 200 Iraqi families have been ordered to leave the buildings in a government complex, called the Freedom Complex district, by the end of this week. There are approximately 2,000 people and some families have up to 10 members.

The families had been renting houses during Saddam Hussein's regime but after the last war they were forced out by the owners as they were paying normal lower rents. Most of the residents earn less than US \$30 dollars a month and don't have enough to rent a house on the open market.

'I won't go out of my home, I don't have anywhere to go. It is the only place that I have to live and my children are in a school very close to it. They can kill me but I won't leave,' Afifa Abdul-Nebi, a mother of four and resident of the complex, told IRIN at the demonstration.

'Homes, homes, we want homes', was the slogan being chanted by the displaced people. Children could be seen carrying Iraqi flags and small pictures they had drawn of houses and colourful gardens.

Muhammad Shanei Jarallah, organiser of the demonstration, resident of the complex and director of the Iraq National Association for Human Rights, told IRIN that last year the Ministry of Reconstruction (MoR) invested a lot of money in the complex, building 100 new rooms, 50 new bathrooms and repairing the power, water and sewage system, as well as making a small health

centre. He said the authorities had told them that they could consider the place as their home forever.

[...]

Salua Ibrahim, a senior official from MoR, told IRIN that these people were living in government buildings and even if they had repaired the complex they had to start to look for another place to live as they would need the building back.

'We gave them warning and asked them to leave some time ago and they accuse us of being careless, they don't have the right,' Ibrahim added.

The Iraqi Red Crescent Society (IRCS) said that the government had to address this problem and at least give them another choice of housing before they asked for the complex to be returned."

Survey among IDPs in public buildings and camps in three Northern governorates (2003)

- The survey indicates that 69 per cent of IDPs living in public buildings and camps in Dahuk, Erbil and Sulaymaniyah wish to return
- The very high percentage in Sulaymaniyah (89%) can be attributed to the fact that the majority of the IDPs living in the public buildings in Sulaymaniyah are from Kirkuk
- In Erbil, the high percentage of IDPs in public buildings is a mixture of IDPs from those areas previously under the control of the former regime such as Kirkuk and Makhmur and those IDP resulting from internal fighting in the region
- 66% of the whole IDP population, who intend to return to their place of origin, regard 'shelter' as a pre-condition for return
- Many IDPs in public buildings and transit camps have been displaced on more than one occasion in the last 10 years and many originated from villages close to the Turkish border in Dahuk and the Arabized villages in Kirkuk which were completely destroyed
- The survey found that property claims (land 3.4% & house 4.7%) account only for 8% of IDPs living in public buildings and transit camps
- Most of the IDP population living in public buildings and transit camps were vulnerable and destitute before displacement and therefore had never been the owners of extensive agricultural lands or houses

"The survey among IDPs living in Public Buildings and Transit Camps in the Dahuk, Erbil and Sulaymaniyah governorates indicates a high level of intention to return to their places of origin (69%). The percentages intending to return vary when looking at each governorate separately but are still high throughout the north (58%-Dahuk; 68%-Erbil & 89%-Sulaymaniyah).

The very high percentage in Sulaymaniyah (89%) can be attributed to the fact that the majority of the IDPs living in the public buildings in Sulaymaniyah are from Kirkuk. The current situation in Iraq is encouraging the returning process of these IDPs. In Erbil, the high percentage of IDPs in public buildings is a mixture of IDPs from those areas previously under the control of the former regime such as Kirkuk and Makhmur and those IDP resulting from internal fighting in the region. While change circumstances, following the recent conflict, is encouraging people to return, there have not been major changes yet in the KDP-PUK peace process, which might lead to the returning process of those IDPs created by the internal Kurdish conflict.

It is important to notice that 12% of IDP would rather resettle in a place other than their present location or their place of origin, while 19% of the whole IDP population intend to remain in their

current location. In Dahuk the latter represents 27% of the IDP population. This high percentage is a result of 4 factors:

- IDPs in this governorate belong to the 'PKK-Turkey' conflict. The security situation in those areas is still unstable;
- Life conditions (low level of economic activities) are very difficult in those border areas with Turkey and the villages have not yet been rehabilitated;
- The new geopolitical developments in Iraq do not affect in a positive way the returning process of this group;
- This group of IDPs has over the years most probably developed livelihood strategies, which ensure their ability to cope in their present location.

In Erbil, 19% of IDPs intend to remain at their present location. The main reasons behind this might be attributed to the economic prosperity of this region due to the 'oil for food program', employment, the provision of basic services and enjoyment of social life.

IDPs who intend to resettle in a different place than their place of origin or their present location represent 12% of the whole IDP population. The highest percentages in this respect are in Erbil (13%) and Dahuk (15%). In Erbil, over 1000 families originally from Kirkuk and Sulaymaniyah are on the UN-Habitat 'waiting' list. These families were supposed to be resettled in Daratu collective town by now.

Looking at the timetable expressed by the respondents, it seems that IDPs from Erbil (52%) and Sulaymaniyah (61%), are planning to return (at least to begin the process) in the coming 3 months. Such a high percentage refers to the recent changes in the political situation in the former regime's areas. This current environment also refers to the in and out movement of people (Arabs out of 'arabized' areas and Kurds in/back to those arabized places). The following factors support those arguments regarding the returning process in the coming 3 months: a) children will be out of school; b) with the end of the harvest the optimal period for 'construction' in the region (a self-built house means: composed of mud bricks compacted with the leftover of harvest products) will start; c) anticipated external aid (governmental, and international organizations such as the OP, UN and others); d) improvement in security concerns; e) legal claims on properties (land and houses) will be solved by then.

In Dahuk only 10% of the IDP who wish to return are expecting to do so in the next 3 months while 20% have planned their return in the next 12 month period. 64% of IDPs surveyed did not provide a timetable for their return. The case in Dahuk is mostly related to there being no major developments in the places of origin and the still unsolved PKK/Turkey conflict.

66% of the whole IDP population, who intend to return to their place of origin, regard 'shelter' as a pre-condition to do so. However, when looking at each governorate the percentages are higher in Dahuk (74%) and Sulaymaniyah (80%). Recent history suggests that IDPs may expect that UN-Habitat or another organization (possibly OP) will provide housing or building materials for a self-built houses' program. It is also important to notice that the history of displacement of this specific sector of the IDP population (those in public buildings and transit camps) have been displaced on more than one occasion in the last 10 years. This can be also an important factor when understanding their 'pre-condition' for returning or resettlement. In addition, the complete destruction of those villages of origin close to the Turkish border in Dahuk and the Arabized villages in Kirkuk, allow us understand the concern on the part of these IDP about being assisted with the provision of shelters as a pre-condition to return.

Property claims (land 3.4% & house 4.7%) account only for 8% of IDPs living in public buildings and transit camps. Looking at the general IDP population living in public buildings and transit camps it seems that these IDPs were vulnerable and destitute before displacement and therefore

had never been the owners of extensive agricultural lands or houses. On the contrary, many of these IDP had been living in simple shelters in villages, which had been destroyed when they were displaced. On the other hand, the IDPs who were displaced due to the PKK conflict do not have any property claims since nobody had occupied their houses or lands. Finally, the majority of the property claims for those IDP, resulting from the internal fighting category, has been solved by a joint KDP and PUK committee in 2002 within the ongoing peace process between the two parties." (UNOPS, May 2003)

ACCESS TO EDUCATION

Obstacles to education

Insecurity and lack of infrastructure keeps school attendance levels low, especially for girls (2006)

- War and sanctions have caused a significant decline in the quality of education
- Children are kept out of school, in particular girls, to support the family income
- The enrolment rate of girls is lower than boys in all parts of the country
- Overcrowding, insecurity, lack of water and sanitation are the main causes of lower enrolment among girls
- Returnee families face difficulties enrolling their children in schools because of lack of documentation (Particularly in the South)
- Overcrowded schools are reluctant to admit returnee and IDP children
- Schools are being used as temporary shelters
- IDPs in camps have no access to education, for example, in the Governorate of Kirkuk, most IDP camps have no schools
- Illiteracy rates among IDPs are particularly high.
- In the Governorate of Thi-Qar for example, illiteracy rates among the general population stand at 25 percent but reach more than 50 percent among IDPs
- Children have problems at school as they have no space to read or sleep quietly at home

IRIN, 3 April 2006

"Children's education is being severely affected by ongoing sectarian violence, say officials at the Ministry of Education.

'Teachers have informed us that a high percentage of students aren't attending class, especially primary schools students,' said senior ministry official Sarah Obeid. 'The main reason for this is their families' fears due to the increase of sectarian violence.'

According to Obeid, at least 30 percent of Iraqi students are not attending school, with the situation much worse in districts of the capital, Baghdad, where violence has been most in evidence. [...]

Some parents have also noted growing discrimination in schools along sectarian lines."

UNHCR, October 2005, p. 106

"Twenty-five years ago, the education system in Iraq was considered one of the best in the Middle East.[...] Primary education was made compulsory in 1976 and nearly universal primary enrolment was achieved by 1980.[...] After three wars, 13 years of sanctions, and widespread neglect of the education system however, the quality of education has seriously declined. Many children, particularly girls, are kept out of school to work at home or to generate family income. Before the 2003 conflict, one-quarter of all children were out of school.[...] In the classroom, teachers were underpaid, facilities were dilapidated and curricula outdated.

The first comprehensive study on the condition of schools in post-conflict Iraq, the School Survey 2003-2004 in Iraq, [...] was released in October 2004 by the Iraqi Ministry of Education (and produced with in collaboration with UNICEF). It shows that overall enrolment surged in the 2003/2004 school year despite the fact that school facilities are not nearly adequate. Some 4.3 million children (2.4 million boys, 1.9 million girls) are currently enrolled in primary schools (compared to 3.6 million in 2000). [...] Furthermore, 1.57 million children (950,000 boys and 620,000 girls) are enrolled in secondary schools. [...] The enrolment of girls is lower than boys in every grade and in every governorate. Overcrowding (many schools have up to three shifts per day), insecurity and the lack of water and sanitation facilities in schools are three main causes of lower enrolment of girls. On a daily basis, teachers, children and their families in Baghdad and other flash-points of conflict and criminality have to overcome a fear of bombings, explosions and kidnappings. Nevertheless, and especially in a situation of insecurity and conflict, regular attendance at school is one of the best ways a child can regain sense of normalcy in his or her life."

UNHCR, October 2005, p.108

"Refugees, returnees and IDPs in principle have access to education on par with the general population. However, they face a number of particular problems.

Due to a lack of documentation, returnee families often face difficulties enrolling their children in schools, in particular in Southern Iraq. School attendance is further fraught by the lack of Arabic language skills, as many returnee children were born abroad and Arabic has not been their primary language of education. Already overcrowded schools suffer from additional pressure by returnees and headmasters are often reluctant to accept new pupils. Returnee children that do not speak the language properly rarely receive the attention required to integrate into a class, leading to quick dropouts and a high dropout rate overall. In addition, returnee children usually lack grade equivalency papers and are therefore often placed in grades several years below their same-age peers.[...]

IDPs in camps often have no access to education and rates of non-attendance at schools are particularly high among IDP children. In the Governorate of Kirkuk for example, it is reported that most IDP camps (one quarter of IDPs in that governorate live in camps) have no schools. IDP children need to go to school in towns, where they add to the already existing overcrowding.[...] In the Governorate of Babil, most schools operate in two or three shifts to accommodate large numbers of students, but this is still insufficient to meet needs.[...].Accordingly, illiteracy rates among IDPs are particularly high. In the Governorate of Thi-Qar for example, illiteracy rates among the general population stand at 25 percent but reach more than 50 percent among IDPs.[...] Children that live in overcrowded or sub-standard accommodation often face problems at school as they have no space to read or sleep quietly. In addition, many do not have access to recreational activities."

UNAMI, July 2005, p.2

"In virtually all areas hosting displaced populations, schools are being used as temporary shelters. This is a point of growing concern with the start of the school year approaching."

See also, "[Insecurity threatens to leave students with a late start](#)", August 2005

Decline in quality of education (2005)

- According to a survey conducted in 2003/2004, one third of all primary schools lacked water supply, one fourth had not electricity and about half no sanitation facilities

- The northern provinces have particularly high rates of destroyed school buildings (2004 UNICEF/MOE Survey)
- The southern provinces of Babil and Muthanna have the lowest availability of primary and secondary schools
- There are large regional differences in illiteracy: Illiteracy in urban areas is lower (21 percent) whereas it is 39 per cent among the rural population
- Illiteracy is highest in Duhouk and Al-Muthanna
- Gender differences in illiteracy are also present: 35 percent of women are illiterate compared to 17 percent of men
- In the youngest age group (aged 15-24), one in ten has never attended school (six percent of boys and 14 percent of girls)
- The availability of schools is higher in urban than in rural areas

UNDP, Tabulation Report Living Conditions Survey, 2005, p.80

“One of the Millennium Development Goals is to achieve universal primary education by 2015; attainment of this goal will be assessed using three indicators: literacy, enrolment in primary education, and children enrolled in school reaching grade five.

Two thirds of the adult Iraqi population, 65 percent, claims to read and write without difficulty, and an additional 10 percent can read and write everyday material with some difficulty. In the younger age groups (aged 15-24), literacy rates are only somewhat higher than for the population at large: 71 percent claim to read and write without difficulty. It is worth noting that the literacy level is somewhat lower among those aged 15-24 compared with the age group 25-34, a difference that is particularly marked for men.

There are large regional differences in illiteracy. Illiteracy among the urban population is lower, 21 percent, than among the rural population, 39 percent. Illiteracy is highest in Duhouk and Al-Muthanna. Gender differences in illiteracy are also marked: 35 percent of women are illiterate compared to 17 percent of men. The gender gap is higher in rural than in urban areas, and is also higher in older than in younger age groups.

In comparison to other countries in the region, where Jordan and Syria have an adult literacy rate of 86 percent and 75 percent respectively, Iraq has a low literacy rate (Fafo 2004 forthcoming; UNDP 2003). Conversely, Yemen has low educational performance with an adult literacy rate of 53 percent.

Twenty-two percent of the Iraqi population has never attended school, and another 15 percent has less than six years of elementary education. The proportion without any formal schooling is largest in the oldest age groups. However, even in the youngest age group (aged 15-24), one in ten has never attended school (six percent of boys and 14 percent of girls).

The North has the lowest educational levels where 55 percent of the adult population never completed elementary school, and only six percent started or completed higher education. On the other hand, educational levels are highest in Baghdad where 25 percent of the population never completed elementary school, and 16 percent started or completed higher education.

Overall, 76 percent of children need less than 15 minutes to get to their elementary school. The availability of schools is higher in urban than in rural areas. The distance of secondary schools is similar to that of elementary schools, with 77 percent of children requiring less than 15 minutes of commuting to reach their secondary school with the usual means of transportation; 17 percent requiring 15 to 30 minutes; and five percent requiring more than 30 minutes. The pattern of

availability, with respect to governorates and urban versus rural location, is the same for secondary schools as for elementary schools.

Of the children in primary school age, 79 percent are enrolled in primary school: 83 percent of boys and 75 percent of girls. The net enrolment rate in intermediate school is 41 percent: 47 percent for boys and 36 percent for girls. Out of all the children enrolled in school, 98 percent attended school most of last month. There is no gender difference in attendance, but significant differences between governorates. Al-Anbar and Najaf have lower attendance rates, which is most likely due to the difficult security situation during part of the interview."

UNHCR, October 2005, pp.106-107

"Condition of school buildings

Primary schools

The School Survey 2003-2004 shows that one-third of all primary schools in Iraq lack a water supply, almost one-fourth have no electricity and almost half are without sanitation facilities.[...] It further reveals that out of 11,368 school buildings, only 1,271 sustained no damage, whereas 529 were completely destroyed and more than 9,500 need minor or major rehabilitation. In the Northern Governorates of Dohuk, Erbil and Sulaymaniyah, there are no schools that do not need rehabilitation and Sulaymaniyah has the highest rate of completely destroyed school buildings (171 out of 1,381 school buildings).[...]

Secondary Schools

Iraq has 2,753 secondary schools, of which 36 are completely destroyed and 2,408 need minor or major rehabilitation. Again, the three Northern Governorates as well as the Governorate of Najaf do not have one school building that does not require rehabilitation. [...] Half of the school buildings have no functioning latrines, one fifth has no electricity and sufficient water is available in only half of them[...]

Access to education

According to the ILCS, [...] 73 percent of children of primary school-age require less than 15 minutes to reach a primary school with the usual means of transportation (80 percent in urban areas, 56 percent in rural areas). The Southern Governorates of Babil and Muthanna have the lowest availability of primary schools. In Babil, 20 percent of the children need more than 30 minutes to reach a primary school and 4 percent need more than 60 minutes; in Muthanna, 19 percent need more than 30 minutes to reach a primary school and 6 percent need more than 60 minutes. The availability of secondary schools is lower than that of primary schools, but in most governorates the majority of children need less than 30 minutes to get a secondary school, which is considered to be within a reasonable distance. Again, the lowest availability of secondary schools can be found in the Governorates of Babil and Muthanna."

Fallujah's education system left in tatters (2005)

- A report by the United Nations Children's Fund estimates that 100,000 children from Fallujah and the surrounding communities were at risk of losing their entire academic year because of the conflict
- Some Iraqi NGOs are calling on the Ministry of Education to add a summer semester for students from Fallujah city to make up for lost academic time
- The education ministry reports that eight destroyed schools have been reconstructed, while more than 80 schools have not, and another 12 are being occupied by Iraqi National Guards or the US army

- In some cases, big tents are being used to teach students or one building used to accommodate students coming from three schools
- The ministry is putting together a complete plan to continue the academic year in Fallujah by adding an extra term

UNAMI EWG, 18 January 2005

"UNICEF notes that an estimated 100,000 children from Fallujah and the surrounding host communities are at risk of losing the entire academic year as a result of schools being occupied, damaged, or overcrowded. None of the 95 schools inside Fallujah are currently open, and only 125 out of 362 schools in the surrounding areas are reported as functioning by the IIG. The Ministry of Education is reportedly considering setting up 11 tented schools in Amiriya with support from NGOs."

IRIN, 22 March 2005

"Some Iraqi NGOs are calling on the Ministry of Education to add a summer semester for students from Fallujah city to make up for lost academic time as a result of schools closing during the November 2004 to January 2005 conflict between insurgents and US-led Coalition troops.

'We think it's very important for our students, as their education was cut off and by adding more semesters or a summer semester will really help them catch up,' Abd al-Hassen Sha'aban, the director of Human Rights and Democracy, an Iraqi NGO, told IRIN in Baghdad.

[...]

According to officials, the education situation is critical in Fallujah as many primary and secondary schools, and even kindergartens, were destroyed.

'Still, many students live in camps outside the city and they are suffering from a difficult life. We tried to help pupils as much as we can and adding more semesters will help them to finish the curriculum,' Mohamed Jasem, a primary teacher in Fallujah, told IRIN.

'I do not want to lose out in my studies. I have lost enough of my relatives in the combat, I would like to succeed despite the difficulties we face and the narrow crowded classes we study in,' Waked al Dulamia, a high school student from Fallujah, told IRIN.

Fallujah was devastated by a US-led attack that began on 8 November 2004, which left more than 90 percent of official buildings, houses and schools destroyed and about 200,000 people displaced, according to aid agencies.

'We had to use big tents as school for our students or use one building for three schools to ensure study for most of the students in the city,' Hekmet al-Ani, director of education directorate in Fallujah, told IRIN. He added that putting on a summer semester was one of the priorities for this academic year.

Reports from the education ministry about Fallujah show that only eight destroyed schools have been reconstructed so far, while more than 80 schools have not been, with another 12 being occupied by Iraqi National Guards or the US army.

A report by the United Nations Children's Fund (UNICEF) estimates that 100,000 children from Fallujah and the surrounding host communities were at risk of losing their entire academic year because of the conflict.

'The ministry has put together a complete plan to continue the academic year in Fallujah, we add six more weeks in the summer holiday to cover the missing period of studying during the combat,' Abd al Alah Naji al Jumayli, general director of sports and education activities at the Ministry of Education in Baghdad, told IRIN."

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Self-reliance

Self reliance capacity among IDPs is limited (2005)

- High unemployment is especially prevalent among returnees and IDPs
- Monitoring by UNHCR indicates a low percentage among the surveyed returnees in the three Northern provinces had access to regular employment
- Surveyed IDPs relied largely on the public distribution system and assistance from local authorities and relatives
- Displaced children are often forced to work in order to support their families

UNHCR, October 2005, p. 110

"While high unemployment is a problem faced by many Iraqis, it is especially prevalent among returnees, IDPs and refugees who lack social networks and sometimes suffer negative perceptions from parts of the local population.

UNHCR Returnee Monitoring in the three Northern Governorates revealed that for example in Dyana sub-district (Governorate of Erbil), only 23 percent of the surveyed returnees have access to regular employment, 28 percent said that casual employment was their main source of income and 22 percent are living on their savings. A similar situation was found among the surveyed returnees living in the Kawlok Hamiya Camp (Governorate of Erbil) and the Chwarqurna Camp (Governorate of Sulaymaniyah). Those with employment usually work for the government (e.g. as guards or in garbage collection) or as daily labourers. Despite rumours that the local authorities in the Governorate of Sulaymaniyah support at least one family member from each family to find employment in the public sector, this kind of support has not been given.[...]

IDP Monitoring in the Governorate of Erbil has revealed that 61 percent of the IDPs have a regular income, usually through a family member employed with the Peshmerga or casual work such as construction labourers and taxi drivers. The others depend fully on the PDS and as assistance from the local authorities.[...] Of the IDPs surveyed in the Governorate of Sulaymaniyah, only 36 percent have a regular source of income, while 64 percent depend on the PDS and assistance from local authorities and relatives. [...] Child labour is one of the main coping mechanisms of IDPs."

UNHCR/IOM/NRC, October 2004

"The self-reliance capacity of most IDPs in Iraq is limited, particularly among female-headed households. Child labor is a common coping mechanism for displaced and other vulnerable families"

Particular livelihood issues related to the Marsh Arabs (2003)

- Before being displaced Marsh Arabs relied on fishing, agriculture, livestock and crafts

- Women particularly affected by displacement with harder lives and lower education levels
- Older generation wish to return, but younger generation wish for better services found outside marsh areas
- Marsh Arabs now farming say they lack supplies, support and the poor quality of the land reduces their output and therefore living standards

"Prior to the forced displacement of the Marsh Arabs in 1991, the main livelihood activities engaging populations were fishing, agriculture, livestock herding (especially water buffalo), hunting and handicraft making. Wheat, barley, rice and vegetables were grown for household consumption. The significance of the water based economic activity of the Marsh dwellers reaches far beyond their homeland, as it was the subsistence for over one million residents of the region. Remnants of destroyed houses, schools and clinics in the original wetland settlements were noted, supporting the notion that services were much more accessible in the past.

The forced displacement caused a severe drop in the living standard for the majority of the marsh populations. With the continuous population movement livelihood patterns shifted. Communities that are currently settled in proximity to the marshes, seasonal agriculture as well as some livestock rearing were adopted. Fishing for communities close to water bodies is also practised in a small scale. Most Marsh Arabs who have moved in closer to urban areas are engaged in a wide range of activities including casual labour in cities. Unemployment was cited as a major concern for most of the communities visited.

Accordingly, income levels were drastically reduced, as was access to health, education, water and electricity. The situation of women across the Marsh population merits special mention. Most women/girls engage in running the households (which is normally extended family structures), house building, collection of water and working in the farmlands. Women noted that life was much harder for them now than in the marshes, and expressed a desperate need for access to clean water and health facilities. Literacy rates appear to have deteriorated as most of the women interviewed were not able to read or write.

Absence of surfaced main, arterial and feeder roads was noted as a major hindrance to economic activities and access to services. Large areas were reported impassable during the wet season November to April due to the loosely compacted earth roads. The border with Iran where Marsh Arab concentrations are currently living is infested with land mines and UXOs.

(...)

General observations from the one-day visit to the Al Hawezieh marsh in the Al Salem district of Missian and previous visits to the Central Marsh confirm the agricultural imbalance and unsustainability of current livelihoods of the Marsh Arabs. Displaced farmers who once depended on buffalo meat and milk, fish, wildfowl, the sale of reed products and seasonal rice, are now part time arable farmers with most of the men out of work and dependant on food aid. The most interesting observation was the age difference view of the future with the older generation (40+) wishing to return the known life of the marshes and its stable food security compared with the younger people (17-30) who know a different life and wish to have improved services found outside of the marsh.

In the assessment area the situation is difficult in many respects. Crop production and income generation of farmers has suffered significant drawbacks. Salinity of the soil and poor quality of the irrigation water is the main problem affecting crop yields. It also affects drinking water for the population and their livestock. As a result, milk yield and buffalo meat growth rates are reduced and further, taste and flavor are affected. Finally, it reduces the amount of fodder and reed grazing for buffaloes and sheep. This water problem is worsened by the deterioration and deficient functioning of irrigation infrastructures and pumping stations and general fuel shortages. Of the three main pumping stations visited, all are out of order. The water availability problem is

worsened by the increase in dam construction in the Tigris watershed which has reduced the overall water flow.

Fields were also affected by frequent movement of the Iraqi Army in the region, UXO and weaponry left in the fields and connecting roads. The region never had priority support from the previous regime and the embargo on agricultural and veterinary inputs worsened the situation. At present with the disruption of government services, the farmers main difficulties are: lack of support in agricultural inputs such as fertilizers and pesticide and a lack of veterinary support and vaccination. The farmers also mentioned the poor quality of seed for wheat and barley, and the lack of communication concerning the procurement of the 2003 cereal production. Further, farmers reported they made more income from the traditional marsh livelihood activities including: meat and milk production (buffaloes), wild birds hunting, rice cultivation on receding water and some wheat and sorghum cultivation." (UN OCHI, 30 June 2003)

Public Participation

Factors including lack of documentation prevent displaced from voting (2005)

- Around 6,000 IDPs from areas around Fallujah are said to have cast their vote according to local election officials
- A representative of the Independent Electoral Commission of Iraq informed IRIN that only 2 percent of eligible voters in the central al-Anbar province cast ballots and only 30 percent in the Salahdine province
- Numerous observers raised concerns that IDPs would not have been able to vote due to lost documentation
- IRIN reported a reluctance to vote among Fallujah's population
- IRIN reported candidates hadn't done any campaigning in the area due to insecurity and residents say they even don't know how the elections will proceed
- Sunni parties who dominate the area also called for a boycott of the election
- IRIN reports also that insurgents sent out leaflets in the area around Fallujah saying that residents are prohibited to vote and those who do will be targeted
- Brookings Institute Project on internal displacement raised a number of concerns in a letter to the New York Times including lack of documentation for IDPs

"IECI [***Independent Electoral Commission of Iraq***] officials told IRIN that internally displaced people (IDPs) from the cities of Fallujah, some 60 km from Baghdad, and Kirkuk and Mosul in the north were able to participate due to the improvised polling stations in the areas in the capital or in temporary camps. Around 6,000 IDPs from areas around Fallujah are said to have cast their vote.

Farid Ayar of the IECI told IRIN that only 2 percent of eligible voters in the central al-Anbar province cast ballots and only 30 percent in the Salahdine province, some 180 km from Baghdad.

Around 100,000 Kurdish IDPs uprooted from the Kirkuk area were permitted to vote locally following a decision by the Iraqi authorities in mid-January.

Exceptional arrangements were also made for over 200,000 people displaced from Fallujah, he said.

Numerous observers had raised concerns that many IDPs would not have been able to vote because they had lost the required personal documentation, either while fleeing or as a result of destruction of their homes.

'I wish that I had voted in the election and helped to give a vote to my Iraqi brothers, but all my documents were in Fallujah and my home was destroyed. I couldn't do anything,' Sinan al-Abbas, a Fallujah resident camped outside the city, told IRIN." (IRIN, 15 February 2005)

"Some residents in the destroyed city told IRIN that they were not going to vote, especially after what happened in Fallujah.

They said the election is going to play into the hands of the authorities who they believe don't care about their needs. [...]

[Situation prior to elections]

The deafening hum of planes can still be heard over Fallujah with a heavy presence of US troops. Children can be seen peering out from behind the few doorways that still exist and some can be seen playing with rubbish left before and after the conflict started. Families said they need basic supplies and are suffering in the cold weather due to a lack of power and kerosene to fuel heating systems.

Candidates haven't done any campaigning in the area due to insecurity and residents say they even don't know how the elections will proceed.

In addition, Sunni parties who dominate the area have called for a boycott of the election. Insurgents have sent out leaflets in the area around Fallujah saying that residents are prohibited to vote and those who do will be targeted.

'I believe that [many] people from Fallujah aren't going to vote because they haven't received anything from the government yet and this has increased their anger. We will guarantee security and hope they come to vote, but I doubt it,' Sabah Kadham, deputy minister of interior, told IRIN.

Residents from the damaged city claim that the elections are too early in a place where they haven't seen any improvements." (IRIN, 28 January 2005)

Letter to the editor of the New York Times

"To the Editor:

In addition to arranging out-of-country voting for Iraqi expatriates ("Iraq Expatriates Sign Up to Vote in 5 Cities in U.S.," front page, Jan. 18), it is critical to ensure that the one million Iraqis displaced within the country are able to vote on Jan. 30.

Though voters are entitled to cast their ballots in the national assembly election regardless of where they are in Iraq, internally displaced voters face a number of practical obstacles. Many of the more than 200,000 people recently displaced from Falluja were unable to register to vote before the deadline.

Other internally displaced persons have lost personal documentation while fleeing or as a result of destruction to their homes.

Additional problems arise in the governorate elections, which lack provisions for absentee voting.

The disenfranchisement of Iraq's displaced persons will pose challenges to their return and also raises questions about the legitimacy of the electoral process over all. Both of these

consequences could have significant repercussions for long-term stability in Iraq." (Brookings Bern Project on Internal Displacement, 25 January 2005)

Special polling booths provided for IDPs around Fallujah (2005)

- Insecurity in a number of cities, including Baghdad, Mosul, al Fallujah and al Ramadi made verification of voter lists nearly impossible
- In other areas, including Mosul and Tikrit, registration centres were attacked
- Due to these acts of violence the Iraqi Electoral Commission allowed voters in Ninewa and Al Anbar to register and vote on election day
- According to the Commission, over 200,000 of Al Fallujah's IDPs will be allowed to register and vote at special polling places near the camps and villages where they sought refuge
- Locations of polling stations in areas where violence was high, including Fallujah, Ramadi and Samarra, were kept secret until voting day
- According to a representative of the Electoral Commission, a specialised group on elections would be sent to the camps where Fallujah's displaced were staying

"In many parts of the country the process has gone smoothly given the limited time, although citizens born in 1986 were accidentally left off the preliminary lists. In cities like Baghdad, Mosul, al-Falluja, and al-Ramadi, however, threats and violence by insurgents have made verification of the voter lists virtually impossible. In November, insurgents set fire to a Mosul warehouse with election registration papers. On January 2 unknown assailants destroyed two registration centers in eastern Tikrit with mortar fire. As Iraq's interim president Ghazi al-Yawir explained: 'There are areas where no one has been able to give out even one voter registration sheet.' [19]

In response, the Commission has decided to allow voters in Nineveh province, where Mosul is located, and in al-Anbar province, both to register and vote on election day. According to commission spokesman `Ayyar, the more than 200,000 residents of al-Falluja who were displaced during the U.S. offensive in November will be allowed to register and vote at special polling places established near the displacement camps and villages where many of them currently live. As of January 12, approximately 6,000 al-Falluja residents had returned to the town[20] and, according to a U.S. general, they will be able to vote there. [21]

[...]

On January 15 the electoral commission announced that voters must vote in the province where they are registered. [49] The one exception is the estimated 200,000 al-Falluja residents who were expelled from the town before and during the U.S. assault in November 2004. For them, the electoral commission is setting up special polling places in the villages and displacement camps where many of them live, such as in Abu Ghraib and al-`Amiriyya."

Endnotes

[19]"Electoral Process Faces Difficulty in Iraq," by Hamza Hendawi, Associated Press, December 2, 2004.

[20]Emergency Working Group, Fallujah Bulletin Update, January 18, 2005.

[21]"Battle-hit Falluja Set to Vote," BBC, January 19, 2005. See http://news.bbc.co.uk/1/hi/world/middle_east/4186231.stm, accessed January 19, 2005.

[49]"New Steps Set For Security Around Iraq Vote," by Jeffrey Gettleman, New York Times, January 16, 2005

(HRW, 23 January 2005)

"The Iraqi government said that the displaced would have the right to vote no matter where, they were along with those who had returned to Fallujah recently at polling stations under tight security from US troops and the Iraqi army.

Farid Ayar, deputy for the Higher Independent Electoral Commission (HIEC), told IRIN that elections would be held in Fallujah, Ramadi and Samarra, east of the capital, and Mosul, north of Baghdad, but the location of polling stations in these areas would be kept secret until the day, to prevent attacks.

A specialised group on elections would be sent early morning to the camps where Fallujah residents are staying to speed up the process, he added. There are some 18,000 candidates running for election on 256 political party lists.

Prime Minister Iyad Allawi, in a press conference in Salahdine city, 180 km from the capital, on Wednesday said that differences between Sunni and Shi'ites shouldn't be present in the country and called on people from Fallujah to participate in the election to show that they were part of Iraq." (IRIN, 28 January 2005)

Displaced in Kirkuk given right to vote locally (2005)

- Kurdish political parties threatened to boycott the elections because Kurdish residents of Kirkuk, expelled by the former regime in the 1980s and 1990s were not allowed to vote in the province
- Under pressure, the Iraqi Electoral Commission announced its decision that around 100,000 displaced Kurds could vote locally
- The decision was condemned by Arab and Turkmen leaders

"Until mid-January, Kurdish political parties were threatening to boycott the elections because Kurdish residents of Kirkuk who had been expelled from the area during Saddam Hussein's 'Arabization' program in the 1980s and 1990s were forbidden to vote in the provincial election. On January 14 the Electoral Commission announced that displaced Kurds from the area could vote locally. The decision allows an estimated 100,000 Kurds to vote for the al-Tamim provincial government. [45]

Arab and Turkmen leaders in Kirkuk condemned the decision, and one of the main Turkmen parties, the Iraqi Turkmen Front, threatened to boycott the elections. The decision, they say, will put Kurds in charge of the al-Tamim government during the coming year, when Kirkuk's territorial status in Iraq is scheduled to be determined. [46]" (HRW, 23 January 2005)

[Footnote 45]"Kurds Reach Tentative Deal to End Boycott of Kirkuk Elections," *Agence France-Presse*, January 14, 2005, and "Kirkuk Election Deal Tips Power to Kurds, Angers Arabs, Turkmen," *Agence France-Presse*, January 15, 2005.

[Footnote 46]According to Article 58 of Iraq's Transitional Administrative Law (TAL), the resolution of disputed territories, including Kirkuk, will be deferred until after a new constitution is in effect and a census has been held.

"Saleh and other Kurdish leaders have aggressively pushed their case in Baghdad, playing brinkmanship politics to guarantee their new stature in Iraq. The Kurds played hardball in December and January over the issue of the multi-ethnic city of Kirkuk which the Kurds want to claim for their northern self-rule enclave. Saleh and other leading lights of the PUK and the

Kurdistan Democratic party threatened an election boycott over the Iraqi government's failure to award the vote to those thousands of Kurds expelled from Kirkuk under Saddam.

But faced with growing Kurdish anger, the Iraqi government finally buckled and allowed an estimated 100,00 displaced Kurds from Kirkuk to vote in the city, effectively handing power in the community to the Kurds." (Daily Star, 25 January 2005)

"The issue has a broader political significance since Kirkuk – which lies just outside the three provinces that make the Kurdish region - is something of a prize because of its oil resources. Both Kurds and Arabs would like to claim it as their own, while the Turkoman, a significant local minority, tries to secure their own position." (Kurdish Media, 25 January 2005)

Displaced are particularly vulnerable to political manipulation (2004)

- IDPs are being pressured on a number of levels including being promised housing and money at the place of return, gangs charging IDPs for 'spots' in public buildings promising that high levels of compensation would be paid on eviction

"Due to the general political insecurity, IDPs are particularly vulnerable to political manipulation. IDP populations have in general been displaced due to ethnical or religious discrimination and at times to alter the ethnic balance in certain areas. With elections planned there is a high risk that displaced populations will again face push or pull factors for similar purposes. Examples that have already occurred range from cutting services to camps, promising housing and money at the place of return, to gangs charging IDPs for 'spots' in public buildings promising that high levels of compensation would be paid on eviction, or that buildings would be rehabilitated and provided for superior accommodation." (UNHCR, 12 August 2004)

Displaced people form their own networks (2004)

- IDP groups have organised themselves and developed their own protection networks through community watch programs
- Baghdad's IDPs march on CPA offices in protest alleged order to leave abandoned government buildings in which they have been living for months
- Huge reconstruction efforts are planned to provide housing but could take up to 3 years
- IDPs tired of waiting believe this protest to be the 'beginning of [their] rights'
- Marsh Arabs organise council to participate in decisions of future of Wetlands and convene conference
- Conference provides the first opportunity for Marsh Arabs to present their ideas

"The general insecurity faced by the population of Iraq as a whole, affects IDPs more due to their particular vulnerabilities and lack of community protection.

[...]

Increasingly, IDP groups have organised themselves and developed their own protection networks through community watch programs" (UN Cluster 8/UNCT, August 2004)

"It looks like a peace rally or a spring celebration: green flags fluttering in the breeze, children running around, and posters calling for housing for all.

But talk to some of the 500 people who gathered on Wednesday in front of gates leading to US administrator Paul Bremer's office, and their protest is quite desperate. They say Iraqi police and US-led troops have told them to leave the abandoned government buildings around the city where they have been living for almost a year.

[...]

A Coalition Provisional Authority (CPA) spokesman says there is no coalition policy requiring internally displaced people in Iraq to leave government buildings.

Illegal squatters in government buildings are addressed on a "case-by-case" basis, Dan Senor, a spokesman for the US-led CPA, told IRIN.

US troops asked some people to move out of a ministry building for security reasons, said Brigadier General Mark Kimmitt, a spokesman for coalition troops. In general, troops leave displaced people living in government buildings alone, however, Kimmitt said.

'We don't want to continue to live in these places anyway. We believe that the (Iraqi) Governing Council should find a place for us,' said Najim Kalum, 40. 'But we don't trust the Governing Council to help us, so we came to talk to Bremer. All we want is a safe place to educate our children.'

However, with bigger issues to deal with, including the scheduled June 30 handover of sovereignty to Iraqis, the de facto government, the appointed Governing Council, apparently has not had time to address the issue of rapidly rising rents in some parts of the country. Meanwhile UN agencies that most commonly deal with internally displaced people in post-conflict situations are working on Iraqi issues from outside of the country.

Reconstruction experts believe up to 84,000 families may be without houses in Iraq, said Andy Bearpark, CPA director of operations and infrastructure. In an effort to address this Bremer recently signed seven housing contracts worth more than US \$100 million to start building new homes for people. The homes will be built mostly in the southern Iraqi towns of Basra, Muthanna, Najaf, Diyala, Karbala, Maysan and Ninawa.

When completed, the new construction is expected to put a permanent roof over the heads of 18,000 people, or more than 3,500 families. Each housing development will also include a mosque, a recreational area, a medical clinic, a shopping mall and schools.

The first construction project will start in Basra in coming days. Thousands of refugees who fled oppression under the former Saddam Hussein regime continue to return from Iran and Saudi Arabia to southern Iraq. Even though many stay with relatives, many towns near the border are bursting with new people. Displaced people in Baghdad also often come from southern Iraq.

[...]

However, people still living in temporary accommodations and shelters don't want to wait. They say if nothing is done soon, they'll create even more political problems. Housing projects just signed by Bremer could take as long as three years to complete.

'This is the beginning of our rights,' Kalum said. 'If they don't respond to us, we'll make a bigger demonstration, and things could be worse for them.' (IRIN, 19 March 2004)

"The founding conference of the Maysan Marsh Arab Council marked the first time that Iraq's Marsh Arabs publicly expressed their wishes and concerns for the future of their marshland environment. According to a report from the Maysan Province office of the Coalition Provisional Authority (CPA), several hundred marshland residents gathered in the city of Amarah, Iraq, on March 20 to meet with scientific experts and government officials regarding projects to restore portions of Iraq's wetlands.

'If you are going to talk about the marshes, you must talk about the people, the villages there,' said Iraqi Governing Council member Abdul Karim Al Muhammadawi. Al Muhammadawi earned the moniker 'Prince of the Marshes' for his role in leading the resistance against Saddam Hussein's regime within Iraq's southern provinces for 17 years.

The conference provided a forum for marshland residents to discuss numerous issues surrounding proposed plans to re-flood parts of the vast network of wetlands along the Tigris River basin in southern Iraq. These included not only environmental issues but also concerns regarding health, education and agricultural and cultural matters relevant to the historically marginalized Marsh Arab population.

According to the CPA report, conference participants discussed strategies for managing returning refugee populations, the allocation of arable land and the provision of basic utilities, health care and education. In recent testimony before the U.S. Congress, U.S. Agency for International Development (USAID) officials studying the feasibility of marshland restoration observed that the residents 'ask for social services that have never been accessible to them in the past but ought to be expected of any representative civil society in the future.'

The Maysan Conference marked the first opportunity for local marsh residents to articulate these wishes in an official public forum. According to the CPA report, the purpose of the newly founded Marsh Arab Council is 'to provide a voice for the Marsh Arabs of Maysan so their interests and concerns will be factored into national and international plans that affect the marshes.'

The report indicated that this was only the first in a series of meetings aimed at bringing local residents into the dialogue regarding the future of their region. Most of the marshlands were drained by the former regime during the 1990s in order to deprive opposition Shi'a forces of safe havens. Azzam Alwash, manager of the Iraq Foundation's New Eden project, said in recent hearings before the U.S. Congress, 'In a few short years, Saddam drained them to allow access for his tanks to establish control in the area. After they were dried, the marshes were burned and villages were destroyed.'

Alwash estimated that as many as 300,000 residents died or fled their homes during the period. (Coalition Provisional Authority, 22 March 2004)

DOCUMENTATION NEEDS AND CITIZENSHIP

General

Lack of documentation affects returnees (2005)

- Returnees face difficulty in obtaining documentation required upon return despite the existence of legal advice centres coordinated by the authorities in the North
- Returnees may have difficulty to obtain documentation do to costs related to transportation and appliation fees
- Legal services are unable to cope with the large numbers of people returning in the south
- UNHCR monitoring indicates that lack of documentation has created serious problems for returnees, like inability to access food and education
- Foreign spouses may also face problems obtaining documentation
- Newly displaced persons face delays in registering with the public distribution centre as food cards are tied to one location

UNHCR, October 2005, p.132-133

"Returnees often face difficulties in obtaining necessary the documentation upon return, though there are regional differences with the authorities in the three Northern Governorates having efficient mechanisms in place, supported by legal advice centres operated by the authorities.

Returnees may face difficulties to afford the costs related to transportation and application fees to obtain necessary documentation, in particular as several visits in a given Directorate may be required. Also in the South, independently-run Legal Aid and Information Centres (LAICs) play a crucial role in facilitating the process of obtaining necessary documentation; however, in view of large numbers of returnees in Southern Iraq, the existing network of LAICs is insufficient. UNHCR Returnee Monitoring showed that lack of documentation is the basis for a series of other problems such as access to food rations, education and employment, thereby seriously hampering the reintegration process of returnees. Foreign spouses of returnees, mainly from Iran, at times face problems obtaining the necessary documentation (e.g. residency permit, food ration card) as it takes considerable time and effort to register the marriage, in particular in the South and Centre. This leaves foreign spouses and children with no access to public services.

Newly displaced persons may face delays in registering with the PDS centre in the place of displacement as the food ration card allows food rations only in a particular location. The transfer of food ration cards is often delayed by bureaucratic procedures, sometimes leaving families without food for months. It has been reported that the Ministry of Trade has now addressed this issue."

IOM, September 2004

"Lack of documentation in terms of IDs, ration cards, marriage certificates and other documentation for IDPs is common, especially in the south. This issue mainly concerns the Marsh Arabs and the returning refugees." (IOM, September 2004)

UN Cluster 8/UNCT, August 2004, p.9

"In recent years, **documentation** in Iraq has been closely linked to the monthly food ration. Many IDPs were excluded from the monthly food ration at their place of displacement because their documentation stated their distribution place was elsewhere. Others were reluctant to hand in their old cards since it serves as evidence of previous residence. While the majority of the registration problems have been solved with the intervention of Cluster 8, there are still cases where IDPs are not registered. Advocacy and consultations to address this are on-going with the relevant ministries."

UNHCR, 12 August 2004

"Documentation in Iraq has been closely linked in recent years to the monthly food ration. Many IDPs were excluded from the monthly food ration at their new locations because their documentation stated that their Public Distribution Centre was elsewhere. UNHCR with the Humanitarian Coordinator intervened and advocated for a system that allowed IDPs to register in their current location and continue to keep their old ration card in case evidence of former residence is required in the future, in particular for property disputes."

Statelessness: many Iraqis stripped of their nationality (2005)

UNHCR, 12 August 2004

"Statelessness is a major issue in Iraq. Up to half a million Iraqis (including Farsi Kurds and Arab Shi'ites) were stripped of their nationality by the previous government and expelled to Iran. Meanwhile, Bidouns (stateless nomads) live on either side of the Iraq/Kuwait border. In addition, children of mixed marriages (particularly in cases where the mother is Iraqi and the father of another nationality) may face problems if they wish to return to Iraq, while women (such as those who have married men of another nationality) may face particular obstacles when they wish to return. In the recent past, nationality issues have not been decided in courts, and nationality laws frequently revised, with the result that indigenous expertise on the subject has declined."

Resolution No. 199 forces ethnic minority members to choose between signing a form correcting their nationality or being expelled (2001)

- In Sept 2001 the Iraqi government passed Resolution No. 199 giving all non-Arab Iraqis over 18 the right to change their ethnic identity to that of Arab
- Iraqi authorities attempting to hide the displacement of Kurds from Kirkuk
- Many Kurds and Turkoman families in Mosul and Kirkuk expelled to northern Iraq for failing to sign form

"On the 6th September 2001, in an unprecedented move, the Iraqi Revolutionary Command Council – which ranks higher than the so-called Iraqi Parliament – passed Resolution No. 199 giving all non-Arab Iraqis over 18 the right to change their ethnic identity to that of Arab. Such a decision is contrary to all the principles of human rights and is politically motivated. Its purpose is to compel all non-Arabs in Iraq to adopt an Arab ethnic identity. This law legalizes the regime's policy of ethnic cleansing directed against all Kurds, Turkmans and Assyro-Chaldeans.

For decades, the Iraqi regime has continued to deport tens of thousands of Kurdish families from that part of Kurdistan still under its control to either the Kurdish controlled area of Kurdistan or to southern Iraq and has confiscated their properties and belongings, including their identity cards. The choice facing these people was deportation or the enforced change of ethnic identity. This

law, which legalizes such acts, is in direct violation even of the Iraqi Provisional Constitution of 1970, Article 19/A of which states that all Iraqis are equal, regardless of ethnic language, religion or social class.

Furthermore, Article 5/B of that Constitution states that the people of Iraq is composed of two main ethnic groups, Arabs and Kurds, and recognizes the rights of the Kurds and other minorities. This decision of the Iraqi Revolutionary Command Council effectively divides the population according to ethnicity. It favours one group over the other and gives a higher status to Arabs.

It should also be remembered that this Resolution is in direct contravention of Article 18 of the International Charter of Civil and Political Rights adopted by the UN in February 1966. Just as everyone has the right to their place in a family line, so every person has an inalienable right to his claim of ethnic identity, but Resolution No.199 makes no distinction between ethnic identity and nationality." (KTRS 27 Jan 2002)

"[...] in August 2001, the Ministry of the Interior sent a document to the Department of Statistics demanding that during the expulsion of any family from Kirkuk, false names and numbers should be written on the documents that are usually issued for them by the governorate office to the checkpoints, and that the documents should not be registered in their records.

[The Sulaymaniyah Kurdish newspaper] 'Kurdistani Nuwe' believes that the intention behind these measures is to destroy any evidence that the Iraqi government has expelled Kurdish families from Kirkuk in case of accountability by official sides, particularly the United Nations. In this way, Iraq could easily deny the allegation." (RFE/RL 14 September 2001)

"In 1999, Baghdad continued its systematic efforts to 'Arabize' the predominantly Kurdish districts of Kirkuk, Khanaqin, and Sinjar at the edge of government-controlled Iraq near the Kurdish-controlled zone. To solidify control of this strategically and economically vital oil-rich region, the government expelled Kurds, Assyrians, and Turkomans—at times, entire communities—from these cities and surrounding areas. At the same time, the government offered financial and housing incentives to Sunni Arabs to persuade them to move to Kirkuk and other cities targeted for Arabization. New Arab settlements were constructed on expropriated Kurdish land holdings.

In 1999, Baghdad gave a name to its Arabization program: 'nationality correction.' The government began requiring ethnic minority civil servants to sign a form correcting their nationality. Persons refusing to sign the forms—for example, a Kurd refusing to 'correct' his nationality and list himself as an Arab rather than a Kurd—would be subject to expulsion to northern Iraq or the no-fly zone in the south. During the year, Kurds and Turkoman families in Mosul and Kirkuk were reportedly expelled to northern Iraq for failure to sign the forms. Although the Arabization campaign was not publicized, sources in northern Iraq reported that more than 2,000 people were expelled to the northern region between January and November." (USCR 2000)

For more information on the "Arabization policy", please see
[[Internal link](#)], "Eviction of Kurds but also of Turkmen and Assyrians from the Kirkuk area (1997-2001)"

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

General

National Centre for Missing Persons to be established (2005)

- The centre is being set up by the Iraqi Ministry of Human Rights in Baghdad to help relatives find out what has happened to loved ones
- The Centre will examine bones from mass graves as well as establish a list of those missing since 1978
- Around one million Iraqis are believed to have disappeared during the former regime, of which many are believed to be buried in 228 mass graves discovered thus far
- The majority of disappearances occurred during the Gulf war in 1991 and the subsequent Shi'ite uprising in South Iraq
- Hundreds of people also remain unidentified and missing during and after the 2003 conflict
- The Iraqi Red Crescent Society has been approached on a daily basis by families searching for missing loved ones, especially from Fallujah

"On 17 January 2005, the Policy Group adopted the draft resolution proposed by the Working Group, which called upon the Government of Iraq to establish a **National Centre for Missing and Disappeared Persons in Iraq**, for Iraqis and other nationalities, and to take the appropriate measures under the law by enacting the required legislation. The resolution also called upon Iraqi society, institutions and individuals to cooperate fully with the National Centre to ensure that the fate of those who are missing or who have involuntarily disappeared is determined. The resolution also appealed to the international community to extend its support to the National Centre by assisting with the provision of the expertise and resources that it will require for the successful pursuit of its humanitarian objective." (UNAMI, February 2005)

"On 20 February, the Interim Government of Iraq issued decree no.18 by which it officially authorized the establishment of the "National Centre for Missing Persons" in Iraq, consistent with the recommendations of the Policy Group meeting convened by UNAMI/HRO for the Ministry of Human Rights, with support from the United Nations Development Programme (UNDP) in mid-January. The decree requires the Ministry of Human Rights to work with UNAMI to follow up on the realization of the project objectives." (UNAMI, 27 February 2005)

"Iraq's Ministry of Human Rights (MoHR) in Baghdad is setting up a National Centre for Missing and Disappeared Persons (NCMDP) to help relatives find out what has happened to their loved ones.

The new programme being developed by the MoHR, will examine bones samples recovered from mass graves, as well as establishing a register of names of those reported missing since 1978 in Iraq.

Families will be given the opportunity to provide blood for DNA testing to check against samples taken from bodies found in mass graves.

According to the MoHR officials, nearly one million Iraqis are believed to have disappeared during Saddam Hussein's regime and a large number are believed to be buried in the 228 mass graves

discovered so far. The majority disappeared during the Gulf war in 1991 and the subsequent Shi'ite uprising in the south of Iraq, officials said.

[...]

But the identification issues are not only centred on mass graves. Hundreds of people remain unidentified and missing during and after the conflict in 2003.

Officials from the Iraqi Red Crescent Society (IRCS) office, responsible for the problem of identification, told IRIN that every day many families come to them searching for their missing loved ones, particularly those from Fallujah, where intense fighting between US forces and insurgents took place.

They added that after the International Committee of the Red Cross (ICRC) closed its office in the capital, because of the lack of security, the search for missing people had become even more difficult and would take even longer than expected." (IRIN, 7 February 2005)

For further information, see also "[Iraq: State of Evidence](#)" HRW, November 2004 [Internet]

PROPERTY ISSUES

General

Concerns related to the property restitution process (2005)

- There is concern that the failure to settle property disputes between returning Kurds and Arab settlers may further destabilise the security situation in the North
- Many property restitution cases fall outside the scope of the property commission established in Iraq (IPCC) including claims related to the Anfal campaign in the North and the burning of the villages as part of the drainage programme of the Marshes in the South
- Compensation guidelines and measures to ensure that persons who are must return a property to the original property owner do not become homeless have not yet been put into place
- Stateless persons may have particular difficulties in claiming their property
- In the North, the regional authorities have allocated land without clear guidance

UNHCR, October 2005, pp.137-138

"While it is a major achievement that IPCC offices have been established throughout Iraq and adjudication has commenced, there are still a number of issues that need to be addressed in order to have a fully operational property restitution mechanism, accessible to all, that provides fair and just decisions while ensuring the rights of the legitimate rights holders and secondary occupants.

A comprehensive out-of-country intake process has not yet been put in place. There is concern that many people, particularly claimants living outside Iraq as well as in rural areas, were not informed about the IPCC and procedures for filing claims before the 30 June 2005 deadline. The extension of the deadline to submit claims until 30 June 2007 has been highly welcomed.

In addition, many property restitution cases are outside the scope of the IPCC and need to be addressed by the ordinary courts, for example where property was lost due to actions which cannot be attributed to the former regime. Cases where real property was damaged or destroyed do not fall under the jurisdiction of the IPCC, thereby excluding, for example, claims related to the destruction of villages in Northern Iraq as part of the *Anfal* campaign[...] or the bulldozing, shelling and burning of villages in the marshes as part of the drainage programme throughout the 1990s.[...]

The main purpose of the IPCC is to ensure that persons who were unjustly deprived of property rights by the former regime are reinstated in their property rights. However, in certain circumstances (e.g. if the property is now being used for a public or charitable purpose or if a house was destroyed and a new building has been constructed in its place) it may not always be possible to return property rights to a former owner or right holder and other remedies may be appropriate (e.g. compensation or in-kind compensation such as another plot of land).

While legitimate property rights holders have a right to return to their homes and lands, it is important that this right is implemented in a manner that does not cause additional human rights violations. In cases where the current occupant is forced to return a property to the original rights

holder, adequate measures must ensure that fair compensation is paid for accumulated rights and homelessness is avoided; this could be achieved through the provision of temporary alternative accommodation, reconstruction assistance or allocation of land/housing. To date, compensation guidelines and arrangements to avoid homelessness have not been set in place by the national authorities.

There is also concern that the unresolved nationality law complicates the reinstatement of property rights of those who have not yet reacquired their nationality, since only Iraqi nationals (with some exceptions) can own property or have a right of use. Another constraint negatively impacting the restitution and return process is the politicization of property issues, in particular in formerly 'arabized' areas. IDPs returning from Northern Iraq to Kirkuk are allocated a piece of land (200m²) in Kirkuk Governorate by the Kirkuk authorities with the assistance of the Kurdish authorities. In addition, they receive non-food items such as tents, house goods and kitchen appliances. [...] There is a need for clear legal guidance by the Iraqi authorities with regard to land allocation in order to avoid future problems.

The non-resolution of land, housing and property issues presents a serious obstacle to the return of refugees and IDPs and is a major cause for ethnic/religious tensions."

RI, 25 August 2003

"One of the most complex effects of displacement in Iraq is the issue of settling property claims. Whatever the reason for displacement, it resulted in the widespread involuntary abandonment of property that was, ultimately, confiscated by others. Houses built by Kurds on land that they once owned, for example, were destroyed by Iraqi forces. In their place, Arabs built new homes. Who, then, is the rightful owner of the 'new' house? While it is justified for Kurds to return to their former homelands to reclaim what is rightfully theirs, what sort of remuneration should be provided to Arab farmers who built homes and farmed these lands at the behest of the former regime? What sort of compensation should be provided to Arabs who legally purchased the property of Kurds forced to move? These are just a few of the issues that need to be resolved before people can resettle and begin new lives with the assurance that their efforts will be recognized as both legal and just."

HRW, August 2004

"A crisis of serious proportions is brewing in northern Iraq, and may soon explode into open violence. Since 1975, the former Iraqi government forcibly displaced hundreds of thousands of Kurds, Turkomans, and Assyrians from their homes, and brought in Arab settlers to replace them, under a policy known as 'Arabization.' With the overthrow of that government in April 2003, the Kurds and other non-Arabs began returning to their former homes and farms. Ethnic tensions between returning Kurds and others and the Arab settlers escalated rapidly and have continued to do so, along with tensions between the different returning communities—particularly between Kurds and Turkomans—over control of the oil-rich city of Kirkuk. In the absence of a speedy implementation of plans to address the conflicting land and property claims and the needs of the different communities, ownership disputes may soon be settled through force. [...] [T]he law fails to address the burning issue of what is to become of the so-called Arabization Arabs, in particular whether they will have the right to choose their place of residence following the resolution of property disputes. They, in a real sense, have become the latest victims of internal displacement."

HRW, 3 August 2004

"In northern Iraq, the authorities' failure to resolve property disputes between returning Kurds and Arab settlers threatens to undermine security in the region, Human Rights Watch said today in a

new report. Iraq's interim government urgently needs to implement the judicial means to resolve these disputes, which stem from decades of Arabization policies that uprooted hundreds of thousands of Kurds and other non-Arabs.

The 78-page report, 'Claims in Conflict: Reversing Ethnic Cleansing in Northern Iraq,' documents the increasing frustration of thousands of displaced Kurds, as well as Turkomans and Assyrians, who are living in desperate conditions as they await a resolution of their property claims. Human Rights Watch details how the U.S.-led Coalition Provisional Authority failed to act even as the situation grew more volatile.

As well as implementing the judicial means to resolve these claims, the Iraqi interim government must take urgent measures to meet the immediate humanitarian needs of thousands of internally displaced Kurds and other non-Arabs living in dire conditions in and around the northern city of Kirkuk. It should also find durable solutions for Arab families who were in turn forced from their homes after the fall of the former Iraqi government in April 2003.

'If these property disputes are not addressed as a matter of urgency, rising tensions between returning Kurds and Arab settlers could soon explode into open violence,' said Sarah Leah Whitson, executive director of Human Rights Watch's Middle East and North Africa division. 'Justice must be done for the victims of what was effectively an ethnic cleansing campaign to permanently alter the ethnic make-up of northern Iraq.' The report documents the rising anger of returning displaced Kurds and other ethnic minorities who increasingly feel the only resolution may be for them to take matters into their own hands.

[...]

The Coalition Provisional Authority failed to address the rising tensions in northern Iraq and to implement a strategy to resolve the claims and needs of the different communities there, Human Rights Watch said. When the CPA was formally dissolved on June 28, more than a year after the fall of Saddam Hussein, it had yet to implement a mechanism to resolve competing property claims.

Although legislation was formally passed in January establishing an Iraq Property Claims Commission (IPCC), neither it nor its implementing instructions were finalized until June. More than 6,000 claims have reportedly been lodged at IPCC offices in 10 of the country's 18 governorates, but the judicial mechanism put in place for the adjudication of these property disputes has still not been implemented. The commission's statute also failed to adequately address the question of where Arab settler families are to be resettled once they have vacated disputed property. Many of them have lived in Kirkuk and other Arabized areas since the 1970s and have long since severed connections with their area of origin.

'The process of seeking redress for the displaced Kurds and others must not lead to new injustices against Arab settlers,' Whitson said.

Human Rights Watch called on Kurdish political leaders to coordinate efforts to provide humanitarian assistance to internally displaced families who have already returned to reclaim property, and to discourage further returns to former places of residence until property claims are processed.

Background

Arabization first occurred on a massive scale in the second half of the 1970s as the Iraqi government sought to alter the demographic make-up of northern Iraq in order to reduce the political power and presence of ethnic minorities and consolidate control over this oil-rich region. In northern Iraq, probably as many as 250,000 Kurds and other non-Arabs were forcibly expelled from their homes, including an estimated 120,000 among them during the 1990s.

Simultaneously, the Iraqi government brought in landless Arabs from the nearby Al-Jazeera desert and others from central and southern Iraq to settle in their place. Land titles to the rich agricultural lands seized from the Kurds and other non-Arabs were invalidated upon their expulsion, and the land was then leased on annual contracts to Arab farmers. Many of those expelled have since been living in camps for the internally displaced in the northern Kurdish-controlled governorates for over a decade."

See "[*Claims in Conflict: Reversing Ethnic Cleansing in Northern Iraq*](#)," HRW, August 2004 [Internet]

HRW, 22 October 2003

"The donor community should also support the establishment of a post-conflict property dispute mechanism to provide fair and efficient settlement procedures a top priority. A broad-ranging restitution and property reform process is an urgent necessity for Iraq in order to avoid inter-ethnic violence. Victims of forced displacement-a crime against humanity-have a right to reclaim their former property, but this right must be balanced against the rights and humanitarian needs of the secondary occupants, many of whom have lived in expropriated homes for decades. "

Overview: housing, land and property rights challenges in Iraq (2003)

- There remain a number of housing, land and property challenges in Iraq
- Hundreds of thousands of Iraqis were forcefully evicted from their homes and lands since the 1960s
- Today, attempts by displaced persons and refugees to reclaim their former homes are complicated because they are now occupied by members of other ethnic groups;
- Others are illegally occupying land, housing and property since the end of the 2003 conflict
- IDPs may also face difficulties making their housing, land and property claims by claimants without documentation to prove their claims
- The excerpt below outlines some further disputes that are expected to arise upon the return of displaced and refugee communities

"Since Saddam captured power in 1968, hundreds of thousands (if not millions) of Iraqis faced forced eviction, the confiscation of their traditional homes and lands, and widespread involuntary displacement designed to socially engineer an Iraq more favorable to the Saddam regime. Throughout the Saddam era, the Arab population was encouraged through financial, land and other incentives to settle in Kurdish areas, with a view to establishing central Government control over the Kurds and diluting the Kurdish demographic majority in the area. Many of the settlers received formal legal title to the lands they acquired during this shift of population. During this process of 'Arabization', hundreds of thousands of Kurds were ethnically cleansed from their traditional homes and lands, and as far as is known, were provided with no legal recourse, compensation or alternative land or housing. Many of the displaced now wish to reclaim their former homes and lands.

Widespread housing, land and property disputes stemming from returning refugees and IDPs seeking to recover their former homes and lands or to reassert rights over these places of

habitual residence, the unauthorized occupation of land, housing or property and irregular transactions of these assets have been reported throughout Iraq. These disputes will grow with more than one million refugees and internally displaced persons contemplating returning to their original homes and villages. Some have already done so, and have returned to the ruins of their former homes. Other returnees have sought to reclaim their former homes, despite the fact that these homes are currently occupied by others.

[...]

In Kirkuk and Mosul, for instance, the process was particularly widespread. [...]

The types of disputes that have arisen and are anticipated to arise with the return of greater numbers of IDPs and refugees include:

- Attempts by displaced persons and refugees to reclaim their former homes, which are now occupied by members of other ethnic groups;
- Unauthorized occupation of land, housing and property by secondary occupants since the end of the recent conflict;
- Housing, land and property claims by claimants without documentation to prove their claims;
- Determining rights in instances where current occupants hold 'lawful titles', but where returnees do not;
- Determining rights following the unregistered transfers of property;
- Claims by bona fide purchasers of property after it was initially expropriated;
- Claims for improvements made on homes, lands and property legally owned by returning refugees and IDPs;
- Claims on the determination of boundaries;
- Claims of tenancy rights and cultivation rights;
- Land occupied by various political or military groups; and
- Disputes between tribes and villages.

In addition to these types of disputes, those affected by the various land re-distribution efforts during the past several decades may yield restitution claims and possible disputes. While some of these land reform programs were clearly legal and involved the payment of compensation to those who faced the expropriation of their lands, in instances where this was not the case, legitimate claims may emerge.

Recent Forced Evictions and Displacement

Forced evictions and displacement have continued beyond the end of the Saddam era. Various types of forced evictions have been evident in Iraq since the beginning of the present occupation. These acts do not appear to have been treated sufficiently as a human rights issue thus far, despite the clear human rights implications of the practice and the requirements stemming from Article 27(1) of the Fourth Geneva Convention.

Northern Iraq

In Northern Iraq, an unknown number (but generally thought to be thousands) of Arab Iraqis have faced eviction by formerly displaced Kurds seeking to reclaim their former homes and lands. Kirkuk has been particularly affected. These evictions, carried out without regard for the rule of law or the human rights of those evicted, have resulted in considerable hardship for the Arab families affected, and have created deep-seated animosities among the ethnic groups, threatening security in the area. While historical imperatives may lie behind the current eviction wave throughout the Kurdish areas, it remains vital that the rights of **all** Iraqis are protected and respected. All told, tens (if not hundreds) of thousands of families may eventually be affected by these processes. The US military has been reluctant to intervene in these acts of violence in a

concerted manner, and as a result, evictions and resultant displacement of Arabs has been widespread throughout northern Iraq.[1]

Southern Iraq

In Southern Iraq, growing numbers of Iranian refugees have also faced forced eviction from their homes in recent months. These appear to have been carried out by local communities. That only a small number of CPA staff are employed in Southern Iraq indicates the practical difficulties involved in monitoring and preventing such acts in this area of the country. In Basra, over 400 persons are living in a reception center after having been forced to flee their homes in Al Dual by the local population, which in turn confiscated their land and other assets.

Baghdad

In Baghdad, thousands of people have been evicted since the beginning of the US Occupation. Ba'ath party officials, Republican Guards and other favored government bureaucrats under the Saddam regime and large numbers of ordinary poor Iraqis have been evicted in large numbers from their homes. Hundreds of up-market apartments along the Tigris River have been seized by angry mobs, and the occupants evicted. Hundreds, and probably thousands of additional Iraqis have been evicted in recent weeks after falling behind in their rent, or simply because landlords, unconstrained by law or officialdom, believe they can obtain substantially higher rents from new tenants.

Mass forced evictions of Palestinian refugees resident in Baghdad have also been reported. UNHCR has said that some 1,000 Palestinian refugees had been evicted by early May 2003, and that as many as 60-90,000 more refugees may also face forced eviction as private landlords seek to reclaim apartments they were forced to rent to the refugees for very small sums, and to cash in on new arrivals from the international community with considerably larger sums of cash to be spent on rent. [2]

Unless action is taken promptly by the Competent Authorities to halt these forced evictions, it is likely that further violent displacement will ensue once refugees beginning returning in larger numbers. This will only fuel the already insecure and unstable situation in the region. As of July 2003, available information does not indicate that those carrying out these evictions are being held accountable under law, nor that comprehensive measures based on law have been taken to halt such evictions. Equally, it remains unclear under which legal regime these arbitrary evictions are ostensibly justified, if any. It appears that there has been no effort by the Competent Authorities to attempt to confer even informal security of tenure (let alone formal) rights to dwellers in all tenure categories in Iraq (eg. Owner-occupied, private sector tenancies, public sector tenancies, etc) as a concrete means of discouraging and preventing further forced evictions.

[...]

Housing, Land and Property Registration and Titling Systems

Under the present circumstances of unrest, the lack of a functioning and impartial judiciary throughout the country and the slow re-emergence of public institutions, housing, land and property transactions are not generally subject to formal legal or institutional oversight. House sales that take place at present may be based on informal contracts between the parties, but these may neither be formally legal, nor necessarily a form of transaction that will be recognized by future judicial and related institutions. The absence of an official means for such transactions serves to create greater insecurity and fear that people forced to sell or buy a home might not have rights as secure as they would otherwise anticipate. This is a problem common to post-conflict settings, and one that requires the attention of the authorities.

The incomplete nature of registration records and the lack of current capacity in housing, land and property registration institutions now in place also means that people will find it increasingly difficult to prove ownership or tenancy rights over a particular dwelling. This, in turn, will become another major challenge to whatever institution is established to resolve housing, land and property disputes. It is clear that a major effort will need to be made by the Competent Authorities to discern the degree to which the system for registering housing, land and property titles and/or tenancy rights is in place, and how best to re-establish these functions throughout the country. The Competent Authorities will need to rapidly discern what portion of the registration (or cadastre) records are still available for consultation, and to what extent they have access to and control over these vital records.

Unauthorized or Irregular Occupation of Abandoned Private and Public Land, Housing and Property

In the aftermath of conflicts throughout the world, the unauthorized occupation of abandoned public and private housing, land and property is common. Iraq is no different, with numerous reports of land, housing and property being taken over, (sometimes by force), by those seeking either basic housing or to gain economically. The CPA estimates that 65,000-75,000 displaced persons and 55 Palestinian families are occupying public buildings. In the capital, for instance, innumerable private and public buildings have been informally occupied by homeless families, without official authorization, but who have little or no other housing option available to them in the lawless environment of Baghdad. While the CPA has adopted Order No. 6 to enable it to evict persons illegally occupying public buildings, this alone is not a sufficient policy response to this reality. The Competent Authorities will eventually need to find a means of formally recognizing the ownership or tenancy rights over such premises and lands or to find equitable ways to return such properties to the legitimate owners or former tenants. While many of those currently resident in such premises may be doing so purely for humanitarian reasons, with no other possible means available to them, an effort will need to be made to provide some form of security of tenure to persons and families in these groups, and to determine when such unauthorized occupation has been carried out by large-scale criminal or other groups seeking illegitimate economic gain, as opposed to those who have done so out of economic necessity.

Women's Housing, Land and Property Rights

Although the 1990 Interim Constitution of Iraq in Article 17 provided that 'Inheritance is a guaranteed right, regulated by the law', Iraqi women face difficulties inheriting housing, land or property in the event of the death of their spouse. [3] In Iraq, as in many countries, Sharia law guides the inheritance process, and in turn women receive only half of what a male inheritor receives. This appears to be the major housing, land and property problems facing women in Iraq. Rights to participate in the housing, land and property restitution process and equal rights to ownership, use and control of housing, property and land appear to be guaranteed, though the implementation of these rights leaves much to be desired. Women's rights must pervade all elements of the housing process, and steps should be taken to use such processes as an opportunity for securing such rights in places where discrimination against women obstructs the broader enjoyment of housing, land and property rights.

Housing and Property Damage and Destruction

While the precise scale of housing and property damage and destruction due to the 2003 conflict is not known, it is clear that a large number of civilian homes were damaged or destroyed by US-led Coalition Forces. It will be important for the CPA to develop appropriate policies for repairing and rebuilding these homes, and for the provision of satisfactory compensation to those affected.

Pending Housing Privatization

One of the main challenges facing the Competent Authorities and the people of Iraq will be how to best approach the issue of housing privatization. Areas of the economy currently under State control (in name, at least) will all be likely vetted for possible privatization by the CPA. [...]. While the broader scope of this highly contentious issue is beyond the scope of this document, this issue is of vital importance for the housing sector as a whole. A sizable portion of the Iraqi population reside in what is technically social (public) housing, both in ownership and tenancy arrangements. If past practice is anything to go by, it is likely that the CPA will vigorously pursue the privatization of such housing resources, although in the short-term this is not foreseen to constitute a major policy area of CPA concern. In the medium- and longer-term, however, as the realization of the importance of the housing sector for the economic, social and political stability grows, pressure to shift these housing resources from the State to private hands will also increase. In practice, however, hastily arranged maneuvers designed to shift the ownership of public resources into private hands is an immensely complex process that can create a new series of hardships on those affected, as well as complicating the housing, land and property rights claims process in the shorter-term. The CPA should leave these types of decisions to the Iraqis themselves." (Leckie, 30 July 2003)

Footnotes

[1] Jason Burke, 'Arabs flee vengeance of the Kurds' in *The Guardian Weekly* (24-30 April 2003).

[2] UNHCR, 'UNHCR sends aid to evicted Palestinian refugees in Baghdad' (9 May 2003).

[3] This point is also recognized in the UNHCR *Voluntary Repatriation Handbook*: "Special attention needs to be paid to the question of access to land for residential and agricultural use by returnee women heads of households. If the local legislation or traditional practice does not grant returnee women the same rights to land as returnee men, UNHCR has to draw the attention of the authorities to this problem and seek to find suitable ways to rectify this situation. If this is not done early enough, there is a danger that returnee women may lose out in the competition for land, either by not getting access or being evicted. This may in turn lead to increased vulnerability and possible internal displacement. In any case, UNHCR has to closely monitor the handling of returnees' access to land and to ensure, if necessary through intervention, that returnee women have access to land on the same footing as returnee men."

Law and policy

Commission for Resolution of Real Property Disputes (formerly the Iraq Property Claims Commission) overview (2006)

- IPCC was created through the Transitional Administrative Law (TAL) and agreed to by the Iraqi Governing Council
- The Commission was signed into law in January 2004 and the first offices opened at the beginning of March
- The Commission is intended to redress injustices owing to misappropriation and distribution of properties during the former regime
- Property issues are of most concern in Kirkuk and the surrounding areas
- The Commission is composed of a National Secretariat and regional commissions based in each governorate as well as an Appellate division
- The deadline to file claims was extended to 30 June 2007

- In March 2006, a law came into force replacing the IPCC with the Commission for the Resolution of Real Property Disputes

IPCC, April 2006

“On 6 March 2006, a new law came into force replacing the Iraq Property Claims Commission with the Commission for Resolution of Real Property Disputes. The new law includes some significant changes from the previous legislation.”

UNHCR, October 2005, pp.128-129

“The IPCC consists of a National Secretariat which oversees all operational and management activities, Regional Secretariats and local offices in each Governorate of Iraq which receive claims and prepare them for adjudication (currently 30), Regional Commissions in each Governorate which issue first instance decisions (currently 38) and an Appellate Division in Baghdad which issues second instance decisions.

The IPCC process is open to all persons or their heirs who have been wrongfully deprived of real property (e.g. house, apartment or land) or an interest in real property (e.g. right to use land) because of actions taken by or attributed to former Iraqi Governments between 17 July 1968 and 9 April 2003. Claims can also be made by people who lost real property or an interest in real property between 18 March 2003 and 30 June 2005 as a result of their ethnicity, religion or sect, or for purposes of ethnic cleansing, or by individuals who had been previously dispossessed of their property as a result of the former regime’s policy of property confiscation. [...] The deadline to file claims was initially 30 June 2005, but it was subsequently extended to 30 June 2007.

The IPCC Statute envisages that certain persons who lose possession of real property as a consequence of an IPCC decision may also receive compensation, assistance with resettlement and/or new property from the state. [...]

The IPCC *Statute* and *Instructions for Operation* encourage parties to voluntarily settle claims.⁸⁸⁴ If this is not possible or the parties choose not to voluntarily settle, Regional Commissions decide the claim and appropriate remedy by majority vote of their three members.⁸⁸⁵ These decisions can be appealed within 60 days after the date of the decision on the grounds of new evidence or manifest error. [...] Decisions are final and binding on the parties and enforceable by competent authorities either when a first instance decision is not appealed within the applicable deadline or the Appellate Division issues a decision.⁸⁸⁷ Final orders requiring the current occupant to return the property can be enforced after 60 days if the occupant does not leave the property voluntarily. [...] The IPCC *Statute* envisages that certain persons who lose possession of real property as a consequence of an IPCC decision may receive compensation, assistance with resettlement and/or new property from the state,⁸⁸⁹ but the implementation of these provisions remains uncertain.”

UNHCR, August 2004

“The Iraq Property Claims Commission (IPCC) is the organization set up to reinstate peoples’ property rights that were taken away by widespread property confiscations by the former Iraqi Government. Confiscation was used as a way of punishing political opponents, as a source of resources for rewarding allies, and as a way of changing the demographics in strategic areas. The Iraqi Governing Council (IGC) played a lead role in drafting the Statute that established the IPCC and its boundaries. The Statute came into force on January 15, pursuant to CPA regulation 8, and was amended on June 24, pursuant to CPA regulation 12. These regulations may be consulted on the [CPA website](#) until 30 June 2005 at which time the website will cease to exist.

The IPCC consists of a National Secretariat (responsible for overseeing all operational and management activities of the IPCC), Regional Commissions (first instance) established in each governorate of Iraq and in the Kurdistan Regional Government area, as well as an Appellate Division (second instance) in Baghdad.

The IPCC process is open to all persons, or their heirs, who have been wrongfully deprived of real property (e.g. house, apartment or parcel of land) or an interest in real property (e.g. right to farm the land) because of actions taken by the former governments between July 17, 1968 and April 9, 2003 and or actions which can be attributed to them. The latter includes actions carried out by Ba 'ath party members and relatives of senior officials of the government or Ba'ath party.

Claims may also be made by people who lost or lose real property or an interest in real property between March 18, 2003 and June 30, 2005 as a result of their ethnicity, religion, or sect, or for purposes of ethnic cleansing, or by individuals who had been previously dispossessed of their property as a result of the former government's policy of property confiscation.

The IPCC's jurisdiction does not include situations where property was lost due to legitimate public land reform or lawfully used eminent domain. Nor does the IPCC consider claims for losses not involving a taking of an interest in real property, such as claims for damage to real property, or takings of personal property, or lost income. It is recognized that landowners whose properties were seized and confiscated for land reform purposes after 1968 might have received inadequate or no compensation. These past injustices, including those who suffered injustices as a result of the agricultural reform before 1968, should be dealt with by the future Iraqi Government.

A claim should be filed in person or through a representative at any IPCC Office, latest by 30 June 2005. Claim forms may be obtained from any IPCC Office. A claimant does not necessarily have to be the owner of the property, but is equally entitled to file a claim if s/he has lost a right to possess or use the property. This includes, for example, a right to farm or use the land in question. In addition, members of a community may make a claim for communal property. If the rights holder cannot, is absent or his whereabouts are not known, other community members are entitled to file a claim. To do so, they must offer proof of the registered person's absence and of their membership in the community. This applies equally to situations where the rights holder of a family is missing or her/his whereabouts are not known.

In the process, the IPCC will also consider rights of other people who may also claim an interest in the property or who may have a title to the property. The IPCC will normally write, as soon as possible, to any interested parties (i.e. respondents), informing them of a claim. To guard their rights, respondents must file a response within the given deadline.

The IPCC is in the process of establishing offices in each Governorate in Iraq and in the Kurdish Regional Government area. The IPCC offices will collect and register claims and assist people in presenting their evidence to the Regional Commissions that will decide the claims on an impartial basis. The IPCC operates under Instructions for Operation and Guidelines which are intended to ensure the resolution of claims in a fair and consistent manner, regardless of the parties' ethnic background, sect, religion or gender.

The main purpose of the IPCC is to ensure that persons whose property has been wrongly taken are reinstated in their property rights. However, given the need to take individual circumstances into account, it may not always be possible to return property or rights to a former owner, possessor or user, and other forms of compensation may be appropriate, especially as regards persons who may be forced to leave their property as a result of an IPCC decision. The Interim Iraqi Government is currently considering whether it will be able to offer compensation in such cases. In addition, structures still need to be put in place to provide secondary occupants without

resources and whose housing needs cannot be met otherwise with temporary alternative accommodation until they can either return to their former home or are provided with a permanent solution (e.g. allocation of land/housing).

The IPCC is also in the process of establishing offices or structures outside Iraq to receive claims, responses and other documents from persons living outside Iraq and relay them to the National Secretariat in Iraq. The creation of such structures is still in the initial stage. At least three to six months are required before these offices are operational. Once those offices and structures are established, public information campaigns will be conducted to advise Iraqis living abroad about how to participate in the IPCC process.

It should be noted that initial plans were to house the IPCC within the Iraqi Ministry of Migration and Displacement (MoDM). Within this context, the MoDM published an article in a local newspaper in April 2004 [...] in order to inform readers about the existence and functions of the IPCC. However, no further public information on the IPCC was forthcoming, and a later decision by the CPA concluded that the IPCC will in fact be an independent entity which reports directly to the Prime Minister. Persons interviewed expressed frustration at not having heard anything about the IPCC since April, and scepticism about its ability to resolve property disputes in a timely manner. They further mentioned un-documented cases where returnees have decided to take matters into their own hands in order to forcibly evict occupants from their properties."

IPCC, 7-9 September 2004

"IPCC was give life through the Transitional Administrative Law (TAL) agreed by the Iraqi Governing Council (IGC). It was signed into law on January 15th 2004. The IPCC was seen as the way to redress injustices created from wrongful appropriation and distribution of properties due to the actions or policies of the former Baathist regime. This national problem is of prime concern in Kirkuk and the surrounding areas due to Baathist policies of ethnic redistribution, which have displaced Kurds.

The first of the IPCC offices were opened at the beginning of March with the sole focus of distributing claims forms. There were offices open in the north, middle and south of Iraq by the end of May. Since the claims hand out the organisation has worked to put systems in place necessary to running a mass claims system such as Regional Commissions to make decisions on claims and the financial ability to pay organizational salaries.

On the 28th of June Prime Minister Alawi and Ambassador Bremer appointed the Head of IPCC, Suhail Al Hashimi to his position. He has continued to work on building the organizational capacity of the organization toward taking decisions on claims filed.

Present Status

All governorates in Iraq have IPCC offices. Kirkuk has the largest number with four offices. Diyala and Saladin have two each governorate.

All have Regional Commissions which have been established with adjudicators trained and appointed to be able to decide claims. The Commission is reviewing cases in order to start making decisions once a compensation plan has been established.

19,000 claims have been filed

The Prime Ministers office has established an inter-ministerial working group to work ont eh issue of compensation for the displaced. This is headed by IPCC and MODM working with Ministries of Finance, Agriculture, Public Works, Housing and Construction, Planning and others.

IPCC has organized a Public Information Department. They have started running advertisements in newspapers, radio and TV. The department has been working with special emphasis on the north of Iraq and Kirkuk in order to inform IDP's of the IPCC process.

The Head of IPCC Suhail Al-Hashimi has formed a working group to address the special needs of the area of the area and work on proving immediate solutions. These include better communication on the role of the IPCC in assisting IDP's claims, support to the offices, and working to address the immediate areas.

Continued and Future Actions

Claims Adjudication. The first work of the commission will be to make decisions to restore rights to claimants in uncontested cases. This is expected to take place in the next month. The larger work of adjudicating on contested claims is expected to take several more months to begin.

Compensation. The decisions of the commission cannot be applied until a compensation package is decided on. The inter-ministerial working group in charge of working on compensation is expected to render a number of options including monetary grants, property restitution, soft loans and various other options.

Cooperation with international organisations. Given IPCC's newness as an organisation it will continue to need assistance particularly in the areas of:

1. *International Mass Claims Reception and Coordination.* UNHCR and IOM will be working on the intake of property claims regionally and coordinated with Iraqi counterparts for the transfer of claims information.
2. *Public Information.* A vital component of this coordination will be in this area. A coordinated plan needs to be agreed between the IPCC Public Information department and international organizations. Common communication must be agreed to so that the deepest message saturation can reach potential claimants.
3. *Database Assistance.* Mass claims systems have used data bases previously in order to sort, file and make claims decisions. Existing international expertise is necessary to augment IPCC IT capacity and construct a working database model.

Best Practice Recommendations. IPCC needs to continue to draw on the long experience of international organizations who have worked in the area of mass claims and property restitution. Strengthening of communication ties needs to occur so that the organizations decisions are guided by experienced recommendation. Cooperation will encourage an understanding of lessons learned and the international context IPCC operates in with the needs of transparency, efficiency and regard for international standards of human rights norms."

See the [IPCC website launched in June 2005](#) and for background [Coalition Provisional Authority Regulation 12](#)

Iraqi Property Claims Commission slowly addresses property disputes (2005)

- As of July 2005, more than 126,000 claims had been received and some 8,500 claims decided

UNHCR, October 2005, p. 129

"By the end of July 2005, 126,693 claims had been received. Adjudication of claims started in October 2004 and by 27 July 2005 a total of 8,554 claims had been decided (6,985 claims against the government, 1,569 claims against individuals). A total of 1,851 appeals have been decided with 1,188 claims certified and 663 claims rejected. Decisions have ordered the return of real property and/or compensation to be paid to claimants...."

UNHCR, September 2004

"[D]espite the establishment of the Iraqi Property Claims Commission (IPCC), this institution is still in its infancy and much remains to be done (including the establishment and equipping of IPCC offices throughout Iraq, nomination and training of IPCC staff as well as the establishment of a compensation mechanism) before the IPCC will be in a position to begin adjudicating property claims and thus enable refugees and displaced persons to regain their previous homes. In this context, recent reports that KDP and PUK authorities have started re-distributing land located in Kirkuk confiscated during the Arabization process to residents from Erbil and Sulaymaniyah is particularly worrying given the extremely sensitive political implications of such distribution."

AFP, 3 September, 2004

"Iraq's property claims commission for disputed land in oil-rich northern Iraq has failed to process a single claim, despite more than 167,400 Kurds re-settling in dozens of refugee camps since March alone, a US commander said.

Of those tens of thousands of Iraqis tracked by the US military and classified as internally displaced persons (IDPs) in the last six months, more than 153,000 are Kurds. For Major General John Batiste, the brewing crisis is the biggest problem facing the 1st Infantry Division (1st ID), outweighing the threats of foreign fighters and insurgents in Sunni Muslim trouble spots north of Baghdad.

Since early 2004, 77,000 Kurds have re-settled in the province of Tamin, home to northern Iraq's oil capital of Kirkuk, 65,747 in Salaheddin and 10,675 in Sulaimaniyah, based on US statistics.

Aside from the Kurds, 4,757 Turkmen and 2,226 Arabs have resettled in Salaheddin, with another 5,000 Arabs and 2,000 Turkmen classified as IDPs in Tamin, home to the largest oil reserves in the world's second largest producer.

The US military was unable to provide immediate statistics for Diyala, which makes up the fourth province patrolled by the 1st ID, north of Baghdad.

Tens of thousands of Kurds, desperate to return to the northern land from where they were hunted under Saddam Hussein's brutal 'Arabisation' policy, are living in camps dotted around the north, waiting for their claims to be heard.

Forty-four of those camps are in Tamin province, which has a rich ethnic mix of Kurds, Arabs and Turkmen. But as some Kurds have forcibly seized control of their former property, thousands of Arabs have been shunted into similar camps, waiting for their fates and compensation to be resolved with nowhere else to live.

'The Property Claims Commission is not working. 5,399 claims have been filed, but 143,222 IDPs are trying to resettle,' Batiste told AFP.

Based on his statistics, not a single claim has been processed since the Iraqi Property Claims Commission was set up just before Baghdad's interim government took power in June.

[...]

A report released last month by the Human Rights Watch said if the disputes are not dealt with urgently, rising tensions could explode into open violence. The New-York based rights group also blamed the former US-led occupation for not implementing a strategy to resolve the growing crisis."

See also:

Habitat International Coalition recommendations on housing and land rights (2005)

"Recommendations for Restitution and Compensation of Iraqi Victims of Housing and Land Rights Violations [1]

Data collection and quantification of losses:

Q In the immediate term, victims and their legal representatives are urged to quantify plaintiffs' losses thoroughly, using existing tools and techniques developed in other contexts to the extent that comprise a full inventory of claims and ultimately serve the full restoration of Iraqi victims' housing and land rights, as well as provide policy and financial planners with the data needed to assess future requirements and options for restitution and compensation.

Q That method should take account of the entire complement of housing and land rights elements provided in the CESC General Comments Nos. 4 and 7, as well as other congruent and interdependent rights codified in the human rights treaties to which Iraq is a party and elaborated through the jurisprudence of the treaty-monitoring bodies.

Q An authoritative Iraqi body, such as the IPCC National Secretariat, in cooperation with the Ministry of Displacement and Migration or the larger interministerial Working Group on Compensation for the Displaced, should develop and provide to IPCC adjudicators ample guidelines for determining remedies based on Iraqi law and prevailing human rights standards.

Q Such a mechanism also must improve the current claim forms for new submissions and seek additional information from claimants already on record by issuing detailed instructions to claimants and their representatives on how to present data complete enough so as to determine what compensation is due to the displaced and/or dispossessed owner. These guidelines should allow all categories of loss included and omitted in the current IPCC instruments, but allowable under Iraqi law; value assessments based on current market value of structures, lands and harvest crops; lost revenue from the use of property; relocation and alternative housing costs resulting from the violation and required for resettlement; recurrent costs; values for pain and suffering, etc. (The "Loss Matrix" from the HLRN Housing and Land Rights "Toolkit" is annexed here by way of example.)

Institutional correction

Q It is urgent, necessary and consistent with provisions of the CPA Regulations[2] for the IPCC National Secretariat and/or Iraqi National Assembly to restore the applicability of the Iraqi Civil Code in the adjudication of property disputes and related claims arising from housing and land rights violations.

Q The IPCC National Secretariat and/or National Assembly should determine that cases and claims received under the IPCC statute, and all property disputes, be adjudicated in their proper forum; i.e., courts of law, special courts, or other judicial institution directed by Iraqi representatives, having judicial effect, and respecting rights and due procedures of appeal.

Q While restoring the sovereignty and judicial authority of Iraqi courts in housing and property disputes, the IPCC could continue to play a useful investigative and data-collection role in support of court adjudication.

Q In the meantime, it is urgent and important for victims and their legal representatives to petition for the application of Iraqi law, which is not limited to the service of selective classes of restrictive time prescriptions set forth in the IPCC statute.

Q In the interest of deterring further housing and land rights violations, civil and governmental institutions are needed to complement the IPCC's remedial work by investigating and, where possible, prosecuting housing and land rights violations committed by all parties, in addition to former Iraqi government and Ba`th Party members and institutions, identifying also those acts and omissions committed by the personnel of the CPA, multinational forces occupying the country and other domestic and transnational parties that lead to violations of housing and land rights.

Q The Iraqi National Assembly should assert practical sovereignty and the rule of law by repealing CPA Order No. 17 claiming immunity for multinational forces personnel from the jurisdiction of Iraqi courts in matters of liability for housing and land rights violations.

Q The Iraqi National Assembly should assert practical sovereignty and the rule of law by repealing CPA Order No. 6 "Eviction of Persons Illegally Occupying Public Buildings" in favor of local law and procedures that incorporate CESC General Comment No. 7 "the right to housing: forced eviction," in order to ensure that human rights and well-being be upheld in the conduct of any due-process evictions.

Q Iraqi law makers and political leaders should publicly encourage civil society participation in the monitoring and documentation of past, present and future housing and land rights violations, and should formulate explicit policy and legislation to protect housing and land rights defenders from retaliation.

Q International donors should consider providing aid and technical help to the Iraqi judicial system in tandem with that to the IPCC investigative and mediating functions. This will help mitigate the drain of personnel, funding and prestige from the Iraqi courts arising from the IPCC statute and its implementation, while maintaining the relevance of Iraqi courts for disposing of all IPCC-related claims with judicial effect, not only the potentially great number of valid claims that fall outside the IPCC framework.

Interpretive options

Q Claims for moveable property losses, immovable property damage, and injury arising from mental anguish or humiliation, and other claims outside the IPCC statutory chronological and subject limits still would fall within the purview of the Iraqi Civil Code and Iraqi courts. Claims for remedy should be raised in Iraqi courts now, based on the argument that domestic Iraqi law and international treaty standards continue to apply.

Q Certain plaintiffs mounting their claims in Iraqi courts after the 30 June 2005 IPCC submission deadline will hold an advantage by avoiding the various restrictions of the IPCC statute and availing themselves to the more-complete and inclusive Iraqi Civil Code.

Q The IPCC's "General Principles" are not absolute and are subject to revision by the IPCC National Secretariat and under the legislative jurisdiction of the National Assembly.[3] In the meantime, claimants and adjudicators may exercise their option, even under the IPCC statute, to resort to other legal guidance and norms in arguing or disposing claims. [4]

Q All adjudicators in Iraq should scrupulously avoid replacing original or replacement land remedies with cash awards, where possible. [5]

Q Claimants and their representatives before the IPCC, as well as IPCC adjudicators, should take the initiative of invoking both Iraqi and international law in order to ensure full restitution *and* compensation for victims, not a choice between them.

Footnotes

[1] Excerpted from the HLRN report "The Iraq Property Claims Commission: Institutional Challenges to Providing Restitution and Compensation for Iraqi Victims of Housing and Land Dispossession, Displacement and Population Transfer (Cairo: HLRN, May 2005), pp. 31–33.

[2] In particular CPA Regulation No. 1, "The Coalition Provisional Authority," Article 1 states that "the CPA shall exercise powers of government temporarily..." and Section 2, "The Applicable Law," claims that CPA Regulations remain in force "Unless suspended or replaced by the CPA or superseded by legislation issued by democratic institutions of Iraq; Regulation No. 12, Article 66, which states: "These Instructions may be revised or supplemented by the Iraqi Interim Government. Additional details regarding the claims process may also be found in Guidelines, interpretative memoranda, and literature prepared by the National Secretariat."

[3] Ibid.

[4] CPA Regulation 12, Annex A, "Establishment of the Iraq Property Claims Commission (as Amended and Restated)," Section 4, "General Principles," Article 8 sets forth that the "IPCC shall comply with, *but not be limited to* the application of these principles" (emphasis added).

[5] Sub-Commission on Prevention of Discrimination and Protection of Minorities, The Realization of Economic, Social and Cultural Rights, Expert seminar on the practice of forced evictions, Geneva, 11–13 June 1997, Report of the Secretary-General, E/CN.4/Sub.2/ 1997/7, para. 24." (HIC, 16 May 2005)

Compensation to Fallujah and Tal Afar residents for property losses (2006)

- Authorities reportedly began to distribute compensation to residents forced to flee from Talafar in November 2005, though some felt the amount was insufficient
- The Iraqi Central Committee for the Compensation of the People of Fallujah (CCCPF) was created by the Iraqi government to ensure the compensation of those whose homes and/or businesses damaged during the US led Coalition Forces offensive on the city in November 2004
- IRIN reports that the CCCPF claims to have made payments of around \$2000 per person to 200 families but many families have found this amount to be insufficient to cover the value and cost of rebuilding their homes
- Officials note that the amount allocated for compensation and reconstruction is insufficient (\$200 million which was raised to \$300 million though officials believe around \$500 million is needed)
- IWPR and BBC noted few signs of reconstruction in April 2005 and a BBC correspondent noted that there is "barely a building without bullet or shell scars"

UNAMI, February 2006, p.1

"In Fallujah, the Mayor expressed concerns for the inhabitants particularly over the issue of compensation for the losses incurred as a result of fighting"

IRIN, 20 November 2005

"Thousands of families from the town of Talafar, some 80 km east of the northern city of Mosul, have begun to receive monetary damages for losses incurred during US-led military operations in September.

City officials last week began to distribute part of a \$3-million compensation package funded by the Iraqi Transitional Government aimed at reimbursing residents of the city whose houses and businesses were destroyed during fighting between insurgents and Coalition forces.

[...]

More than 50,000 families out of Talafar's population of 400,000 left the city during the military operations, many of whom returned to find their homes and businesses devastated.

In an effort to compensate their losses, each family received an initial amount of \$100, with monthly stipends planned for residents and extra reparations for those whose properties were totally destroyed.

Reimbursements were also extended to a number of displaced families living on the outskirts of the city who have not yet returned to the city because their homes remain uninhabitable.

Some residents expressed satisfaction with the payments.

Anuar Kubaissy, 34, a father of two, said: "I was worried about how I was going to feed my family because I had lost everything. Even the shop where I worked was totally destroyed."

Others, however, complained that the amount was insufficient, especially for those with large families.

"They offered the same amount of money to families of two as they did to those with seven members," said Zeid Ahmed, 45, a father of six.

Reconstruction projects have also begun in the city, aimed at repairing the destruction.

"Three schools have been repaired, two clinics improved, a new power installation built and many streets in the most damaged areas of the city repaved," Muhammad said.

More than 400 houses and shops were reported to be seriously damaged during hostilities, not counting schools, clinics and mosques."

IRIN, 24 May 2005

"About 70 percent of buildings, many of them houses, were destroyed during the conflict.

[...]

The Iraqi Central Committee for the Compensation of the People of Fallujah (CCCPF) told IRIN that 200 families have been given payments spread over eight months. Each person has received nearly \$2,000 but residents complained that the amount was not enough to rebuild their lives and homes again.

Bill Taylor, director of the US-Iraqi reconstruction management office, told IRIN that insecurity and attacks elsewhere in the country had caused a general delay in contractors work but insisted that reconstruction would not stop and families in Fallujah would soon start to feel a difference in their lives.

Others argued that more funds were needed. Khalid Kubaissy, a senior official from the CCCPF, told IRIN that the \$200 million was not enough to cover compensation and reconstruction costs. According to their evaluation, more than US \$500 million was required for the total reconstruction of Fallujah.

Kubaissy added that 30,000 houses were damaged in the battle and more than 5,000 had been totally destroyed. In addition, around 8,500 shops, 60 mosques and 20 government offices required massive repair work.

'When they [US troops] decided to destroy Fallujah they were so fast but when you talk about rebuilding the city and paying for destruction they are very slow. We lost our house, personal things and traditions but no one cares about that and even in the media, Fallujah has been forgotten,' Abu Athir, a local resident, told IRIN standing next to the rubble where his home once stood." ()

BBC, 7 April 2005

"About half the population of the Iraqi city of Falluja have returned to their homes in the five months since a major US offensive there, officials believe.

Authorities have begun handing out compensation to residents for property damaged during the assault, targeted at insurgents hiding in the city.

But only 20% of each claim is being covered, leading to complaints.

Homes and shops in the centre of town remain badly damaged, although there are some signs of rebuilding.

The signs of the battle for Falluja are still everywhere.

The first building I saw as I drove into the city was missing most of its upper storey.

A blue-tiled mosque nearby was full of holes from what looked like machine-gun fire.

Then came a patch of open ground where all the buildings had been levelled by American bombs.

And all the way in to the centre of Falluja there is barely a building without bullet or shell scars.

Compensation

On the streets there is activity, but what is striking is how little there is for a city of 300,000 people on a weekday.

Many shops and businesses are still shuttered or destroyed.

But in another street, I saw a series of shops with new glass fitted, selling wedding dresses in bright colours.

Iraqi officials here and the US marines based in Falluja estimate that about half the population has now returned.

They have started to hand out compensation payments to people whose homes or businesses were destroyed or badly damaged in the fighting.

At the heavily guarded distribution point, set up in western Falluja, hundreds of people queued to pick up payments ranging from \$500 to \$14,000 (£270 to £7,500).

But these sums only cover 20% of each claim and many people at the centre complained how long it had taken to get this money.

They also asked when they would get the rest."

IWPR, 19 April 2005

"While some compensation has been issued to those who lost their homes in the US attacks, locals say much more remains to be done.

[...]

Residents are still unable to move easily between the city's ten sectors and the city looks semi-deserted. A curfew is still in place for more than ten hours each day, and IWPR noted few signs of reconstruction on its April 13 visit.

[...]

The Central Committee for the Compensation of the People of Falluja last month compiled a list of 200 names of those whose homes had been completely destroyed. Each was paid 2,000 dollars compensation, from a 100 million dollar US military fund slated for recompense and reconstruction in the city.

The committee is continuing to compile names of people whose homes were damaged in the fighting.

'The amount of money that we have received is only ten per cent of the real value of our house, and I'm unable to rebuild it with this amount,' said Abu Rashid al-Mohammedy. 'But still I'm very lucky because there are thousands of people waiting to receive [their compensation].'

The US government has also earmarked a further 100 million dollars for Falluja through its Iraq Relief and Reconstruction Fund, part of the 18.4 billion dollars set aside by Congress for rebuilding Iraq.

But acting industry and minerals minister Mohammed Abudllah, an engineer, told IWPR that local committees in Falluja estimated that the total cost of rebuilding and compensating residents would reach almost 500 million dollars."

Further reports relating to compensation:

"Fallujah's struggle for recovery," BBC, 14 April 2005 [Internet]

"Compensation for Fallujah residents slow-locals", IRIN, 4 April 2005 [Internet]

Iraqi Property Claims Commission established with little Iraqi involvement (2004)

- The Coalition Provisional Authority (CPA) established the Iraqi Property Claims Commission with little Iraqi involvement
- The experience of the national property commission of Bosnia and Herzegovina indicates the importance of involving national authorities in the process

"Lessons learned in BiH [Bosnia and Herzegovina] appear not to be heeded in Iraq where it is estimated that up to a million people were displaced as a result of expulsion policies that the former regime used to remove opponents and gain valuable land in the southern marshes and in the north. A worrying start was made when the occupation authorities established the Iraq Property Claims Commission (IPCC) in January 2004 with little Iraqi involvement. Experts working for the Coalition Provisional Authority (CPA) drafted a document and required the Iraqi Governing Council (IGC) to implement its provisions without paying sufficient attention to realistic enforcement mechanisms.

BiH experience shows that national institutions have to be instrumental in reallocating housing to those displaced by a returning owner or rights holder, since they are the ones in control of the municipality housing stock and able to mobilise the police to enforce evictions if necessary. Yet

in Iraq national institutions will be hard-pressed to resettle the new 'displacees', as they are bound to under the terms of the IPCC. Those likely to be first in line for eviction by returning owners or legal rights holders- mostly Arabs allocated housing by the Baathist regime in areas populated by Kurds and Turkomen – will probably wish to be resettled in areas where they constitute a majority.[1] It is not clear either whether the newly-trained Iraqi police force will have the requisite will or ability to carry out contentious evictions. Had more attention been paid to the Bosnian experience it would have been readily apparent to the architects of the IPCC that national involvement from the start is vital to successful implementation of the scheme." (FMR, September 2004)

[Footnote 1, Human Rights Watch, August 3, 2004]

This is an excerpt of "Restitution of land and property rights", by Anne Davies. For the full article, see [Forced Migration Review, September 2004 \[Internet\]](#)

See also, "US advances Bosnian solution to ethnic cleansing in Iraq", [The Guardian](#), " 24 April 2003 [Internet]

Concerns regarding property rights for women (2004)

- Iraq's interim constitution fails to grant adequate protection to women's rights, in particular equal rights to marriage, inheritance, and children's citizenship
- The interim constitution (officially: the Temporary Administrative Law) serves as the legal framework pending a new permanent constitution to be put in place by December 31, 2005

"Iraq's proposed interim constitution fails to give adequate protection to women's human rights, Human Rights Watch said today.

[...]

'Equal rights for Iraqi women in marriage, inheritance, and their children's citizenship should not be left in jeopardy," said LaShawn R. Jefferson, executive director of the Women's Rights Division of Human Rights Watch. "The interim constitution should explicitly guarantee these rights."

The Iraqi interim constitution, officially known as the Temporary Administrative Law, will serve as the country's fundamental legal framework until a new permanent constitution is put in place by December 31, 2005. A copy of a draft interim constitution obtained by Human Rights Watch contains a provision prohibiting discrimination based on sex. However, it does not specifically guarantee equality between men and women in at least three critical areas where women in the Middle East have historically suffered discrimination:

- The interim constitution offers no explicit guarantee that women will have equal rights to marry, within marriage, and at its dissolution.
- It does not explicitly guarantee women the right to inherit on an equal basis with men.
- It fails to guarantee Iraqi women married to non-Iraqis the right to confer citizenship to their children.

The interim constitution contains certain equal protection clauses, including the provision granting Iraqi women a substantial number of seats in parliament and explicitly states that any references made in the masculine tense apply to both men and women. However, in the future, Iraq's constitution should explicitly contain provisions that guarantee women's equal rights in the family and in society more broadly, Human Rights Watch said. Throughout the region, equal protection

clauses in constitutions have often been circumvented by the imposition of clearly discriminatory family and personal status codes.

'The interim constitution will be the starting point for drafting a permanent Iraqi Constitution,' Jefferson said. 'If a goal is to ensure that women's rights are given equal stature and protection, the constitutional process in Iraq has gotten off to a weak start.'" (HRW, March 5, 2004)

"Under the Saddam Hussein regime, women had some of the most liberal protections of any Muslim country under Iraqi legislation which prohibited marriage under the age of 18 and denied favouritism to men in inheritance, divorce and child custody. It was even common for Iraqi women to hold political office, and the U.N. ranked Iraq as the Arab country with the highest level of gender equity prior to the 2003 invasion.

"Although CPA Ambassador Bremer refused to endorse the Iraqi Governing Council's Act 137 dated 29/12/2003 (which would have replaced Iraqi civil law concerning family law with Shari'a law) on the grounds that it deprived women of their basic rights, the new Iraqi Interim Constitution nevertheless does not allow women equal rights to marry, equal rights within marriage, nor equal rights to divorce. It does not guarantee them the right to inherit wealth on an equal basis with men and it fails to guarantee Iraqi women married to non-Iraqi men the right to give citizenship to their children. If adopted and ratified in its present form, the constitution will make Islam one source of law, and this could mean that anything contradicting religious codes may not be allowed. For example, Islam allows men to marry many women and does not require a minimum marriage age." (UNHCR, 12 August 2004)

PATTERNS OF RETURN AND RESETTLEMENT

Return movements

Estimated number of IDP returns (April 2006)

- IOM and UNOPS monitoring indicates the return of some 196,000 IDPs during 2005
- By April 2005, more than 470,000 IDPs were estimated to have returned to their places of origin
- Approximately 133,266 IDPs are estimated to have returned (September 2004 figures)
- The largest IDP return movements have taken place to central Iraq

UNHCR, April 2006, p.4

Population of concern ¹	Total persons Dec. 2005	Return ² 2003 -2004 (mainly spontaneous)	Return in 2005
Refugees and asylum-seekers in the region	137,000	253,000	62,000
Other Iraqis in the region ³	1,000,000		
Refugees and asylum-seekers further afield	220,000		
Other Iraqis afield	143,000		
Internally Displaced Persons (IDP)	1,200,000	300,000	196,000
Stateless persons in Iraq ⁴	230,000	-	-
Total	2,930,000	553,000	258,000

[Footnote 1] Data on refugees and asylum-seekers is up to date as per December 2005. These are the numbers of refugees and asylum-seekers as reported to UNHCR by host governments or as registered by UNHCR. Data on "other" Iraqis are estimations made by UNHCR/host governments at different times. Data on IDPs is as provided by IOM and UNOPS, calculated on the assumption that each family has on average six members.

[Footnote 2] The figure of 253,000 includes 19,209 refugees, whose return was facilitated by UNHCR. IDP returnees (estimates) are as reported by IOM in the 15 Governorates (not included the Governorates of Dohuk, Erbil and Sulaymaniyah).

UNHCR, October 2005, pp.29-20

"It is estimated that by April 2005 more than 470,000 IDPs had returned to their places of origin, habitual places of residence or places of choice in the Centre and South as well as the Governorates of Kirkuk and Mosul."

UNHCR, 1 November 2004

Iraqi returnees (refugees and displaced) (in persons)

Governorate	Returning	UNHCR-Facilitated returns	Returning IDPs
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	refugees		
Central Iraq			
Anbar	8	8	0
Ninewa	22	22	3,000
Diyala	45	45	3,870
Baghdad	325	325	0
Salah Al Din	8	8	6,384
Tameem	11,035	7	104,868
Southern Iraq			
Wassit	21,391	71	4,566
Qadissiya	4,477	366	5,562
Hilla	7,788	90	0
Meysin	68,293	7,709	0
Muthanna	24,425	972	1,512
Thi-Qar	16,306	1,961	504
Basra	70,667	6,869	0
Najaf	5,035	1,135	0
Kerbala	19,556	257	0
Northern Iraq			
Suleimaniya	1,180	902	0
Dohuk	344	147	0
Erbil	763	865	3000
Totals	251,668*	21,759	133,266
Estimated total number of returning refugees and IDPs 406,693			

Sources: Iraqi Ministry of Trade, UNHCR Facilitated return statistics, UNHCR returnee monitoring and IOM (IDP Monitoring). *Ministry of Trade statistics includes spontaneous and facilitated returnees. All figures as of September 2004.

Many refugees end up internally displaced upon return (2005)

UNHCR, October 2005, p.29

“UNHCR returnee monitoring confirmed that many refugees end up in internal displacement upon their return to Iraq because of a lack of housing, livelihood or infrastructure, property disputes, the presence of mines and UXO in their return areas and other reasons. Those who are able to return have faced severe problems successfully reintegrating; contributing factors include, *inter alia*, a lack of employment possibilities, difficulties obtaining documentation and accessing education due to the non-recognition of school certificates earned abroad, a lack of adequate language skills in Arabic or Kurdish, inadequate health care facilities and the high cost of essential medicines.”

Spontaneous IDP return movements take place after fall of Government (2004)

- Significant returns have taken place to Tameem and Kirkuk
- Subsequently displaced Arabs have moved South
- Estimates that 26,000 returnees unable to move to their villages due to property disputes

- Some IDPs are living in tents pitched next to their destroyed houses or inhabiting abandoned buildings and warehouses
- Others have managed to move back into their former homes, in some cases causing tension and further displacement

"Since the collapse of the former Government, significant spontaneous return movements of IDPs has taken place to Governorates bordering Kurdish autonomous areas, formerly controlled by the Central Government; primarily to Tameem Kirkuk. In April 2003, as the Peshmerga forces traveled south to Ninewa and Tameem with Coalition forces, non-Kurdish IDPs who had settled in the three northern governorates of Sulemaniyah, Dohuk and Erbil faced harassment including the destruction of their housing, thus forcing them to move south in order to reclaim property and land. With intervention in May/June 2003 from various actors including UNHCR, this overt push ceased. However, various push factors continue to be exerted on the most vulnerable to return to areas south of the green line. It is estimated that 26,000 individuals have returned to Kirkuk city and the surrounding areas but are unable to return to their villages due to property disputes or destroyed shelter. (UNHCR 12 August 2004)

"Over the summer and autumn a large proportion of Iraq's hundreds of thousands of internally displaced persons have tried to move back to their original homes. Some are now living in tents pitched next to their destroyed houses, while others have managed to move back into their former homes, in some cases causing tension and further displacement." (UNSC, 5 December 2003)

"A number of displaced people are either relocating or moving back to their home villages in northern Iraq - despite the fact that many of those villages have been damaged or totally destroyed. [...] People have moved when and where they can, many inhabiting abandoned buildings and warehouses." (UNHCR, 22 October 2003)

"Only days after Saddam's government was overthrown last April, Kurdish families began leaving their exile in the far north of Iraq and moving south towards Kirkuk, spurred on in part by their wealthy and astute political leaders.

The goal was to reassume influence in and around the city, which lies south of the northern no-fly zone enforced by the United States and Britain after the first Gulf war, meaning that during 12 years of sanctions, Saddam still held sway.

Turkmen, less well-off and well-prepared than their Kurdish rivals, moved more slowly, but in recent months have also begun returning in numbers. At the same time, many Arabs who were moved into the region have fled, fearing retribution.

Around the periphery of the city there are now tented encampments of Turkmen and Kurds desperate to return. They have been waiting for months, and some are losing patience, but most expect that they will soon find a home in Kirkuk or nearby.

[...]

Shaukat and others are quick to emphasise that they have no problem with Arabs and no interest in driving them from the city or fighting with Turkmen for dominance, but recent history suggests not everyone is keeping such calm counsel." (Reuters, 3 February 2004)

Obstacles to return and resettlement

Overall analysis of return environment (2006)

- The general insecurity, lack of law and order presents an obstacle to return and reintegration
- UNHCR returnee monitoring in 2004 and 2005 indicated that 80 per cent of returnees in the North and 35 per cent of returnees in the south ended up internally displaced upon return
- Many returnees face obstacles in exercising their rights to housing, identification, property and freedom of movement
- Others fear renewed military operations and violence
- Many returnees have not returned to their villages of origin because of lack of shelter and services
- Many returnees did not own land or property prior to their displacement
- Some returns have been influenced by political actors
- Lack of housing is particularly a problem in the South, where many Marsh Arabs have returned to impoverished areas
- Returnees often lack documentation which would facilitate their freedom of movement and access to basic services

UNHCR, April 2006, p.10

“During the course of 2004 and 2005, UNHCR’s priority under return and reintegration gradually shifted to IDPs, without which return of Iraqi refugees from abroad is not sustainable in the returnee concentration areas. Assistance to returnees includes shelter and infrastructure, income-generation activities, legal aid and information. However, return is complicated by scarce resources and prevailing instability. Returnee monitoring data obtained during 2004 and 2005 showed that about 80% of the returnees in northern Iraq and more than 35% in the lower south of Iraq ended up internally displaced upon return, mainly due to the lack of housing, employment and social services.”

UNHCR, October 2005, p.29

“With the fall of the former regime in April 2003, Kurds and Turkmen who were displaced in the Northern Governorates of Erbil and Sulaymaniyah started to return spontaneously to their places of origin in the Governorates of Kirkuk, Diyala, Salah Al-Din and Ninewa. A large number of returnees reside in the main cities in their Governorate or district of origin and have not returned to their villages of origin for a lack of shelter and services. The returnees, who in general did not own land or property prior to their displacement, now live in public buildings, most notably schools and police stations, with little or no basic facilities. Those with land have pitched tents and many are believed to be moving between their original villages and their previous places of displacement. While many of the returns are voluntary, some have been influenced by political actors. The uncoordinated return of IDPs from the North to areas below the former ‘green line’ has led to the ‘secondary displacement’ of Arab families that had been resettled by the former regime in traditionally Kurdish areas in the Governorates of Kirkuk, Mosul, Diyala and Salah Al-Din. Many Arab families have fled these areas out of fear of harassment or actual harassment by returning Kurds and Turkmen.”

“Most people who have opted for voluntary repatriation from Iran and Saudi Arabia have returned to areas where their ethnic or religious group constitutes a majority. They therefore usually do not suffer from any systemic discrimination.

However, as all other Iraqis, they suffer from the prevailing insecurity as well as lack of law and order. They also remain in dire need of assistance to help them reintegrate in communities whose

absorption capacity is limited and where humanitarian and development activities are presently difficult to implement due to the prevailing security situation.

Moreover, Iraqi returnees face a number of problems relating to their rights to housing, identification, freedom of movement and property restitution. Furthermore, housing, a general problem throughout Iraq, affects returnees in particular and specifically in the South. Many of the Marsh Arab families have returned to very impoverished areas. While homeless families have moved into public buildings or schools, others have sought accommodation with extended family members. Some returning families have even moved to partially-destroyed power stations. The need to pursue shelter solutions for these groups is pressing.

Returnees often lack documentation which would facilitate their freedom of movement and access to basic services. For many of those who have returned with UNHCR assistance to Iraq, their only means of identification is the voluntary repatriation form that UNHCR has provided. As for those who have repatriated spontaneously, a significant number of them have no documentation at all, especially those who were previously expelled from Iraq and stripped of their nationalities."

IRIN, 13 Dec 2005

"Hundreds of families remain displaced after the US-led offensives earlier this month against insurgent activity in the cities of Ramadi and al-Qaim in the west of the country, according to the Iraqi Red Crescent Society (IRCS).

'We were astonished when we found hundreds of families refusing to return home because they expect more military operations in the area,' said Maruan Kalif, an IRCS volunteer in Ramadi, capital of Anbar province"

IRIN, 28 June 2005

"Thousands of residents are gradually returning to the town of Karabila, 325 km west of the capital, Baghdad, after fleeing a heavy US-led attack two weeks ago but for many there is little to go back to.

Nearly 7,000 residents were displaced to the desert near the Syrian border during the fighting, according to the Iraq Red Crescent Society (IRCS). The town, which is home to 60,000 people, showed signs of extensive devastation following the battle, a five day operation which ended on 22 June. Nearly 1,000 residents are still displaced and living in the desert.

"I couldn't find anything left of my house. It has been totally destroyed and my family has become homeless and dependent on humanitarian support," said Salua Ibraheem, 42, a Karabila resident who had her home completely destroyed.

"People started to go back trying to get what is left from their destroyed homes. Based on information from our volunteers inside the village, near 40 percent of the village buildings have been partially or totally destroyed," Mazeen Saloon, general secretary of the IRCS, said.

[...]

Utility services have been destroyed and now thousands of families are without power, clean water or sewage according to local officials."

See also:

["Displaced families return to devastated Telafar"](#), IRIN, 21 September 2005

["Families returning to Karabila in need"](#), IRIN, 17 July 2005

Addressing past abuses: Mechanisms of justice (2005)

- An Iraqi Special Tribunal has been set up
- The tribunal is intended to bring charges against senior members of the former regime for human rights violations committed against various groups in Iraq, including the Kurds, the Shiites and the Marsh Arabs
- However, the tribunal has come under criticism by human rights groups

UNHCR, October 2005, p.126-127

“The Statute of the Iraqi Special Tribunal was adopted by the IGC on 10 December 2003.[...] It was established under Iraqi national law to try Iraqi nationals or residents accused of genocide, crimes against humanity, war crimes or other serious crimes committed between 17 July 1968 (the date the Ba’ath Party seized power) and 1 May 2003 (the date the Coalition declared that major combat operations in Iraq were over). The TAL reaffirmed the Tribunal’s Statute.[...] Charges against senior members of the former regime are likely to include atrocities committed against several ethnic groups within Iraq, such as the violent repression of Kurds during the 1988 Anfal campaign. Crimes committed against the Shiites will likely also come to the fore, such as the violent repression that followed the revolt against the former regime in 1991 in which villages were shelled and destroyed and ancient marshes drained, resulting in thousands of deaths, forced displacements and the destruction of communities of Marsh Arabs.

[...]

The IST has declared that it will adhere to standards of international law in compliance with the sovereign law of Iraq. Still, international human rights law groups[...] oppose the IST, questioning whether its statute fully complies with international fair trial standards and recent developments in international criminal law. These groups also worry about the availability of the death penalty, the lack of explicit guarantees against using confessions extracted under torture, a lack of experience in managing complex criminal trials and trials involving serious crimes and the non-admission of international experts to serve as prosecutors.

On 17 July 2005, former President Saddam Hussein, his brother-in-law Barzan Ibrahim Al-Hassan, former Vice-President Taha Yassin Ramadan and former top judge Awad Badar Al-Bender were formally charged with the killings of Shiite Muslims in Dujail, the town in which the former President survived an assassination attempt in 1982. The Iraqi Government said it plans to bring only 12 charges against the former leader out of a possible 500 of which he is accused, saying it would be ‘more than enough to give him the maximum sentence applicable’. The Dujail case is said to have been chosen as it is one in which the investigation has progressed the most and Saddam Hussein’s personal culpability may be easier to prove in a smaller case, thereby leading to a swift conviction and possible death sentence. Critics say that such swift justice would mean that the larger-scale crimes would never be properly dealt with in court. The first trial is expected to start as early as September 2005.[...] ”

[*See the website of the tribunal*](#)

Returnees have severe shelter needs (2005)

- Most returnees surveyed in southern Iraq were found to be living in rented accommodation or relatives
- In Basrah and Thi Qar, large numbers of returnees live in public buildings
- Refugees returning have ended up in a situation of internal displacement because their villages were destroyed

- The main reasons for not returning to rebuild their houses are a lack of financial resources and the lack of basic services

UNHCR, October 2005, p.97-100

“UNHCR Returnee Monitoring in Southern Iraq revealed that returnees have much more severe shelter needs than those of the general population. Surveys in the Governorates of Basrah, Missan and Thi-Qar showed that the majority of the houses had suffered minor or moderate damage and that 11 percent were severely damaged or destroyed; however, the situation of returnees was much more worrisome with 24 percent of houses having sustained severe damage and 33 percent being completely destroyed. Most returnees were found to be living in rented accommodation or with relatives. However, in the Governorates of Basrah and Thi-Qar, large numbers of returnees are living in public buildings (24.6 percent in Basrah and 16.4 percent in Thi-Qar). [...]

Refugee returnee monitoring in the district of Soran and particularly in the sub-district of Dyana, which has the highest number of returnees in the Governorate of Erbil, showed that some 80 percent of the surveyed returnees were not able to return to their place of origin, and therefore, ended up in internal displacement, mainly because their villages were destroyed. The main reasons for not returning to rebuild their houses are a lack of financial resources and the lack of basic services in these areas. [...] Other returnees in Northern Iraq, whose villages have not yet been rehabilitated, are currently living in tents at the Kawlok Hamiya Camp (Governorate of Erbil) and the Chwarqurna Camp (Governorate of Sulaymaniyah). [...] To assist with the reintegration of returnees from Iran in the Governorate of Sulaymaniyah, local authorities allocate each family a piece of land (approximately 200m²). Until recently, the authorities also provided a reconstruction grant of US \$1,000 to each returnee family; however, given the authorities' limited financial abilities, this assistance was stopped. To date, a number of returnee families benefited from this programme; however, it appears that few, if any, have been able to begin construction given the current high prices for construction materials. The average cost of constructing a two room house in the area with a bathroom and latrine is estimated to be between US \$10,000 - \$15,000. The programme is limited to families originating from the Governorate of Sulaymaniyah or those who are having strong political links to the local authorities. There is no such reintegration programme available for returnees in other governorates. [...] The lack of housing also affects refugees living outside camps. After the fall of the former regime, hundreds of Palestinian refugees were evicted from their homes. In the meantime, all have moved into rented accommodation provided to them by the authorities and UNHCR. UNHCR also provides rental allowances to vulnerable Syrian refugee families in Baghdad and Iranian refugees in the Governorates of Erbil and Sulaymaniyah.”

Displaced reluctant to return to Tal Afar due to lack of basic services (2005)

- Displaced remain reluctant to return due to lack of services
- Mainly women and children remaining in displacement

UNAMI, November 2005, p.2

“Tal Afar: NGO monitors reported that more than 1,600 families remained displaced and reluctant to return due to insecurity and poor conditions inside the city. IDP figures fluctuated throughout the month and in a number of return cases, only some members of the family returned, leaving mainly women and children still in displacement.

One reason for the overall rise in displacements was attributed to the lack of basic services and job opportunities in Tal Afar. The provision of basic services such as water, electricity, waste disposal, healthcare, schools, and fuel supplies remained disrupted"

See also:

["Displaced families return to devastated Telafar"](#), IRIN, 21 September 2005

IDPs returning to Fallujah subjected to undignified treatment (2005)

- The UN has raised concerns about the conditions imposed on IDPs wishing to return to Fallujah
- IDPs have been subjected to curfews, restrictions on movement, and intensive ID and search systems
- All males of military age are issued biometric ID cards consisting of iris scan and fingerprint details
- Unconfirmed reports indicate that civilians are being denied access at checkpoints due to insufficient identification and that some are being detained
- The documents required for entry by civilians must include at least two of the following three: National ID card, food ration card, or nationality certificate
- Some of these measures contradict commonly accepted principles for UN supported programmes worldwide which promote returns in safety and dignity

"Since the end of December 2004, the IIG has encouraged IDPs to return to the city in a phased process whereby selected districts of the city were gradually re-opened as MNF-I/Iraqi forces reportedly cleared areas of UXOs and ensured the neighbourhoods were secure. The IIG has reported that from 14 January onwards, all districts of the city will be open to returnees. A total of five entry checkpoints have been established by the MNF-I to control access into the city by civilians, government officials, contractors, and NGOs, citing concerns about the possible return of insurgents. Those entering must undergo extremely strict inspection and identification procedures, and are subject to curfew after 17:00, thus raising concerns about access and freedom of movement.

[...]

The EWG has raised concerns about the conditions imposed on IDPs wishing to return to Fallujah, including curfews, restrictions on movement, and intensive ID and search systems. All males of military age are reportedly issued biometric ID cards consisting of iris scan and fingerprint details. Unconfirmed reports indicate that civilians are being denied access at checkpoints due to insufficient identification and that some are being detained, all of which further contribute to lengthy and slow queues to enter the city. The documents required for entry by civilians must include at least two of the following three: National ID card, food ration card, or nationality certificate. Some of these measures contradict commonly accepted principles for UN supported programmes worldwide which promote returns in safety and dignity." (UNAMI EWG, 18 January 2005)

Harsh living conditions inside Fallujah remain a major concern for returnees (2005)

- An estimated 80 % of IDPs from Fallujah returned, although it was not sure that they had remained in the city (May 2005)
- Access to city remains very difficult and time consuming (May 2005)

- The US has allocated 200 US million for rehabilitation and compensation yet reconstruction has been very slow
- Three main reconstruction projects are planned: to repair key infrastructure, such as sewage, water and electricity, construction of a new general hospital and reform and repairs related to education
- Entry into Fallujah remains difficult and time consuming due to heavy security and checkpoints
- Security measures have also had a negative impact on the economy for shopkeepers and business people
- There are still no basic facilities, including sewage systems, adequate electricity and water supplies
- According to the director of Fallujah's reconstruction project, although the main hospital had been repaired, only three schools out of 40 and four government buildings out of 20 had been rebuilt
- There are disputes over how much compensation has been distributed so far
- The presence of mines and unexploded ordnance (UXOs) in the north and south parts of the city contributed to delays in reconstruction efforts
- NGOs also expressed fear that homes and public buildings have not been systematically cleared of mines and unexploded ordnance nor public information campaigns disseminated to returnees
- A number of displaced families have returned only to leave the city again, due to the lack of basic services such as shelter, water, electricity, healthcare and education
- A return assessment undertaken by UNHCR (February 2005) indicated that 95 per cent of the displaced Fallujah population would like to return if international forces present in the city left
- Other concerns expressed by the displaced include a lack of information about planned assistance and compensation, the presence of unexploded mines, fears for personal security and lack of shelter
- An assessment undertaken by UNHCR showed that a number of IDP families from Fallujah purchased property in the current places of displacement indicating that some displaced are considering settling out of the city for an extended period (January 2005)

"Reconstruction of Fallujah, the city which was the scene of fierce battles between US forces and insurgents between November 2004 and January 2005, has been slow according to local officials.

Little progress has been made despite Washington allocating US \$200 million for rehabilitation efforts and compensation for families.

Nearly 80 percent of the population fled Fallujah, which is 60km west of the Iraqi capital Baghdad and so far only half of them have returned, aid officials have said.

Local people complain that there are still no basic facilities such as sewage systems, adequate electricity and water supplies and there are disputes over how much compensation has been distributed so far.

[...]

According to Bassel Mahmoud, director of Fallujah's reconstruction project, less than \$50 million of the \$200 million for reconstruction had been released so far. He said although the main hospital had been repaired, only three schools out of 40 and four government buildings out of 20 had been rebuilt.

Massive damage was caused by the conflict and repair work could take several years.

[...]

Power, water treatment and sewage systems were badly damaged in the city. Some districts are still dependant on water tankers as the only way to access clean water and most houses with electricity are connected to private generators. The official said more funds need to be released in order to accelerate reconstruction.

Teachers, who are giving lessons inside tents on the outskirts of the city, said most schools in Fallujah are unsuitable for children to study in and that those some of those that remain intact are being used by US troops as military bases.

[...]

Local contractors complained that tight security restrictions had delayed their work and their movement around Fallujah.

CURRENT PROJECTS

Three main reconstruction projects are underway at present, according to officials. The first is the repair of key infrastructure, such as sewage, water and electricity. The Ministry of Municipality and Works (MoMW) is carrying out a number of projects at a cost of \$800,000, including the repair of eight petrol stations and the rebuilding of the administrative infrastructure of the city.

The second project is the construction of a new general hospital in Fallujah, for which the MoH has allocated \$40 million. A US-Iraqi committee for the city has been formed to supervise the establishment of health facilities in the municipality at a cost of about \$6.2 million. This includes rehabilitating medical facilities and health centres in and around the city. The programme started at the beginning of May.

The third project is in the education sector where nearly \$20 million has been allocated for school repairs. The Iraqi government plans to build one of the biggest centres for education in Fallujah. This scheme could take more than two years to complete.

[...]

ADDITIONAL DIFFICULTIES

As well as the curfew, still in the place for more than 10 hours a day, shopkeepers and business people complained that security measures were affecting their income.

Ibrahim Dawood, a shopkeeper in the city, told IRIN that he was stopped from bringing in supplies from the capital, because of heavy security and checkpoints at the entrance to the city. When he had sold all his stock he would have no choice but to shut down unless there was a drastic change in security.

'You cannot image how awful the checking at the entrance of the city is. You are looked at and checked as if you are a criminal because you are bringing something in from outside the city,' Dawood added.

Sheikh Khaled al-Jumaili, the newly elected head of Falujah's city council, told IRIN that security measures were important to prevent the entrance of weapons in the city, at least for the coming months." (IRIN, 24 May 2005)

"The situation in Fallujah remained tense in April. An estimated 80 % of IDPs from Fallujah returned, although it was not sure that they had remained in the city. Access to the city remained difficult and time-consuming, with residents expected to show their Public Distribution System (PDS) cards, official IDs, as well as badges provided by the MNF-I (Multi-National Forces-Iraq). Similar access restrictions were also reported by aid agency personnel. The water and electricity situation remained precarious, as three districts of Fallujah were solely dependant on water tankering and seven districts were without electricity

Medical access for residents improved to some degree when the MNF-I relocated to two kilometres away from the main hospital in the city. According to the Education Department of Fallujah, of the 104 schools listed within the city, seven school buildings were severely damaged, 53 are in need of rehabilitation to some degree, and 15 schools in the city remained occupied by the MNF-I. It was reported that the presence of mines and unexploded ordinances (UXOs) in the north and south parts of the city contributed to delays in reconstruction efforts. Due to these various constraints, the reconstruction efforts were restricted in scope, but still ongoing. MNF-I has done some substantial reconstruction work in the Fallujah area since the end of the operation, complementing the activities and support of the aid agencies and the Iraqi government.” (UNAMI, 17 May 2005)

“Aid agencies continued to raise concerns about the nearly 14,000 internally displaced families from Fallujah, the majority of which are dispersed across Anbar governorate, while the remainder are located in the Baghdad area. These families represent approximately 84,000 internally displaced persons (IDPs), many of whom are children, who left their homes and livelihoods almost four months ago. A significant rise in the number of IDP families was witnessed during this reporting period, which indicates a reverse movement from the city of Fallujah; mainly due to the harsh living conditions and lack of basic services such as shelter, water, electricity, healthcare, and education. UN monitors continued to report an urgent need for food, cooking sets, bedding material, hygiene kits, and medical care in many of the current places of displacement.” (UNAMI, 27 February 2005)

“Another problem worrying NGOs is the presence of mines and unexploded ordnance (UXOs), as reports suggest that homes and public buildings have not been systematically cleared and demarcated and that public information campaigns have not been effectively disseminated to returnees.” (IRIN, 17 February 2005)

“[T]he harsh living conditions inside Fallujah remained a major concern as returnees coped with a lack of access to basic needs and services, including shelter, water, electricity, healthcare, and education.” (UNAMI, 1 March 2005)

“The UN remains concerned regarding the situation of displaced persons in and around Fallujah and regarding the return process. Despite reports of up to 85,000 residents having cumulatively passed through the checkpoints as of 9 January, it is estimated that only about 3,000-8,000 people are actually remaining overnight inside the city due to the harsh living conditions. These include a lack of adequate shelter, electricity, water, and other basic necessities such as access to health care and education. UN partners continue to assess current conditions, and to provide essential support in the areas of health, water, education, food and non-food items.” (UNAMI, 1 February 2005)

“UNHCR through implementing partners have finalized the returns intentions survey for those who have been displaced by the Fallujah crisis. The survey captured over 4,500 families in Al Anbar and Baghdad. Initial results indicate that ninety-five percent of the population would like to return if international forces present in the city left. Other concerns expressed include a lack of information about planned assistance and compensation, the presence of UXOs/mines, health fears associated with use of munitions, and lack of shelter. The vast majority indicated that they will wait for at least three months to monitor the situation in Fallujah before fully returning families.” (UNAMI, 1 February 2005)

“UNHCR, through its partners on the ground, has also been talking to displaced people outside the city to assess their needs and intentions to return. Many IDPs [internally displaced persons] said they intend to stay in their current locations until after the elections at the end of January. The reasons they gave for being reluctant to return right now include the tense security situation

and the general lack of services, especially schools and hospitals. The general Fallujah hospital is open but it is located outside the areas open for residents, who have to go through checkpoints to reach it. Municipal water is available in the city for only a few hours a day. Although generators are operating, the electricity supply is sporadic.

[...]

The assessment conducted by UNHCR's partner agencies also shows that a number of IDP families have purchased property in their current places of displacement. This may suggest that some IDPs are considering settling out of Fallujah for an extended period." (UNHCR, 11 January 2005)

"Joint UNHCR/IOM assessments are ongoing in the areas of displacement through NGO partners to determine the return intentions and protection needs of IDP families. Preliminary results indicate that a significant proportion have purchased property in their current places of displacement, which suggests a long-term strategy of settlement outside of Fallujah. Major reasons reportedly given for their reluctance to return to the city include insecurity, lack of basic services, presence of MNF, and environmental health concerns attributed to the use of heavy munitions and UXOs." (UNAMI EWG, 18 January 2005)

Other resources:

"Fallujah's residents angry at the city's devastation", IRIN, 13 January 2005 [Internet]

"Displaced Fallujah residents unsure of when they can return home", IRIN, 20 December 2004 [Internet]

"Renewed Fallujah fighting hampered return of residents: US", AFP, 16 December 2004 [Internet]

Return for Marsh Arabs difficult due to the destruction of their natural habitat (2005)

- Up to 40,000 persons are estimated to be returning displaced persons in Southern Iraq (mostly Marsh Arabs) (as of August 2004)
- The draining of this area has significantly altered the Marsh Arabs' ability to continue their traditional way of life and farming activities which were based on the cultivation of the marshes
- This group of persons preferred durable solution is to reside in or near their current locations
- The need to ensure complete documentation such as identity documents, marriage and birth certificates, and rations cards is a primary concern for this group
- Twenty per cent of the marshlands have been reflooded since April 2003 (as of August 2005)
- Marsh Arabs have also been unable to return due to poor investment in the marshlands area, insecurity and slow reconstruction work
- Bad roads, transportation and insecurity have meant low attendance rates in schools

IRIN, 22 August 2005

"There are increasing calls for quicker flooding and rehabilitation of Iraq's southern marshlands in Amarah, due to rising unemployment and delays in the return of the marsh Arabs.

[...]

Baroness Emma Nicholson of Winterbourne (MEP), European Parliamentary Rapporteur on Iraq and chairperson for the Assisting Marsh Arabs and Refugees (AMAR) NGO, told a July conference in London that the draining of the southern Iraqi marshes was "a humanitarian and cultural catastrophe as much as an ecological one."

Since July 2003, more than six projects have been developed by AMAR and the United Nations, who are taking the lead role, to assist the marshland people, but much more is required to guarantee a future for some 30,000 local residents.

Local people say their lives have not changed much since the fall of Saddam's oppressive regime, as little has changed in the marshes so far.

"We were persecuted at the time of Saddam Hussein's regime and now we are still suffering economically. We do not have good land and water for farming and most of our cows and buffalos have died. All we have received from the government is empty promises," Hameed Jasim from al-Gindalah marshlands said.

[...]

Approximately 20 percent of the marshes have been re-flooded since April 2003, according to Abdul Kareem Qassim, director of the agriculture directorate in the southern city of Amarah and home to the marshlands said.

"There has been poor investment so far and the increase in our requirements for security has meant that money has been spent on that instead of development in the area," Chasib al-Marsomi, general director of Rehabilitation and Development of the Marshes (RDM) in Amarah said.

About 12 NGOs, four of which are international, have been trying to help people in the marshlands, but corruption has been difficult to tackle, some officials claim.

"There are many NGOs providing help to the area, but they are not effective, because of the corruption. So many projects have failed," he explained.

The help of People in Need (PN) NGO and the International Organization for Migration (IOM) are providing food and non-food supplies for the marsh Arabs, but for 4,000 families only, he added.

[...]

Following the downfall of the regime in 2003, there were signs that people living in the marsh areas would live a much more prosperous life.

However, problems remain due to insecurity and slow reconstruction work. This is having a huge impact on the education system there.

According to official sources in Amarah, there has been a decrease in the number of students attending school, due to insecurity, poor infrastructure, compounded by a lack of qualified teachers.

Many qualified staff has left Iraq due to insurgency and previous conflicts.

Abdul Hakeem Fakher, general director of Amarah education directorate, said that there had, however, been good progress in establishing school buildings. There are 75 primary schools and three intermediate and secondary schools in the marshes of Amarah.

"We already have 65 schools and another 10 schools are being built after the fall of the regime. The percentage of students in primary schools is 80 percent, but for the secondary schools it is 20 percent only," he added.

Bad roads, transportation and insecurity were reasons for poor attendance, according to Fakher.

"Some of our schools were built with mud and have been damaged so it is very difficult for the students to attend lessons. The level of literacy in the children of the marshes under 12 years is 30 percent," Fakher explained.

Most families here prefer not to send children to school, due to financial needs and send them out to work instead, he added.

Kareem Helow, a primary school teacher in al-Wadeah marshes, said that the situation in schools was miserable. "We are only four teachers in a school for 186 pupils."

[...]

Improvements can be seen, however, in the health system in the marshes.

Today, there are five primary health clinics serving the area. Most of the centres were built over the past two years, Mejb al-Mosawi, a senior official in the Amarah health directorate said.

All were constructed by the AMAR NGO, which also provides 12 health professionals.

The Ministry of Health in Baghdad said it had invested in the marshes and hoped by 2006 to be able to cover the needs in that region. A new highly equipped hospital is also planned.

"The marshes were one of the largest economic and historical centres in the country and it is very important that health care needs are met," Mustafa al-A'ani, a senior official at the ministry, said.

[...]

AMAR and the Centre for Marine Studies (CMS) are also focusing on rehabilitating fishing in the area.

"Because of the draining, the marshes faced a severe shortage in Benni fish, the most important kind of fish in the area. We have a project to increase their number through a breeding programme where they are raised until they are the size of a finger and then released into the marshes," Sajid al-Noor, chief researcher for the CMS, said.

Fishermen had been told not to fish in the area until stocks were replenished to guarantee growth – but many are continuing due to financial needs.

"We need money to feed our families and for these reasons we cannot wait for the fish to grow and sometimes we have to fish the new baby fish," Hussein Nuridin, a local marsh resident, said.

Livestock has also been seriously affected. A report issued by the Animal Production Department (APD) of Amarah, on June 2005, said the number of buffalos before the draining was about 26,500 and in 2000 there were 16,850 – a decrease of 38 percent.

"Before the draining each family owned 15-25 buffalos, but now the number is around seven due to the shortage of water," Aloki, a local tribesman, said.

The UN Food and Agriculture organization (FAO) is in the process of implementing programmes to replenish livestock, but help can't come soon enough.

[...]

Slow reconstruction has forced many of them to search for alternative ways to survive. "We do not have jobs to survive and for this reason we have been obliged to ask our children to join the Iraqi Army or local police to get money to help our families," Shabil Hussain, a local marsh Arab said with tears in his eyes.

"No one is taking care of us, we have no services," Hasn Falih, a young marsh man, said. "They only know how to talk about democracy and elections, but talking about these things is useless without essential services for the people."

UNHCR, 12 August 2004

"In the South, the principle group of IDPs remains the Marsh Arabs, who, over the past 15 years, have been subjected to forced migration as a result of an organized Marsh- Drainage campaign undertaken by the former Iraqi regime. The persistent implementation of this campaign led to massive displacement within and outside the country.

The policy of the former Iraqi regime to drain the Marshlands in southern Iraq underwent several stages. A large swathe of the central marshes was drained to facilitate the movement of the military units during the Iraq-Iran war. During the 1990's, the marshes underwent further extensive drainage. As part of the previous government's policy which consisted of resettling Shia populations to the north in order to alter the ethnic balance of the area, many Marsh Arabs were forced to resettle there to replace Kurdish, Turkmen and Assyrians. Although the number of displaced Marsh Arabs is quite difficult to identify due to the protracted nature of displacement and varying levels of integration, it is estimated that between 100,000-200,000 persons remain internally displaced from the marshland areas.

Up to 40,000 persons are estimated to be returning displaced persons, i.e., they were originally from Southern Iraq (mostly Marsh Arabs), were resettled under the Arabization program to Northern Iraq and, following the recent conflict, returned to their ancestral lands in Southern Iraq, although the draining of this area has significantly altered the Marsh Arabs' ability to continue their traditional way of life and farming activities which were based on the cultivation of the marshes. This group of persons is considered returning displaced persons; their preferred durable solution is to reside in or near their current locations.

UNHCR, 12 August 2004

The need to ensure complete documentation such as identity documents, marriage and birth certificates, and rations cards is a primary concern for this group. Property claims, legal assistance, basic reintegration assistance as well as focused assistance for vulnerable groups including female-headed households, the elderly, and physical and mentally disabled persons must also be urgently addressed."

Cohen & Fawcett, 28 Dec 02

"Although it would be difficult to recreate the marshes, consultations should be held with the former inhabitants and a feasibility study done to see whether at least some of the marshes could be reflooded. For those who cannot return, compensation should be paid from oil revenues."

Severe living conditions in the South (2004)

- UNHCR's partners monitored the four southern governorates during the period of October 2003 - October 2004
- According to the 647 villages surveyed with a population of over 3 million, nearly 7% of the population in southern Iraq live in displacement or have recently returned from displacement
- Of the returning refugees surveyed, an estimated 35% (approx 56,700 persons) have returned to their home of origin whereas the remaining 65% (105,300 persons) have returned from their country of asylum to displacement

- Return to a situation of displacement is particularly acute in southern Iraq due to lack of housing and the drained (uninhabitable) marshland
- It is also necessary to improve access to safe water, medical facilities, and school infrastructure

"Iraqi Returnee Monitoring: First Result from the South

A total of 3,400 returnee monitoring forms have been completed by UNHCR's partners during the period of October 2003 - October 2004 in the four lower southern governorates, including 647 village surveys and 2,853 household surveys. 647 villages have been surveyed, covering a population of 3,187,507 persons. According to the village surveys, nearly 7% of the population in southern Iraq live in displacement or have recently returned from displacement, including returning refugees and IDPs (some 224,000 persons). Such a distinct part of the population indicates a cultural phenomena that touches upon everyone, with accompanying social problems, pressures, etc. (NB: This statistic correlates with the Ministry of Trade statistics, which reports 162,000 refugees have returned and more than 50,000 persons are displaced)

Of the returning refugees surveyed, an estimated 35% (approx 56,700 persons) have returned to their home of origin. The balance, or 65% (105,300 persons) have returned from their country of asylum to displacement. Of those that have returned to displacement, 20% (some 21,000 persons) are willing to locally integrate within their returnee community. The displaced returning refugees - numbering an estimated 60% (nearly 98,000 persons) - want to return to their home (or perhaps are implicitly expressing the wish that their property disputes be resolved to allow re-habitation or compensation).

The magnitude of returning to displacement is particularly acute in southern Iraq for two reasons: lack of housing and the drained (uninhabitable) marshland. Housing has deteriorated or been destroyed. Several hundreds of marsh villages have been destroyed." (UNAMI, 13 December 2004)

"As part of its ongoing monitoring of returnees, a UNHCR partner undertook a needs assessment of 890 returnee families located in the governorates of Baghdad, Al-Anbar, and Diyala, highlighting certain protection issues. A similar assessment was conducted in 400 villages across the Lower South governorates, indicating a need for improved shelter, access to safe water, medical facilities, and school infrastructure."(UNAMI, 17 May 2005)

Policy

UNHCR maintains advisory to host governments against return of Iraqis (2006)

- The advisory notes that the security situation has not improved but has deteriorated in many places
- It notes that the Iraqi authorities are not yet able to provide protection to their citizens, in particular south and central Iraq
- It notes that returns could worsen tensions between residents and returnees
- UNHCR encourages governments to postpone introducing measures that promote or induce voluntary returns for persons from southern and central Iraq
- The agency has adjusted its position on return to the northern governorates, however only under certain conditions

UNHCR, April 2006, p.9

A 2005 Return Advisory of UNHCR states that return to the three northern governorates is considered "feasible" however, only on specific conditions. UNHCR does not encourage return of Iraqi refugees to the centre and south since conditions are not conducive to repatriation."

UNHCR, 27 September 2005

"Noting that the security situation in much of Iraq has shown no improvement, indeed has actually deteriorated in many places, the UN refugee agency said on Tuesday it is concerned that some states are considering withdrawing the protection previously afforded to all Iraqi asylum seekers.

UNHCR also drew attention to the extremely low recognition rates being accorded to Iraqi asylum seekers by some asylum countries.

The UNHCR comments were part of its latest advisory regarding the return of Iraqis to their homeland. These advisories are issued periodically by the UN refugee agency to provide governments with recommendations and guidance for specific populations and countries.

The advisory notes that despite the January 2005 elections in Iraq, authorities are not yet able to protect citizens from violent attacks, including those specifically targeting civilians in southern and central Iraq. It also says access to basic services needed for a secure and stable life is not guaranteed.

The advisory also warns that premature returns could worsen tensions between residents and returnees, thereby increasing insecurity.

"Thus, UNHCR encourages governments to postpone the introduction of measures which are intended to promote or induce voluntary returns for persons originating from southern or central Iraq," UNHCR spokesman Ron Redmond told a press briefing on Tuesday.

"Security conditions and absorption capacities for sustainable return should be in place before people are returned," he added. "Similarly, for those asylum seekers who are not recognized as refugees, some form of protection in keeping with international human rights principles should be given."

In some European countries, Iraqi asylum seekers have been rejected on the basis of the so-called 'internal flight alternative.'

"Iraqi asylum seekers should not be rejected simply because in theory they could possibly move somewhere else inside Iraq," said Ekber Menemencioglu, UNHCR's Director for Central and South-West Asia, North Africa and the Middle East. "Relocation elsewhere can be very risky because of the security constraints in many areas in Iraq. National protection as well as basic services and facilities – and in particular housing – are absent in many places, especially for those without any family or community links."

UNHCR said it has slightly adjusted its position towards return to three of the northern governorates – Sulaymaniyah, Dohuk and Erbil – where acts of violence are far less frequent by comparison with much of the rest of the country, and a certain level of political stability has been achieved despite the fragile economy and security. UNHCR said it now deems the promotion of voluntary return for Iraqis originating from these three northern governorates to be feasible, provided the returnees have family and community links that can ensure their access to protection, housing and other basic services.

While not ruling out the involuntary return of some asylum seekers from these three provinces, if they have been rejected in a proper procedure, the advisory encourages states to proceed with caution, especially with regard to the concerns of the central government and local authorities, as well as the region's limited capacity to absorb returnees.

"UNHCR strongly encourages states not to forcibly return rejected asylum seekers to the three northern governorates if they do not originate from there," said Menemencioglu. "Even if they were admitted – which is by no means certain – they would nevertheless have little or no chance of slotting in to the local community or of obtaining legal residence, accommodation and employment. Even worse, without any local support system, they might well be at risk physically."

It is estimated that between 2003 and 2005, more than 253,000 people returned to Iraq, most of them spontaneously. A total of 23,074 Iraqis chose to return voluntarily from Iran, Saudi Arabia, Lebanon, Jordan and other countries with assistance from UNHCR. However, because of the security situation, the agency has never promoted returns to any part of Iraq.

It has been estimated that more than 1.2 million people may currently be displaced inside Iraq – many of them sheltering in public buildings.

Other estimates suggest that perhaps 1.5 million Iraqis are still living outside their home country, as refugees or migrants. Many of these would like to return but have not been able to for various reasons – security and lack of housing being the major ones.

In 2002, just prior to the fall of the Saddam Hussein government, Iraqis were the top group of asylum seekers arriving in industrialized countries. Since then, the great majority of those leaving Iraq appear to have remained in neighbouring countries such as Jordan and Syria, and to a lesser extent Lebanon."

See "[Advisory Regarding the Return of Iraqis](#)", UNHCR, September 2005

HUMANITARIAN ACCESS

General

Multinational forces and insurgents hinder provision of assistance (2006)

- Aid agencies report being prevented by US troops access to the city of Samarra in March 2006, people were also prevented from leaving the city
- The security situation in Al Qaim has impeded access to the area to assist IDPs and residents, prompting the UN and its partners to call on the Iraqi authorities and Multinational Force for "humanitarian space and respect for human rights"
- NGOs reported lack of access and security affecting their ability to provide assistance to returnees (Fallujah, January 2005)
- The UN reported insecurity and sporadic access due to roadblocks by MNF and insurgent groups hindered the provision of humanitarian assistance to IDPs (Fallujah, January 2005)
- Many of Fallujah's IDPs did not receive their food rations as a result (January 2005)
- The UN also called on authorities to respect the right for humanitarian space and the human rights of civilians following conflict in Al Qaim
- Initial efforts to assist civilians of Al Qaim were hindered by the lack of access to the area
- The detainment of some Sheikhs accused of 'harbouring resistance groups' has meant that many sheikhs are disengaging from registering and supporting IDPs from Fallujah raising concern among agencies working to meet the needs of IDPs , as assistance is normally facilitated by mosques

IRIN, 22 March 2006

"Aid agencies say they have been prevented from entering the city of Samarra, in central Iraq, where a major US and Iraqi military operation is underway.

"Our convoys sent on Sunday and Monday have been prevented from entering the city by US troops and our information from inside is that families are without food, power and potable water, particularly because they cannot leave their homes," noted Abdel Hameed, a spokesperson for the Iraqi Red Crescent Society (IRCS).

This, they say, has left hundreds of families without medical assistance and food supplies.

"Innocent people and especially children are suffering from a lack of supplies in and on the outskirts of Samarra," said Muhammad al-Daraji, Director of the Monitoring Net of Human Rights in Iraq (MHRI).

"US and Iraqi military groups have prevented the entrance of local NGOs as well as the media to show the reality of human rights violation inside it," he added.

According to al-Daraji, no citizens have been allowed to leave the city, some 120 km north of the capital, Baghdad, since the operation began on 16 March. US forces along with Iraqi commandos say the operation is necessary to flush out insurgents in the area.

"We have been informed that they are taking the men for interrogation and leaving women and children alone in their homes afraid and desperate for supplies," al-Daraji added.

Nearly 1,200 families have fled the city to Baghdad and are living in abandoned buildings and makeshift camps, according to local NGOs who are monitoring. Few of them have received assistance so far.

Dr Ibraheem Mahmoud, a clinician at the emergency department of the local hospital in Salahuddine governorate, said that they have received telephone calls from inside the city from residents who spoke of dead bodies in streets and injured people without assistance.."

UNSC, 7 June 2005, para.58

"Military action in the Al-Qaim area had an impact on local residents and on internally displaced persons from Fallujah. As a result, 2,000 internally displaced families from Fallujah were identified to receive assistance, as well as an estimated 2,000 internally displaced families originally from Al-Qaim and its surrounding areas. Food, water, non-food items such as mattresses, tents and water storage containers, and essential medical supplies were distributed to families in need and to local health facilities. The security situation has impeded access and thus assessments of the area's needs. However, the United Nations country team and its partners, working through the emergency working group, are in the process of positioning supplies and are calling on the relevant Iraqi authorities and the Multinational Force for humanitarian space and respect for human rights."

UNAMI EWG, 18 January 2005

[Falluja] "Overall, NGOs report that lack of access and security continues to affect their ability to independently assess conditions inside the city and to directly deliver humanitarian aid to the returning population.

[...]

Insecurity and sporadic access due to roadblocks by MNF and insurgent groups also continue to impact the provision of humanitarian assistance to IDPs at their current places of displacement. Joint IOM/UNHCR distributions in the area of Amiriya were recently suspended due to risks associated with criminal activity. NGO monitors report that many IDPs have still not received their PDS rations. WFP focal points report that between 30% to 40% of IDP families have re-registered with the Ministry of Trade to collect their food rations at new locations based on information received from assessed areas of Anbar, Baghdad, Kerbala, and Salah el Din."

UNAMI, 17 May 2005

"The situation in Fallujah remained tense in April. An estimated 80% of IDPs from Fallujah returned, although it was not sure that they had remained in the city. Access to the city remained difficult and time-consuming, with residents expected to show their Public Distribution System (PDS) cards, official IDs, as well as badges provided by the MNF-I (Multi-National Forces-Iraq). Similar access restrictions were also reported by aid agency personnel. The water and electricity situation remained precarious, as three districts of Fallujah were solely dependant on water tankering and seven districts were without electricity.

[...]

The United Nations Assistance Mission for Iraq (UNAMI) and the UN Humanitarian Coordinator's office convened the Emergency Working Group (EWG) to coordinate the response of humanitarian actors. Working in concert with the EWG in Baghdad, information is being shared and response coordinated to ensure that resources reach those most in need. Of prime concern is to reach the Internally Displaced Persons (IDPs) with basic needs such as water, shelter, food and essential medical care.

Initial efforts were hindered by the lack of access to the area, particularly Al-Qa'im itself, resulting in the inability of the agencies to accurately assess and respond to the needs of the civilian population. Of particular concern are reports that the medical facilities have been severely damaged, and that wounded civilians are unable to access treatment. However, some access is now possible, and agencies are beginning the process of delivering initial assistance while assessing more concretely immediate and longer term needs.

The UN and its partners urge the relevant authorities to respect the right for humanitarian space and the human rights of the civilians, and facilitate the access of humanitarian actors to those in need. Dialogue has been initiated with the Transitional Government of Iraq and the MNF-I to secure access."

UNAMI, February 2005

"Covering over 29,000 IDP families who fled from Fallujah in November 2004, IOM and UNHCR have completed the distribution of items IDP families in Ana, Rawa, Haditha, Heet, Habaniyah and Amiriyah, Karma, Saglawiyah and Neimiyah. This distribution has taken two weeks longer than planned due to the insecurity along the roads leading to some of the locations, most notably Amiriyah, where 3 staff from the NGO partner were kidnapped by resistance groups last week. All staff were released the same day and the items secured to Amiriyah.

[...]

Due to the detainment of some Sheikhs accused of 'harbouring resistance groups', many sheikhs are disengaging from registering and supporting IDPs from Fallujah. More investigation is needed on this topic, as this could lead to serious implications for the IDPs in terms of assistance delivery normally facilitated by many of the mosques."

UN EWG, 19 December 2004

"Lack of security and access continue to impact the delivery of humanitarian assistance to the residents of Falluja and the estimated 200,000 IDPs dispersed to surrounding areas. At best, IOM monitors report there is sporadic access to the various IDP locations due to military activities/checkpoints and insecurity; whereas Falluja itself remains strictly inaccessible due to the ongoing conflict. IOM monitors report that clinics at the IDP areas are experiencing shortages of some drugs and that many IDPs have not received their food rations despite the apparent resumption of PDS distributions by the Ministry of Trade in some of the affected areas. UNAMI continues to raise the issues of access, protection of civilians, and the need for humanitarian corridors with the MNF-I/IIG regarding the IDPs.

On 5 December, due to an MNF-I request for a temporary suspension of Falluja operations, the IRCS withdrew from the city reportedly due to security issues. To date, the IRCS has not returned. The ICRC, however, entered the city on 9 December to meet briefly with Iraqi water and sewage officials. According to the recent ICRC visit, the water, sewage, and electricity systems inside the city are still not functioning in most neighbourhoods of the city and residents are too afraid to access health services despite adequately stocked and functional facilities.

The target date set by the IIG/MNF-I for the phased return of IDPs to Falluja has reportedly been postponed from 15 December until later in the month, thus underscoring the need for humanitarian organisations to safely access the IDP areas."

See also "[Military Operations raise many human rights concerns](#)"

Prevailing insecurity limits international efforts to assist displaced (2006)

- The UN's presence and its ability to operate effectively in Iraq remain severely constrained by the security environment
- Access to some IDP locations remained sporadic and hindered by checkpoints or strict security cordons around towns
- The UN is dependent on the Multinational Force for movement security and threat information
- The security situation has meant that the UN must rely on national staff, often with less guidance than is needed
- The UN also employs NGOs and consultants to monitor and assess activities being undertaken by implementing partners
- One of the critical constraints to responding to humanitarian crisis in Iraq has also been the inability to get quick information which has delayed response

UNSC, 3 March 2006, p.12-17

"Iraq remains a dangerous place and United Nations staff members are at risk of becoming targets of violence.

[...]

The security of the international zone in Baghdad, which is home to UNAMI premises, is of great importance to all occupants, including the United Nations. Accordingly, the situation, which is in the midst of a transition from Multinational Force primacy to that of the Iraqi security forces, is under constant review by UNAMI and the Department of Safety and Security. At the moment, the integrity of the internal zone perimeter and internal checkpoints is being maintained, but the topic is a regular point of discussion with the Multinational Force to ensure that the current level of security is sustained. From 9 to 13 February 2006, the Under-Secretary-General for Safety and Security, David Veness, visited Iraq. During his visit, he held discussions with interlocutors from UNAMI and the Multinational Force, as well as senior Iraqi officials, as part of the continuous United Nations review of security conditions in Iraq.

The Organization's presence and its ability to operate effectively in Iraq remain severely constrained by the security environment. This high-risk setting greatly restricts freedom of movement, especially by road. To provide United Nations staff members with the best security possible, and therefore ensure that the Organization is able to maintain a presence in Iraq, a number of mitigating and protective measures have been introduced, which are both expensive and timeconsuming. These constraints underline the responsibility of all staff members to adhere strictly to the security measures in place. Moreover, the United Nations is dependent on the Multinational Force for movement security and threat information. To keep pace with the constantly changing security dynamics, the UNAMI security unit requires access to accurate information on a regular and timely basis.

[...]

While UNAMI is seeking to step up its activities following the completion of the transition timetable endorsed in resolution 1546 (2004), in the current political and security environment in Iraq United Nations staff members remain at risk of becoming targets of violence. Staff security therefore remains the Mission's overarching guiding principle. Given the continuously changing environment on the ground, UNAMI must develop flexible plans for its operations and security arrangements. Although the nature of the deployment of the Multinational Force is likely to change, the Mission's need for a dedicated protection force for all its activities in Iraq remains. Operational constraints, such as the lack of dedicated air assets, will also have to be addressed as a matter of priority. I look forward to continuing engagement with Member States on the practical steps that need to be taken to provide UNAMI with the necessary level of support to fulfil

the long-term commitment of the United Nations to supporting the people of Iraq. The development of a new integrated United Nations complex in Iraq will be essential in this regard."

UNSC, November 2005, pp. 2-3

"Access to some IDP locations remained sporadic and hindered by checkpoints or strict security cordons around towns. The EWG shared these concerns with UNAMI civil-military focal points in order to encourage dialogue with the concerned parties and to develop practical measures to facilitate access of humanitarian convoys to insecure areas. UNAMI facilitated an information exchange between interested NGOs and the military authorities to promote the possibility of humanitarian corridors."

UNAMI, November 2005, p.1 (Anbar province)

"The government's Public Distribution System (PDS) rations were distributed except in certain sensitive areas where Ministry of Trade drivers were either unable or reluctant to travel."

UNAMI, September 2005,p.2

"Tal Afar Update: Access to residents and internally displaced persons (IDPs) in locations near the city was difficult and sporadic due to security constraints.

[...]

"Anbar Update: ...access to the area for humanitarian actors remained sporadic due to insecurity in the area, making accurate assessments of IDP movements difficult. "

UNAMI, July 2005, p.1

"This current insecurity disrupted the delivery of essential humanitarian assistance to these IDPs, host families and resident local communities as some locations became inaccessible and a number of access roads became unsafe to travel."

UNSC, 7 June 2005, paras. 81-84

"The extent to which it has been possible for UNAMI to discharge its mandate in the past year has been, and continues to be, sharply limited by the security situation and other operational constraints. In the wake of the tragedy of 19 August 2003, I have made it clear that the role of UNAMI must be commensurate with the risks and that staff security should be the overall guiding principle in the implementation of its mandate. The dangers and the requirement to meet the minimum operating security standards have necessitated security arrangements for protection far beyond those of other peace operations, in terms of both cost and the proportion of substantive to non-substantive personnel.

Security risk assessments confirm that the level of threat remains high. The arrangements for security impose significant limitations on staff, who have to endure very arduous living and working conditions combined with the constant stress of living with significant risk. One of the results has been that it has been difficult to recruit and retain staff. UNAMI currently has an overall vacancy rate of 55 per cent. Some individuals have simply declined to accept the risks, while others have refused to accept employment on the grounds that there is insufficient compensation for the conditions of work.

During the period under review, there has been no abatement of violence in Iraq, with the number of incidents once again reaching very high levels upon the formation of the Transitional Government. Bombings, strikes against Iraqi and Multinational Force installations and convoys, attacks on aircraft, hostage-takings and targeted assassinations against Iraqi civilians, including

public figures, many of increasing scale and sophistication, continue to be centred on Baghdad, Mosul, Ramadi and Tikrit. Iraqi police and recruitment centres have received particular attention, and indiscriminate attacks against civilians continue to cause growing numbers of casualties, with the apparent intent of demonstrating the weakness and inability of the new Government to control the security situation and of exacerbating sectarian tensions.

Ground movement between the Baghdad international zone and airport has occasionally been interrupted. A major attack against local security forces in Erbil and incidents in other parts of Iraq demonstrate a sustained ability of hostile elements to select and coordinate attack targets throughout the country. The present and immediately foreseeable security situation therefore offers no scope for an early reduction in the level of protection for United Nations personnel, installations and activities in Iraq."

UNSC, 7 March 2005, para. 12 and 62

"During the reporting period, leading up to the national elections on 30 January 2005, much of Iraq was exposed to an extensive and well-planned effort to disrupt campaigning and voting. Levels of violence were very high, with sustained attacks on candidates, election workers and Iraqi and multinational security forces. The most serious attack took place in Hillah on 28 February, [...] in which over 120 civilians, police and National Guard volunteers were killed and over 140 injured.

While robust security arrangements and the determination of Iraqi voters enabled the elections to take place in most of the country, violence has again reached pre-election levels following a short abatement after 30 January 2005. There have been major attacks in Baghdad, Mosul, Erbil, Najaf, Karbala and Basrah, all indicating that, while the dangers are most intense and prevalent in the centre of Iraq, no part of the country is beyond the reach of hostile elements. With attacks using explosive devices and direct fire increasing in scale and sophistication, and the risk of hostage-taking, threats and risks outside heavily protected areas remain very high, and the security situation continues to be an overriding constraint for all United Nations activities."

OHCHR, 9 June 2004, p.22

"The prevailing insecurity in most parts of the country exacerbates the already vulnerable human rights situation of most displaced persons. Following the bombing of the United Nations headquarters in Baghdad on 19 August 2003, most humanitarian agencies have withdrawn, and now only limited assistance reaches the internally displaced and there is no consistent monitoring of and reporting on the human rights situation of displaced persons"

UNSC, 7 June 2005, paras. 64-65

"Despite the efforts of the United Nations, significant obstacles to full implementation of United Nations activities remain. This is largely due to the security situation, which dictates that work be done using national staff with less direction than preferred. Therefore, the United Nations is using the services of third parties such as local non-governmental organizations or consultants to monitor and assess activities being undertaken through implementing partners in Iraq. This triangulation of management, although not ideal, appears to be working reasonably well and will continue for the foreseeable future. However, one of the critical constraints is the inability to quickly gather information, such as in the case of developing a humanitarian response in Al-Qa'im, which resulted in a delayed response. This dependency upon second-hand information and the associated potential for bias continues to be a major constraint in ensuring that the response provided is relevant and appropriate as well as timely.

Similarly, frequent changes in the ministries, combined with the delays in the formation of the Transitional Government, have resulted in the suspension of the Iraqi Strategic Review Board and the approval of projects for implementation. Changes in ministerial incumbents, reformulation of portfolios within ministries and other effects of the creation of the Transitional Government, while not unexpected, nonetheless posed some difficulties for United Nations activities."

See also "[Military Operations raise many human rights concerns](#)"

Concern about role of military in delivery of humanitarian assistance (2005)

"The MNF-I are directly managing and distributing supplies from two of the HACs inside Fallujah; whereas management of the third HAC in the Jolan Park district has been handed over to the Ministry of Trade. All three official distribution points are reportedly guarded by MNF-I soldiers, which further raises concerns about the prominent role of military actors in the return process and the distribution of humanitarian assistance. The UN has made clear that any assistance provided through its channels must be distributed by civilians in adherence with civil-military guidelines." (UNAMI EWG, 18 January 2005)

UN establishes presence in south but otherwise continues to operate mainly by remote (2005)

- With new security and accommodation arrangements in place, the UN has increased international staff to Baghdad and deployed liaisons to Erbil and Basrah
- The liaison deployments are protected and housed by the Multinational Force
- The number of UN personnel in Iraq continues however to be extremely constrained by security conditions which has meant that the UN international presence continues to be confined
- The UN continues to review the possibility re-establishing a sustained presence in Iraq
- Ongoing violence has prevented the UN from implementing its mandate to the full extent
- The UN pulls out last staff in November 2003

"With new security and accommodation arrangements recently put in place, we increased the number of international UNAMI staff in Baghdad and deployed United Nations liaison detachments to Erbil and Basrah, to explore the possible expansion of our reconstruction and humanitarian activities inside Iraq, as circumstances permit." (UNSC, 7 March 2005, para.80)

"The United Nations liaison detachments in Basrah and Erbil continue to be housed and protected by the Multinational Force pending the establishment of United Nations facilities and the subsequent deployment of security and support staff." (UNSC, 7 June 2005, para.95)

"The number of United Nations personnel in Iraq continues to be constrained by security conditions necessitating extremely well-protected living and working facilities within heavily guarded areas. Movement outside the Baghdad international zone, or similarly well-protected compounds in other parts of the country, continues to be extremely hazardous and therefore dependent on the protection of the multinational force. Under these conditions, any expansion of the United Nations presence in Iraq has of necessity been confined to the number of persons who can be accommodated in the Baghdad international zone, as well as the small security liaison detachments deployed to multinational force cantonments at Basrah and Erbil." (UNSC, 7 March 2005, para. 63)

Establishment of a United Nations presence in Basrah and Erbil

"Small United Nations liaison detachments of up to six staff members each were deployed to Erbil and Basrah on 1 and 12 February 2005, respectively. These liaison detachments include military advisers and security and support staff who will work with the multinational force to facilitate periodic visits, prepare United Nations facilities and assess the security conditions required for any expansion of the United Nations presence in Iraq. I am grateful to the Member States of the multinational force for providing support to the United Nations for the deployment of the liaison detachments. Additional arrangements for protection by the multinational force, as well by United Nations security personnel, will have to be put in place if the United Nations is to establish its own facilities in Basrah and Erbil." (UNSC, 7 March 2005, para.56)

"Although the UN continues to review the possibility of re-deploying international staff to Iraq and at the end of August 2004 sent a small team to Baghdad for six weeks, under the auspices of the Special Representative to the Secretary-General, in order to assess the humanitarian situation, it is unlikely, in light of continued security concerns, that any type of sustained international presence will be possible in the near future. UNHCR's ability as well as that of its partners to engage in any type of protection, returnee monitoring, and/or reintegration activities towards sustainable return in Iraq thus remains severely limited. It should furthermore be noted that the Ministry for Displacement and Migration is still in the process of building up its own operational capacity, and is currently in no position to offer any type of accommodation or other assistance to returning Iraqis." (UNHCR, September 2004, p.3)

"The U.N. mission in Iraq will not be able to fully implement the mandate given by the Security Council because of continuing insecurity, Secretary General Kofi Annan said Tuesday in assessing the situation in the war-torn nation.

'At this juncture, circumstances do not permit the U.N. to implement to the fullest extend the essential tasks under its mandate pursuant to resolution 1546,' Annan said in a report to the 15-nation council, which adopted the resolution specifying the tasks in Iraq.

[...]

The ongoing insecurity will force the U.N. to confine its role to what is logistically feasible and advisable against the backdrop of the reality on the ground in Iraq, he said.

The core mandate of the U.N. mission will be to assist the Iraqis and the interim government in Baghdad to prepare the elections for a provisional government and a legislature in January. The provisional government will draft the new constitution for Iraq and if all goes well, general elections would be held in December 2005, for full-fledged government." (Deutsche Presse Agentur, 7 September 2004)

"Emphasizing the importance of security for United Nations activities in Iraq, Secretary-General Kofi Annan and his newly-appointed senior envoy to the country, Ashraf Jehangir Qazi, said today this work will focus on supporting national efforts to achieve the political transition. Security concerns are paramount as the world body prepares to return to the strife-torn nation where last year 22 people were killed in an attack on the UN's Baghdad headquarters." (UN, 22 July 2004)

See "[UN pulls out last of foreign staff from Baghdad](#)", Reuters, 3 November 2003

NATIONAL AND INTERNATIONAL RESPONSES

Overview

Response limited insecurity and impeded humanitarian access and lack of funds (May 2006)

The Iraqi Ministry of Displacement and Migration bears the responsibility to provide protection and assistance to IDPs (CPA, 8 March 2004). The ministry, with the support of the UN, began the process of developing a national policy on displacement, a process which includes consultations with IDPs, host communities and local authorities. The UN Iraq office endorsed a "Strategic Plan on Assistance and Durable Solutions for IDPs in Iraq" in December 2005, to ensure that all development activities in Iraq take into account the IDP situation (UNAMI, 6 March 2006, p.3).

Local NGOs and national staff play an important role in providing aid to displaced people since the bombing of the UN headquarters, which prompted the UN and other international organisations to pull out the majority of their staff in April 2003. The UN Assistance Mission in Iraq (UNAMI) operates from Amman, and has also opened liaison offices in Baghdad and in Basra and Erbil (UNSC, 7 June 2005; UNAMI, 4 April 2005). The UN response in Iraq is coordinated by inter-agency thematic clusters, of which Cluster F (formerly Cluster 8) is responsible for all issues relating to IDPs. Cluster F coordinates the provision of protection and assistance to IDPs and other activities for IDPs, like shelter-building programmes, income-generating activities and legal advice (UNAMI, 1 March 2005). The Cluster also provides technical support to the government for dealing with humanitarian assistance, protection, and property issues (UNHCR, 19 December 2003; UNCT, August 2004). There is an emergency working group and an IDP working group coordinated by the UN as well as an emergency working group led by the NGO Coordination Committee in Iraq, an umbrella network of NGOs working in Iraq.

IDP assistance and monitoring mechanisms are still weak because of security constraints and impeded access (NCCI, 18 May 2006). Following some MNF/I and Iraqi Security Forces military operations, humanitarian organisations have been unable to reach displaced communities or have provided only sporadic assistance to IDPs, in particular in Anbar, Ninewa and Salah al Din (UNAMI, July-November 2005 and 31 October 2005; NCCI, 18 May 2006). Similarly, security and military forces have prevented humanitarian organisations from accessing displaced and other vulnerable populations in Fallujah, Al Qa'im and Samarra (IRIN, 22 March 2006, UNSC, 7 June 2005; IOM, April 2005; UNAMI, 18 January 2005 and 19 December 2004). There are also reports that humanitarian workers have been detained or imprisoned while attempting to carry out their work. For instance, doctors were detained and medical facilities occupied by armed forces during military operations in Anbar province in October 2005 (UNAMI, 31 October 2005, p.2).

Yet, the humanitarian response has also been inadequate because of mismanagement of funds and declining donor interest. A report by the UK's Guardian newspaper points to the mishandling and embezzlement of up to \$23 billion allotted for reconstruction activities in Iraq given to the US Coalition authorities by the UN (The Guardian, 20 March 2006). In addition, the NGO Coordination Committee in Iraq notes the lack of neutral funding not linked to one of the parties in the conflict. The withdrawal of some donors and the limited funds allocated for humanitarian preparedness has also had a negative impact on the ability of humanitarian agencies to respond efficiently (NCCI, 18 May 2006 and 3 April 2006). NGOs have made repeated calls for support to assist IDPs, particularly those affected by military operations living in remote areas. In December

2005, 400 people demonstrated in Baghdad calling for aid for IDPs in western Anbar governorate (IRIN, 21 December 2005). While NGOs recognise the value of mechanisms such as the property commission to provide durable solutions for IDPs in the long-term; they also underline that a national policy should provide more immediate solutions. NGOs have called for improved coordination of humanitarian activities and for a special emergency fund to be able to access funds at short notice (NCCI, 18 May 2006).

Further information and links:

The Ministry of Displacement and Migration (MoDM)

For further information, see the website of the MoDM

The Commission for the Resolution of Real Property Disputes (formerly the Iraqi Property Claims Commission - IPCC)

For more information, see the website of the IPCC

The UN Assistance Mission

For further information, see the website of the UN Assistance Mission for Iraq

For the UN's response following the US led intervention in Iraq, see:

UN OCHA, 28 May 2003, "Update: Flash Appeal for the Iraq Crisis" and

UN, 28 March 2003, "Flash Appeal for the Humanitarian Requirements of the Iraq Crisis - Six month Response"

Coordination mechanism: UN Cluster F (formerly Cluster 8) brings together key actors working toward durable solutions for IDPs

See UNAMI Situation Reports for updates on the Cluster's activities.

NGOs

For more information, see the website of the NCCI

Donors

For more information, see the website of the IRFFI

Information about donor support in Iraq may be found in the [donor section of the website of UNAMI](#).

Legal framework and national policy

Iraq is a state party to several international human rights agreements (2005)

"International human rights treaties and applicable constitutional framework

Iraq became a party to the following international human rights instruments, which are therefore binding upon Iraqi institutions:

- The International Covenant on Civil and Political Rights (on 23 March 1976);

- The International Covenant on Economic, Social and Cultural Rights (on 3 January 1976);
- The International Convention for the Elimination of All Forms of Racial Discrimination (on 13 February 1970);
- The Convention on the Elimination of All Forms of Discrimination against Women (on 12 September 1986);
- The Convention on the Rights of the Child (on 15 July 1994).

As mentioned earlier in this report, the Iraqi Governing Council had promulgated a constitutional framework and related legislation that took into account certain aspects of international human rights law. The new Interim Iraqi Government will need to bring these national instruments further into conformity with international human rights law.”

(Source: UNCHR, 9 June 2004, p.35)

Iraq has ratified regional instruments including:

- The Arab Charter on Human Rights
- The Cairo Declaration on Human Rights in Islam, Cairo 5 August 1990
- Declaration on the Protection of Refugees and Displaced Persons in the Arab World, 19 November 1992

(Source: UNHCR, June 2000, pp.8-9)

To view the current state of ratifications by Iraq to the key international human rights treaties, see the [OHCHR's Iraq page](#) [Internet]

Overview: Transitional Administrative Law (2005)

- The Transitional Administrative Law (TAL) came into effect in June 2004 and is valid until 31 December 2005
- It outlines two phases: 1) Dissolution of the Coalition Provisional Authority and full sovereignty to an Iraqi Interim Government by 30 June 2004 2) Election of an Iraqi Transitional Government following elections to be held before 31 January 2005
- System of government envisioned in the TAL is republican, federal, democratic and pluralistic
- Islam will be the official religion of the State and will be considered as a source for legislation
- The Transitional Executive Authority is to be composed of a Presidency, a Council of Ministers and a Prime Minister
- The Kurdish Regional Government will be recognised as an official regional government within Iraq
- Iraq's security is to be overseen by the Iraqi Armed Forces which will partner with the Coalition Forces
- The National Assembly will be responsible for drafting the permanent constitution which will be submitted to the public in a referendum vote by 15 October 2005
- If the Constitution is adopted, elections for a new government under the constitution and the entry of the new government into office will be held no later than 31 December 2005

“The Transitional Administrative Law will be the Supreme Law of Iraq, during the transitional period. It will expire once a government is elected under a permanent constitution and take office. This will happen no later than December 31, 2005.

The transitional period will consist of two phases:

- Phase I: On 30 June 2004, an Iraqi Interim Government will be vested with full sovereignty, and the Coalition Provisional Authority will dissolve. This Iraqi government will be formed through a process of widespread consultation with the Iraqi people and will govern according to the Transitional Administrative Law and an annex to be issued before the beginning of the transitional period.

- Phase II: The Iraqi Transitional Government will take office after elections for the National Assembly. These elections will take place as soon as possible, but no later than 31 January 2005.

The Fundamental Principles of the Law include the following:

- The system of government in Iraq will be republican, federal, democratic, and pluralistic. Federalism will be based on geography, history, and the separation of powers and not on ethnicity or sect.

- The Iraqi Armed Forces will fall under the control of Iraq's civilian political leadership.

- Islam will be the official religion of the State and will be considered a source of legislation. The Law will respect the Islamic identity of the majority of the Iraqi people and guarantee the freedom of religious belief and practice.

- Arabic and Kurdish will be the official languages of Iraq.

The people of Iraq are sovereign and free. All Iraqis are equal in their rights and without regard to gender, nationality, religion, or ethnic origin and they are equal before the law. Those unjustly deprived of their citizenship by previous Iraqi regimes will have the right to reclaim their citizenship. The government will respect the rights of the people, including the rights:

- To freedom of thought, conscience, and expression;
- To assemble peaceably and to associate and organize freely;
- To justice; to a fair, speedy, and open trial and to the presumption of innocence;
- To vote, according to law, in free, fair, competitive and periodic elections;
- To file grievances against officials when these rights have been violated.

The Transitional Iraqi Government will contain checks, balances, and the separation of powers. The federal government will have the exclusive right to exercise sovereign power in a number of critical areas, including the management and control of the following:

- National security policy; independent militias shall be prohibited,
- Foreign policy, diplomatic representation, and border control,
- National fiscal, monetary and commercial policy,
- National resources; revenues from which must be spent on the needs of all of Iraq's regions in an equitable manner.

The Transitional Legislative Authority will be vested in a National Assembly, which will pass laws and help select and oversee the work of the executive authority. The National Assembly will be freely elected by the people of Iraq, under an electoral system designed to achieve representation of women of at least one-quarter of its members, as well as fair representation of all of Iraq's communities.

The Transitional Executive Authority will consist of the Presidency and the Council of Ministers, including the Prime Minister.

- The Presidency Council will consist of the President and two Deputy Presidents, and will be elected by the National Assembly as a group. The Presidency Council will represent the sovereignty of Iraq, may veto laws, and make appointments. All decisions of the Presidency Council will be taken unanimously.

- The Presidency Council will nominate the Prime Minister and, on the recommendation of the Prime Minister, will also nominate the Council of Ministers. All ministers will need to be confirmed in a vote of confidence by the National Assembly.
- The Prime Minister and the Council of Ministers will oversee the day-to-day management of the government.

The Federal Judicial Authority will be independent. A Federal Supreme Court will be created to hear judicial appeals and to ensure that all laws in Iraq are consistent with the Transitional Administrative Law. It will consist of nine members, who will be appointed by the Presidency Council upon the recommendation of an impartial Higher Juridical Council.

Federalism and local government will ensure a unified Iraq and prevent the concentration of power in the central government that enabled decades of tyranny and oppression. This will encourage the exercise of local authority in which all citizens are able to participate actively in political life.

- The Kurdistan Regional Government will be recognized as an official regional government within a unified Iraq, and will continue to exercise many of the functions it currently exercises. Groups of governorates elsewhere in Iraq will be permitted to form regions, and take on additional authorities.
- The governorates will have Governors and Governorate Councils, in addition to municipal, local, and city councils as appropriate.
- All authorities not reserved to the Federal Government may be exercised as appropriate by the governorates and the Kurdistan Regional Government.
- Elections for Governorate Councils throughout Iraq, and also for the Kurdistan National Assembly will be held at the same time as elections for the National Assembly, no later than 31 January 2005.

Iraq's security will be defended by Iraqi Armed Forces, working together with the Coalition. Consistent with Iraq's sovereign status, the Iraqi Armed Forces will play a leading role as a partner in the multinational force helping to bring security to Iraq in the transitional period. The Iraqi Transitional Government will also have the authority to negotiate a security agreement with Coalition forces.

The National Assembly will be responsible for drafting the permanent constitution. After consulting with the Iraqi people and completing a draft, the proposed constitution will be submitted to the public in a referendum, which will occur no later than 15 October 2005. If the constitution is adopted, elections for a new government under the constitution will be held, and the new government will take office no later than 31 December 2005." (IWPR, 2005)

- [Link to "Law of Administration for the State of Iraq for the Transitional Period"](#)
[Internet]

References to the Guiding Principles on Internal Displacement

Known references to the Guiding Principles (as of October 2005)

Reference to the Guiding Principles in the national legislation

UNHCR, October 2005, pp.117-118

"Iraq does not have any particular legislation dealing with the situation of **IDPs** and their rights. Being Iraqi nationals, their rights are guaranteed by the generally applicable laws and regulations. However, and given the extent of the IDP problem in Iraq, MoDM included the full definition contained in the *UN Guiding Principles on Internal Displacement*[...] in the *Draft Law on the Ministry of Migration and Refugee Affairs*. It goes further to state that:

Coordinating, facilitating and supporting the monitoring, protection and assistance of the following categories, and the pursuit of solutions for them, according to the principles of prevailing international laws and practices, including the UN Guiding Principles on Internal Displacement, and taking into account the national interest and internal considerations: a) Iraqi displaced persons.

Therefore, the protection of IDPs is governed by human rights law standards and principles, including the provisions enshrined in the *UN Guiding Principles on Internal Displacement*."

Other References to the Guiding Principles (in chronological order)

None

Availability of the Guiding Principles in local languages

The GP are available in Arabic.
Documents: GP in Arabic [Internet]

Training on the Guiding Principles

UNHCR/IOM/NRC [Workshop on the UN Guiding Principles on Internal Displacement](#), 7-9 September 2004, Amman [Internet]

IDP Unit of UN OCHA, [IDP Guiding Principles Training Workshop](#), 3-4 April 2003, Amman [Internet]

Amman, 10-12 November 2003 Workshop for humanitarian workers in charge of programmes for Internally Displaced Persons (IDPs) in Iraq

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Agence France-Presse (AFP), 20 May 2005, Sectarian killings spark Shiite exodus from Triangle of Death
Internet : <http://www.reliefweb.int/rw/RWB.NSF/db900SID/EVOD-6CKH6N?OpenDocument&Click=> , accessed 9 June 2005

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